

Message 1 of 342

RE: Hellmold Deposition**Sender** showard@agsk.com**Recipients** [razzanof@dsmo.com; clarkb@sullcrom.com Subject: Hellmold Deposition]**File** sanders-r/all_documents/7593.

Yes, McGrath is off. (MacLeod does not want to formally cancel the deposition--posturing about the trial date-but he has assured me that he does not really expect McGrath to start on 6/14. I do not intend to prepare McGrath for any examination until July. He may or may not attend Hellmold's deposition to assist me. So for your planning purposes, if not "for the record," McGrath is off.) Are the two of you available for McGrath's deposition in the 7/9-7/12 time frame? I want to get the schedule pinned down right away, because we don't have many dates to work with.

Could the three of us talk at 5:00 pm east coast time TODAY? Are you in your respective offices or traveling?

Steve Howard phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536 e-mail: showard@agsk.com

"ClarkB@sullcrom.com" 06/07/01 11:20AM >>>

I can talk today or Monday, and I'll be at Malashevich tomorrow. Does this mean that McGrath is definitely off for June 14th? And by the way, everybody fears Frank.

-----Original Message-----

From: showard@agsk.com [mailto:showard@agsk.com] Sent: Thursday, June 07, 2001 2:07 PM To: razzanof@dsmo.com; clarkb@sullcrom.com Subject: Hellmold Deposition

Bruce, is it OK if I notice Hellmold's deposition on 6/13-14 for your offices??

By now you should see that Mr. Hellmold's second report is a 50-page single-spaced document consisting primarily of argument of plaintiff's entire case and written obviously by MacLeod, not Hellmold. MacLeod told me last night that, by virtue of the length and breadth of this second report, MacLeod expects the two of you, in addition to me, to have extensive questions, that he does not intend to argue that you "finished" your questions in the first two-day session of Hellmold's deposition, and that he expects Hellmold's deposition to take up all or substantially all of 6/14 as well as 6/13.

We should probably talk live among the three of us about coordinating our approach to this deposition. By the way, I have it on very good authority that Hellmold fears Frank and is not relishing the prospect of further questions from him. (I can fill you in.)

Steve Howard phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536 e-mail: showard@agsk.com

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ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com 2049 Century Park East
Thirty-Ninth Floor Los Angeles, CA 90067-3213 Tel 310-277-1226 Fax 310-552-6077

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This tra

Message 2 of 342

RE: TDC Corporation	
Sender	richard.sanders@enron.com
Recipients	['andrew.edison@enron.com', 'Alan Aronowitz (E-mail); Laurie Mayer (E-mail);']
File	sanders-r/all_documents/1502.

----- Forwarded by Richard B Sanders/HOU/ECT on 02/14/2001 02:52 PM -----

Linda R Guinn 02/13/2001 01:36 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: RE: TDC Corporation

richard --

i've never heard of this. can you let me know so i can respond to alan?

Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

----- Forwarded by Linda R Guinn/HOU/ECT on 02/13/2001 01:35 PM -----

Alan Aronowitz 02/13/2001 11:45 AM

To: Richard B Sanders/HOU/ECT@ECT, Linda R Guinn/HOU/ECT@ECT cc: Subject: RE: TDC Corporation

Do you know if we have sued a company by the name of TDC Corporation in the Eastern District of Louisiana on a collar agreement?

Please advise. Thanks. ----- Forwarded by Alan Aronowitz/HOU/ECT on 02/13/2001 11:43 AM -----

Marilyn C Maloney <mcmaloney@Liskow.com> 02/13/2001 09:40 AM

To: "Alan.Aronowitz@enron.com" <Alan.Aronowitz@enron.com> cc: Subject: RE: Conflict

Alan, sorry I was not clear. I understand now that Enron has sued TDC in the Eastern District of Louisiana and we are or will be representing TDC in that lawsuit. Again, if that knocks us out of the Orion deal, we are sorry to lose the opportunity to work with you, but understand. If you are not uncomfortable with our representation of TDC in this unrelated matter, TDC has agreed to waive the conflict. Marilyn

Marilyn C. Maloney Liskow & Lewis Suite 5000, One Shell Square 701 Poydras Street New Orleans, LA 70139-5099
504-581-7979 (main) 504-556-4138 (direct) 504-556-4108 (fax) mcmaloney@liskow.com CONFIDENTIALITY
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-----Original Message-----

From: Alan.Aronowitz@enron.com [mailto:Alan.Aronowitz@enron.com] Sent: Monday, February 12, 2001 5:26 PM To: mcmaloney@Liskow.com Cc: Alan Aronowitz (E-mail); Laurie Mayer (E-mail); John.Viverito@enron.com Subject: Re: Conflict

Marilyn:

Sorry, it has taken me awhile to respond.

Could you clarify that Liskow & Lewis is not representing TDC in a proceeding against Enron?

Thanks.

Marilyn C

Maloney To: "Laurie Mayer (E-mail)" <laurie.mayer@enron.com>, "Alan Aronowitz <mcmaloney@Li (E-mail)" <alan.aronowitz@enron.com> skow.com> cc:

Subject: Conflict

02/07/2001

11:31 AM

Laurie and Alan: confirming my call with Laurie today, our existing client has waived the potential conflict we mentioned, and I ask your advice as to whether Enron would also be willing to waive.

The potential conflict is in a totally unrelated matter. We represent TDC Corporation. I understand that there is a dispute between TDC and Enron relating to a collar agreement. I am not certain if this is merely in dispute or if it is the subject of litigation at this point.

If Enron is not interested in our undertaking the representation at the Orion facility, we certainly understand. If it is, would it be possible to obtain a waiver of the unrelated conflict?

Thank you for your patience in this matter. Marilyn

Marilyn C. Maloney Liskow & Lewis Suite 5000, One Shell Square 701 Poydras Street New Orleans, LA 70139-5099 504-581-7979 (main) 504-556-4138 (direct) 504-556-4108 (fax) mcmaloney@liskow.com CONFIDENTIALITY STATEMENT This electronic message contains information from the law firm of Liskow & Lewis that is or may be confidential or privileged. The information is intended to be for the use of the individual or entity named above. If you are not the intended recipient, be aware that any disclosure, copying, distribution or use of the contents of this message is prohibited. If you have received this electronic message in error, please notify us immediately by telephone at (504) 581-7979

Message 3 of 342

Re: McConville Consulting Agreement

Sender	linda.guinn@enron.com
Recipients	['richard.sanders@enron.com']
File	sanders-r/all_documents/2178.

I talked to Claudia about this and she says that she has not seen it since we found it some two months ago and gave you the only executed copy we could find. We checked with the vault to see if they had a copy. They do not. I searched your green files and miscellaneous papers in your office -- all to no avail. Can you remember what you did with the copy I gave you?

Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

Richard B Sanders 06/04/2001 07:01 AM

To: Linda Guinn cc: Subject: Re: McConville Consulting Agreement

What's up? ----- Forwarded by Richard B Sanders/HOU/ECT on 06/04/2001 07:01 AM -----

showard@agsk.com 06/01/2001 08:12 PM

To: Linda.Guinn@enron.com, Richard.B.Sanders@enron.com cc: Subject: Re: McConville Consulting Agreement

I haven't received this agreement yet.

Steve

"Richard.B.Sanders@enron.com" 05/25/01 04:34AM >>>

By copy of this e-mail, I have asked Linda Guinn(713-853-6104) to get you a copy of the McConville consulting agreement asap.

showard@agsk. com To: Richard.B.Sanders@enron.com

cc: 05/24/2001 Subject: McConville Consulting Agreement 07:33 PM

Gary Grote is okay on producing this agreement. Can you send me a copy? Thanks

Steve

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RE: McConville Consulting Agreement

Sender	b..sanders@enron.com
Recipients	[r..guinn@enron.com]
File	sanders-r/sent_items/271.

I am sure I filed it. You can't give up on this. Either we have it or Gary = Grote has it.

-----Original Message-----

From: =09Linda R Guinn =20 Sent:=09Tuesday, June 05, 2001 7:58 PM To:=09Richard B Sanders Subject:=09Re: McConville Consulting Agreement

I talked to Claudia about this and she says that she has not seen it since = we found it some two months ago and gave you the only executed copy we coul= d find. We checked with the vault to see if they had a copy. They do not.= I searched your green files and miscellaneous papers in your office -- al= I to no avail. Can you remember what you did with the copy I

gave you?

Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

=09Richard B Sanders 06/04/2001 07:01 AM =09 To: Linda Guinn cc: Subje= ct: Re: McConville Consulting Agreement=09

What's up? ----- Forwarded by Richard B Sanders/HOU/ECT on 06/04/2001 07:01 AM -----

=09showard@agsk.com 06/01/2001 08:12 PM =09 To: Linda.Guinn@enron.com, Ri= chard.B.Sanders@enron.com cc: Subject: Re: McConville Consulting Agreeeme= nt=09

I haven't received this agreement yet.

Steve

"Richard.B.Sanders@enron.com" 05/25/01 04:34AM >>>

By copy of this e-mail, I have asked Linda Guinn(713-853-6104) to get you a copy of the McConville consulting agreement asap.

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Steve

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Message 5 of 342

RE: Wright Case -- Enron

Sender	richard.sanders@enron.com
Recipients	['carol_alexander@anadarko.com', 'ghrothschild@marathonoil.com']
File	sanders-r/all_documents/1179.

Andy Edison(andy.edison@enron.com) will represent Enron. He is out until Dec 27th.

Carol Alexander <carol_alexander@anadarko.COM> 12/19/2000 04:32 PM

To: "'Tetrault, Charles D.'" <ctetrault@velaw.com>, "Rothschild, George (Marathon)" <ghrothschild@marathonoil.com> cc: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com> Subject: RE: Wright Case -- Enron

Please advise whether Mr. Tetrault or Mr. Sanders will represent Enron on the Wright Steering Committee. We have agreed to make a concerted effort to obtain the approval of all Steering Committee members in connection with significant group decisions.

Regards,

Carol A. Alexander Counsel Anadarko Petroleum Corporation 1200 Timberloch Place The Woodlands, TX 77380
Phone:(281) 863-7541 Fax: (281) 863-7538 E-mail: carol_alexander@anadarko.com Mailing: P.O. Box 1330, Houston, TX 77251-1330

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-----Original Message----- From: Tetrault, Charles D. [SMTP:ctetrault@velaw.com] Sent: Monday, December 04, 2000 4:23 PM
To: Rothschild, George (Marathon) Cc: Richard B. Sanders (E-mail) Subject: Wright Case -- Enron Chip, Responding to your message, the Enron in-house attorney with responsibility for the Wright case is Richard Sanders. His e-mail address, which can be copied from the cc: field above, is Richard.B.Sanders@enron.com. His telephone number is 713.853.5587. His fax number is 713.646.3490. Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax] +++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

Message 6 of 342

Re: FW: Wright Case -- Enron

Sender	richard.sanders@enron.com
Recipients	['ctetrault@velaw.com', 'andrew.edison@enron.com']
File	sanders-r/all_documents/1178.

Andy Edison (andrew.edison.com) will be the future rep. on this committee.

"Tetrault, Charles D." <ctetrault@velaw.com> 12/19/2000 04:45 PM

To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com> cc: Subject: FW: Wright Case -- Enron

It is not clear to me what precipitated this most inquiry from Anadarko or why it is being made at this time. I thought that we had gotten over this hump.

Assuming that you are not anxious for this task, I propose that I tell them that, because you are currently tied up on other matters, I will be the temporary representative on the committee and that after the holidays we will be back in touch further.

Such a response would parry this somewhat odd inquiry / statement, and will allow us to reassess the situation when Andy gets on board and gets his feet wet.

Agree?

-----Original Message-----

From: Carol Alexander [mailto:carol_alexander@anadarko.COM] Sent: Tuesday, December 19, 2000 5:33 PM To: 'Tetrault, Charles D.'; Rothschild, George (Marathon) Cc: Richard B. Sanders (E-mail) Subject: RE: Wright Case -- Enron

Please advise whether Mr. Tetrault or Mr. Sanders will represent Enron on the Wright Steering Committee. We have agreed to make a concerted effort to obtain the approval of all Steering Committee members in connection with significant group decisions.

Regards,

Carol A. Alexander Counsel Anadarko Petroleum Corporation 1200 Timberloch Place The Woodlands, TX 77380
Phone:(281) 863-7541 Fax: (281) 863-7538 E-mail: carol_alexander@anadarko.com Mailing: P.O. Box 1330, Houston, TX 77251-1330

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-----Original Message----- From: Tetrault, Charles D. [SMTP:ctetrault@velaw.com] Sent: Monday, December 04, 2000 4:23 PM To: Rothschild, George (Marathon) Cc: Richard B. Sanders (E-mail) Subject: Wright Case -- Enron Chip, Responding to your message, the Enron in-house attorney with responsibility for the Wright case is Richard Sanders. His e-mail address, which can be copied from the cc: field above, is Richard.B.Sanders@enron.com. His telephone number is 713.853.5587. His fax number is 713.646.3490. Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008 ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax] +++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

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Message 7 of 342

RE: Ste. Aurelie Timberlands Co., Ltd.	
Sender	charles.cheek@enron.com
Recipients	['becky.stephens@enron.com', 'kate.cole@enron.com', 'deb.korkmas@enron.com', 'mark.haedicke@enron.com', 'peter...']
File	sanders-r/all_documents/2133.

Works for me.

Deb -- Unless you or Mark Haedicke advise otherwise, Becky Stephens will process SOP for Ste. Aurelie Timberlands as she does for other companies in the Enron Wholesale Group, i.e. Service Recipient -- Richard Sanders; Copy Recipient -- Linda Guinn; ELU Contact -- Bonnie White.

Kate -- Please confirm with Becky when the change of agent has been effected.

Deb and Kate -- During the interim, I understand that service will be handled by the current agent and notice of service will be issued by that agent to whomever Deb has designated. If that is to be Becky during this transition, Deb will need to so instruct the current agent with a copy of the instructions to Becky.

Thanks.

-----Original Message-----

From: Cole, Kate Sent: Thursday, May 31, 2001 6:00 PM To: Korkmas, Deb; Cheek, Charles Cc: Stephens, Becky; Haedicke, Mark; del Vecchio, Peter; Miller, Peggy Subject: RE: Ste. Aurelie Timberlands Co., Ltd.

Thanks Deb. We'll proceed to prepare change of agent forms. Will you also be able to provide information on officer or director slates? At present we have no info. at all so we will not be able to get a signature(s) on the forms.

Please advise whether minute books, seals, stock certs., etc. will continue to be maintained by Canadian counsel in Quebec.

Which are the "documents" referred to in your message below?

Thanks for your help. It's much appreciated.

Best regards Kate

Kate B. Cole Director, Corporate Services Enron Corp. Tel: (713) 853-1624 Fax: (713) 646-8007 Email: kate.cole@enron.com

-----Original Message-----

From: Korkmas, Deb Sent: 31 May, 2001 4:48 PM To: Cheek, Charles Cc: Stephens, Becky; Cole, Kate; Haedicke, Mark; del Vecchio, Peter Subject: RE: Ste. Aurelie Timberlands Co., Ltd.

Kate, I think it will be ok to change the registered agent on Ste. Aurelie Timberlands and as soon as I receive documents I will forward to you. I left another voice mail yesterday for the asst. secty, Pat Riggy. I will also call again tomorrow. Thanks, Deb

Deb Korkmas EWS Legal Dept. 1400 Smith Street, Room 3834A Houston, TX 77002 Phone: 713-853-5448 Fax: 713-646-3393

Charles Cheek/ENRON@enronXgate 05/29/2001 06:36 PM To: Kate Cole/ENRON@enronXgate, Deb Korkmas/HOU/ECT@ECT cc: Peter del Vecchio/HOU/ECT@ECT, Mark E Haedicke/HOU/ECT@ECT, Becky Stephens/ENRON@enronXgate Subject: RE: Ste. Aurelie Timberlands Co., Ltd.

Good news.

-----Original Message-----

From: Cole, Kate Sent: Tuesday, May 29, 2001 3:14 PM To: Cheek, Charles; Korkmas, Deb Cc: del Vecchio, Peter; Haedicke, Mark; Stephens, Becky Subject: RE: Ste. Aurelie Timberlands Co., Ltd.

A slight clarification: SOP is currently made on an individual: John J. Flaherty, 443 Congress St., P.O.Box 11410, Portland, ME 04104-7410. Mr. J.M.Gagne' of Fasken Martineau Dumoulin, a law firm in Quebec, handles the corporate records but not SOP. KC

Kate B. Cole Director, Corporate Services Enron Corp. Tel: (713) 853-1624 Fax: (713) 646-8007 Email: kate.cole@enron.com

-----Original Message-----

From: Cheek, Charles Sent: 29 May, 2001 2:52 PM To: Korkmas, Deb Cc: del Vecchio, Peter; Haedicke, Mark; Cole, Kate; Stephens, Becky Subject: Ste. Aurelie Timberlands Co., Ltd.

I understand that you have expressed a preference that service of process upon this recently acquired domestic company be received by Canadian counsel. This is contrary to the procedure that we implemented a couple of years ago, whereby a corporate agent has been assigned as agent for service of process relative to all domestic entities affiliated with Enron Corp. in all states. Currently, that agent is NRAI.

There are two exceptions -- PGE and Limbach. Both of these companies requested and were granted exceptions to the SOP procedure for specific business needs.

Please provide me the basis for the requested exception as to the captioned company. Of course, we will make every effort to accommodate the specific business needs of this company. Also, please advise whether you or someone on your behalf has determined that the laws in each state in which the company is incorporated and does business permits SOP on a foreign individual.

Thanks.

Message 8 of 342

RE: Ste. Aurelie Timberlands Co., Ltd.

Sender	b..sanders@enron.com
Recipients	['becky.stephens@enron.com', 'cheek'.charles@enron.com"]
File	sanders-r/sent_items/274.

I have lost track of this. Is there an actual matter? Who is handling?

-----Original Message-----

From: Charles Cheek Sent: Friday, June 01, 2001 2:36 PM To: Kate Cole; Deb Korkmas Cc: Becky Stephens; Mark E Haedicke; Peter del Vecchio; Peggy Miller; Mark E Haedicke; Richard B Sanders; Linda R Guinn; Bonnie White; Britt Davis Subject: RE: Ste. Aurelie Timberlands Co., Ltd.

Works for me.

Deb -- Unless you or Mark Haedicke advise otherwise, Becky Stephens will process SOP for Ste. Aurelie Timberlands as she does for other companies in the Enron Wholesale Group, i.e. Service Recipient -- Richard Sanders; Copy Recipient -- Linda Guinn; ELU Contact -- Bonnie White.

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Thanks.

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Thanks for your help. It's much appreciated.

Best regards Kate

Kate B. Cole Director, Corporate Services Enron Corp. Tel: (713) 853-1624 Fax: (713) 646-8007 Email: kate.cole@enron.com

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Deb Korkmas EWS Legal Dept. 1400 Smith Street, Room 3834A Houston, TX 77002 Phone: 713-853-5448 Fax: 713-646-3393

Charles Cheek/ENRON@enronXgate 05/29/2001 06:36 PM To: Kate Cole/ENRON@enronXgate, Deb Korkmas/HOU/ECT@ECT cc: Peter del Vecchio/HOU/ECT@ECT, Mark E Haedicke/HOU/ECT@ECT, Becky Stephens/ENRON@enronXgate Subject: RE: Ste. Aurelie Timberlands Co., Ltd.

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-----Original Message-----

From: Cheek, Charles Sent: 29 May, 2001 2:52 PM To: Korkmas, Deb Cc: del Vecchio, Peter; Haedicke, Mark; Cole, Kate; Stephens, Becky Subject: Ste. Aurelie Timberlands Co., Ltd.

I understand that you have expressed a preference that service of process upon this recently acquired domestic company be received by Canadian counsel. This is contrary to the procedure that we implemented a couple of years ago, whereby a corporate agent has been assigned as agent for service of process relative to all domestic entities affiliated with Enron Corp. in all states. Currently, that agent is NRAI.

There are two exceptions -- PGE and Limbach. Both of these companies requested and were granted exceptions to the SOP procedure for specific business needs.

Please provide me the basis for the requested exception as to the captioned company. Of course, we will make every effort to accommodate the specific business needs of this company. Also, please advise whether you or someone on your

behalf has determined that the laws in each state in which the company is incorporated and does business permits SOP on a foreign individual.

Thanks.

Message 9 of 342

Re: References

Sender	sheila.tweed@enron.com
Recipients	['richard.sanders@enron.com', 'karen.jones@enron.com']
File	sanders-r/all_documents/3903.

Any help you could give on running these references would be appreciated. I have only called the cliets. -----
Forwarded by Sheila Tweed/HOU/ECT on 02/08/2000 10:33 AM -----

ALarsen120@aol.com on 01/28/2000 12:54:22 PM To: Sheila Tweed/HOU/ECT@ECT cc: Subject: Re: References

Sheila: Here are some energy industry references. I don't think you want a long, long list, so I am giving you people that cover a fairly broad spectrum of roles in the industry and relationships with me.

Jay Waldron--former law partner, then-head of practice group, and member of firm executive committee at my law firm, from which the Cable, Huston group broke away while I was heading the DC office Schwabe, Williamson & Wyatt 1211 SW 5th Avenue Portland, OR 97204 503-222-9981

Mike Childers--sometimes my client, when he was with Diamond and then Enron; sometimes on other side of table, as developer on projects where we represented utility purchaser Edison Mission Energy 18101 Van Karman Avenue Irvine, CA 92612 949-798-7852

Fergus Pilon, General Manager--utility client Columbia River PUD PO Box 1193 St. Helens, OR 95051 503--366-3260

Al Alexanderson, Portland General--participated in many of the same proceeding, usually on behalf of different clients, sometimes working together in coalition on issues, sometimes opposing each other.

Bill Drummond, General Manager--client in some circumstances, as well as colleague in proceedings and projects where I represented other parties Western Montana G&T 1001 SW Higgins, Panarama Park, Suite 206 Missoula, MT 59803 406-721-0945

Message 10 of 342

Subpoena from the Attorney General of California and FERC

Sender	mary.hain@enron.com
Recipients	['mday@gmsr.com', 'richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/37.

Mike - please prepare a request for confidential treatment of this responses as you have been doing for all the other data requests. ----- Forwarded by Mary Hain/HOU/ECT on 10/06/2000 12:09 PM

Enron Capital & Trade Resources Corp.

From: "Fuller, Don" <DFuller@caiso.com>@caiso.com> 10/06/2000 11:30 AM

Sent by: "Happ, Susan" <SHapp@caiso.com> To: ISO Market Participants
<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTI
CIPANTS@caiso.com> cc: Subject: Subpoena from the Attorney General of California and FERC

Market Participants and Scheduling Coordinators: The California ISO has received the attached subpoena from the Attorney General of California. The ISO intends to request confidential treatment for information that is listed in ISO tariff section 20.3.2. The ISO will keep Market Participants apprised of the result of its request. However, the ISO's activities do not absolve Market Participants and Scheduling Coordinators from their right and responsibility to themselves seek confidential treatment for confidential information pursuant to ISO tariff section 20.3.4.

In addition, the California ISO has received the attached requests for data (9 and 10) from the Federal Energy Regulatory Commission (FERC) in the context of FERC's Bulk Power Investigation (the nationwide fact-finding probe of electric markets and recent price spikes). To the extent the requests includes a request for information that is listed in ISO tariff section 20.3.2., the ISO will seek confidential treatment for such information pursuant to 18 C.F.R. 388.112.

Any concerns relating to the subpoena and data requests should be communicated by close of business on Monday, October 9 to Jeanne Sole at 916-608-7144 and jsole@caiso.com and copied to Beth Ann Burns at bburns@caiso.com, Charlie Robinson at crobenson@caiso.com and Norma Formanek at nformanek@fbm.com. The Attorney General contact on the subpoena is Richard Rochman (415) 703-1404. The FERC contact on the data request is Robert Pease at (202) 208-0131, robert.pease@ferc.fed.us <mailto:robert.pease@ferc.fed.us> .

Jeanne M. Sol, Regulatory Counsel California ISO (916) 608-7144

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- 10-6AGSubpoena.pdf Message-ID: <s9dcc1cf.018@internet> From: Lyle Hanagami <lyle.hanagami@ferc.fed.us> To: EHildebrandt@caiso.com, jsole@caiso.com Cc: crobenson@caiso.com, skarpinen@caiso.com, Robert Pease <robert.pease@ferc.fed.us>, William Meroney <william.meroney@ferc.fed.us> Subject: ISO-9, May/Jun 98 HA forecast and ISO-10 Date: Thu, 5 Oct 2000 15:00:38 -0700 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2650.21) Content-Type: multipart/mixed; boundary="----_=_NextPart_002_01C02FC3.875581B0"

Attached are ISO-9 and ISO-10 which will be followed by a fax copy. For ISO-10, I will be faxing a sample of the data I am looking for which is the "projected Daily Operating Loads and Resources" report (confidential data eliminated)

Any concerns regarding this data request, please contact Lyle Hanagami at (202) 208-0103. As for processing of your responses to FERC, please email your responses to Lyle Hanagami or if you decide to mail or FAX your response, please use the following address or FAX #:

Mailing: Federal Energy Regulatory Commission OMTR-Energy Markets c/o Lyle Hanagami, Room 82-59 888 First St. N.E. Washington, D.C. 20426

Phone: (202) 208-0103

E-mail lyle.hanagami@ferc.fed.us

FAX: (202) 208-1010

- ISO-10.wpd - ISO-9.wpd - CoverLtr5.wpd

Message 11 of 342

Fwd: RE: Motions in Limine

Sender	showard@agsk.com
Recipients	['wcp@quinnemanuel.com', 'richard.b.sanders@enron.com']
File	sanders-r/notes_inbox/363.

Ruling was as follows: if a witness appears on P's witness list AND was deposed in the California cases and is within the "control" of a defendant (only Barth at most, for us), then plaintiff and that defendant meet and confer to determine whether

that witness will appear live in P's case or in D's case with cross-examination NOT limited to direct examination in either instance (unless defendant agrees to produce the witness twice, in which case ordinary rules apply.) If a defendant claims that a witness is not within its control, the court will look very skeptically on any effort by that defendant to produce that witness later in its own case.

Hennigan tried to make the ruling include McConville and Glanville, but I beat him back on that. Also, defendants do NOT have to identify their own witnesses until all parties do so simultaneously. Hennigan tried to make the defense go first but judge wouldn't buy it.

I suggested that the Final Status Conference be moved from 7/9 to 7/23 (since summary judgment motions won't be heard til 7/17.). Judge Berle seemed to have some inclination to do this but said to raise the subject on 6/21, when the motion to continue the trial is heard.

Steve

"wcp@quinnemanuel.com" 06/05/01 10:27AM >>>

A very promising response. Steve, what happened with at the ex parte hearings?

<showard@agsk.com> 06/05/01 10:21AM >>>

see below

.....

ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com 2049 Century Park East
Thirty-Ninth Floor Los Angeles, CA 90067-3213 Tel 310-277-1226 Fax 310-552-6077

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.....

.....

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.....

Message 12 of 342

Gary Fergus Contact Information

Sender	lmeyer2@brobeck.com
Recipients	[richard.b.sanders@enron.com]
File	sanders-r/iso__pricecaps/35.

Here is Gary's contact information.

Thanks. Laurie

Gary S. Fergus Brobeck, Phleger & Harrison, LLP One Market Plaza Spear Street Tower San Francisco, CA 94105 (415) 442-1284 Direct Line (415) 979-2616 Facsimile (415) 279-2770 Cell

(415) 567-3129 Home (415) 669-1531 Weekends

Laurie C. Meyer Assistant to Gary S. Fergus Brobeck, Phleger & Harrison, LLP (415) 979-2994 Direct Dial

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

Message 13 of 342

ETC Agreements

Sender	showard@agsk.com
Recipients	['ogletreeb@dsmo.com']
File	sanders-r/all_documents/7526.

Enron has confirmed that you have all settlement/cooperation agreements between Enron, or affiliates, and any NSM plaintiffs other than routine accommodations among counsel.

Steve Howard phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536 e-mail: showard@agsk.com

.....

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.....

Message 14 of 342

Second Day of Ralph Hellmold deposition

Sender	showard@agsk.com
Recipients	['jgoldblatt@agsk.com', 'rtellis@milbank.com', 'richard.b.sanders@enron.com']
File	sanders-r/all_documents/1893.

Here's my report on the second (and more significant) day of the deposition of Ralph Hellmold, plaintiffs' disclosure and due diligence expert.

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536
e-mail: showard@agsk.com

.....

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..... - Report on Hellmold Day #2.doc

Message 15 of 342

NSM litigation

Sender	showard@agsk.com
Recipients	['brian.barth@enron.com', 'richard.b.sanders@enron.com']
File	sanders-r/nsm/99.

Take a look at the attached memo from our expert witness, Gerry McGrath, and give me a call.

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536
e-mail: showard@agsk.com

.....

ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

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..... - ECT - Model Ques..doc

Message 16 of 342

Hellmold

Sender	richard.sanders@enron.com
Recipients	['richard.lydecker@enron.com', 'brandi.morris@enron.com']
File	sanders-r/sent/1015.

If I am giving you too much info, let me know. ----- Forwarded by Richard B Sanders/HOU/ECT on 04/20/2001 09:13 AM

showard@agsk.com 04/20/2001 12:40 AM

To: Richard.B.Sanders@enron.com cc: RTellis@milbank.com Subject: Hellmold

Report on Day #1

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536
e-mail: showard@agsk.com

.....
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..... - Report on Hellmold Day #1.doc

Message 17 of 342

Electronic Copy of Report of F. Gerard McGrath on Behalf of ECT

Sender	showard@agsk.com
Recipients	['razzanof@dsmo.com', 'kpatrick@gibbs-bruns.com', 'macleodb@hbdlawyers.com']
File	sanders-r/all_documents/1823.

Attached for counsel in the Farallon and Legg Mason actions, and for Tom and Kathy, whom I understand to be the counsel principally retaining Messrs. Hellmold and Daines respectively, is an electronic copy of the report of ECT Securities' due diligence expert. Hard copies will also be sent.

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536
e-mail: showard@agsk.com

.....
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..... - McGrath Report.doc

Message 18 of 342

McConville	
Sender	showard@agsk.com
Recipients	['dcweiner@hahnlaw.com', 'richard.b.sanders@enron.com']
File	sanders-r/nsm/179.

Dave,

Kevin McConville was deposed yesterday in Houston. His rough transcript is attached.

The deposition questioner jumped around and never went through the whole story front to back, so you may not find this that helpful. However, there is a passage near the end where Kevin talks directly about Schultes' getting fired. You should be able to find this quickly by doing a word search on Schultes.

Steve Howard phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536 e-mail: showard@agsk.com

.....

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..... - 18.TXT

Message 19 of 342

McGrath Report	
Sender	richard.sanders@enron.com
Recipients	['travis.mccullough@enron.com']
File	sanders-r/sent/985.

----- Forwarded by Richard B Sanders/HOU/ECT on 04/16/2001 10:05 AM -----

showard@agsk.com 04/16/2001 09:39 AM

To: brian.barth@enron.com, Richard.B.Sanders@enron.com cc: Subject: McGrath Report

Here is the draft McGrath report. Sorry it wasn't attached to Friday's e-mail.

Brian, the changes that you and I discussed on Friday are being made, but are not in this draft.

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536 e-mail: showard@agsk.com

.....

ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

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..... - Draft McGrath Report.doc

Message 20 of 342

Re: Engagement Letter for NSM Cases

Sender	richard.sanders@enron.com
Recipients	[showard@agsk.com]
File	sanders-r/sent/1023.

This letter looks fine. Please send me a hard copy.

showard@agsk.com 04/16/2001 08:17 PM

To: Richard.B.Sanders@enron.com cc: Subject: Engagement Letter for NSM Cases

I figure that the draft engagement letter between Enron and AGSK got pretty far down in your piles these last several weeks, so I am taking the liberty of attaching the current draft to this e-mail. This matter is sufficiently significant that we really should have a memorialization of the terms of our engagement.

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536
e-mail: showard@agsk.com

.....

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..... - Engagement Letter.doc

Message 21 of 342

Gerry McGrath

Sender	richard.sanders@enron.com
Recipients	[twanda.sweet@enron.com]
File	sanders-r/sent/963.

Please handle ----- Forwarded by Richard B Sanders/HOU/ECT on 04/11/2001 06:33 AM -----

showard@agsk.com 04/10/2001 03:48 PM

To: Richard.B.Sanders@enron.com cc: Subject: Gerry McGrath

After you fax the signed engagement letter to Gerry McGrath, please fed ex him the signed original so that he gets it tomorrow.

Thanks.

Sorry to bug you about these details, but I just need to get Gerry settled and get a good report out of him (which I think we will)

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536
e-mail: showard@agsk.com

.....
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.....
Message 22 of 342

Re: McConville, Glanville

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com', 'showard@agsk.com']
File	sanders-r/sent/889.

I am sending you a copy of the subpoena "served" on Glanville. I have just left him a voicemail to confirm, but the last time I talked to him he told me this subpoena had been sent to Reliant's legal dept. You will notice that it is only signed by Dickstein Shapiro, not a Texas court reporter. I doubt it is effective. Feel free to call Glanville if you like. His no. is on the document. Gary Grote called yesterday to tell me that Kevin was "served" last Sat the 3rd. I have asked Gary to send me a copy and Linda Guinn will be following up with him. Linda's no. is 713-853-6104. Gary Grote's no. is 713-650-3131. Of course you can always call Kevin. I am on spring Break but am checking messages. My cell no. is 713-410-6128.

showard@agsk.com 03/07/2001 06:47 PM

To: richard.b.sanders@enron.com cc: Subject: McConville, Glanville

Have you found out whether either Glanville or McConville has been properly, or even improperly, served with a subpoena for their depositions in Texas?

.....
ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

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Message 23 of 342

Hellmold Deposition

Sender	showard@agsk.com
Recipients	['razzanof@dsmo.com', 'clarkb@sullcrom.com']
File	sanders-r/all_documents/7588.

Bruce, is it OK if I notice Hellmold's deposition on 6/13-14 for your offices??

By now you should see that Mr. Hellmold's second report is a 50-page single-spaced document consisting primarily of argument of plaintiff's entire case and written obviously by MacLeod, not Hellmold. MacLeod told me last night that, by virtue of the length and breadth of this second report, MacLeod expects the two of you, in addition to me, to have extensive questions, that he does not intend to argue that you "finished" your questions in the first two-day session of Hellmold's deposition, and that he expects Hellmold's deposition to take up all or substantially all of 6/14 as well as 6/13.

We should probably talk live among the three of us about coordinating our approach to this deposition. By the way, I have it on very good authority that Hellmold fears Frank and is not relishing the prospect of further questions from him. (I can fill you in.)

Steve Howard phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536 e-mail: showard@agsk.com

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Message 24 of 342

FW: John W. Schultes v. McDonald Investments, etal

Sender	bonnie.white@enron.com
Recipients	['Cole', 'Lisa', 'richard.sanders@enron.com', 'James P.', 'Robichaux', 'Rob; Studdert']
File	sanders-r/notes_inbox/47.

The following e-mail from Rob Cole relates to the NSM case that was filed in Ohio. We need to provide him the name of our Ohio counsel, any engagement agreement with counsel, any invoices you have received to date on this matter, and copies of our answer and any other pleadings that have been filed. We also need to ask outside counsel to provide a preliminary exposure evaluation. Please let me know with whom I should work to gather this

information. Also, please send me a copy of the interrogatory response in= =20 the California case that you mentioned to me in the last week or so, so tha= t=20 we can revisit coverage on that matter. Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

-----Original Message-----

From: Cole, Rob =20 Sent: Thursday, June 07, 2001 6:33 AM To: White, Bonnie Cc: Cole, Rob; Studdert, James P.; Robichaux, Lisa Subject: John W. Schultes v. McDonald Investments, etal

Bonnie, Jim Studdert has assigned me the lawsuit of John W. Schultes v.=20 McDonald Investments, etal., wherein ENA and ECT Thailand are named=20 defendants.

I have reviewed the lawsuit and have determined there is an obligation to= =20 defend this entire matter given the allegations associated with =01&Persona= l=20 injury=018, which means injury, other than "bodily injury", arising out of = oral=20 or written publication of material that slanders or libels a person or=20 organization or disparages a person's or organization's goods, products or= =20 services, and/or oral or written publication of material that violates a=20 person's right of privacy.

A review of the Complaint indicates there are allegations associated with= =20 Defamation Per Se, Defamation Per Quod, and Invasion of Privacy. All of th= e=20 other allegations are predicated on =01&intentional=018 conduct/activity, w= hich=20 would not constitute an =01&occurrence=018 which has resulted in =01&bodily= injury=018 or=20 =01&property damage=018. Thus, while we will defend the entire lawsuit, we= will=20 only contribute to a settlement or respond to an award for damages associat= ed=20 with the aforementioned counts, assuming such were not made with knowledge = of=20 their falsity.

I note suit was filed on February 22, 2001. As such, please immediately=20 provide me with the following for our file:

* The identity of defense counsel and a copy of the Engagement Agreement=20 which was provided to them (please include copies of all required monthly= =20 billing statements which they have submitted thus far so we can consider=20 reimbursement to the operating company from the date we were first given=20 notice of this matter). * Provide a copy of the Answer and any other pleadings filed to-date. * Have defense counsel provide their analysis of our alleged exposure, if n= ot=20 done already. * Advise who is the assigned ELU Legal Assistant assigned to this matte= r=20 so we can advise them to copy us on all correspondence going forward.

Following receipt of the above, it may be a good idea to meet and discuss= =20 this matter. Let me know if you have any questions. Thanks,

Rob Cole, Manager-Claims ENA - Global Risk Markets P.O. Box 1188 (77251-1188) 1400 Smith Street, EB2136F Houston, Texas 77002 713-853-7739 (telephone) 713-646-2341 (facsimile) Rob.Cole@Enron.com (email)

Message 25 of 342

RE: John W. Schultes v. McDonald Investments, etal	
Sender	b..sanders@enron.com
Recipients	['r..guinn@enron.com', 'white'. 'bonnie@enron.com']
File	sanders-r/sent_items/266.

The atty is Charna Sherman at Hahn Looser in Cleveland. By copy of this e-mail, I have asked Linda Guinn to take the lead in getting you this information.Linda-- I need to also find the Plaintiff interrogatory response in the CA NSM case to send to Bonnie. I sent the Int. to Dick Lydecker recently.

-----Original Message-----

From: Bonnie White Sent: Thursday, June 07, 2001 2:41 PM To: Richard B Sanders Subject: FW: John W. Schultes v. McDonald Investments, etal

The following e-mail from Rob Cole relates to the NSM case that was filed in Ohio. We need to provide him the name of our Ohio counsel, any engagement agreement with counsel, any invoices you have received to date on this matter, and copies of our answer and any other pleadings that have been filed. We also need to ask outside counsel to provide a preliminary exposure evaluation. Please let me know with whom I should work to gather this information. Also, please send me a copy of the interrogatory response in the California case that you mentioned to me in the last week or so, so that we can revisit coverage on that matter. Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

-----Original Message-----

From: Cole, Rob Sent: Thursday, June 07, 2001 6:33 AM To: White, Bonnie Cc: Cole, Rob; Studdert, James P.; Robichaux, Lisa Subject: John W. Schultes v. McDonald Investments, etal

Bonnie, Jim Studdert has assigned me the lawsuit of John W. Schultes v. McDonald Investments, etal., wherein ENA and ECT Thailand are named defendants.

I have reviewed the lawsuit and have determined there is an obligation to defend this entire matter given the allegations associated with "Personal injury", which means injury, other than "bodily injury", arising out of oral or written publication of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services, and/or oral or written publication of material that violates a person's right of privacy.

A review of the Complaint indicates there are allegations associated with Defamation Per Se, Defamation Per Quod, and Invasion of Privacy. All of the other allegations are predicated on "intentional" conduct/activity, which would not constitute an "occurrence" which has resulted in "bodily injury" or "property damage". Thus, while we will defend the entire lawsuit, we will only contribute to a settlement or respond to an award for damages associated with the aforementioned counts, assuming such were not made with knowledge of their falsity.

I note suit was filed on February 22, 2001. As such, please immediately provide me with the following for our file:

* The identity of defense counsel and a copy of the Engagement Agreement which was provided to them (please include copies of all required monthly billing statements which they have submitted thus far so we can consider reimbursement to the operating company from the date we were first given notice of this matter). * Provide a copy of the Answer and any other pleadings filed to-date. * Have defense counsel provide their analysis of our alleged exposure, if not done already. * Advise who is the assigned ELU Legal Assistant assigned to this matter so we can advise them to copy us on all correspondence going forward.

Following receipt of the above, it may be a good idea to meet and discuss this matter. Let me know if you have any questions. Thanks,

Rob Cole, Manager-Claims ENA - Global Risk Markets P.O. Box 1188 (77251-1188) 1400 Smith Street, EB2136F Houston, Texas 77002 713-853-7739 (telephone) 713-646-2341 (facsimile) Rob.Cole@Enron.com (email)

Message 26 of 342

NSM Status Reports

Sender	richard.sanders@enron.com
Recipients	['richard.lydecker@enron.com', 'brandi.morris@enron.com']
File	sanders-r/sent/1001.

----- Forwarded by Richard B Sanders/HOU/ECT on 04/17/2001 11:06 AM -----

showard@agsk.com 04/16/2001 08:10 PM

To: Richard.B.Sanders@enron.com cc: Subject: NSM Status Reports

Why don't I start sending you a brief e-mail every Friday summarizing activities in the case for that week and what is coming up soon. Nothing fancy or time consuming, just a brief update

For example:

Today:

(1) The court in California (a) ruled that Natwest does not have to disclose tapes of conversations with Cravath in October of 1998, even about March 1998 disclosures, and even though Natwest is asserting an advice of counsel defense with respect to the March disclosures and (b) deferred ruling whether Natwest must disclose conversations with Cravath in March 1998 concerning disclosure issues relating to the C Tranche. (I want to find out what this is about; maybe Enron would be interested in such information.)

(2) Defendants had a conference call to discuss an effort by Natwest to postpone the trial in California until September. I don't think Natwest has much chance to succeed, but they are going ahead. I am not planning for ECT Securities to take a position.

(3) We served unsigned copies of Gerry McGrath's report, after removing a big section discussing Hellmold's report in light of Tom Hatch's statement to me that Hellmold would not be opining on anything specific to ECT Securities.

Later this week:

Hellmold's deposition is scheduled for this Thursday and Friday in NY. I plan to attend and will pin him down about whatever he has to say, or not say, about ECT Securities.

Do you have time tomorrow for us to call Kathy about Ponti Singh's depo (and also her remark on the street to Brian that McDonald is going to blame Enron for something concerning related party transactions?

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536
e-mail: showard@agsk.com

.....

ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

2049 Century Park East Thirty-Ninth Floor Los Angeles, CA 90067-3213 Tel 310-277-1226 Fax 310-552-6077

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If you have received this communication in error, please notify us immediately via e-mail at postmaster@agsk.com or by telephone at 310-277-1226. Thank you.

.....

Message 27 of 342

News update re today's Trading Motion Hearing

Sender	lisa.mellencamp@enron.com
Recipients	[' mark.haedicke@enron.com ', ' richard.sanders@enron.com ']
File	sanders-r/notes_inbox/397 .

this is garbled obviously. Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com ----- Forwarded by Lisa Mellencamp/HOU/ECT on 06/06/2001 11:22 AM -----

AMarks@milbank.com 06/01/2001 08:36 PM

To: awirum@pillsburywinthrop.com, fallon_annamarie@jpmorgan.com, alafaire@exchange.ml.com, byoung@llgm.com, bgreene2@mail.state.tn.us, bholman@whitecase.com, bkrakauer@sidley.com, fishbcr@whitecase.com, ceklund@llgm.com, clara.strand@bankofamerica.com, dan.faltermeier@dynegy.com, david.adante@davey.com, dnelsen@gwfpower.com, elizabeth.h.baird@bankofamerica.com, lengel@brobeck.com, gbush@bankofny.com, grant_kolling@city.palo-alto.ca.us, gbaer@pillsburywinthrop.com, jostevenson@bankofny.com, jlhuemoe@llgm.com, jwhite@brobeck.com, jbloom@whitecase.com, jpiassick@kilpatrickstockton.com, john.c.herbert@dynegy.com, jklauber@llgm.com, jeisenberg@exchange.ml.com, juhase_kathleen@jpmorgan.com, kcoleman@gibsondunn.com, ksmith@deltapower.com, krussak@pillsburywinthrop.com, lisa.mellencamp@enron.com, michael.tribolet@enron.com, mlurie@exchange.ml.com, mahrens@smrh.com, mhindus@pillsburywinthrop.com, nmillard@whitecase.com, toth_norma@jpmorgan.com, pwarden@pillsburywinthrop.com, rriecker@gibsondunn.com, robert_b._lynch@chase.com, rblum@thelenreid.com, rkampfner@brobeck.com, srahman@deltapower.com, tponsford@smrh.com, tpatters@sidley.com, tmlne@mail.state.tn.us, wevanoff@sidley.com, bliden@rogersassoc.com, ccarter@rogersassoc.com, daney@rogersassoc.com, mklink@rogersassoc.com, rrogers@rogersassoc.com, sfischer-holmes@rogersassoc.com, allison.m.young@us.pwcglobal.com, gerald.keenan@us.pwcglobal.com, james.drzemiecki@us.pwcglobal.com, jwilson@saybrook.net, jschotz@saybrook.net, jrosenthal@saybrook.net, jthomas@saybrook.net, freddie.reiss@us.pwcglobal.com, margery.a.neis@us.pwcglobal.com, michael.hamilton@us.pwcglobal.com, mjhamilt@bellatlantic.net, rocky.ho@us.pwcglobal.com, tom.lumsden@us.pwcglobal.com cc: RMoore@milbank.com, EFeo@milbank.com, PAronzon@milbank.com Subject: News update re today's Trading Motion Hearing

The following article is from this afternoon's AP newswire:

Energy wholesalers on PG&E committee accused of conflict

Updated: June 1, 2001 - 2:26 p.m. SAN FRANCISCO -- Two of the same energy wholesalers accused of driving Pacific Gas and Electric Co. into bankruptcy with high power prices asked a federal bankruptcy judge Friday to let them keep selling electricity to the utility.

Critics say that could result in higher bills for ratepayers and less money for the rest of PG&E's creditors to share, if the wholesalers' high prices keep whittling away at the utility's remaining money.

"We certainly don't believe they should get a safe harbor order so that they can do what they've done in the past," said Irving Sulmeyer, an attorney representing the city and county of San Francisco.

Houston-based Enron Corp. and Dynegy Inc., like other power wholesalers, have denied gouging Californians on the price they pay for power.

On Friday, the two companies asked U.S. Bankruptcy Judge Dennis Montali to let them keep selling electricity to PG&E's customers via the state Department of Water Resources, which has bought electricity on PG&E's behalf since January.

Dynegy and Enron sit on the 11-member creditors committee that will play a huge role in how PG&E's fortunes are divided among the more than 50,000 banks, energy companies and cities to whom the utility owes money.

The "safe harbor" would shield them from conflict of interest accusations. The committee members would be honor-bound not to share information with any branches of their companies able to profit from it.

"They want to be absolved in advance," Sulmeyer said. "What are they so concerned about if they're not doing anything wrong?"

Robert Moore, an attorney representing the voluntary creditors committee, said other committee members such as Bank of America and Merrill Lynch also are requesting safe harbors so they can continue trading stock and remain members.

"At least four members of the committee would have to resign without it," Moore told the judge.

Montali asked each committee member to file a declaration with the court requesting to trade either commodities (electricity) or securities (stock), and scheduled another hearing on the issue for June 12.

-- Associated Press

Allan T. Marks Milbank, Tweed, Hadley & McCloy LLP email:? amarks@milbank.com website:? www.milbank.com? (213) 892-4376 (L.A. telephone) (212) 530-5312 (N.Y. telephone) (213) 892-4739 (L.A. direct fax) (213) 629-5063 (L.A. main fax)????????????????

<<...>>

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Message 28 of 342

NSM Update	
Sender	richard.sanders@enron.com
Recipients	['richard.lydecker@enron.com', 'brandi.morris@enron.com']
File	sanders-r/all_documents/1904.

----- Forwarded by Richard B Sanders/HOU/ECT on 04/30/2001 06:42 AM -----

showard@agsk.com 04/27/2001 07:51 PM

To: Richard.B.Sanders@enron.com cc: Subject: NSM Update

Richard,

The only significant deposition this week is taking place in Minneapolis. The deponent is Arthur Cobb, a disclosure/due diligence expert retained by Robins, Kaplan in several cases in which Enron is not named. Mr. Cobb's report did not mention ECT Securities, and the California plaintiffs did not designate him to testify in the CA cases, so we decided not to attend his deposition. We are getting daily transcripts by e-mail.

Next week an expert designated by the CA plaintiffs on causation and damage issues is being deposed in San Francisco. Roland has a scheduling conflict, so I am sending Jonathan Goldblatt. The subject on which we want to ask questions is damages relating to certain purchases by Farallon after the initial offering. This is a very discrete area, easy to understand, and Jonathan is on top of it.

I believe that you recently received a bill from Gerry McGrath. Gerry worked very hard on his report, putting in about 50% more hours than he thought he would when he agreed to cap the total fee for his report. He is very focused on the requirement in his engagement letter that he be paid in 30 days. I think Gerry did quite a good job, and we definitely need his best effort going forward. I would urge Enron to pay Gerry's bill very promptly.

Farallon is currently threatening to move to compel further answers to interrogatories from us. It is much ado about nothing. We just want to deal with it in the least expensive way.

Many of the plaintiffs have filed motions around the country, including in CA, seeking to compel Natwest to produce more audio tapes of employee conversations. My guess is that the plaintiffs have found more good stuff, and Natwest is trying to limit their losses.

We are hard at work on the research that you and I have been discussing. It is frankly quite complex and involves several unanswered questions of law. The problem is that CA has a special statutory contribution provision (pro rata, not relative fault) in the state securities statutes and a common law doctrine of partial indemnity in tort actions that is based on relative fault. The later doctrine may not apply to the securities causes of action against ECT Securities, but definitely applies to the common law fraud and negligent misrepresentation causes of action. How all of this works together is virtually uncharted.

With reference to your question about procedures at trial, none of the defendants has cross-complained against the other defendants for a determination of relative fault in the pending case; and, on the basis of the current pleadings, no such

determination will be made at trial. If Enron goes to trial and loses, along with others, theoretically the plaintiffs could collect their entire judgment from Enron and leave Enron to pursue the other defendants, post-trial, for their respective shares of the liability, whether such shares are determined pro rata or by relative fault. We are working on a memorandum or outline that will lay all of this out for you. I think you will find that Enron has some powerful incentives to settle (assuming that we can get the price low enough.)

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 cell: 213-716-0536
e-mail: showard@agsk.com

.....
ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

2049 Century Park East Thirty-Ninth Floor Los Angeles, CA 90067-3213 Tel 310-277-1226 Fax 310-552-6077

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.....

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nan	
Sender	efeo@milbank.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/notes_inbox/254.

Richard--

We were intrigued by the news of the cases against the generators and marketers in California.? Can we be of any help to Enron??

Regards,

Ed Feo

Edwin F. Feo Milbank, Tweed, Hadley & McCloy LLP 601 South Figueroa Street, 30th Floor Los Angeles, CA? 90017
efeo@milbank.com http://www.milbank.com (213) 892-4417 - Direct Dial (213) 892-4717 - Direct Fax (213) 629-5063 -
General Fax (213) 446-3206 or (310) 968-0670 - Mobile

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Transaction Agreement

Sender	lisa.mellencamp@enron.com
Recipients	[richard.sanders@enron.com]
File	sanders-r/monetization_el_paso/4.

matt said this got bounced back so this may be duplicate or not. note the credit event letters (see brian's email to you with electronic version) are referenced and attached to the tranaction agreement which el paso signed and refer to the swap monetization. the spread calculations referenced were tied to el paso medium term notes that had just been issued as the most comparable public debt with a term similar to those of the swap. Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com ----- Forwarded by Lisa Mellencamp/HOU/ECT on 04/26/2001 06:41 PM -----

"Cook, Matt" <mattcook@velaw.com> 04/26/2001 06:17 PM

To: "richard.sanders@enron.com" <richard.sanders@enron.com> cc: "Lisa Mellencamp (E-mail)" <lisa.mellencamp@enron.com> Subject: Transaction Agreement

Per Lisa Mellencamp's request, attached is the electronic version of the Transaction Agreement between East Coast Power and Mesquite.? Two copies of the executed TA along with the Exhibits will be couriered to you shortly. ? S. Matthew Cook Vinson & Elkins L.L.P. 1001 Fannin, Suite 3307 Houston, TX 77002 Ph: (713) 758-4530 Fax: (713) 615-5759 ? - TA.doc

Message 31 of 342

RE: Question re: Email retention policy

Sender	limor.nissan@enron.com
Recipients	[michael.cilento@enron.com, 'richard.sanders@enron.com']
File	sanders-r/all_documents/2169.

Thanks Richard,

The reason I asked was because our IT people in Houston have told us that we cannot transfer emails that we need beyond the retention period to word documents. That seemed a bit strange, but they were quite emphatic. I have clarified the rule with our IT head.

Thanks a lot, and take care,

Limor

Enron Global Markets 520 Madison Avenue New York, NY 10022 Tel: 212.715.5283 Fax: 212.715.5608 E-Mail: Limor.Nissan@Enron.com

-----Original Message-----

From: Sanders, Richard Sent: Tuesday, June 05, 2001 7:15 AM To: Nissan, Limor Subject: Re: Question re: Email retention policy

Sorry for the late reply. You are correct about the policy.

Limor Nissan/ENRON@enronXgate 05/29/2001 01:01 PM To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Question re: Email retention policy

Hi Richard,

Someone made an inquiry to me regarding the policy.

It is my understanding that if email is not deleted or copied into a word document in order to avoid deletion, then it will be (or should be) destroyed automatically after the expiration of the retention period. We have been telling our people to only move information from Outlook to Word documents if they feel that they need to retain it for more than the appropriate retention period.

Please let me know if this is consistent with the policy.

Thanks, and hope all is well with you.

Limor

Enron Global Markets 520 Madison Avenue New York, NY 10022 Tel: 212.715.5283 Fax: 212.715.5608 E-Mail: Limor.Nissan@Enron.com

Message 32 of 342

FW: trades by cp - confidential

Sender	b..sanders@enron.com
Recipients	['Sanders', 'Richard B.', 'diane.goode@enron.com']
File	sanders-r/sent_items/132.

Please send to all the VE attys-----Original Message----- From: McCullough, Travis Sent: Wednesday, October 10, 2001 10:21 AM To: Sanders, Richard B. Subject: FW: trades by cp - confidential

Richard - in case you need it for the venue transfer, this is the list that EOL prepared that demonstrates the lack of trading activity with entities based in the Eastern District --

Travis C. McCullough Enron North America Corp. 1400 Smith Street EB 824 Houston, Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-8860

-----Original Message-----

From: Webb, Jay Sent: Wednesday, October 03, 2001 3:26 PM To: McCullough, Travis Subject: trades by cp - confidential
please see enclosed spreadsheet

-----Original Message-----

From: McCullough, Travis Sent: Wednesday, October 03, 2001 1:41 PM To: Taylor, Mark E (Legal); Webb, Jay; Forster, David Cc: Sanders, Richard B. Subject: EnronOnline Patent Infringement litigation

Vinson & Elkins is collecting information regarding EnronOnline in connection with preparing Enron's defense of the patent infringement suit filed against Enron last week. Peter Mims, an intellectual property lawyer with Vinson & Elkins, would like to speak with each of you regarding certain aspects of EnronOnline. I suggested that he contact each of you directly to set up a time to meet with you.

Any assistance that you can provide to Peter would be greatly appreciated. Please let me know if you have any questions or

Travis C. McCullough Enron North America Corp. 1400 Smith Street EB 824 Houston, Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-8860

Message 33 of 342

RE: Question re: Email retention policy

Sender	b..sanders@enron.com
Recipients	['andrew.edison@enron.com', 'nissan'.limor@enron.com"]
File	sanders-r/sent_items/273.

Andy Edison will get back to you on this.

-----Original Message-----

From: Limor Nissan Sent: Tuesday, June 05, 2001 2:20 PM To: Richard B Sanders Cc: Michael Cilento Subject: RE: Question re: Email retention policy

Thanks Richard,

The reason I asked was because our IT people in Houston have told us that we cannot transfer emails that we need beyond the retention period to word documents. That seemed a bit strange, but they were quite emphatic. I have clarified the rule with our IT head.

Thanks a lot, and take care,

Limor

Enron Global Markets 520 Madison Avenue New York, NY 10022 Tel: 212.715.5283 Fax: 212.715.5608 E-Mail: Limor.Nissan@Enron.com

-----Original Message-----

From: Sanders, Richard Sent: Tuesday, June 05, 2001 7:15 AM To: Nissan, Limor Subject: Re: Question re: Email retention policy

Sorry for the late reply. You are correct about the policy.

Limor Nissan/ENRON@enronXgate 05/29/2001 01:01 PM To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Question re: Email retention policy

Hi Richard,

Someone made an inquiry to me regarding the policy.

It is my understanding that if email is not deleted or copied into a word document in order to avoid deletion, then it will be (or should be) destroyed automatically after the expiration of the retention period. We have been telling our people to only move information from Outlook to Word documents if they feel that they need to retain it for more than the appropriate retention period.

Please let me know if this is consistent with the policy.

Thanks, and hope all is well with you.

Limor

Enron Global Markets 520 Madison Avenue New York, NY 10022 Tel: 212.715.5283 Fax: 212.715.5608 E-Mail: Limor.Nissan@Enron.com

Message 34 of 342

Legg Mason/Cooper Deposition

Sender	showard@agsk.com
Recipients	['jgoldblatt@agsk.com', 'rtellis@milbank.com', 'richard.b.sanders@enron.com']
File	sanders-r/nsm/91.

Here is a report on the final session of the deposition of Gib Cooper. The report also discusses a problem that we appear to have in distancing ourselves from the secondary market sale of NSM bonds to Legg Mason by Natwest three and a half weeks after the initial offering.

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 e-mail: showard@agsk.com

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2049 Century Park East Thirty-Ninth Floor Los Angeles, CA 90067-3213 Tel 310-277-1226 Fax 310-552-6077

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If you have received this communication in error, please notify us immediately via e-mail at postmaster@agsk.com or by telephone at 310-277-1226. Thank you.

..... - Cooper 3 Report.doc

Message 35 of 342

John Devine Fundraiser

Sender	hmlangetx@aol.com
Recipients	['yrnffin1@aol.com']
File	sanders-r/deleted_items/383.

John Devine for County Attorney

January 22, 2002 FROM: John Devine RE: Tuesday, February 12, 2002 Fundraiser As your State District Court Judge, I worked hard for you and the citizens of Harris County since 1995. Administering justice fairly and efficiently, and standing strong on the moral values our nation was founded on, has always been my priority. I reduced the court's case backlog by more than 40 percent, was a leader in swift and fair disposition of cases, and earned the respect of many for my "Kids in Court" program. As you know, whether on the bench or in the community, my commitment has always been for making Harris County safe place for honest law abiding citizens to work, live and raise a family, and that will continue to be my top priority as your Harris County Attorney. As your County Attorney, I pledge to continue to be the proven, principled and proactive leader I am known to be. As the peoples' attorney, I will be your voice and advocate - protecting the law-abiding taxpayer and holding government accountable for its actions. My commitment to these principles is unwavering. I respectfully ask you for your financial support at my upcoming fundraiser. Your support of my campaign is important and much appreciated. If you have any questions, please feel free to call me at 713-681-1996 or via fax at 713-681-8402. I hope you will be able to attend my fundraiser. The fundraiser information is as follows:

Maggaino's Little Italy 2019 Post Oak Blvd. 5:30 to 7:30 p.m. on Tuesday, February 12, 2002

John, you can count on me... ___ \$5,000 Underwriter ___ \$2,500 Patron ___ \$1,000 Sponsor ___ \$500 Host ___ \$250 Contributor ___ \$100 Individual ___ GOP Club member \$25 Club Name: ___ Unable to attend \$ ___ Name: ___ Address: ___
 Phone: ___ Fax: ___ E-mail: ___
 Please make checks payable to John Devine Campaign 710 N. Post Oak Rd., Suite 107 Houston, TX 77024 For more info call Heidi M. Lange at 713-681-1996 OR VIA FAX 713-681-8402. Pol. adv. pd. for by the John Devine Campaign, 710 N. Post Oak, 107, Houston, TX 77024

Message 36 of 342

Draft response to CMUA paper

Sender	mary.hain@enron.com
Recipients	[christian.yoder@enron.com', 'steve.c.hall@enron.com', 'richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/69.

FYI. Just so you know what we're saying in California.

The attached draft answers the California Municipal Utilities Association complaint that California markets are not workably competitive and therefore FERC should establish cost-based rates. In its complaint, CMUA argued that the market isn't workably competitive because the prices were higher this summer than in previous years even in hours where demand was no higher. Seabron's paper shows that high prices have resulted from a number of unrelated structural and market design factors and increasing attempts at regulatory intervention. He also debunks the assertions that cost-based rates will fix the problem in California and will be easily administered by FERC. Our answer is due at FERC tomorrow so please get me your comments ASAP. ----- Forwarded by Mary Hain/HOU/ECT on 10/25/2000 10:19 AM

Enron Capital & Trade Resources Corp.

From: "Sabine Schnittger" <Sabine.Schnittger@frontier-economics.com> 10/25/2000 08:23 AM

To: "Mary C Hain" <mary.hain@enron.com> cc: Subject: Draft response to CMUA paper

Mary:

Please find attached a first draft of Enron's response to the CMUA, please let us know your comments.

Seabron can be contacted on his cell-phone (617 513 5904) this morning, but will be in the office at noon. Alternatively, you could pass on comments to me.

Are you or is one of our staff able to assist us with a reference to the claim that hydro water levels were low in California this year?

Best wishes,

Sabine.

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Sabine Schnittger Managing Consultant Frontier Economics Two Brattle Square Cambridge, MA 02138 Office tel: (617) 354-0060 Office fax: (617) 354-0640 Mobile: (617) 480-5992 Email: sabine.schnittger@frontier-economics.com
<http://www.frontier-economics.com>

- 00-10-26-SA-SS draft.doc

Message 37 of 342

Re: In re M/V PACIFIC VIRGO/Re: WFW - pacific virgo invoices

Sender	britt.davis@enron.com
Recipients	['matthias.lee@enron.com', 'alan.aronowitz@enron.com', 'linda.guinn@enron.com', 'richard.sanders@enron.com']
File	sanders-r/notes_inbox/238.

Linda,

Lee just found the invoices, I think. I will confirm shortly.

Britt

P.S. to Matt--I inadvertently forget to send you an e-mail that is attached to this one.

Linda R Guinn@ECT 12/12/2000 09:23 AM

To: Britt Davis/Corp/Enron@ENRON cc: Alan Aronowitz/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT Subject: Re: In re M/V PACIFIC VIRGO/Re: WFW - pacific virgo invoices

Britt --

I do not have a copy of the WFW invoice. I have requested same from Angeline and she indicated she would be forwarding to it to me. I will forward on to you when I receive it.

Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

Britt Davis@ENRON 12/12/2000 09:05 AM

To: Linda R Guinn/HOU/ECT@ECT cc: Alan Aronowitz/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT Subject: In re M/V PACIFIC VIRGO/Re: WFW - pacific virgo invoices

Linda,

Could you send the WFW bill down to me please? I just changed admin assistants and my new a/a, Lee, could not find that in the file. Richard wanted me to take a look and try to apportion it between his r/c and Alan's, given my statement to Richard that the WFW bill contains a lot of time that I (and I believe Matt shares this belief) was directed to resolution of the dispute with FGH.

Britt

P.S. to Matt-- what do you think about asking Neale if he would take a look at that bill and apportion the time spent between the cargo claim versus the FGH matter? ----- Forwarded by Britt Davis/Corp/Enron on 12/12/2000 09:01 AM -----

Angeline Poon@ECT 12/11/2000 08:08 PM

To: Linda R Guinn/HOU/ECT@ECT cc: Richard B Sanders/HOU/ECT@ECT, Britt Davis/Corp/Enron@ENRON Subject: Re: WFW - pacific virgo invoices

Hi Linda

I have just faxed to you the statement that reflects the various items charged by Watson Farley, which was attached to Watson's invoice. My apologies for any inconvenience caused.

Angie

From: Linda R Guinn on 12/12/2000 12:14 AM To: Angeline Poon/SIN/ECT@ECT cc: Richard B Sanders/HOU/ECT@ECT, Britt Davis/Corp/Enron@ENRON

Subject: WFW - pacific virgo invoices

Hi Angeline --

I received your fax this date regarding the WFW pacific virgo invoice. What I am looking for is a copy of the back-up to the statement you sent. In other words, I need a breakdown of the time billed by each attorney working on this matter. All I have is the one page listing \$137,455.18 -- what does this consist of? Please forward this to me so I can arrange for payment of this invoice. Thanks.

Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

Message 38 of 342

Re: Agency.com contract

Sender	richard.sanders@enron.com
Recipients	['travis.mccullough@enron.com']
File	sanders-r/sent/598.

We are still in litigation with them. We are the plaintiff but we are not interested in pursuing it. The outside atty is Phil Bruns 650-8805.

Travis McCullough 12/03/2000 05:47 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Agency.com contract

Richard --

Do you recall anything about this file, or can you refer me to the outside law firm that was handling it?

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 12/03/2000 05:46 PM -----

"Hodgson, Stephen" <shodgson@velaw.com> 11/29/2000 08:43 AM

To: "McCullough, Travis (Enron)" <travis.mccullough@enron.com> cc: Subject: Agency.com contract

Travis,

I reviewed an "Agreement for Project Services" having an effective date of May 20, 1999 and a "Project Work Description" (PWD) with a date in the title of May 27, 1999, which includes an Attachment A. The PWD and its Attachment A apparently modify the 5/20/99 agreement, but reference it as the 5/21/99 agreement in the preamble and above the signature line. The 5/20/99 agreement conveys (in paragraphs 4.8.1 and 4.8.2) any intellectual property rights that Agency.com may have acquired to Enron Corp. Attachment A, however, added a paragraph 4.10 that begins with the following sentence: "Company shall obtain no intellectual property rights to the Work unless it has made timely payments of all reasonable and undisputed fees."

Please confirm that "reasonable and undisputed fees" were paid and that there is no 5/21/99 agreement.

Thanks.

Stephen S. Hodgson Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Street Houston, Texas 77002-6760 (713) 758-2604 (tel) (713) 615-5730 (fax) shodgson@velaw.com

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Message 39 of 342

Re: Infineum

Sender	lisa.mellencamp@enron.com
Recipients	[richard.sanders@enron.com]
File	sanders-r/infineum/2.

richard, please advise as to how you want to handle. some fact collecting/document collecting to do and everyone wants to talk about (a little emotional). can i pass the ball to you??

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 ----- Forwarded by Lisa Mellencamp/HOU/ECT on 07/10/2000 12:49 PM -----

Lisa Mellencamp 07/10/2000 12:36 PM

To: "Joe Bollinger" <Joe.Bollinger@enron.com>@ENRON cc: "Bob Licato" <Bob.Licato@enron.com>, "Cliff Evans" <Cliff.Evans@enron.com>, "Doug Stockton" <Doug.Stockton@enron.com>, "Gary Keevill" <Gary.Keevill@enron.com>, Richard Lydecker/Corp/Enron@Enron Subject: Re: Infineum

to all: i have call into john klauberg at leboeuf to check status of their conflict issues. i heard on friday that they were close to resolving and could likely handle the litigation which would be my preference. i pulled back the conference call last week so we could nail down the representation issue first. no need to get more than one firm up to speed. i have copy of stuff from elaine re your file joe. does anyone else have file? if so, please forward to me so can collect and make sure outside counsel has all. would like to coordinate this thru me so know what we have/they get. joe, i agree that need to collect thoughts and probably better to do in person. who do you all think are key people to be involved?? gary will you collect thoughts on that front and get me a list (as well as any backout dates on their part that you know of)? i expect john to call me back today with view on who would be handling in their shop and his thoughts as well as how to go about this. i will send out email as soon as i hear from him with thoughts about when we can do this. i see your schedule joe.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

"Joe Bollinger" <Joe.Bollinger@enron.com> 07/05/2000 03:08 PM

To: "Gary Keevill" <Gary.Keevill@enron.com>, "Bob Licato" <Bob.Licato@enron.com>, "Cliff Evans" <Cliff.Evans@enron.com>, lisa.mellencamp@enron.com cc: "Doug Stockton" <Doug.Stockton@enron.com> Subject: Infineum

Gary, I've given both the alleged filing of Infineum and the memo from John Klauberg a brief review. I believe the history of this situation and the fact that many facts were left out of their filing and in some cases misstated in ways to make them more favorable to Infineum should be thoroughly reviewed by both internal and outside counsel prior to deciding on our strategy. I also don't believe that a phone conference is the best way to handle this. I would like to suggest that we set up a meeting which may take all day to review the history and bring the legal team up to speed.

I am available next Monday and the following Monday through Wednesday for meetings prior to returning to Carolina. While in Carolina I'll be available by phone for any conf calls you want to have. I'll be in Linden July 24th - 26th but I'll be primarily involved in supporting Mitch so my time will be limited.

Message 40 of 342

Request for Confidential Information by the CPUC

Sender	richard.sanders@enron.com
Recipients	['rmcmanus@bakerbotts.com', 'lcottle@whitecase.com', 'thoulihan@mdbe.com', 'gfergus@brobeck.com', 'sbishop@gib...]
File	sanders-r/all_documents/1635.

----- Forwarded by Richard B Sanders/HOU/ECT on 03/10/2001 10:00 AM -----

<Lisa_G_Urick@calpx.com> 02/22/2001 03:15 PM

To: richard.b.sanders@enron.com cc: Subject: Request for Confidential Information by the CPUC

Per your request.

----- Forwarded by Sandi J. Thompson/users/PX_CALIF on

02/07/2001 02:06 PM -----

: Market Participant AB1, Market Participant CD1, Market Participant CD2, Market Participant EG1, Market Participant EG2, Market Participant HJ1, Market Participant KL1, Market Participant KL2, Market Participant MN1, Market Participant MN2, Market Participant OR1, Market Participant OR2, Market Participant ST1, Market Participant ST2, Market Participant UZ1 cc: rmcmanus@bakerbotts.com, lcottle@whitecase.com, thoulihan@mdbe.com, napedersen@jonesday.com, jareding@phjw.com, bjf@cpuc.ca.gov

Subject: Request for Confidential Information by the CPUC

To All California Power Exchange Participants:

Notice is hereby provided pursuant to Section 19.3.4 of the California Power Exchange Tariff that the Consumer Services Division of the California Public Utilities Commission (CPUC), as part of its investigation into the "generating, selling, buying and trading of energy in the State of California" (see attached declaration of Barbara Ferguson), has requested information that may be confidential under Section 19.3.2 of the CalPX Tariff. The subpoena requests the California Power Exchange to respond to the subpoena no later than Thursday, February 15, 2001, but Ms. Ferguson has agreed to extend the deadline until Tuesday, February 20, 2001. If you desire to assert a claim of privilege or confidentiality pursuant to legal authority, the California Power Exchange will include your written assertion of that claim, together with its submittal to the CPUC, provided that it is timely received. The CPUC has indicated that for purposes of this investigation, it is willing to treat confidential information in a manner comparable to that provided under Section 583 of the Public Utilities Code for confidential information provided by public utilities to the CPUC. Your written statement must be directed to the CPUC as follows:

Barbara J. Ferguson California Public Utilities Commission 505 Van Ness Avenue San Francisco, CA 94102
415.703.2682 telephone 415.703.2262 facsimile bjf@cpuc.ca.gov

Please copy your statement to the California Power Exchange as follows:

Lisa Urick California Power Exchange 200 South Los Robles Avenue, Suite 400 Pasadena, CA 91101 626.537.3100
telephone 626.537.3159 facsimile lgurick@calpx.com

Any written statement must be received by Ms. Urick no later than Friday, February 16, 2001, 5:00 p.m. PT, to be included with any information delivered by the CalPX to the CPUC. You are also free to take any other legal action you may deem appropriate in the circumstances of this investigation. A copy of the subpoena and declaration are attached for your reference.

Thank you.

(See attached file: Revised PX Subpoena-CPUC.doc)

(See attached file: SDT Declaration-CPUC.doc)

- Revised PX Subpoena-CPUC.doc - SDT Declaration-CPUC.doc

Message 41 of 342

Re: Draft Letter re: Enron's Production Pursuant to CPUC Subpoena

Sender	richard.sanders@enron.com
Recipients	[pmeringolo@brobeck.com]
File	sanders-r/sent/412.

Looks good. Call me when you have a second. 713-853-5587

"Meringolo, Peter" <PMeringolo@brobeck.com> 10/12/2000 08:09 PM

To: "Richard.B.Sanders@enron.com" <Richard.B.Sanders@enron.com>, "msmith1@enron.com" <msmith1@enron.com>, "David_Aamodt@pgn.com" <David_Aamodt@pgn.com>, "Mary.Hain@enron.com" <Mary.Hain@enron.com>, "jkeller@enron.com" <jkeller@enron.com>, "mday@gmsr.com" <mday@gmsr.com>, "Fergus, Gary S." <GFergus@brobeck.com> cc: Subject: Draft Letter re: Enron's Production Pursuant to CPUC Subpoena

Per Gary Fergus' request, below is the text of a draft letter to be enclosed with the documents Enron is producing tomorrow to the CPUC for your review and approval. Please provide me with any comments ASAP. We plan to deliver the documents to the CPUC before the close of business tomorrow.

Peter P. Meringolo Brobeck, Phleger & Harrison LLP Spear Tower One Market San Francisco, CA 94105 Main: (415) 442-0900 Direct: (415) 442-1285 Fax: (415) 442-1010

DRAFT

Harvey Morris Esq. California Public Utilities Commission 505 Public Utilities Commission San Francisco, California 94102

Re: I.00-08-002 Subpoenas Served on Enron Power Marketing, Inc. ("EPMI"), Enron Energy Services Operations Inc. and Enron Energy Services Inc. (collectively referred to as "EES"), Enron Energy Marketing Corporation ("EEMC"), and Portland General Electric Corporation ("Portland General")(collectively sometimes referred to as the "Enron Entities")

Harvey,

As set forth in Gary Fergus' e-mail message dated October 6, 2000, and pursuant to our conference call today, the Enron Entities are producing the enclosed documents (Bates numbered "Enron Entities 000001-_____") pursuant to the above described subpoenas issued by the California Public Utility Commission (hereinafter "the Commission").

The Enron Entities produce these documents pursuant to our email exchange of October 3, 2000 with the understanding that the Commission agrees that by producing these documents, the Enron Entities have not waived any objections or challenges to these subpoenas whatsoever and that any claims, defenses, objections, jurisdictional or otherwise or other responses have been specifically reserved and can be raised in the future, if necessary.

In addition, the Enron Entities produce these documents with the understanding that if any entity obtains a more stringent protective order than the one currently in place, that all of the Enron Entities document productions will be protected by the most stringent protective order. In addition, if, at the request of any party or nonparty to this proceeding, the Commission or a court of competent jurisdiction orders that the requests for production be limited, reduced or eliminated, the Enron Entities reserve the right to limit the production of documents in conformance with such order.

Brobeck Phleger & Harrison LLP

Peter P. Meringolo

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

Message 42 of 342

Expert Witness for ECT/Questions For You

Sender	showard@agsk.com
Recipients	['brian.barth@enron.com', 'richard.b.sanders@enron.com']
File	sanders-r/all_documents/1731.

We have recently engaged an investment banker to testify as an expert for ECT about the quality of our due diligence in the NSM transaction. (This is standard procedure in a litigation matter of this type.) Our "expert" has now read all four volumes of your deposition, and I have sent him a slightly edited version of your due diligence notes. However, our expert still needs to conduct more "due diligence" of his own, including talking or meeting (probably separately) with you and Kevin and possibly Tom Glanville. I will call you shortly to schedule a conference call or a meeting. You and I will talk separately before any such call or meeting takes place.

In the meantime, I would appreciate it if you could provide me with answers to the following questions: 1. Please send me your personal resume, with an eye toward showing your experience and qualifications to conduct due diligence.

2. Are you aware of any internal check-lists, document review requests or lists, agendas (overall, meeting- or conference call-related, or otherwise) and any other documents which would show matters reviewed or to-be reviewed in connection with the NSM transaction? (We will separately review the Enron documents that have been produced in the litigation to see if we can identify any such materials ourselves.)

3. Was any due diligence done on NTS?

Thanks, Brian. I will work hard to minimize the time you have to spend in this phase of our endeavor. It will be nothing close to the time that you spent on your deposition and preparation

Steve Howard Alschuler Grossman Stein & Kahan LLP phone: 310-407-7613 fax: 310-552-6077 e-mail: showard@agsk.com

.....
ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

2049 Century Park East Thirty-Ninth Floor Los Angeles, CA 90067-3213 Tel 310-277-1226 Fax 310-552-6077

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If you have received this communication in error, please notify us immediately via e-mail at postmaster@agsk.com or by telephone at 310-277-1226. Thank you.

.....

Message 43 of 342

Re: Fwd:	
Sender	richard.sanders@enron.com
Recipients	['RMoore@milbank.com', 'lisa.mellencamp@enron.com']
File	sanders-r/sent_items/219.

I am a little behind the curve--nothing new. Has this been resolved? Other than knowing what is happening, what do I need to do?

Lisa Mellencamp 05/31/2001 03:01 PM To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Fwd:

Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com ----- Forwarded by Lisa Mellencamp/HOU/ECT on 05/31/2001 03:01 PM -----

"BENNETT YOUNG" <BYOUNG@LLGM.COM> 05/31/2001 11:09 AM To: Lisa.Mellencamp@enron.com, Michael.Tribolet@enron.com cc: "CARL EKLUND" <CEKLUND@LLGM.COM>, "JOHN KLAUBERG" <JKLAUBER@LLGM.COM> Subject: Fwd:

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167 byoung@llgm.com

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Content-Transfer-Encoding: 7bit Received: from securemail1.llgm.com ([10.4.218.42]) by llgm.com; Wed, 30 May 2001 22:38:50 -0400 Received: from 199.94.215.242 by securemail1.llgm.com with SMTP (Tumbleweed MMS SMTP Relay (MMS v4.7)); Wed, 30 May 2001 22:38:41 -0400 X-Server-Uid: 2ddd99fc-ca0e-11d4-9906-00508bdcbe76 Received: from exch6.milbank.com (mthm-ny-test.milbank.com [199.95.218.6]) by cambridge1-smrly1.gte.net (Postfix) with ESMTP id 36A303548; Thu, 31 May 2001 02:37:32 +0000 (GMT) Received: by exch6 with Internet Mail Service (5.5.2448.0) id <L7JFWPB2>; Wed, 30 May 2001 22:34:56 -0400 Message-ID: <BD9CBF5D2436D311B20B00508B08F399027D5881@exchla1> From: MSorochinsky@milbank.com To: Eric.T.Siege@bankofamerica.com, kcoleman@gibsondunn.com, byoung@llgm.com, robert_b._lynch@chase.com cc: RMoore@milbank.com Subject: Date: Wed, 30 May 2001 22:34:39 -0400 X-Mailer: Internet Mail Service (5.5.2448.0) X-WSS-ID: 170B713A792173-01-01 MIME-Version: 1.0 Content-Type: multipart/mixed; boundary="=_DC86FCF5.E1809E0F"

<<euc22000.PDF>>

Attached is the Opposition of the City and County of San Francisco to the trading motion. They make several evidentiary objections. To be on the safe side, we suggest filing supplemental declarations from each of you on the issues raised in the Opposition. I will subsequently e-mail suggested text to you. Since the hearing is on Friday morning, we will need to file these declarations by Thursday early afternoon at the latest. Accordingly, once you receive them, please finalize the declarations and fax them back to me at (213) 892-4707 as soon as possible, but by no later than Noon tomorrow.

Thank you.

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- TEXT.htm - euc22000.PDF

Message 44 of 342

Re: Fwd:	
Sender	richard.sanders@enron.com
Recipients	['RMoore@milbank.com', 'lisa.mellencamp@enron.com']
File	sanders-r/sent/1179.

I am a little behind the curve--nothing new. Has this been resolved? Other than knowing what is happening, what do I need to do?

Lisa Mellencamp 05/31/2001 03:01 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Fwd:

Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com ----- Forwarded by Lisa Mellencamp/HOU/ECT on 05/31/2001 03:01 PM

"BENNETT YOUNG" <BYOUNG@LLGM.COM> 05/31/2001 11:09 AM

To: Lisa.Mellencamp@enron.com, Michael.Tribolet@enron.com cc: "CARL EKLUND" <CEKLUND@LLGM.COM>, "JOHN KLAUBERG" <JKLAUBER@LLGM.COM> Subject: Fwd:

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167
byoung@llgm.com

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<<euc22000.PDF>>

Attached is the Opposition of the City and County of San Francisco to the trading motion. They make several evidentiary objections. To be on the safe side, we suggest filing supplemental declarations from each of you on the issues raised in the Opposition. I will subsequently e-mail suggested text to you. Since the hearing is on Friday morning, we will need to file these declarations by Thursday early afternoon at the latest. Accordingly, once you receive them, please finalize the declarations and fax them back to me at (213) 892-4707 as soon as possible, but by no later than Noon tomorrow.

Thank you.

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- TEXT.htm - euc22000.PDF

Message 45 of 342

RE: Vinmar	
Sender	bonnie.white@enron.com
Recipients	['l.nowlan@enron.com', 'b..sanders@enron.com']
File	sanders-r/deleted_items/126.

I am very happy to have you involved to the extent you want to be. I asked Steve Elliott to be the corporate rep for the arbitration because Richard Sanders did not expect that you would want to take that much time for such a modest matter in terms of potential recovery (\$90,000-145,000).

Currently, we have the following scheduled:

Th, Oct. 25 Deposition of Tim Clifford (If there are any questions, issues you would specifically like for me to discuss with Tim, please let me know)

Fr, Nov. 2 Hearing on Motion to Compel and for Sanctions This hearing is expected to last 1-2 hours and relates to the issue of production of tape recordings related to conversations between you or Steve and Tim Clifford during December 1999. I expect that Richard Sanders and I will attend this hearing.

Tu, Nov. 6 Mediation This mediation will take the better part of a day. I need a corporate representative in attendance who is able to make decisions re settlement, and who can speak to issues such as custom and standards in the industry, that deals are routinely made with credit finalized later, etc. Steve is available to attend that day, but if you'd prefer that would certainly be okay with me. I anticipate that Vinmar will have a its lawyers and a corporate representative from Vinmar. I doubt that Tim Clifford will be there since he is no longer with the company. If we decide to have Steve present, perhaps we can arrange a short meeting prior to the mediation to discuss strategy and settlement authority.

Tu/We, Dec. 18-19 Arbitration If the matter is not settled at mediation, the arbitration will take place on Dec. 18 and carry over to Dec. 19, if necessary. I will need a corporate representative there the entire time. Steve is available to act as corporate representative, but let me know if you'd prefer to do so. If you are not available for the entire time period, it would be helpful to have you available for a couple of hours to give your testimony re the making of the contract in person; however, I can use your deposition testimony if you are not available. I have confirmed that Debbie Brackett will be available to give her testimony at the arbitration hearing.

Please let me know if you have any other questions/comments re this matter. Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

-----Original Message-----

From: Nowlan Jr., John L. Sent: Tuesday, October 23, 2001 10:10 AM To: White, Bonnie Subject: FW: Vinmar

Bonnie, I think I need to stay involved in this case as I did the deal and have given a deposition. Is there any reason you do not want me involved?

-----Original Message-----

From: Elliott, Steven M. Sent: Tuesday, October 23, 2001 9:51 AM To: Nowlan Jr., John L. Subject: FW: Vinmar

thanks for volunteering me to handle vinmar.....i also have the helm arbitration case in dec and i should settle the baytank issue very soon

-----Original Message-----

From: White, Bonnie Sent: Tuesday, October 23, 2001 9:30 AM To: Elliott, Steven M. Cc: Sanders, Richard B. Subject: Vinmar

Steve,

I have confirmed the mediation and arbitration dates for the Vinmar matter that we discussed last Friday and yesterday. The mediation will take place on Tuesday, November 6. I will send you another e-mail with the exact time and location. If the mediation is not successful, the arbitration will take place in Houston on Tuesday, December 18 (with a carryover day to December 19, if necessary).

Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

Message 46 of 342

Summary of CPUC All-Party Meeting 1/3/01	
Sender	sheila.tweed@enron.com
Recipients	['travis.mccullough@enron.com', 'richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/153.

----- Forwarded by Sheila Tweed/HOU/ECT on 01/04/2001 08:13 AM -----

EFeo@milbank.com 01/03/2001 10:18 PM

To: cc: Subject: Summary of CPUC All-Party Meeting 1/3/01

Summary of Oral Arguments and All-Party Meeting before the CPUC taking place on January 3, 2001:

Oral Arguments were held at the CPUC today for purposes of commenting on today's draft final order.? The oral arguments were presided over by ALJ Walwyn.? The All-Party Meeting, which was presided over by Commissioner Wood, was not eventful.? Many of the participants left after the Oral Arguments and those who remained mostly responded to comments made during the Oral Arguments.?

Both SCE and PG&E argued that the CPUC erroneously failed to address an end to the rate freeze, recovery of past undercollections, and right to recover their full future procurement costs.? Both also argued that the surcharge will be inadequate to satisfy the financial community.? In addition, SCE requested that the CPUC relieve it of the obligation to procure power for its customers which is priced above the amount that they can recover from their customers.? PG&E argued the proposal failed to provide certainty for recovery of costs and criticized the CPUC's focus on accounting arguing that changes to the accounting methods were not a solution.

The Office of Ratepayer Advocates (CPUC Division) ("ORA") suggested several additional solutions for the CPUC to consider as a final solution: (1) encourage the utilities to issue revenue bonds; (2) reduce utilities' return on equity by one-half; and (3) encourage energy conservation which addresses the alleged price gouging.? ORA also argued that the utility companies needed to do more to cut corporate costs.

The California Industrial Users ("CIU") generally supported the proposal but criticized it for discriminating against larger customers and argued that the CPUC needs to look out for the welfare of all customers, not just smaller customers.? Both Reliant and Enron argued that the current situation is a short term problem and should be addressed with only interim relief.? Both also argued that the surcharge is not adequate and should be re-examined.? Enron complimented the CPUC on its decision not to lift the rate freeze.

The citizen advocates and consumer advocates (Greenlining Institute, Aglet Consumer Alliance, Golden State Power Cooperative, California Farm Federation) were generally satisfied with the proposed final decision.? They commended the CPUC for not lifting the rate freeze and for insisting on thorough and continuing investigations but argued the CPUC also needs to study the impact rate increases would have on the California economy, not just its affect on the utility companies.? TURN blamed the marketers and the utility companies for the crisis and argued that consumers shouldn't be forced to bail out the utility companies for their own bad decisions.?

A private attorney from San Diego who filed a lawsuit against out of state generators to recover alleged windfall profits suggested the CPUC not grant a rate surcharge until the utility companies actually declared bankruptcy and argued that filing for bankruptcy could provide an incentive for the utility companies to press their case against the marketers.? Commissioner Wood however expressed concern about the implications of bankruptcy on labor contracts and QF contracts.

Regards, Ed

Edwin F. Feo Milbank, Tweed, Hadley & McCloy LLP 601 South Figueroa Street, 30th Floor Los Angeles, CA? 90017
efeo@milbank.com <http://www.milbank.com> (213) 892-4417 - Direct Dial (213) 892-4717 - Direct Fax (213) 629-5063 -
General Fax (213) 446-3206 or (310) 968-0670 - Mobile

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RE: Enron N.A. contact info.

Sender	b..sanders@enron.com
Recipients	[melanie.gray@weil.com']
File	sanders-r/sent_items/92.

Yes-- deal with Willie directly. As for the claim of 1.825 million, as long as ENA accounting agrees to that #, I am fine. Is that just ENA or does EES also have a claim? -----Original Message----- From: melanie.gray@weil.com@ENRON [mailto:IMCEANOTES-melanie+2Egray+40weil+2Ecom+40ENRON@ENRON.com] Sent: Saturday, September 22, 2001 2:20 PM To: Sanders, Richard B. Subject: FW: Enron N.A. contact info.

Hello!

It was nice to see you at the POS event last week. I can't believe that we're into a new school year. I'm sorry I haven't been in touch; we did a fair amount of traveling this summer and now I'm over my head preparing for a trial that begins mid-October.

I assume/hope that you did receive a payment from the PCA trustee on account of EPMI's allowed claim. If you didn't, shame on me for not following up. If you need me to, please just let me know.

The only other open matter I have for ENA is in the Perry Gas case in which ENA filed a proof of claim in the amount of about \$1,918,000. A plan of liquidation has been confirmed by the Bankruptcy Court and the anticipated (not guaranteed) payout over time is expected to be in the 55-60% range. The post-confirmation trustee is in the process of reconciling claims.

From the email below sent to my from the post-liquidation trustee's counsel (who was also counsel to Perry Gas during the bankruptcy case), it appears that the trustee's accounting people have been talking to Willie Stewart in accounting at ENA to try to reconcile the slightly different numbers.

From what I understand, Willie Stewart and Perry agree that, with the exception of \$78,337.16 that ENA owed Perry for August 1999 deliveries, the amount of the prepetition claim is \$1,903,490.72. Provided that there is no disagreement about the amount of unpaid sales from Perry to ENA for August 1999, the \$78,337.16 should be offset against the \$1,903,490.72 claim, which would leave ENA with a prepetition claim of \$1,825,153.56.

I would be happy to deal directly with Willie on this if you'd like -- just let me know. If Willie agrees with the \$78,337.16 amount due to Perry for August 1999, do I have authority to agree to the prepetition claim of \$1,825,153.56? Perry has made one distribution and I'll get the commitment up front that as soon as the agreed order allowing ENA's claim, Perry will cut a check for the first distribution.

If my case settles, I'll give you a call to set up a lunch. I'd like to get caught up. Thanks and take care. -----
Forwarded by Melanie Gray/HO/WGM/US on 09/22/2001 02:03 PM -----

"Randy Rios" <RRIOS@floydsgur.com> on 09/18/2001 01:45:41 PM cc: Subject: FW: Enron N.A. contact info.

Attached is the contact information on the Enron North America employee that we discussed. I will fax to you the Enron North America claim schedule that Perry received.

Thanks,

Randall A. Rios Floyd, Isgur, Rios & Wahrlich, P. C. 700 Louisiana, Suite 4600 Houston, Texas 77002-2732 Tel: 713 222-1468 Fax: 713 222-1475 Email: rrios@floydsgur.com

-----Original Message-----

From: maurice.marichal@us.pwcglobal.com [mailto:maurice.marichal@us.pwcglobal.com] Sent: Tuesday, September 18, 2001 11:04 AM To: rrios@floydsgur.com Subject: Enron N.A. contact info.

Randy,

The name of the person with whom I have had contact is:

Willie Stewart: Tel. (713) 853-5950, Fax (713) 646-8420

I will follow this up with a fax containing a summary of their A/R balances with Perry Gas.

Regards, Maurice Marichal

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Re: further report

Sender	showard@agsk.com
Recipients	['dcweiner@hahnlaw.com', 'bonnie.white@enron.com']
File	sanders-r/deleted_items/451.

I believe that SDI's lawyer may have been telling the truth when he said th= at Enron was not brought in to the Cleveland settlement discussions, because S= DI and McDonald were doing a larger deal with Schultes. We refused to join in their deal in Los Angeles (because it left the Cleveland action alive.) An= d, during the last 45 days, McDonald and SDI have

been dismissing claims again= st Schultes all around the country. Something larger does appear to be going = on.

"cesherman@hahnlaw.com" 11/15/01 01:45PM >>>

by now you should all have by fax the dismissals filed today in the schulte= s case, including the gift to us of a dismissal of the contract counts (1-4) against the enron entities as well! i spoke with counsel for sdi, who - despite confidentiality restrictions - confirmed my instinct that the defendants were concerned that they could be brought back in if the contrac= t claims still existed against us. i have to think harder as to whether they= 're really off the hook on the tort counts, but it's at least reassuring they thought so.

interesting as well, the defendants apparently urged the plaintiff to just dismiss us. his lawyer apparently rejected the suggestion with the explanat= ion that we could pay too. they responded "for what"? and apparently the plaintiff's counsel just repeated the same response. if it offers any comfort, sdi's lawyer can't imagine any case schultes has to proceed agains= t us on.

i asked why we hadn't been broached to join in, and the only explanation i = got - which didn't seem really to be enough of an answer - was that this was ju= st part of a bigger settlement of the securities cases. for our info, have th= ere been such settlements?

the "big" strategic question now is do we just wait to hear from the court = or plaintiff's counsel, or do we push for a hearing. thoughts?

Charna E. Sherman Hahn Loeser & Parks LLP cesherman@hahnlaw.com 216-274-2556 (voice) 216-274-2555 (fax)

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ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

2049 Century Park East Thirty-Ninth Floor Los Angeles, CA 90067-3213 Tel 310-277-1226 Fax 310-552-6077

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.....

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Wright Case -- Enron

Sender	ctetrault@velaw.com
Recipients	['ghrothschild@marathonoil.com', 'richard.b.sanders@enron.com']
File	sanders-r/all_documents/5147.

Chip,

Responding to your message, the Enron in-house attorney with responsibility for the Wright case is Richard Sanders.

His e-mail address, which can be copied from the cc: field above, is Richard.B.Sanders@enron.com.

His telephone number is 713.853.5587. His fax number is 713.646.3490.

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

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Message 50 of 342

An Inbound Message For You Has Been Quarantined

Sender	enron.mailsweeper.admin@enron.com
Recipients	[]
File	sanders-r/deleted_items/377.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: chealey@luce.com Date: Thu, 17 Jan 2002 17:01:33 -0800 Subject: New Filed Rate case Attachment Type: Scenarios/Incoming/Inbound URL Catcher: A filename matching the file mask was detected: 'brown v. mci worldcom network services, inc..url'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

Please DO NOT reply to this address as it is not a monitored system mailbox.

Message 51 of 342

CPX - PG&E Discovery Orders

Sender	adanker@kayescholer.com
Recipients	[]
File	sanders-r/px/41.

Dear Committee Participant,

Attached below are copies of the entered Orders in the PG&E case regarding production of certain documents from PG&E, the ISO, and CalPX. You are reminded that if you would like to receive copies of the documents which are produced you must make a written request in the form described in the Orders no later than July 18, 2001 with respect to the ISO and no later than July 25, 2001 with respect to the PX.

If you are not able to open the attachments, please contact Maureen Franks at 310/788-1141 and copies will be faxed to you.

Regards, Ashleigh Danker

Ashleigh A. Danker, Esq. Kaye Scholer LLP 1999 Avenue of the Stars, Suite 1600 Los Angeles, CA 90067 Tel: (310) 788-1235 Fax: (310) 229-1935 Email: adanker@kayescholer.com

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- 53889.tif

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An Inbound Message For You Has Been Quarantined

Sender	enron.mailsweeper.admin@enron.com
Recipients	[rsander@notes.enron.com]
File	sanders-r/deleted_items/300.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: johnodam@goforthlewis.com Date: Fri, 07 Dec 2001 15:29:46 -0600 Subject: Fw: Spirit Of America - BEST I have seen yet Attachment Type: Scenarios/Incoming/Inbound EXE Catcher: A filename matching the file mask was detected: 'spiritofameric1.exe'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

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Message 53 of 342

Re: FERC Order, etc.

Sender	richard.sanders@enron.com
Recipients	[pmeringolo@brobeck.com]
File	sanders-r/sent/481.

You should now have both. If not, call my Asst, Twanda Sweet, at 713-858-9402

"Meringolo, Peter" <PMeringolo@brobeck.com> 11/01/2000 03:39 PM

To: "Richard B. Sanders Esq. (E-mail)" <richard.b.sanders@enron.com> cc: "Fergus, Gary S." <GFergus@brobeck.com> Subject: FERC Order, etc.

Richard, I have not received your email attaching the FERC order or the document from Steve Hall. In case your having trouble, here's a link my email address: pmeringolo@brobeck.com <mailto:pmeringolo@brobeck.com> I am sure that Gary will have access to his email, so feel free to send it on to both of us.

Peter

Peter P. Meringolo Brobeck, Phleger & Harrison LLP Spear Tower One Market San Francisco, CA 94105 Main: (415) 442-0900 Direct: (415) 442-1285 Fax: (415) 442-1010

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Message 54 of 342

RE: SCE

Sender	b..sanders@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	sanders-r/sent_items/114.

I am willing to allow our name as a cc. Let me know and I will call her back. -----Original Message----- From: sheryl_gussett@reliantenergy.com@ENRON [mailto:IMCEANOTES-sheryl+5Fgussett+40reliantenergy+2Ecom+40ENRON@ENRON.com] Sent: Friday, September 28, 2001 10:46 AM To: Sanders, Richard B.; Mellencamp, Lisa Subject: SCE

Richard and Lisa- The watered down letter to SCE is set out below. Let me know if you have any comments and if Enron is willing to sign on to the letter. We are trying to get this out today. Dynegy has watered this down somewhat, but I believe has signed off on it. Mirant has also agreed.

Also, Gov Davis's proclamation on XXX Session is set out below. October 9 is the current date.

http://www.governor.ca.gov/state/govsite/gov_htmldisplay.jsp?BV_SessionID=@@@0632743771.1001687586@@@&BV_EngineID=jadccdiijmbemgcfkmchcog.0&sCatTitle=Proclamation&sFilePath=/govsite/proclamation/20010927_proc_third_x_session.html&sTitle=Third+Extraordinary+Session+of+the+Legislature&iOID=24873

or go to www.governor.ca.gov -- governor's web page; then to Press Room, then to Proclamations.

(See attached file: 52060668_2.DOC)

Sheryl Gussett Reliant Resources, Inc. Senior Counsel P.O. Box 61867 Houston, Texas 77208 713-207-8538 713-207-0159 (fax) sgussett@reliant.com - 52060668_2.DOC << File: 52060668_2.DOC >>

Message 55 of 342

Re: McConville Consulting Agreement

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com', 'showard@agsk.com']
File	sanders-r/sent/1144.

By copy of this e-mail, I have asked Linda Guinn(713-853-6104) to get you a copy of the McConville consulting agreement asap.

showard@agsk.com 05/24/2001 07:33 PM

To: Richard.B.Sanders@enron.com cc: Subject: McConville Consulting Agreement

Gary Grote is okay on producing this agreement. Can you send me a copy? Thanks

Steve

.....

ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

2049 Century Park East Thirty-Ninth Floor Los Angeles, CA 90067-3213 Tel 310-277-1226 Fax 310-552-6077

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.....

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Re: FW: Computer Hardware

Sender	richard.sanders@enron.com
Recipients	[' stephanie.truss@enron.com ']
File	sanders-r/sent/1069.

Yes

Stephanie Truss/ENRON@enronXgate 05/08/2001 10:03 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: FW: Computer Hardware

Michelle Blaine has requested a flat screen for her computer. Please let me know if I can move forward with fulfilling this request. Thanks!

-----Original Message-----

From: Elbertson, Janette Sent: Tuesday, May 08, 2001 9:54 AM To: Truss, Stephanie Subject: Re: Computer Hardware

Stephanie:

Go ahead and order the computer battery for Gail Brownfeld.

You need to get approval from Richard Sanders by e-mail so you will have a record he approved it (because he is the cost center owner) before you order the flat panel for Michelle Blaine. Please note, the standard flat panel for our department is a 15" panel, definitely not an 18". When Richard approves it you can go ahead and order the flat panel through iBuyit.

The usual procedure for our department is the cost center owner needs to approve any requests for computer equipment before they are purchased.

Thanks. I hope you are doing well.

Janette Elbertson Enron Wholesale Services Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Stephanie Truss/ENRON@enronXgate 05/08/2001 09:34 AM To: Janette Elbertson/HOU/ECT@ECT cc: Subject: Computer Hardware

I need to order a new computer battery for Gail Brownfeld, as her current one has a broken connector. Also, Michelle Blaine has requested a flat screen for her computer. Can I order these from iBuyit, or do I need to get approval from someone first? Thanks!

Stephanie M. Truss Senior Administrative Assistant Enron Wholesale Services 1400 Smith Street Houston, Texas 77002
(713) 345-3861 - Telephone (713) 646-3490 - Facsimile

Message 57 of 342

Re: nsm

Sender richard.sanders@enron.com

Recipients ['showard@agsk.com']

File sanders-r/sent/905.

Yes---Dave Weiner at Hahn Loeser, 216-241-2824. I am not sure I want to coordinate that much, at least yet. Key Corp refused to wave conflict for several other firms and I still think I might be able to talk my way out of it. Do you think that if I went to Cleveland and talked to Schultes, perhaps with a business person, that we could get out?

showard@agsk.com 03/19/2001 05:43 PM

To: richard.b.sanders@enron.com cc: Subject: nsm

Does enron have counsel yet in Cleveland? Counsel for the other defendants there are anxious to coordinate with Enron's lawyer once selected.

.....

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.....

Message 58 of 342

RE: Trial Lawyer

Sender richard.sanders@enron.com

Recipients ['linda.guinn@enron.com']

File sanders-r/sent/1192.

----- Forwarded by Richard B Sanders/HOU/ECT on 06/05/2001 06:45 AM -----

"Welsh, H. Ronald" <rwelsh@velaw.com> 05/16/2001 06:26 PM

To: "Richard.B.Sanders@enron.com" <Richard.B.Sanders@enron.com> cc: Subject: RE: Trial Lawyer

Richard,

I know two top flight trial lawyers in New York:

Greg Joseph Fried, Frank, Harris, Shriver, & Jacobson One New York Plaza New York, New York 10004 212-859-8584
josepgr@ffhsj.com

Norm Kleinberg Hughes Hubbard & Reed LLP One Battery Park Plaza NY 10004 212-837-6680
kleinber@hugheshubbard.com

In addition, VE has a lateral partner whom I have not met:

James Serota VE NY 917-206-8004 jserota@velaw.com

Jamie's bio says that his area of practice is antitrust and business litigation, particularly concentrated on industries that are evolving from regulation to competition, including electric utilities. It says he chaired the Fuel and Energy Industry Committee of the ABA Antitrust Section from 94-97.

When are you in town, so we can have dinner?

Ron

-----Original Message-----

From: Richard.B.Sanders@enron.com [mailto:Richard.B.Sanders@enron.com] Sent: Tuesday, May 15, 2001 5:39 PM To: rwelsh@velaw.com Subject: Trial Lawyer

I anticipate that Enron may have some legal issues in New York similar to the issues Enron has faced in California. Can you recommend a top notch trial lawyer (similar to yourself) at any firms in New York?

Thanks. +++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

Message 59 of 342

Re: Document retention, etc.

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/sent/502.

lets talk about this Wed

Linda R Guinn 11/09/2000 08:49 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Re: Document retention, etc.

We do utilize this feature. How often it is used varies from assistant to assistant. You would need to have access to a system computer or at the very least have the document transferred to diskette. In the past we have not given up anything from our system computers. Since we give nothing but hard copies, is this a problem for us? Further, our retention policy states that all drafts are to be discarded once the deal has been completed.

Would you like to see a demonstration of the track changes feature?

Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

Richard B Sanders 11/09/2000 08:11 AM

To: Linda R Guinn/HOU/ECT@ECT cc: Subject: Document retention, etc.

Can you look into this ----- Forwarded by Richard B Sanders/HOU/ECT on 11/09/2000 08:11 AM -----

Janice R Moore 11/06/2000 12:16 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Document retention, etc.

Have you heard of something called "Track changes"? It's a WORD feature that is used -- a lot -- for redlining drafts. I see it used all the time on documents that I receive from 3rd parties and I use it myself. It has become popular because other tools, like CompareWrite and similar software, are not compatible w/ more recent versions of WordPerfect and WORD, so changes are often missed in marked drafts. I learned during a recent visit at my old law firm that that they've forbidden use of "Track Changes" and are advising their clients to do the same b/c the past changes never go away and can be retrieved forever by someone who knows anything about word processing technology. Which makes for interesting results in document discovery..... among other things. Just thought I'd pass this along.

Regards, Janice

EB3861 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-4842)

Message 60 of 342

Dig up in Texas by PFNet

Sender	richard.sanders@enron.com
Recipients	['kristina.mordaunt@enron.com']
File	sanders-r/all_documents/245.

----- Forwarded by Richard B Sanders/HOU/ECT on 07/13/2000 12:42 PM -----

Brad Cheney@ENRON COMMUNICATIONS 06/29/2000 12:48 PM

To: jodam@swbell.net cc: richard_sanders@enron.net, Bob VanOrder/Enron Communications@Enron Communications, David Rawlings/Enron Communications@Enron Communications, Bob Martin/Enron Communications@Enron Communications, David Leatherwood/Enron Communications@Enron Communications Subject: Dig up in Texas by PFNet

John, We were dug up at two locations between Liberty and Beaumont by a contractor working for PF Net on Monday, June 26. The contractor was Dan-Rik Construction Company out of Lafayette, La. The contractor hit and damaged our facility at two locations, one being between our existing splice # 1 and splice #2, three thousand feet of China. The other location is under a canal, in the same vicinity.

The contractor contact information is : Dan Rik Construction Company

PO Box 92868

Lafayette, La. 70509

Tel: 318.232.2488

They are a sub-contractor to: Manuel Brothers, Inc. 908 Taylorville Road, Ste. 104 Grass Valley, Ca. 95949

Tel: 530.272.4213

We are in the process of restoring our facilities and will invoice 'Dan Rik Construction' all costs associated with the restoration. PF Net is following our route through Texas into Louisiana and I am concerned about dig-ups that may occur bwtween China and the Louisiana border. Is an injunction the only way to keep them a safe and reasonable distance from our facility? Can we somehow put them on notice that we won't tolerate any future dig-ups and that if they do damage our facility, we will replace it from splice to splice at their expense? Please let me know.

Thank you.

Brad Cheney

Message 61 of 342

RE: Trial Lawyer**Sender** richard.sanders@enron.com**Recipients** ['rwelsh@velaw.com', 'welsh@enron.com']**File** sanders-r/sent_items/226.

I was reading through your and others' recommendations and saw(for the first time) your dinner invitation. Sorry for the delay. I need to take a rain check. Life is really hectic right now. As you will note from the time, I am here early just to clean out my e-mails--what has technology done to us. I am in CA once a week. Yesterday, my 5 year old called me at the office at 7am and asked me why I was never there when he woke up. So much for my cushy in-house job. Anyway, a night away is too hard to find right now. What about lunch? Thurs or Fri of next week?

"Welsh, H. Ronald" <rwelsh@velaw.com> 05/16/2001 06:26 PM To: ""Richard.B.Sanders@enron.com""
<Richard.B.Sanders@enron.com> cc: Subject: RE: Trial Lawyer

Richard,

I know two top flight trial lawyers in New York:

Greg Joseph Fried, Frank, Harris, Shriver, & Jacobson One New York Plaza New York, New York 10004 212-859-8584
josepgr@ffhsj.com

Norm Kleinberg Hughes Hubbard & Reed LLP One Battery Park Plaza NY 10004 212-837-6680
kleinber@hugheshubbard.com

In addition, VE has a lateral partner whom I have not met:

James Serota VE NY 917-206-8004 jserota@velaw.com

Jamie's bio says that his area of practice is antitrust and business litigation, particularly concentrated on industries that are evolving from regulation to competition, including electric utilities. It says he chaired the Fuel and Energy Industry Committee of the ABA Antitrust Section from 94-97.

When are you in town, so we can have dinner?

Ron

-----Original Message-----

From: Richard.B.Sanders@enron.com [mailto:Richard.B.Sanders@enron.com] Sent: Tuesday, May 15, 2001 5:39 PM To: rwelsh@velaw.com Subject: Trial Lawyer

I anticipate that Enron may have some legal issues in New York similar to the issues Enron has faced in California. Can you recommend a top notch trial lawyer (similar to yourself) at any firms in New York?

Thanks. +++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

Message 62 of 342

RE: Trial Lawyer**Sender** richard.sanders@enron.com**Recipients** [rwelsh@velaw.com]**File** sanders-r/sent/1186.

I was reading through your and others' recommendations and saw(for the first time) your dinner invitation. Sorry for the delay. I need to take a rain check. Life is really hectic right now. As you will note from the time, I am here early just to clean out my e-mails--what has technology done to us. I am in CA once a week. Yesterday, my 5 year old called me at the office at 7am and asked me why I was never there when he woke up. So much for my cushy in-house job. Anyway, a night away is too hard to find right now. What about lunch? Thurs or Fri of next week?

"Welsh, H. Ronald" <rwelsh@velaw.com> 05/16/2001 06:26 PM

To: "Richard.B.Sanders@enron.com" <Richard.B.Sanders@enron.com> cc: Subject: RE: Trial Lawyer

Richard,

I know two top flight trial lawyers in New York:

Greg Joseph Fried, Frank, Harris, Shriver, & Jacobson One New York Plaza New York, New York 10004 212-859-8584
josepgr@ffhsj.com

Norm Kleinberg Hughes Hubbard & Reed LLP One Battery Park Plaza NY 10004 212-837-6680
kleinber@hugheshubbard.com

In addition, VE has a lateral partner whom I have not met:

James Serota VE NY 917-206-8004 jserota@velaw.com

Jamie's bio says that his area of practice is antitrust and business litigation, particularly concentrated on industries that are evolving from regulation to competition, including electric utilities. It says he chaired the Fuel and Energy Industry Committee of the ABA Antitrust Section from 94-97.

When are you in town, so we can have dinner?

Ron

-----Original Message-----

From: Richard.B.Sanders@enron.com [mailto:Richard.B.Sanders@enron.com] Sent: Tuesday, May 15, 2001 5:39 PM To: rwelsh@velaw.com Subject: Trial Lawyer

I anticipate that Enron may have some legal issues in New York similar to the issues Enron has faced in California. Can you recommend a top notch trial lawyer (similar to yourself) at any firms in New York?

Thanks. +++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

Message 63 of 342

Re: Senator Dunn's Committee

Sender	richard.sanders@enron.com
Recipients	['sandra.mccubbin@enron.com']
File	sanders-r/sent/1108.

I admit that this is a little unclear--sorry. Obviously, I am heading up the overall CA litigation strategy for Enron. Robin Gibbs in Houston is our lead trial counsel in all the CA cases. He is out of Houston. Mike Kirby was hired as local counsel in the San Diego cases, but both Robin and I have been impressed with his judgment and we would like to expand his role a bit. I have asked him to lead the Sen Dunn response but he is coordinating closely with me and Robin. Is this as clear as mud?

Sandra McCubbin@ENRON 05/15/2001 08:21 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Senator Dunn's Committee

i am not clear as to which law firms we are supposed to be sending info to..who is the lead? ----- Forwarded by Sandra McCubbin/NA/Enron on 05/15/2001 06:20 PM -----

"Michael Kirby" <mlk@pkns.com> 05/15/2001 05:44 PM

To: <Smccubbi@enron.com> cc: <Richard.B.Sanders@enron.com>, <Sbishop@gibbs-bruns.com> Subject: Senator Dunn's Committee

Sandi-to follow up our telephone conference this afternoon, I understand that the hearing in Irvine will be this Friday, May 18 at 9:00, rather than Thursday, May 17. I will be there and will await receipt of the specific address. I called Heather and she is faxing me a map of the location. As I indicated, and as Richard Sanders mentioned in the earlier conference call today, I am taking the lead in dealing with Sen Dunn on behalf of Enron. Please send to my attention the transcripts of the prior hearings and any videotapes. I will make sure they get copied and distributed to everyone who needs them. The firm name is Post Kirby Noonan & Sweat LLP, 600 West Broadway, Suite 1100, San Diego, CA 92101. The phone is 619-231-8666, and my direct dial is 619-557-4402. The fax is 619-231-9593 and my cell phone is 619-871-8121. This should cover everything you requested. I look forward to meeting you in Irvine on Friday.Thanks.

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Message 64 of 342

Re: FW: Enron matter

Sender	richard.sanders@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	sanders-r/sent/1019.

I will hold off on contacting Charles Bone, the influential Ten. atty we talked about, until I hear from you that we need him to call the Ten. AG.

Lisa Mellencamp 04/20/2001 01:58 PM

To: James Derrick/Enron@EnronXGate, Mark E Haedicke/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT, Vicki Sharp/HOU/EES@EES cc: Subject: FW: Enron

matter

FYI. i will correct number/title re me with greene by phone and discuss any issues he has.

Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com ----- Forwarded by Lisa Mellencamp/HOU/ECT on 04/20/2001 01:56 PM

PAronzon@milbank.com 04/20/2001 01:35 PM

To: lisa.mellencamp@enron.com cc: Subject: FW: Enron matter

FYI. -----Original Message----- From: Bernard W. Greene [mailto:bgreene2@mail.state.tn.us] Sent: Thursday, April 19, 2001 2:32 PM To: Paronzon@milbank.com Subject: Enron matter

I have been asked to verify my understanding of Milbank's relationship with Enron for a group of Pacific Gas creditors with whom TN has been in discussions.? I sent them the following this afternoon:

I spoke with Paul Aronzon, the lead Milbank Tweed partner on the creditors committee engagement.? Aronzon said that Milbank Tweed does not represent Enron as general counsel or in any other significant capacity.? Enron uses Texas counsel when needed, but mostly relies on its very large inhouse legal staff.? Milbank Tweed has a large energy practice and works on transactions with Enron as lenders counsel, as counsel to entities in which Enron owns an equity interest and as outside counsel on isolated bankruptcy matters with Enron's in-house legal staff.? Aronzon said that if anyone has further questions regarding Milbank Tweed's relationship with Enron they can contact him directly (213-892-4377) or Lisa Mellencamp, Enron's general counsel (I believe that she can be reached at 713-853-3820).? Milbank Tweed will also be filing an application with the court, in connection with its representation of the unsecured creditors committee, which will list all potential conflicts.? This should be available on the court's web page - -?
<http://www.canb.uscourts.gov/canb/Documents.nsf?>

in the next few days.?

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Message 65 of 342

FW: PX - SCE Contracts - PX Press Release

Sender	richard.sanders@enron.com
Recipients	['hao@quinnemanuel.com']
File	sanders-r/sent/780.

----- Forwarded by Richard B Sanders/HOU/ECT on 02/05/2001 02:30 PM -----

"Fergus, Gary S." <GFergus@brobeck.com> 02/05/2001 12:25 PM

To: "Richard B. Sanders Esq. (E-mail)" <richard.b.sanders@enron.com> cc: Subject: FW: PX - SCE Contracts - PX Press Release

FYI. Especially the last paragraph. Thanks Gary

-----Original Message-----

From: Richard Josephson [mailto:rcjosephson@stoel.com] Sent: Monday, February 05, 2001 10:36 AM To: Andrew.Haller@Pacifcorp.com; john.fryer@Pacifcorp.com; Karen.Clark@Pacifcorp.com; JEHORAN@stoel.com; MWOOD@stoel.com; PARAMFJORD@stoel.com; SCHALL@stoel.com; SJKAPLAN@stoel.com Subject: PX - SCE Contracts - PX Press Release

Governor Davis Blocks Liquidation of Edison Contracts

FOR IMMEDIATE RELEASE CONTACT: E. Jesus Arredondo Friday, February 02, 2001 626.537.3155

Beth Pendexter

626.537.3154

Pasadena, CA- California Governor Gray Davis issued a last minute Executive Order prohibiting the California Power Exchange from liquidating Southern California Edison's forward positions. The liquidation proceeding is an attempt to recover approximately \$250 million Edison is in default on to CalPX market participants.

Davis' Executive Order nullifies a Los Angeles County Superior Court decision that earlier today authorized CalPX to liquidate Edison's forward market positions. The following is excerpt from Governor Davis' Executive Order:

It is ordered that the contracts and trades in the market for the sales and purchases of forward contracts and trades for electricity (known as the "Block Forward" market) for the delivery of electricity possessed by Southern California Edison Company*is hereby commandeered by the State of California to be held subject to the control and coordination of the State of California.

CalPX will transfer the Edison contracts to the State of California. State law requires that the state shall pay "the reasonable value thereof," and based on competitive market conditions today, CalPX determined the value of these contracts, for 2,846,000 megawatt hours, at over \$651 million.

- 30 -

CalPX is a non-profit public benefit corporation established in 1998 with the passage of AB1890, which restructured the electric utility industry within the state of California.

Richard C. Josephson Stoel Rives LLP 900 SW Fifth Avenue, Suite 2600 Portland, OR 97204-1268 DD: 503-294-9537
Fax: 503-220-2480 email: rcjosephson@stoel.com

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

Message 66 of 342

Re: Dig up in Texas by PFNet

Sender	richard.sanders@enron.com
Recipients	['richard_sanders@enron.net'; <Bob_VanOrder@enron.net>; 'kristina.mordaunt@enron.com']
File	sanders-r/all_documents/246.

----- Forwarded by Richard B Sanders/HOU/ECT on 07/13/2000 12:43 PM -----

"John W. Odam" <jodam@swbell.net> 06/30/2000 12:40 PM

To: Brad_Cheney@enron.net cc: "Richard B. Sanders" <Richard.B.Sanders@enron.com> Subject: Re: Dig up in Texas by PFNet

Brad:

First, let me say yes, if you want me to, I can write the company and "put them on notice" that you will invoice them. Also, alert them that we would consider court action if it occurred again. Let me know and I will proceed.

Second, yes, we could file an injunction if necessary Obviously that would involve more time and expense, hearing, probably opposition by the other company and see what a court would do. We could use as grounds they have already done it, are working in the area and, unless under court order to stay a distance away, would be likely do it again. Also, we could ask for damages for everything involved by EBS, repair, disruption, etc.

Both of these are things that Richard Sanders would have a view on I am sure, so I am cc'ing him on this. Again, let me know what you would like to do re court action.

I will await hearing from you.

John ----- Original Message ----- From: <Brad_Cheney@enron.net> To: <jodam@swbell.net> Cc: <richard_sanders@enron.net>; <Bob_VanOrder@enron.net>; <David_Rawlings@enron.net>; <Bob_Martin@enron.net>; <David_Leatherwood@enron.net> Sent: Thursday, June 29, 2000 10:48 AM Subject: Dig up in Texas by PFNet

John, We were dug up at two locations between Liberty and Beaumont
by a

contractor working for PF Net on Monday, June 26. The contractor was
Dan-Rik

Construction Company out of Lafayette, La. The contractor hit and
damaged our

facility at two locations, one being between our existing splice # 1 and
splice

#2, three thousand feet of China. The other location is under a canal,
in the

same vicinity. The contractor contact information is : Dan Rik Construction Company
PO

Box 92868 Lafayette, La. 70509 Tel: 318.232.2488 They are a sub-contractor to: Manuel Brothers, Inc. 908 Taylorville
Road,

Ste. 104 Grass Valley,
Ca.

95949 Tel:
530.272.4213

We are in the process of restoring our facilities and will invoice
'Dan Rik

Construction' all costs associated with the restoration. PF Net is
following

our route through Texas into Louisiana and I am concerned about dig-ups
that may

occur bwtween China and the Louisiana border. Is an injunction the only
way to

keep them a safe and reasonable distance from our facility? Can we
somehow put

them on notice that we won't tolerate any future dig-ups and that if they
do

damage our facility, we will replace it from splice to splice at their
expense?

Please let me know. Thank you. Brad Cheney

Message 67 of 342

RE: nsm	
Sender	showard@milbank.com
Recipients	['lisa.mellencamp@enron.com', 'sbhalla@milbank.com', 'richard.b.sanders@enron.com']
File	sanders-r/all_documents/354.

Lisa: re your point no. 2, shouldn't we also make a fraud claim on the B bonds?? Even though we no longer own these bonds, we took a big loss on them because of NSM's fraud and we continue to hold that fraud claim unless we expressly transferred it to our buyer, which is unlikely.

Steve Howard Milbank, Tweed, Hadley & McCloy LLP showard@milbank.com 213-892-4478; 213-892-4748 (fax) ?

-----Original Message-----

From: Lisa Mellencamp [mailto:Lisa.Mellencamp@enron.com] Sent: Wednesday, August 02, 2000 9:22 AM To: wilailuk.okanurak@linklaters.com; pichitphon.eammongkolchai@linklaters.com; paronzon@milbank.com; showard@milbank.com; tkreller@milbank.com Cc: Richard B Sanders; Linda Simmons; Deb Korkmas; Donna Lowry Subject: nsm

1. Mark E. Haedicke, Managing Director and General Counsel of each of Enron North America Corp., formerly known as Enron Capital & Trade Resources Corp., and? ECT Thailand Investments Inc., each a Delaware corporation, will sign the powers of attorney for 2 claims, one on behalf of each entity.? Passport info will be coming for him. Donna W. Lowry, Vice President and Assistant Secretary, of ECT Securities GP Corp., which is general partner of ECT Securities Limited Partnership, a Delaware limited partnership, will execute the power of attorney for that entity and passport info will be coming for her. ECT Securities Limited Partnership is the successor by merger to ECT Securities Corp.
2. We will make a claim for \$10,000,000 of what we call the C bonds and for equity issued to each of the 2 companies. We will be making a third indemnification claim for the partnership as well.
3. I will be sending a package by overnight courier this afternoon with Certificates of Incorporation and Bylaws for each of the 2 companies with a corporate secretary's certificate certifying as to (notarized). Apostiles from the Secretary of States office of Texas evidencing the notary's authority (she will be Deb Korkmas at our office here) will be coming to you directly from the law firm of Vinson? & Elkin in Austin, Texas.? The secretary's certificate will include list of directors of each with specimen signatures. I will fax as well. Info as to the partnership also coming with evidence of merger.
4. I will also be sending resolutions of each of the entities authorizing the filing of the claims and the powers of attorneys. I will fax as well.
5. The indenture trustee would have been the entity that sent demand letters etc. None came directly from us, so will not be included.
6. I am sure we can dig up evidence of purchase price, but do we really need this??? Hard to find and we have the interests.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX? 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

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Message 68 of 342

Re: Agenda

Sender	sheryl_gussett@reliantenergy.com
Recipients	['b..sanders@enron.com', 'michael.tribolet@enron.com']
File	sanders-r/deleted_items/50.

If I could "expand" a bit on Michael's outline for the Agenda, I would specifically include the following for discussion items at the beginning of the call:

1. Plan progress 2. Status of budget analysis and creating revised realistic budget i. Reduction of operating expenses/legal expenses; provide break down of legal expenses on PX's budget. ii. Status of IT and staffing analysis 3. Controlling professional fees at committee and debtor level. For committee professionals: i. Provide summary of professional tasks to be performed (committee and subcommittee oversight necessary for approving and expanding tasks) ii. Provide list of professionals who will perform tasks (committee oversight necessary for expanding list of professionals) iii. Provide estimated budget for tasks (committee oversight necessary for exceeding budget and reporting of budget to committee)

Sheryl Gussett Reliant Resources, Inc. P.O. Box 61867 Houston, Texas 77208 713-207-8538 713-207-0161 (fax)
s_gussett@reliant.com

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Michael.Tribolet @enron.com To: hweg@pgwlaw.com cc: 10/18/01 07:58 sheryl_gussett@reliantenergy.com AM , jay.wilson@mirant.com, Richard.B.Sanders@enron.com, zack.starbird@mirant.com, Lisa.Mellencamp@enron.com
Subject: Agenda

Howard:

I understand that Lisa expressed our concerns about the Case's progress yesterday. Enron would ask that we have an agenda circulated prior to the call which in addition to the previous items encompasses two items:

1. Progress on submitting a Plan 2. Controlling and directing professional resources (expenses)

Regards,

Michael

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Message 69 of 342

Keiffer, Dennis (BUR2983)	
Sender	rob.cole@enron.com
Recipients	['b..sanders@enron.com', 'tracy.carter@enron.com', 'gail.brownfeld@enron.com', 'rob.cole@enron.com']
File	sanders-r/deleted_items/197.

David, nothing needed on your end at this time by Corporate Risk Management, other then receipt of vehicle information that I requested earlier in the week from Tony. If this changes, we will let the litigators know, especially Bob Vote who oversees the Nepco matters for the Litigation Unit. Thanks,

Rob Cole, Manager-Claims Enron Corp. - Global Risk Markets P.O. Box 1188 (77251-1188) 1400 Smith Street, EB2136F Houston, Texas 77002 713-853-7739 (telephone) 713-646-2341 (facsimile) Rob.Cole@Enron.com (email) 6:30a.m. - 4:00p.m. c.s.t. (hours)

-----Original Message-----

From: Brownfeld, Gail Sent: Friday, October 26, 2001 12:33 PM To: Carter, Tracy; Sanders, Richard B.; Kisluk, Eileen; Lund, David; Vote, Robert; Cole, Rob Subject: RE: service of process/ Keiffer Request for Insurance Info

That being the case, I'd ask that David confirm that he's OK with this course of action and that we (the litigators) don't need to be doing anything in connection with this at this time.

-----Original Message-----

From: Carter, Tracy Sent: Friday, October 26, 2001 12:29 PM To: Brownfeld, Gail Cc: Sanders, Richard B.; Kisluk, Eileen; Lund, David; Vote, Robert; Cole, Rob Subject: RE: service of process/ Keiffer Request for Insurance Info

Gail,

Eileen is out of the office today; however, I have confirmed that Rob Cole of Corporate Risk Management is handling this matter directly with the insurance carrier, Travelers. Risk Management is not, at this time, retaining the Litigation Unit to assist with the claim. It is my understanding that an acknowledgement letter has been sent in response to the Keiffer letter and Rob Cole is working with NEPCO's safety director, Tony Blair-Softich, to obtain additional necessary information.

Please let us know if we can be of further assistance.

Tracy L. Carter Senior Legal Assistant Enron Litigation Unit 713-853-4899 tracy.carter@enron.com

-----Original Message-----

From: Brownfeld, Gail Sent: Friday, October 26, 2001 11:31 AM To: Kisluk, Eileen; Lund, David Cc: Sanders, Richard B. Subject: RE: service of process/ Keiffer Request for Insurance Info

Eileen, I have reviewed the letter and, to the extent that this involves a personal injury/insurance issue, It sounds like it falls within your area of responsibility. Please confirm that this is correct and that your group will work with David and the folks at NEPCO to sort out what needs to be done to respond. It may be that the subject coverage is with NEPCO and there won't be much if anything for you to do. David, please confirm that you have received the referenced letter, let me know whether you have information about this fellow sufficient to identify the insurance information requested, and also let me know if I can do anything to assist. Thanks.

-----Original Message-----

From: Sanders, Richard B. Sent: Friday, October 26, 2001 8:39 AM To: Brownfeld, Gail; Kisluk, Eileen; Lund, David Subject: FW: service of process

I have forwarded a copy of this letter to each of you. It involves a wrongful death claim. Gail-- please coordinate.

-----Original Message-----

From: Stephens, Becky Sent: Tuesday, October 23, 2001 4:10 PM To: Sanders, Richard B. Cc: Guinn, Linda R.; Vote, Robert; Robichaux, Lisa Subject: service of process

The following original documents, received today, have been forwarded for your immediate attention:

Dennis Floyd Keiffer - DOL: 2/22/01. LETTER DATED 10/16/01 RE UNDERINSURED MOTORIST CLAIM to Enron Corp. (NEPCO employee per Rob Cole) by regular mail on 10/22/01.

PLEASE ADVISE IF NOT RECEIVED WITHIN 1 BUSINESS DAY.

Thank you !!

Becky A. Stephens Support Services Coordinator Enron Litigation Unit, EB4809 713/853-5025 713/853-6576 (fax)
Becky.Stephens@enron.com

Message 70 of 342

NSM Cases: Update

Sender	jgoldblatt@agsk.com
Recipients	['b..sanders@enron.com', 'showard@agsk.com', 'wcp@quinnemanuel.com', 'andrew.edison@enron.com']
File	sanders-r/nsm/189.

I wanted to give you an update as to the status of the NSM Cases:

1) Farallon: There is a signed settlement agreement in place. (I have the plaintiffs' signature pages and am gathering the other defendants' and will forward you a fully-executed copy when I've got it.) However, the case has not been dismissed yet because of two small issues, neither of which involves Enron/ECT Securities directly. First, plaintiffs had wanted two signatures from each defendant on the Settlement Agreement. (The California corporations code provides that a corporation cannot claim lack of authority by signers of a document if both the president or a vice president and the secretary, CFO or treasurer sign.) I've convinced them to accept one signature from ECT Securities because it is a limited partnership, so the code provision does not apply. However, the plaintiffs are insisting that Natwest, several of whose entities are corporations, provide two signatures instead of only one. I suspect the issue will be worked out this week - there is a hearing scheduled for Friday (7/20) at which the case is expected to be dismissed.

Second, several of the defendants (but not ECT Securities) have cross-claims against John Schultes that were not released in the settlement with plaintiffs. In negotiating to settle those claims, Schultes indicated that he wanted to be released from liability by all defendants, including ECT Securities. However, we have made clear to the other parties that ECT Securities (and its affiliates) will not release any claims it may have against Schultes (e.g., for indemnification and/or contribution with respect to our settlement amount and attorneys fees) without being released from all liability to Schultes relating to NSM - including the action he filed in Ohio state court, in which he sued Enron. The other defendants may settle with Schultes and simply leave ECT out of it, in which case the entire Farallon case could be dismissed, leaving Enron/ECT to deal with Schultes on our own. (ECT has the right to bring any indemnification or contribution claims in a separate action, so dismissal of the case would not affect its rights.) I'll keep you updated on this - we should know more by the hearing on Friday morning.

2) Legg Mason. We have a fully-executed settlement agreement. (I'll send you a copy later today.) Plaintiffs expect to dismiss the case later this week - perhaps at the hearing on Friday in Farallon. I'll keep you updated.

3) Agreement among defendants. All defendants have signed the agreement and releases. I will have all signature pages today and send you a copy.

If you have any questions, please feel free to call me at (310) 551-9180 or return this e-mail.

Thanks.

- Jonathan - =====

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2049 Century Park East Thirty-Ninth Floor Los Angeles, CA 90067-3213 Tel 310-277-1226 Fax 310-552-6077

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.....

Message 71 of 342

Request for Exemption from E-mail Destruction Policy

Sender	diane.goode@enron.com
Recipients	['b..sanders@enron.com', 'bob.mcauliffe@enron.com']
File	sanders-r/deleted_items/bid_ask/1.

Sent at request of Richard Sanders (Legal Department)

As part of our defense in the Bid/Ask litigation, please exempt the following employees from the e-mail destruction policy:

Bob Hillier Joe Nieten Jason Althaus Michale Belmont Christine Dinh Teresa Smith Tony Thomas Douglas Cummins
Stacey Ramsey Chris Bowling Mai Nguyen Fred Philipson Francis Gonzales Savita Puthigai

If you have any questions regarding this request, please contact Richard Sanders at 713-853-5587.

Diane Goode Senior Specialist Enron North America 1400 Smith Street, EB3833 Houston, TX 77002-7361 (713)
345-7103 (713) 646-3490 (fax) Diane.Goode@Enron.com

Message 72 of 342

OFFICIAL MS-150 TRAINING RIDE

Sender	amelia.alder@enron.com
Recipients	['amelia.alder@enron.com']
File	sanders-r/deleted_items/407.

SUNDAY - FEBRUARY 10

Katy Mills Mall (at Sun & Ski Sports)

8:00 AM

28 and 44 miles

Rest stops every 15 miles Technical support, food and beverages will be provided

Don't Miss Out! This official MS-150 training ride is sponsored by our own Sun & Ski Sports, so come out and meet your teammates and our Sun & Ski sponsors. For more information, call the Katy Mills store at 281-644-6040.

I won't see you there, as I will be in Phoenix to conduct a workshop on teambuilding at the National MS Society's team rally. This will be an exciting time to announce our new team !!

Have a good time!

Amelia Alder Enron Transportation Services P.O. Box 1188 Suite ECN4505 Houston, TX 77251-1188 Tel: 713-646-6569
Fax: 713-345-5755 amelia.alder@enron.com

Message 73 of 342

Production to the CPUC

Sender	pmeringolo@brobeck.com
Recipients	['msmith1@enron.com', 'david_aamodt@pgn.com', 'richard.b.sanders@enron.com']
File	sanders-r/iso__pricecaps/97.

The attached letter was sent to the CPUC this afternoon, along with two disks containing the Portland General transaction data which we had agreed to produce.

Peter P. Meringolo Brobeck, Phleger & Harrison LLP Spear Tower One Market San Francisco, CA 94105 Main: (415) 442-0900 Direct: (415) 442-1285 Fax: (415) 442-1010 <<38K_201!.DOC>>

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- 38K_201!.DOC

Message 74 of 342

Draft Response to CPUC Subpoena on behalf of EES and EEMC

Sender	pmeringolo@brobeck.com
Recipients	['msmith1@enron.com', 'richard.b.sanders@enron.com', 'david_aamodt@pgn.com', 'mary.hain@enron.com']
File	sanders-r/iso__pricecaps/99.

Mike,

Attached for your review is a draft of EES's and EEMC's objections and responses to the CPUC subpoena. Please let me know if you have any questions or comments.

<<38K%J01!.DOC>> Peter P. Meringolo Brobeck, Phleger & Harrison LLP Spear Tower One Market San Francisco, CA 94105 Main: (415) 442-0900 Direct: (415) 442-1285 Fax: (415) 442-1010

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- 38K%J01!.DOC

*Message 75 of 342***Changes to Quitam Extranet Site - Please Read**

Sender	gluchetta@caseshare.com
Recipients	[]
File	sanders-r/inbox/62.

Effective immediately, please use the following URL to access the Quitam Extranet site hosted by CaseShare:

<http://www.caseshare.com/quitam>

Using this URL will redirect you to the secure location of your site. The URL you have been using will continue to work, but could result in error messages and/or additional login boxes being generated when used.

If you have shortcuts or favorites that contain the old URL, please update them accordingly to reflect this change.

We apologize for any minor inconvenience this may cause. As always, if you have questions related to this or any other matter involving CaseShare, please direct them to support@caseshare.com by email, or call our support desk at 303-824-0911 between the hours of 7am - 7 pm Mountain Time.

Thank you,

Gabe

Gabe Luchetta Chief Information Officer CaseShare Systems, LLC 1800 Glenarm Place, Suite 1400 Denver, CO 80202 (303) 824-0820 (303) 293-9073 (fax) gluchetta@caseshare.com www.caseshare.com

*Message 76 of 342***Changes to Wright Extranet Site - Please Read**

Sender	gluchetta@caseshare.com
Recipients	[]
File	sanders-r/inbox/63.

Effective immediately, please use the following URL to access the Wright Joint Defense Team Extranet site hosted by CaseShare:

<http://www.caseshare.com/wright>

Using this URL will redirect you to the secure location of your site. The URL you have been using will continue to work, but could result in error messages and/or additional login boxes being generated when used.

If you have shortcuts or favorites that contain the old URL, please update them accordingly to reflect this change.

We apologize for any minor inconvenience this may cause. As always, if you have questions related to this or any other matter involving CaseShare, please direct them to support@caseshare.com by email, or call our support desk at 303-824-0911 between the hours of 7am - 7 pm Mountain Time.

Thank you,

Gabe

Gabe Luchetta Chief Information Officer CaseShare Systems, LLC 1800 Glenarm Place, Suite 1400 Denver, CO 80202 (303) 824-0820 (303) 293-9073 (fax) gluchetta@caseshare.com www.caseshare.com

*Message 77 of 342***Kansas - Conf. Call 10/25/01 at 4 p.m. Central**

Sender	ddavis@hollandhart.com
Recipients	['andrew.edison@enron.com']
File	sanders-r/deleted_items/99.

Privileged and Confidential Joint Defense Communication

The Kansas JDT will meet by conference call on Thursday, October 25, at 4 p.m. Central to discuss:

1. Defendants' responses and objections to Plaintiffs' personal jurisdiction discovery in accordance with Judge Smith's 10/19/01 Order.
2. Suggestions/comments for the team drafting the reply to Sharp's response to the motion to dismiss.

Dial-in: 800-403-2017 Participant code: 846638

Dawne M. Davis, CLA Legal Assistant Holland & Hart, LLP P.O. Box 1347 Cheyenne, WY 82003 307-778-4240
307-778-8175 - fax ddavis@hollandhart.com

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*Message 78 of 342***Response to CPUC Subpoena**

Sender	pmeringolo@brobeck.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/all_documents/899.

Richard,

In the 10/6/2000 email to Harvey Morris at the CPUC setting forth Enron's proposed response to the subpoena, Enron stated that it would produce documents and information for Las Vegas Cogeneration. Does Enron still intend to produce these documents and information? If so, what types of documents and information do we intend to produce and who will be gathering it?

Thanks,

Peter

Peter P. Meringolo Brobeck, Phleger & Harrison LLP Spear Tower One Market San Francisco, CA 94105 Main: (415) 442-0900 Direct: (415) 442-1285 Fax: (415) 442-1010

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Message 79 of 342

Re: Heartland Steel

Sender	lisa.mellencamp@enron.com
Recipients	['ancel@sommerbarnard.com', 'richard.sanders@enron.com']
File	sanders-r/notes_inbox/5.

richard sanders in our litigation group will be calling you to get some more details re this. have you seen the transcripts of the exams? can we get? will you have someone in your shop work with mary heinitz here (713-853-3245) about pulling together our proof of claim?

Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

"Jerald Ancel" <Ancel@sommerbarnard.com> 05/21/2001 03:19 PM

To: <Lisa.Mellencamp@enron.com> cc: Subject: Heartland Steel

After tennis yesterday with Dave Kleiman counsel to the creditor's committee our conversation turned to Heartland Steel. You will recall that the committee had launched a series of 2004 exams concerning activities of the company board. It appears that the committee is looking at potential actions against the board arising out of decisions to create short term operating capital by stretching unsecured creditors. David, intimated to me that they had discovered certain minutes of the board which discuss these issues specifically.

Message 80 of 342

Re: Russia-Experienced Energy Attorney

Sender	richard.sanders@enron.com
Recipients	['k-counsel@staffingsolutionsllc.com']
File	sanders-r/all_documents/120.

Greg-- We are not in the market right now. Her credentials are good, but her timing is bad. Thanks forthe resume.

"Gregory C. MacCrone" <k-counsel@staffingsolutionsllc.com> 05/12/2000 05:08 PM

To: "Richard B. Sanders, Esq." <richard.b.sanders@enron.com> cc: Subject: Russia-Experienced Energy Attorney

Richard --

Just spoke with Sheila Tweed. She said the company filled the slot for which we presented George Bernhardt and suggested I contact you about the company's attorney needs.

We have an attorney who did a clerkship at Marathon Oil (Houston) while a University of Connecticut law student. Since graduating in '94, he has gained legal experience solely in Moscow doing energy work while at international firms (including the London-based Denton Hall firm). He has a project finance background which made me think of your team at Enron.

Are these credentials which interest you and the company? Please give me a ring or drop a line letting me know when you get a moment. I appreciate.

Best regards,

Gm. -- Gregory C. MacCrone Attorney Recruiter

Staffing Solutions, LLC/K-Counsel 610 SW Broadway, Suite 500 Portland, OR 97205-3406 T: 503-295-9948/800-834-9762 F: 503-297-9977 E: k-counsel@staffingsolutionsllc.com

Message 81 of 342

Antitrust outline

Sender	lisa.mellencamp@enron.com
Recipients	[richard.sanders@enron.com]
File	sanders-r/all_documents/222.

per my voicemail.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 ----- Forwarded by Lisa Mellencamp/HOU/ECT on 07/05/2000 11:40 AM -----

"JOHN G KLAUBERG" <JKLAUBER@LLGM.COM> 06/30/2000 06:02 PM

To: <lisa.mellencamp@enron.com> cc: "STEVEN E LEVITSKY" <SLEVITS@LLGM.COM> Subject: Antitrust outline

Lisa:

Attached is a brief outline of our initial thoughts on the antitrust issues contained in Infineum's complaint. Both Steve's and my home numbers are set forth at the end of the memo if you want to talk over the weekend.

I will see what I can do on the conflict front over the weekend.

John

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John Klauber LeBoeuf, Lamb, Greene & MacRae, L.L.P. 212 424-8125 jklauber@llgm.com

- Antitrust Memo.doc

Message 82 of 342

Hellmold

Sender	showard@agsk.com
Recipients	[richard.b.sanders@enron.com]
File	sanders-r/nsm/95.

Here is a transcript of the first day of the Hellmold deposition. Report to follow.

.....

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..... - NSM419A.TXT

Message 83 of 342

Patel Deposition

Sender	showard@agsk.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/nsm/79.

Here is a summary of today's session with Patel, including my questioning.

.....

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..... - Report on Patel Day #3.doc

Message 84 of 342

FW: Audio Tape Retention

Sender	darren.adamik@enron.com
Recipients	['david.cummings@enron.com', 'richard.sanders@enron.com', 'robert.knight@enron.com', 'ben.hill@enron.com']
File	sanders-r/all_documents/1649.

To all:

We will comply to the below request until further notice.

Richard:

I have attached spreadsheets of all users that will be affected by this request.

Regards, Darren Adamik Mgr.-Trading Technology Enron Net Works, LLC 713-853-4764

-----Original Message-----

From: Shankman, Jeffrey A. Sent: Wednesday, March 14, 2001 4:35 PM To: Adamik, Darren P.; Haedicke, Mark; Aronowitz, Alan; McClellan, George Subject: FW: Audio Tape Retention

I approve; these tapes and conversateions are related to Sempr/Synfuel..... Jeff -----Original Message----- From: Murray, Julia Sent: Wednesday, March 14, 2001 2:19 PM To: Shankman, Jeffrey A. Cc: Brownfeld, Gail Subject: Audio Tape Retention

I authorize the retention of the audio tapes of George McClellan, Dan Reck, Matt Arnold, and Kevin McGowan from this day forward until we notify you that the need for the retention is no longer necessary. I am aware that by retaining the audio tapes of these four individuals that this will result in the retainage of three call logger systems (360 recorded channels).

Jeff, I understand that this needs to be forwarded to Darren Adamik, Manager of IT Non-Development with your approval.

Thank you,

Julia Heintz Murray Enron Wholesale Services Enron Industrial Markets LLC 1400 Smith Street, EB3838 Houston, TX 77002 (713) 853-4794 Fax: (713) 646-3393 julia.murray@enron.com

Message 85 of 342

Farallon Depositions

Sender	showard@agsk.com
Recipients	[richard.b.sanders@enron.com]
File	sanders-r/nsm/77.

Farallon witnesses are being deposed in San Francisco this week. Here is a report on the first day

.....

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..... - Report on Patel Day #1.doc

Message 86 of 342

April 3 Meeting

Sender	richard.sanders@enron.com
Recipients	[robert.williams@enron.com]
File	sanders-r/sent/922.

What are you planning on doing with them? ----- Forwarded by Richard B Sanders/HOU/ECT on 03/25/2001 10:30 AM -----

"Hollingsworth, Jarvis V." <JHollingsworth@brobeck.com> 03/23/2001 04:47 PM

To: "Blaine, Michelle" <Michelle.Blaine@ENRON.com>, "Brownfeld, Gail" <Gail.Brownfeld@ENRON.com>, "Williams, Robert C." <Robert.C.Williams@ENRON.com>, "Sanders, Richard" <Richard.B.Sanders@ENRON.com> cc: "Long, Sean" <Sean.Long@ENRON.com>, "Zager, Steve" <SZager@brobeck.com> Subject: April 3 Meeting

Robert: As you recall, Steve Zager and I were going to be in Houston on April 3. This is just a followup to our previous emails regarding everyone's availability on that day. Let me know. Thanks.....Jarvis

Jarvis V. Hollingsworth Brobeck, Phleger & Harrison LLP 4801 Plaza on the Lake Austin, TX 78746 512.330.4087 512.633.7091(cell) 512.330-4001 Fax jhollingsworth@brobeck.com

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Message 87 of 342

Farallon Depositions

Sender	showard@agsk.com
Recipients	['rtellis@milbank.com', 'richard.b.sanders@enron.com']
File	sanders-r/nsm/81.

Here is a report on the first day of the deposition of William Mellin of Farallon.

.....

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..... - Report on Mellin Day #1.doc

Message 88 of 342

Enron and ENA Opinions with Revised Names for Bankers Trust---Re:

Sender	sheila.tweed@enron.com
Recipients	['richard.sanders@enron.com']
File	sanders-r/notes_inbox/204.

----- Forwarded by Sheila Tweed/HOU/ECT on 12/11/2000 01:43 PM -----

"McKay, Michael (NY)" <mmckay@velaw.com> 12/11/2000 07:56 AM

To: "Funk, Brenda (Enron)" <brenda.l.funk@enron.com>, "Tweed Shelia (E-mail)" <sheila.tweed@enron.com>, "Roseann Engeldorf (E-mail)" <roseann.engeldorf@enron.com> cc: Subject: Enron and ENA Opinions with Revised Names for Bankers Trust

As you may have seen, Bankers Trust Company, as Co-Arranger, is to be known as Deutsche Bank Securities Inc. I have revised the first and last pages of these opinions to reflect that. Thank you.

Michael McKay Vinson & Elkins L.L.P 1325 Avenue of the Americas New York, N.Y. 10019 Tel: 917-206-8115 Fax: 917-849-5311 Mobile: 203-243-5681 Email: mmckay@velaw.com

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- NewYork_13087_6.DOC - NewYork_13092_5.DOC

Message 89 of 342

Hellmold Report

Sender	showard@agsk.com
Recipients	['razzanof@dsmo.com', 'psloan@milbank.com', 'mdiamond@milbank.com', 'rfh@hirschmannlaw.com', 'macleodb@hbdlawy...]
File	sanders-r/all_documents/2192.

Mr. Hellmold's second report does not contain a list of the documents or other materials that he reviewed in preparing the report. I would appreciate receiving such a list ASAP.

.....

ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

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.....

Message 90 of 342

Memo & AG Subpoena to EES

Sender	linda.guinn@enron.com
Recipients	['andrew.edison@enron.com', 'richard.sanders@enron.com']
File	sanders-r/notes_inbox/48.

richard --

i asked gary to fax this to your hotel, but as you can see below, it didn't happen. attached is the AG subpoena.

Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

----- Forwarded by Linda R Guinn/HOU/ECT on 06/07/2001 01:29 PM -----

"Chen, Jane " <JChen@brobeck.com> 06/07/2001 10:40 AM

To: "'linda.r.guinn@enron.com'" <linda.r.guinn@enron.com> cc: Subject: Memo & AG Subpoena to EES

Per your request, attached please find the AG Subpoena to EES and our memo analyzing the subpoena. We did not fax the memo to the hotel because we are unsure of the security there.

Thank you. jane

Jane Chen Brobeck, Phleger & Harrison, LLP Assistant to Gary Fergus & Kirstin Wolf SF ext. 2944 SF rm. 2917c DD (415) 979-2944

<<Memo to R. Williams re Subpoena from CA AG.DOC>> <<AG.Subpoena.EES.05.29.01.pdf>>

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- Memo to R. Williams re Subpoena from CA AG.DOC - AG.Subpoena.EES.05.29.01.pdf

Message 91 of 342

Fwd: Pleasure talking to you

Sender	showard@agsk.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/all_documents/1658.

Here are materials on another potential expert

.....

ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

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..... - Enclosed.txt - ALTERNATIVE.HTM - 1JLB Torre del Paine Landscape.jpg - 1bio.doc - 1Aspen Hike.jpg

Message 92 of 342

Tom Glanville's Transcript

Sender	richard.sanders@enron.com
Recipients	['tim.mckone@enron.com']
File	sanders-r/sent_items/203.

----- Forwarded by Richard B Sanders/HOU/ECT on 05/25/2001 03:18 PM -----

showard@agsk.com 05/21/2001 11:52 PM To: Richard.B.Sanders@enron.com cc: wcp@quinnemanuel.com Subject: Tom Glanville's Transcript

See attached

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..... - NSN521CF.TXT

Message 93 of 342

PG&E/SCE filing

Sender	mary.hain@enron.com
Recipients	[richard.sanders@enron.com]
File	sanders-r/iso__pricercaps/56.

----- Forwarded by Mary Hain/HOU/ECT on 10/17/2000 03:42 PM

Enron Capital & Trade Resources Corp.

From: "Seabron Adamson" <seabron.adamson@frontier-economics.com> 10/17/2000 02:39 PM

To: <Mary.Hain@enron.com>, <James.D.Steffes@enron.com> cc: Subject: PG&E/SCE filing

Mary and Jim:

Did you see in the PG&E/SCE filing that the two companies have kindly volunteered (p. 32) to "assist the Commission in developing a full record and in undertaking the rigorous analysis needed to fix the problems in the California markets and determine refund responsibility". How kind and public-spirited of them. More seriously, I would expect that they already have a full economic analysis going on prices, damages, etc.

Seab

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

Message 94 of 342

RE: Resume

Sender	b..sanders@enron.com
Recipients	[rob.walls@enron.com]
File	sanders-r/sent_items/306.

To hire(no) or to represent us(maybe)?

-----Original Message-----

From: Walls Jr., Rob Sent: Monday, July 02, 2001 5:14 PM To: Williams, Robert C.; Sanders, Richard B. Subject: FW: Resume

any interest?

-----Original Message-----

From: "Lee Larkin" <llarkin@foutsmoore.com>@ENRON

[mailto:IMCEANOTES-+22Lee+20Larkin+22+20+3Clarkin+40foutsmoore+2Ecom+3E+40ENRON@ENRON.com] Sent: Monday, July 02, 2001 4:44 PM To: Walls Jr., Rob Subject: Resume

Rob- Thank you for taking the time to talk with me. Per your request, attached is copy of my resume in two formats. Thanks for your help. Lee M. Larkin Board Certified- Civil Trial Law-Texas Board of Legal Specialization Fouts & Moore, L.L.P. 1300 Post Oak Blvd. Suite 2000 Houston, Texas 77056-8000 Telephone: 713-986-7200 Telefax: 713-986-7299 [The information contained in this electronic mail transmission and any attachments are intended solely for the addressee(s) named above. If you are not an addressee, or responsible for delivering this e-mail, you have received this e-mail in error and you are strictly prohibited from reading or disclosing it. The information contained in this e-mail is highly confidential and may be subject to legally enforceable privileges. If you received this in error, please contact Lee M. Larkin at 713-986-7200 or reply via electronic mail immediately to the person sending this transmission and return this document to same.]

- Resume2.lml.doc << File: Resume2.lml.doc >> - Resume2.lml.wpd << File: Resume2.lml.wpd >>

Message 95 of 342

Tom Glanville's Transcript

Sender	richard.sanders@enron.com
Recipients	[tim.mckone@enron.com]
File	sanders-r/sent/1164.

----- Forwarded by Richard B Sanders/HOU/ECT on 05/25/2001 03:18 PM -----

showard@agsk.com 05/21/2001 11:52 PM

To: Richard.B.Sanders@enron.com cc: wcp@quinnemanuel.com Subject: Tom Glanville's Transcript

See attached

.....

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..... - NSN521CF.TXT

Message 96 of 342

FW: Outstanding invoices

Sender	b..sanders@enron.com
Recipients	['r..guinn@enron.com']
File	sanders-r/sent_items/312.

-----Original Message-----

From: Ed Kee <Ed.Kee@paconsulting.com>@ENRON
[mailto:IMCEANOTES-Ed+20Kee+20+3CEd+2EKee+40paconsulting+2Ecom+3E+40ENRON@ENRON.com] Sent:
Friday, July 20, 2001 2:42 PM To: Sanders, Richard B. Subject: Outstanding invoices

Richard: The table below includes all invoices sent to ENRON for our assistance in the California litigation. These invoices are submitted to Mike Kirby, who has, I am told, forwarded them to you. PKNS0001S is our internal job code for this assignment.

Thanks for your help.

PKNS0001S Invoice Number Amount Date 10000636 \$18,650.95 March 1, 2001 10000822 \$51,464.23 April 13, 2001
10001047 \$51,895.66 May 17, 2001 10001095 \$42,879.39 June 8, 2001 164,890.23

Cheers

pa

Edward Kee PA Consulting Group 1776 Eye Street, NW Washington, DC 20006 USA +1 202 828 8731 direct +1 202 785
4052 fax +1 202 415 0197 mobile ed.kee@paconsulting.com <http://www.paconsulting.com>

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Message 97 of 342

Report on Third Day of Mellin Deposition

Sender	showard@agsk.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/all_documents/1518.

My report on Mellin's third day of deposition, which included my questions, got buried for a while. Here it is.

.....

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..... - Report on Mellin Day #3.doc

Message 98 of 342

McConville's transcript

Sender	richard.sanders@enron.com
Recipients	[tim.mckone@enron.com]
File	sanders-r/sent/1163.

----- Forwarded by Richard B Sanders/HOU/ECT on 05/25/2001 03:18 PM -----

showard@agsk.com 05/22/2001 10:57 PM

To: Richard.B.Sanders@enron.com cc: Subject: McConville's transcript

see below

Dinner was great.

.....

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..... - NSM522CF.TXT

Message 99 of 342

McConville's transcript

Sender	richard.sanders@enron.com
Recipients	[michelle.cash@enron.com]
File	sanders-r/sent_items/216.

According to his deposition, Kevin is "exploring other opportunities." ----- Forwarded by Richard B Sanders/HOU/ECT on 06/05/2001 05:48 AM -----

showard@agsk.com 05/22/2001 10:57 PM To: Richard.B.Sanders@enron.com cc: Subject: McConville's transcript

see below

Dinner was great.

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..... - NSM522CF.TXT

Message 100 of 342

Patel Depo

Sender	showard@agsk.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/nsm/78.

The deposition of the first Farallon witness is plowing forward. The witness is quite good; even NatWest's counsel agrees.

I should get on tomorrow.

Here is a report on today (which repeated a lot from yesterday.)

.....

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..... - Report on Patel Day #2.doc

Message 101 of 342

McConville Consulting Agreement

Sender	richard.sanders@enron.com
Recipients	[]
File	sanders-r/all_documents/2085.

----- Forwarded by Richard B Sanders/HOU/ECT on 05/25/2001 06:36 AM -----

showard@agsk.com 05/24/2001 07:33 PM

To: Richard.B.Sanders@enron.com cc: Subject: McConville Consulting Agreement

Gary Grote is okay on producing this agreement. Can you send me a copy? Thanks

Steve

.....

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.....

Message 102 of 342

Experts--possible conflict

Sender	showard@agsk.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/all_documents/1685.

Rich Tucker says his firm works for Legg Mason and might be a problem. Do you recall the name of the lawyer (and law firm) for Legg Mason whom you met with in Washington ?? If he's with Reed Smith, Tucker is out. If he's not with Reed Smith, maybe we can proceed.

.....

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.....

Message 103 of 342

Fwd: RE: Hellmold

Sender	showard@agsk.com
Recipients	['wcp@quinnemanuel.com', 'richard.b.sanders@enron.com']
File	sanders-r/all_documents/7525.

See below. The settlement figures that I gave you last week (\$13 million v. "high 20s") were for Farallon and Oaktree together, but NOT Legg Mason. Farallon's damages are about 62% of the Farallon/Oaktree total, so it appears that Hennigan is looking for around \$17 million to settle Farallon

.....

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..... - Enclosed.txt - ALTERNATIVE.HTM

Message 104 of 342

experts

Sender	showard@agsk.com
Recipients	[richard.b.sanders@enron.com]
File	sanders-r/all_documents/1684.

This web page has info on J. Richard Tucker, the guy with service on the SEC.

<http://www.reedsmith.com/team/bio.asp?ID=2916>

.....

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.....

Message 105 of 342

Fwd: Patel Depo

Sender	richard.sanders@enron.com
Recipients	[richard.lydecker@enron.com , ' lisa.mellencamp@enron.com ', ' brian.vass@enron.com ']
File	sanders-r/all_documents/1427.

Steve Howard's attachment outlines Farrallon's claims against Enron. ----- Forwarded by Richard B Sanders/HOU/ECT on 02/04/2001 08:30 AM -----

showard@agsk.com 02/03/2001 06:03 PM

To: richard.b.sanders@enron.com cc: Subject: Fwd: Patel Depo

I'm not sure this got through the first time

.....

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..... - Enclosed.txt - Report on Patel Day #4.doc

Message 106 of 342

Re: Expert

Sender	richard.sanders@enron.com
Recipients	['showard@agsk.com']
File	sanders-r/all_documents/1699.

I agree

showard@agsk.com 03/23/2001 12:38 PM

To: richard.b.sanders@enron.com cc: Subject: Expert

Richard:

Confirming my voicemail this morning, I would like to go ahead and retain Gerry McGrath at \$550 per hour as our expert in this matter. Please let me know.

Steve

.....
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Message 107 of 342

Removal of Pier 23 case

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/all_documents/1521.

----- Forwarded by Richard B Sanders/HOU/ECT on 02/20/2001 09:51 AM -----

"Meringolo, Peter" <PMeringolo@brobeck.com> 02/19/2001 01:33 PM

To: "richard.b.sanders@enron.com" <richard.b.sanders@enron.com> cc: "Molland, Michael E." <MMolland@brobeck.com>, "Fergus, Gary S." <GFergus@brobeck.com> Subject: Removal of Pier 23 case

Richard,

With regard to the removal of the Pier 23 case, it is unclear whether Enron Corp. and EES were properly served.

We have the following documents:

* Memorandum from Becky Stephens indicating "Simultaneous service on Enron Corp., Enron Energy Services, Inc. and Enron Power Marketing, Inc." * A CT System Service of Process transmittal form verifying service on EPMI on 1/30/2001

However, we do not have CT System Service of Process transmittal forms verifying service on either Enron Corp or EES.

If these forms exist, please have someone forward them either to me or Jane Chen. If not, we need to discuss whether these entities waive any defects in service and join in the removal.

Peter

Peter P. Meringolo Brobeck, Phleger & Harrison LLP Spear Tower One Market San Francisco, CA 94105 Main: (415) 442-0900 Direct: (415) 442-1285 Fax: (415) 442-1010

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

Message 108 of 342

NSM Cases: Agreement Among Defendants

Sender	jgoldblatt@agsk.com
Recipients	['b..sanders@enron.com', 'andrew.edison@enron.com']
File	sanders-r/nsm/188.

Attached is a fully-executed copy of the Settlement Agreement and Mutual Release among the defendants in the Farallon action, pursuant to which ECT Securities (and its affiliates) is released by all defendants from liability in connection with the NSM securities offering.

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..... - Enclosed.txt - ~gw7657.tif

Message 109 of 342

NSM	
Sender	nobrien@agsk.com
Recipients	[b..sanders@enron.com]
File	sanders-r/deleted_items/nsm/12.

Gentlemen,

Steve asked that I forward the attached updated versions of Hellmold's rough transcript. I've bolded what appears to be the only two annotations made by Steve and they are in the 6/13/01 transcript.

Sincerely,

Nancy O'Brien

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..... - UpdatedH.DOC - UpdateHe.DOC

Message 110 of 342

Fwd: Invoices	
Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/sent_items/190.

Please call McGrath TODAY and give him an update and our apologies. ----- Forwarded by Richard B Sanders/HOU/ECT on 05/25/2001 07:30 AM -----

showard@agsk.com 05/23/2001 04:23 PM To: Richard.B.Sanders@enron.com cc: Subject: Fwd: Invoices

I received the attached today from Gerry McGrath concerning his invoice.

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..... - Enclosed.txt - ALTERNATIVE.HTM

Message 111 of 342

Fwd: Invoices

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/all_documents/2094.

Please call McGrath TODAY and give him an update and our apologies. ----- Forwarded by Richard B Sanders/HOU/ECT on 05/25/2001 07:30 AM -----

showard@agsk.com 05/23/2001 04:23 PM

To: Richard.B.Sanders@enron.com cc: Subject: Fwd: Invoices

I received the attached today from Gerry McGrath concerning his invoice.

.....

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..... - Enclosed.txt - ALTERNATIVE.HTM

Message 112 of 342

ECT: Memo of Contentions of Fact and Law

Sender	jgoldblatt@agsk.com
Recipients	['b..sanders@enron.com', 'showard@agsk.com']
File	sanders-r/nsm/180.

Richard and Bill:

Attached for your review and comment is a draft of the "Contentions of Fact" portion of ECT Securities' Memorandum of Contentions of Fact and Law.

The Contentions of Law are being drafted separately, and will be forwarded to you later this week.

- Jonathan -

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..... - NSMMemoo.DOC

Message 113 of 342

NSM Depositions	
Sender	richard.sanders@enron.com
Recipients	['donna.lowry@enron.com']
File	sanders-r/all_documents/1224.

----- Forwarded by Richard B Sanders/HOU/ECT on 01/04/2001 10:28 AM -----

showard@agsk.com 01/03/2001 03:37 PM

To: richard.b.sanders@enron.com cc: Subject: NSM Depositions

Brian's deposition is now firm for 1/18, 1/19, and possibly 1/20 in Houston. Let's plan on prep on 1/16 and 1/17.

McConville's deposition seems to have fallen off the radar screen again.

Hennegan also wants to depose Julien Smythe at Akin Gump, which may be a little troublesome fo us.

Steve

.....

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.....

Message 114 of 342

No summary judgment motion	
Sender	showard@agsk.com
Recipients	['wcp@quinnemanuel.com', 'richard.b.sanders@enron.com']
File	sanders-r/notes_inbox/424.

Bruce MacLeod at Hennigan's firm has informed me that plaintiffs will NOT file a summary judgment motion against ECT Securities.

Also, next week Ralph Hellmold will be deposed on 6/13 and 6/14, but we will not be expected to produce McGrath until July.

Question: Do we want to pay McGrath to attend Hellmold's deposition on 6/13 and 6/14 to help me out (and maybe keep Hellmold a little more honest by his presence in the room)?

.....
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.....

.....
Message 115 of 342

Re: NSM tasks

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com', 'showard@agsk.com']
File	sanders-r/sent/803.

Linda Guinn will call you about item #3

showard@agsk.com 02/13/2001 11:21 AM

To: richard.b.sanders@enron.com cc: Subject: NSM tasks

Just a follow up on the voicemail I left this morning.

I hope you will be able to (1) get Kevin McConville to come to Los Angeles this week to meet for a long factual meeting, (2) get us a telephonic interview with Donna Lawry (sp?), and (3) locate the report on Kuhn Sawasdi done by the Internal Security Department at Enron (probably in 1997 or early 1998).

.....
ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

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.....

Message 116 of 342

Re: Scheduling

Sender	richard.sanders@enron.com
Recipients	['showard@agask.com']
File	sanders-r/sent/1070.

How about 8 am PSTon Fri? I will call you.

showard@agask.com 05/10/2001 09:36 AM

To: Richard.B.Sanders@enron.com cc: Subject: Scheduling

Richard,

Can we talk tomorrow (Fri) morning your time about the indemnity/contribution memorandum and how we should be proceeding vis-avis settlement and possibly cross-complaining against the other defendants?

If so, what time would be convenient for you?

Steve

.....

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.....

Message 117 of 342

RE: Proposed Settlement Agreement with Schultes

Sender	b..sanders@enron.com
Recipients	['showard@agask.com']
File	sanders-r/sent_items/304.

Your are on the right and true path. -----Original Message----- From: showard@agask.com@ENRON [mailto:IMCEANOTES-showard+40agask+2Ecom+40ENRON@ENRON.com] Sent: Friday, July 13, 2001 3:47 PM To: Sanders, Richard B.; dcweiner@hahnlaw.com; wcp@quinnemanuel.com Cc: jgoldblatt@agask.com Subject: Fwd: Proposed Settlement Agreement with Schultes

Proposed Settlement Agreement With Schultes attached. In my view, ECT Securities should not release Schultes of anything unless he drops the Cleveland suit against Enron.

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..... - Enclosed.txt << File: Enclosed.txt >> - 4KD_06!.DOC << File: 4KD_06!.DOC >>

Message 118 of 342

Attached Files

Sender	nobrien@agsk.com
Recipients	['b..sanders@enron.com']
File	sanders-r/deleted_items/nsm/7.

Gentlemen,

Steve Howard asked that I forward to you Ralph Hellmold's deposition transcripts of testimony given on June 13 and 14, attached. Please be aware that the transcripts are in rough, not final, format.

If I can be of any assistance to you, please contact me.

Sincerely,

Nancy O'Brien

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..... - hellmold.DOC - hellmold.DOC

Message 119 of 342

Deposition Testimony re Barth/Swartz Meeting

Sender	showard@agsk.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/nsm/86.

Here is the passage from the first day of Brian's deposition in which Shawna Ballard, of Hennegan's firm, asked Brian substantive questions about his meeting with her partner, Mike Swartz.

As a result of Ms. Ballard's asking these questions, the other defendants asked Brian many questions about his meeting with Swartz and about any meetings with other plaintiffs' counsel, which brought out the meeting with Kathy. The defendants established that Mike and Kathy both took notes during their meetings; and defendants have now demanded

those notes.

.....

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..... - NSM Exerpt.doc

Message 120 of 342

Development

Sender	showard@agsk.com
Recipients	['wcp@quinnemanuel.com', 'richard.b.sanders@enron.com']
File	sanders-r/notes_inbox/423.

I just received a fifty page "expert" report about PaineWebber and ECT Securities over Ralph Hellmold's signature. The report is totally argumentative and was obviously written by lawyers and not by Hellmold.

This is an unfortunate development for one reason. When we make Farallon a settlement offer in a day or so, they may well believe that it came in reaction to this report. I will try to disabuse them of that, but I may or may not be successful.

I'll fax you the report.

.....

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.....

Message 121 of 342

Re: NSM tasks

Sender	richard.sanders@enron.com
Recipients	['showard@agsk.com']
File	sanders-r/all_documents/1495.

It looks like McConville can come on Wed night to spend Thurs. and 1/2 of Fri w/ you. Call me.

showard@agsk.com 02/13/2001 11:21 AM

To: richard.b.sanders@enron.com cc: Subject: NSM tasks

Just a follow up on the voicemail I left this morning.

I hope you will be able to (1) get Kevin McConville to come to Los Angeles this week to meet for a long factual meeting, (2) get us a telephonic interview with Donna Lawry (sp?), and (3) locate the report on Kuhn Sawasdi done by the Internal Security Department at Enron (probably in 1997 or early 1998).

.....

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.....

Message 122 of 342

Re: Barth Deposition

Sender	richard.sanders@enron.com
Recipients	['showard@agsk.com']
File	sanders-r/sent/657.

The 18th w/ Sat possibility is better.

showard@agsk.com 01/01/2001 12:14 PM

To: richard.b.sanders@enron.com cc: rtellis@Milbank.com Subject: Barth Deposition

Richard:

There is a conference call on Tuesday, Jan 2, at 2:00 your time among all NSM counsel re deposition scheduling. We will be pressed for a final date for Brian. If possible, please tell me before 2:00, whether I should suggest 1/17 or 1/18 (with Saturday possible) or both.

Thanks

Steve

.....

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Message 123 of 342

Re: Wednesday Night

Sender	richard.sanders@enron.com
Recipients	['showard@agsk.com']
File	sanders-r/all_documents/2146.

I am scheduled to go to the Lakers game. Sorry.

showard@agsk.com 06/02/2001 09:04 PM

To: Richard.B.Sanders@enron.com cc: Subject: Wednesday Night

Do you have plans for Wednesday evening?

I think Dave Weiner and Chanra (sp?) Sherman have talked with my partner Mark Neubauer (whom they know and whom you met here in December) about a dinner Wednesday night, and I know that they've been assuming that you and I would be part of the group as well. But it occurs to me that maybe no one talked to you about it.

Are you interested?

.....

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.....

Message 124 of 342

PG&E/SCE filing

Sender	james.steffes@enron.com
Recipients	['richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/62.

Richard --

PG&E and SCE (along with TURN) filed at FERC seeking refunds. As Seabron highlights below, I wouldn't put it pass them if they already have an idea of who to "charge" for this summer.

Last I remember, we were not too concerned about the utilities filing in state court seeking redress. Given that the undercollection number is approaching \$4 billion, I just want to make sure that we have thought about this angle. The

utilities are going to start trying to fix their problem in every way possible (I sure as hell would if I were them).

Jim

----- Forwarded by James D Steffes/NA/Enron on 10/18/2000 11:14 AM -----

"Seabron Adamson" <seabron.adamson@frontier-economics.com> 10/17/2000 04:39 PM

To: <Mary.Hain@enron.com>, <James.D.Steffes@enron.com> cc: Subject: PG&E/SCE filing

Mary and Jim:

Did you see in the PG&E/SCE filing that the two companies have kindly volunteered (p. 32) to "assist the Commission in developing a full record and in undertaking the rigorous analysis needed to fix the problems in the California markets and determine refund responsibility". How kind and public-spirited of them. More seriously, I would expect that they already have a full economic analysis going on prices, damages, etc.

Seab

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

Message 125 of 342

Memorandum Re CA Substantive and Procedural Law Re

Sender	richard.sanders@enron.com
Recipients	['jw1000mac@yahoo.com']
File	sanders-r/sent/1076.

----- Forwarded by Richard B Sanders/HOU/ECT on 05/11/2001 09:24 AM -----

showard@agsk.com 05/03/2001 10:56 PM

To: Richard.B.Sanders@enron.com cc: Subject: Memorandum Re CA Substantive and Procedural Law Re Contribution/Indemnity

Richard,

Here is the memorandum. I can send you a separate hard copy if you want it, or you can just print one out.

Let's talk on Monday. If you want to set a specific time, just send me an e-mail.

Steve

.....

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..... - Memorandum Re Contribution-Comparative Indemnity.doc

Message 126 of 342

Re: No summary judgment motion

Sender	wcp@quinnemanuel.com
Recipients	['showard@agsk.com', 'richard.b.sanders@enron.com']
File	sanders-r/all_documents/7566.

I think it would be very beneficial to pay McGrath to be present, mainly to keep Hellmold honest.

<showard@agsk.com> 06/06/01 08:16PM >>>

Bruce MacLeod at Hennigan's firm has informed me that plaintiffs will NOT file a summary judgment motion against ECT Securities.

Also, next week Ralph Hellmold will be deposed on 6/13 and 6/14, but we will not be expected to produce McGrath until July.

Question: Do we want to pay McGrath to attend Hellmold's deposition on 6/13 and 6/14 to help me out (and maybe keep Hellmold a little more honest by his presence in the room)?

.....
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.....
Message 127 of 342

430729 Linda Guinn: iBuyit Security Request Form for

Sender	richard.sanders@enron.com
Recipients	['karen.kuhfeldt@enron.com']
File	sanders-r/all_documents/1955.

I approve. ----- Forwarded by Richard B Sanders/HOU/ECT on 05/10/2001 03:51 PM -----

Linda R Guinn 05/09/2001 09:13 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: 430729 Linda Guinn: iBuyit Security Request Form for
please review and submit with your approval.

thanks.

Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

----- Forwarded by Linda R Guinn/HOU/ECT on 05/09/2001 09:13 AM -----

Claudia Meraz 05/08/2001 08:51 AM

To: Linda R Guinn/HOU/ECT@ECT cc: Subject: 430729 Linda Guinn: iBuyit Security Request Form for

Linda - We need Richard to approve the following request.

----- Forwarded by Claudia Meraz/HOU/ECT on 05/08/2001 08:47

AM -----

Enron North America Corp.

From: SAP Security @ ENRON 05/07/2001 01:15 PM

Sent by: Karen Kuhfeldt@ENRON To: Claudia Meraz/HOU/ECT@ECT cc: Subject: 430729 Linda Guinn: iBuyit Security Request Form for

Dear Ms. Guinn, Regretfully, we are unable to initiate the processing of your iBuyit Security request, because certain criteria were not met. These criteria are:

1. As you indicated, "Yes" to the approver role, the form must be submitted by someone at the appropriate approval level you are requesting. In this instance, Mr. Richard Sanders or someone above him in your group, would be the person to submit your request 3. The aforementioned submitter must indicate their approval of your projected role as an Approver within the body of the email. This indication need be no more than the words: "I approve." placed in the body of the email.

We will begin processing your request just as soon as receive your amended Security Request Form. Thanks, Karen SAP Security

From: Claudia Meraz @ ECT 05/04/2001 12:58 PM

To: SAP Security@enron.com cc:

Subject: iBuyit Security Request Form for Linda Guinn

Please find attached a Security Request Form for Linda Guinn, as approver.

Thank you,

Claudia M. x-39407

Message 128 of 342

Re: ECT Securities Depositions--agreements with Kathy

Sender	richard.sanders@enron.com
Recipients	['showard@agsk.com']
File	sanders-r/sent/1176.

These are all the ones I am aware of.

showard@agsk.com 05/31/2001 07:19 PM

To: Richard.B.Sanders@enron.com cc: Subject: ECT Securities Depositions--agreements with Kathy

Richard,

Please review the attached fax from Ben Ogletree, one of Natwest's lawyers, especially the four attached agreements (which Natwest already has.) Can I represent to Natwest that these four agreements, along with the Oaktree settlement

agreement, constitute all settlement or cooperation agreements that we have with any parties to any of NSM litigation? If I can say that, the issue of ECT Securities' deposition goes away.

Steve

.....

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..... - Enclosed.txt - ~gw110B.tif

Message 129 of 342

Re: Enron/Ecogas

Sender	richard.sanders@enron.com
Recipients	[' linda.guinn@enron.com ', ' pheath@velaw.com ']
File	sanders-r/all_documents/277.

I have asked my paralegal, Linda Guinn, to help gather the documents. Her # is 713-853-6104.

"Heath, Paul" <pheath@velaw.com> 07/20/2000 03:37 PM

To: "Richard Sanders (E-mail)" <richard.b.sanders@enron.com> cc: Subject: Enron/Ecogas

Richard- The following is a list of initial due diligence items that we need to review in advance of a more comprehensive meeting:

1. All closing documents for the Enron stock purchase and loan.
2. Corporate organizational chart for both personnel and legal entities.
3. All audited and interim financials on Ecogas since January of 1999 (on an entity by entity basis, if available).
4. List of payables on a per entity basis.
5. All major customer contracts (e.g. Frito Lay), real property leases and any leases at waste disposal sites.
6. Enron consulting agreement and any employment agreements.
7. Organizational documents for each entity.
8. List of intercompany payables.
9. All documents relating to long tem debt (e.g. bonds) and notes on trade payables.
10. All internal Enron business and financial reports evaluating whether to make the investment and any subsequent Enron business or financial reports evaluating the business.
11. Legal analysis prepared by counsel to Enron regarding Ecogas.
12. Ecogas board minutes since July of 1999.
13. Any Ecogas business plans submitted to Enron.

14. Any appraisals or valuations of Egogas or its assets.
15. Information submitted to IRS in connection with request for private letter ruling on Section 40 tax credits.
16. List of any transfers made to ENA by Ecogas since July of 1999.
17. Documents relating to Fidelity tax credits.
18. Documents relating to Freshgas letter of credit.

These documents should give us a good start in evaluating the situation. Please feel free to send them to me on a piecemeal basis. Thanks again for using V&E on this engagement and I very much look forward to working with you and your team.

Paul Heath Vinson & Elkins L.L.P. 3700 Trammell Crow Center 2001 Ross Avenue Dallas, Texas 75201-2975 Phone 214.220.7976 Fax 214.999.7976 E-mail pheath@velaw.com

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Message 130 of 342

Re: Telephone Conf. 4/18/01 at 9:30 a.m. CDT

Sender	richard.sanders@enron.com
Recipients	['Steve Howard']
File	sanders-r/all_documents/1835.

To: Steve Howard Richard Sanders Kathy Patrick

This message will confirm the conference call scheduled for Wednesday, April 18, 2001 at 9:30 a.m. CDT. Steve Howard will initiate the call to Kathy who can add Richard. If you have any questions or need to reschedule, please e-mail Steve Howard at showard@agsk.com. Thank you.

.....

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Message 131 of 342

Settlement

Sender	richard.sanders@enron.com
Recipients	['richard.lydecker@enron.com', 'mark.haedicke@enron.com']
File	sanders-r/sent_items/214.

----- Forwarded by Richard B Sanders/HOU/ECT on 06/05/2001 05:40 AM -----

showard@agsk.com 06/01/2001 08:53 PM To: Richard.B.Sanders@enron.com cc: wcp@quinnemanuel.com Subject: Settlement

Natwest, McDonald, and PaineWebber have collectively offered the Farallon/Oaktree plaintiffs (and maybe Legg Mason, I am not sure) \$13 million to settle. It is clear that this group hopes to persuade SDI and Enron to contribute something to such a settlement, but they told Hennegan that they would fund the full \$13 million themselves if necessary. Hennegan is asking for something in the "high \$20s" I am advised that the settlement group is prepared to go to the high teens, but it is not clear how much further.

I do not know the allocation of the \$13 million among Natwest and McDonald, except that I believe that Natwest is NOT paying the lion's share, as one might expect.

If the bargaining proceeds, I am sure that someone will ask Enron to contribute.

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Message 132 of 342

Settlement	
Sender	richard.sanders@enron.com
Recipients	['richard.lydecker@enron.com', 'mark.haedicke@enron.com']
File	sanders-r/all_documents/2147.

----- Forwarded by Richard B Sanders/HOU/ECT on 06/05/2001 05:40 AM -----

showard@agsk.com 06/01/2001 08:53 PM

To: Richard.B.Sanders@enron.com cc: wcp@quinnemanuel.com Subject: Settlement

Natwest, McDonald, and PaineWebber have collectively offered the Farallon/Oaktree plaintiffs (and maybe Legg Mason, I am not sure) \$13 million to settle. It is clear that this group hopes to persuade SDI and Enron to contribute something to such a settlement, but they told Hennegan that they would fund the full \$13 million themselves if necessary. Hennegan is asking for something in the "high \$20s" I am advised that the settlement group is prepared to go to the high teens, but it is not clear how much further.

I do not know the allocation of the \$13 million among Natwest and McDonald, except that I believe that Natwest is NOT paying the lion's share, as one might expect.

If the bargaining proceeds, I am sure that someone will ask Enron to contribute.

.....

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.....

Message 133 of 342

Re: NSM Litigation

Sender	richard.sanders@enron.com
Recipients	[showard@agsk.com]
File	sanders-r/all_documents/1432.

I have been buried with your state's energy crisis and have not had a chance to look at it. I would like to go to dinner on the 7th. Do you want to meet w/ McConville while you are here ?

showard@agsk.com 02/02/2001 02:11 PM

To: richard.b.sanders@enron.com cc: Subject: NSM Litigation

Richard - Do you have any comments on the draft engagement letter that I faxed to you last week?

A reminder that Roland and I are currently scheduled to have dinner with Brian Barth on the evening of 2/7 and to meet with him all day on 2/8. (there is some possibility that we may ask Brian to roll this schedule one day, since I may still be in SF in the deposition of Bill Mellin of Farallon thru 2/7 although I am hoping to get out of SF at the end of the day on 2/6.)

Do you want to be involved in our meetings with Brian?

Steve

.....

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.....

Message 134 of 342

Fwd: Enron production

Sender	showard@agsk.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/all_documents/2118.

Please see the e-mail below asking for production of the models created by Enron separate from the McDonald models. Enron's models were, I am told, prepared within ECM by Paul Pizzolato based on proprietary software of Enron, something called "RAROC," risk adjusted return on capital. Many iterations of these models were run, varying different elements of data.

Brian and Ray Bowen have both stated that it is unlikely that these models were retained Brian, Tom, and Kevin each testified in their depositions about these models; and the Farallon plaintiffs are now specifically asking about them. Before we say that these models no longer exist, I believe someone at Enron should make an effort to look for them. Frankly, it would probably be very helpful to Enron's case if we could in fact find these models. Right now our witnesses and our expert are saying things about the models but, without the actual models, this testimony is a bit self-serving.

Steve

.....

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..... - Enclosed.txt

Message 135 of 342

Depositions of Our People

Sender	showard@agsk.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/nsm/75.

All parties have agreed to extend discovery cut off from 1/19 to 3/5/01, but only for depositions of scheduled persons. The "protected" list includes Brian Barth, the person most knowledgeable from ECT Securities, Julien Smythe, and the person most knowledgeable from Akin, Gump. The list does not include Kevin McConville. I assume that ECT will designate Barth as PMK and that Akin Gump will designate Smythe as PMK, so that we are talking about only two depositions.

Trial dates and dispositive motion deadlines have not changed.

As a result of the the limited extension of discovery cutoff, plaintiffs want to push Brian back to the week of January 29th or the week of February 5th. They are also making noise about Brian's deposition possibly taking four days. We may want to take the position that Brian will be there for three days and no more. That will ruffle a lot of feathers, and you and I should discuss it.

Hennegan has asked if I will represent Akin Gump and, if so, will I accept service. You and I should discuss this also. Either way, we need to alert Akin Gump what is going on.

.....

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Message 136 of 342

Re: Fwd: RE: Motions for summary judgment

Sender	richard.sanders@enron.com
Recipients	[wcp@quinnemanuel.com]
File	sanders-r/sent/1197.

We made it but the house next door and the house catty-corner to us both flooded.

"William Price" <wcp@quinnemanuel.com> 06/09/2001 05:02 PM

To: <showard@agsk.com>, <Richard.B.Sanders@enron.com> cc: Subject: Fwd: RE: Motions for summary judgment

Steve: Did Hennigan give you any timetable for getting back to you on settlement? We will need to follow up quickly.

Richard: Hope you escaped from the storm relatively unscathed. It sounds like Tuesday was a drizzle compared to what Houston experienced yesterday.

<showard@agsk.com> 06/09/01 02:51PM >>>

See below. Farallon has moved for summary judgment against Natwest, McDonald, and PaineWebber. If the motion is credible, it should ratchet up the pressure on those three defendants to settle. Assuming that we don't want to be the only defendant at trial (or one of two, SDI being the other), we need to follow the settlement negotiations as closely as we can and try to get in (while appearing uninterested), or make a separate deal, at the last minute.

The key to getting current information on settlement efforts by the other defendants is Mike Diamond. Because Mike still wants Richard's business, and Mike and I are close, Mike is likely to be pretty forthcoming if Richard or I ask him what is going on.

Steve

.....

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Message 137 of 342

RE: Kansas - Conf. Call 12/5 at 10 a.m. Central

Sender	ctetrault@velaw.com
Recipients	['dschultz@hollandhart.com', 'ddavis@hollandhart.com', 'mbeatty@beattylaw.com', 'jrothrock@akingump.com']
File	sanders-r/all_documents/5148.

1. Responding to Don's voicemail of earlier today, I will be able to participate in the Quinque conference call tomorrow.
2. With regard to Clay Mahaffey's question, the MDL Order itself envisions that the transferee judge (i.e., Judge Downes) will decide the remand motion. See page 2 of the Panel's April 10, 2000 Transfer Order.
3. To be sure, the Transfer Order says that the remand motion can be decided by the transferee judge. It does not say that it must be. Also, the Transfer Order has the standard boilerplate paragraph telling the transferee judge that he can remand claims or actions as appropriate. However, the context strongly indicates that the Panel thinks the remand decision is for Judge Downes. Indeed, at oral argument before the Panel, the plaintiffs' lawyer made a big deal about how the Kansas judge was about to rule on the remand motion. The response from the Panel essentially was "tell it to the transferee judge."
4. There is case law that envisions that the transferee judge can decide removal / remand issues. Those cases are cited in the KN brief to the Panel. A couple of the cites are also picked up in the Transfer Order.

-----Original Message-----

From: Dawne Davis [mailto:ddavis@hollandhart.com] Sent: Monday, December 04, 2000 6:33 PM To: jrothrock@akingump.com; mbeatty@beattylaw.com; ctetrault@velaw.com Subject: Kansas - Conf. Call 12/5 at 10 a.m. Central

The Kansas Steering Committee will meet by conference call on Tuesday, December 5, at 10 a.m. Central to discuss Thursday's status conference before Judge Downes.

Dial-in: 800-403-2002 Participant code: 750983

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax ddavis@hollandhart.com

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Message 138 of 342

Rule 2004 Discovery Orders

Sender	adanker@kayescholer.com
Recipients	[]
File	sanders-r/px/42.

See, below, from Marc Cohen. ----- Forwarded by Ashleigh Danker/LA/US/KSFHH on 07/16/2001 04:45 PM -----

Marc Cohen To: Ashleigh 07/16/2001 Danker/LA/US/KSFHH@KSFHHNotes 03:34 PM cc: Maureen Franks/LA/US/KSFHH@KSFHHNotes Subject: Rule 2004 Discovery Orders

As many of you know, Judge Montali entered orders on July 11, 2001 respecting Pg&E's Rule 2004 requests made to CALISO and CALPX. I have not yet received copies of the entered orders. Nonetheless, his orders provide that Market Participants, through their outside counsel, may request copies of the ISO and PX production, following procedures set forth in the orders. In general the orders provide that: -- a Market Participant who desires to have its outside counsel receive a copy of the ISO document production must submit a request that is received by ISO's counsel, David Neale, of Levene, Neale, Bender, Rankin & Brill, LLP, 1801 Avenue of the Stars, suite 1120, LA, CA 90067, no later than July 18, 2001. Copies of the requests must be served upon bankruptcy counsel for PG&E, the PX, and the PX Committee. The requesting Market Participant shall bear the costs of duplication and shipment of the ISO Document Production. The request must also be accompanied by a certification from outside counsel stating that the outside counsel agrees to be bound by the terms of the Order, directing that shipment be made by overnight courier to the address of the outside counsel, agreeing to pay for the costs of duplication and shipment on behalf of the Market Participant and providing a client billing number for invoicing purposes. --a Market Participant who desires to have its outside counsel receive a copy of the PX Document Production follows a similar procedure, except that the counsel for the PX is Dan Sedor of Jeffer, Mangels, Butler & Marmaro LLP, 2121 Avenue of the Stars, 10th floor, Los Angeles Ca 90067, no later than July 25, 2001. Service must be made additionally upon the ISO bankruptcy counsel. If you need a copy of the orders and/or the certifications, please contact Maureen Franks (mfranks@kayescholer.com). Again, I don't have the entered orders but I do have the latest versions which were submitted to the Court. Finally, if the deadlines are missed, one of the orders do provide that upon request by a Market Participant, the Custodian (as that term is defined in the orders) for the PX Committee may disclose the produced information to Outside Professionals (as that term is defined in the orders).

Marc Cohen 310 788 1223 fax 310 229 1823 email marccohen@kayescholer.com

Message 139 of 342

FW: Casey, John A. v. Nepco

Sender	b..sanders@enron.com
Recipients	['bonnie.white@enron.com']
File	sanders-r/sent_items/373.

If you have not already done so, can you get back to Jim. Thanks

-----Original Message-----

From: =09Derrick Jr., James =20 Sent: =09Monday, August 20, 2001 4:44 PM To: =09Sanders, Richard B.; White, Bonnie Subject: =09FW: Casey, John A. v. Nepco

Please let me have your recommendation re the possible extension of coverage. Thank you. Jim

-----Original Message-----

From: =09Cole, Rob =20 Sent: =09Monday, August 20, 2001 8:44 AM To: =09Derrick Jr., James Cc: =09Bouillion, James L.; Cole, Rob; Mathis, Ken; Studdert, James P.; Kend= all, Earline Subject: =09Casey, John A. v. Nepco

Mr. Derrick, I am directing this email to your attention at the request of = Mr. Jim Bouillion for consideration of extending coverage to Nepco, pursuant to the EMPLOYMENT PRACTICES LIABILITY ENDORSEMENT on our Directors & Officers policy.

We have reviewed the Petition wherein a former iron worker of Nepco alleges damages as a result of being terminated, in violation of Title 85 O.S. § 5-. The Plaintiff sustained an on the job injury on April 6, 2001, when he was struck by a crane. He received workers compensation benefits. He allegedly re-injured his back on June 15, 2001. The Plaintiff alleges that "several hours after notifying his employer of re-injuring his back, Plaintiff was summarily terminated by Defendant." The Plaintiff alleges that a significant part of Defendant's decision to terminate him was because of his injury and because he exercised his rights under the Workers Compensation Act. The Petition goes on to state that the Defendant's actions "were done in reckless disregard for the rights of the Plaintiff and/or were wanton and motivated by oppression, fraud and/or malice" and thus includes a count for punitive damages. Suit is filed in Tulsa County, State of Oklahoma, with an Answer date of before September 4, 2001.

Our preliminary review of the Petition, absent any independent investigation or knowledge with respect to the allegations and the value placed on same, suggests there might be coverage for this loss under the Directors & Officers policy. The definition of "WRONGFUL EMPLOYMENT PRACTICE" includes "the actual or constructive termination of a career opportunity, or employment discipline or evaluation in a manner which violates any local, state, or federal law, whether existing by statute or common law, or which breaches any implied contract to continue employment"...It is doubtful this matter would exceed the \$1M policy deductible.

Please advise if you would like for us to extend coverage to Nepco. According to the information provided, the matter has been assigned to Bonnie White of the Litigation Unit and is being overseen by Richard Sanders of ENA.

Thanks,

Rob Cole, Manager-Claims ENA - Global Risk Markets P.O. Box 1188 (77251-1188) 1400 Smith Street, EB2136F
Houston, Texas 77002 713-853-7739 (telephone) 713-646-2341 (facsimile) Rob.Cole@Enron.com (email)

Message 140 of 342

Enron's Exhibit List

Sender	showard@agsk.com
Recipients	['richard.b.sanders@enron.com', 'wcp@quinnemanuel.com', 'jgoldblatt@agsk.com', 'rtellis@milbank.com']
File	sanders-r/notes_inbox/59.

Enron needs a day (maybe less) of your time, hopefully this week.

We have to submit our proposed exhibits on July 3, 2001. I am leaving for Peru on Sunday 6/17, not returning until 7/6 (after the list is due, unless the final status conference changes).

I have gone through my high priority documents and listed potential exhibits. I would like you to come out to our offices and go thru (1) the accordions of key docs that you put together earlier this year and (2) all of the deposition exhibits, to see what should be added to my list.

I am not trying to pack our list. In fact I would like NOT to list (a) any document that we are sure one or more of the other parties will submit (e.g., I haven't put any of the offering memos or road show slides on the list) or (b) any document that contains anything negative for us, unless there is also something very positive in the document that we really need (e.g., I haven't listed Brian's memo re topics for Management Company discussion or any of the work by the Enron auditors in August-September 1998.)

The reason that I would like you to do this work this week is so that I can discuss any questions you come up with before I leave. I will be in traveling and in NY on Tues-Thurs, but you can come here on any of those days; I'll be back in the office on Friday (6/15); we could talk out any questions then.

Let me know what you can do.

.....
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Message 141 of 342

Re: Want to Invest in a Steel Mill in Thailand?

Sender	richard.sanders@enron.com
Recipients	[showard@agsk.com]
File	sanders-r/sent/667.

Any thoughts on this question? ----- Forwarded by Richard B Sanders/HOU/ECT on 01/04/2001 10:46 AM -----

Richard Lydecker@ENRON 01/04/2001 09:08 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Julia Murray/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT Subject: Re: Want to Invest in a Steel Mill in Thailand?

Not only no, but hell no. Once burned (badly), twice shy (exponentially). The best and only development on NSM I would like to see is to get out the litigation morass and (hopefully) be a little wiser next time.

Seriously, if the project does get reorganized (sans Enron additional investment), what does that mean in terms of any potential recovery for the existing debt? Presumably any reorganization would come out of a bankruptcy plan. Any hope?

From: Richard B Sanders@ECT on 01/03/2001 06:11 PM To: Julia Murray/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT, Richard Lydecker/Corp/Enron@Enron, Travis McCullough/HOU/ECT@ECT cc:

Subject: Want to Invest in a Steel Mill in Thailand?

I have attached an e-mail from Steve Howard, our atty in the NSM litigation. Schultes is the original CEO of NSM. Let me know if you are interested. ----- Forwarded by Richard B Sanders/HOU/ECT on 01/03/2001 05:57 PM -----

showard@agsk.com 01/02/2001 04:30 PM

To: richard.b.sanders@enron.com cc: Subject: Want to Invest in a Steel Mill in Thailand?

Schultes' lawyer has asked us if John can call an Enron business person concerning a possible investment by Enron in some reorganized form of the project that Schultes is pushing. Think anyone at Enron is interested? If so, who?

We told the lawyer that John should not call unless we clear it with you first.

Steve

.....
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Message 142 of 342

Fwd: Due Diligence Outline

Sender	showard@agsk.com
Recipients	[richard.b.sanders@enron.com]
File	sanders-r/all_documents/1491.

Richard,

At an earlier time in the NSM cases, I thought that we might argue that Enron simply had nothing to do with the A and B bond offerings, that ECT Securities' name appeared on the cover but Enron did nothing else.

Whether or not that would be a good position to take, it is clear to me that the evidence will not support it. Enron did a great deal of diligence starting in June of 1997 and continuing well after it became an "underwriter" in November 1997 (after which, among other things, Enron received and commented on drafts of the offering documents and road show slides.) While we could argue that we were only looking out for ourselves, I have no confidence that a jury would buy that; and, in any event, I think it would be very unattractive for us to say that we put our name on the cover just to get a fee and never did anything at all to fulfill the duties of an underwriter.

Instead I think we should contend that Enron did a hell of a lot of work on this transaction, looking into many different aspects of the deal, that Enron believed what it found and was told, that Enron asked a lot of questions of Schultes, Healsey, Stickler, and Busse, that Enron believed and relied on them, and that Enron invested \$30 million of its own money (more than the plaintiffs) because Enron sincerely believed in the deal.. We know now that some of the things in the offering documents and road show slides were not right, but Enron learned that only five or six months after the investors, including Enron, put their money in.

On the basis of our meetings, I have asked Brian to take some time to put down on paper an itemization of what Enron did to investigate the NSM transaction. A preliminary draft is attached. I have asked Brian to go back and add names of Enron and outside people involved in each of the analyses or investigations that he has listed.

.....

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..... - Enclosed.txt - nsmdsummary.doc

Message 143 of 342

sSETTLEMENT	
Sender	showard@agsk.com
Recipients	[b..sanders@enron.com]
File	sanders-r/deleted_items/nsm/11.

Richard and Bill:

Damage figures with prejudgment interest thru 3/31/01 are:

Farallon \$21.8 million Oaktree \$13.2 million Legg Mason \$4.9 million

Farallon's damages are 62% of the total damages in Hennigan's case.

If the case were to settle for the total that Hennigan seeks, \$29.3 million= , Farallon would get \$18.2 million, and Oaktree would get \$11.1 million.

If Enron were to contribute \$1.25 million to an overall settlement as suggested, we would be paying about 7% of Farallon's damages.

If everyone but us were to settle for the suggested retail price (assuming that Hennigan would do such a deal), Farallon's remaining damages would be \$4.4 million.

The ratio of Farallon's damages to Legg Mason's is 4.4:1.

I think our goal should be to settle Farallon for \$1,000,000 and Legg Mason for \$200,000, and I think that should be achievable.

I would offer the other defendants a contribution from Enron of \$750,00 (pointing out to the defendants that this is a substantial increase over ou= r opening offer to Hennigan of \$450,000.) I would stick on \$750,00 quite a while, saying that we are very reluctant to pay any seven figure number, tr= y to get defendants to think that their biggest challenge is to get us to \$1 million, then finally give in to that figure.

We have bargaining power. Any defendant who wants to settle has to have us= in it's group; therefore we can hold out for a smaller share.

If we so settle, we need mutual releases of all NSM-related claims among al= l settling defendants.

If the settling group is less than all defendants, the settlement must be conditioned on obtaining a good faith settlement order.

Good luck.

Steve = = = = ==

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FW: Your edits

Sender	gfergus@brobeck.com
Recipients	['b..sanders@enron.com', 'Gary and Sue', 'Ron', 'Richard']
File	sanders-r/iso__pricecaps/482.

Richard, Here it is. It took me a little while to retrieve it from our system. Thanks Gary

-----Original Message-----

From: Seabron Adamson [mailto:seabron.adamson@frontier-economics.com] Sent: Sunday, April 08, 2001 10:48 AM To: Alan.Comnes@enron.com; RCARROLL@bracepatt.com; Richard.B.Sanders@enron.com; Susan.J.Mara@enron.com; Fergus, Gary S. Subject: Your edits

Alan:

cc: Ron, Richard, Gary and Sue

I am OK with most of these, and will incorporate them ASAP.

On the deleted paras (26-30). My intention was to respond to the assertion by Sheffrin that large numbers of bids near the MCP was indicative of market power, combined with large number of bids at much higher prices at higher MW levels (e.g. bid \$150/MWh at 200 MW but \$300/MWh at 250 MW). The first point I could easily summarize more succinctly, the second I think takes more effort.

Of course, the fact that large numbers of bids around the MCP were submitted by importers merely suggests in reality that people are pretty smart, and new that prices in neighboring markets (e.g. in the NW) would settle at similar levels. For those of you with an legal anti-trust background, it merely confirms why the entire analysis is shaky - the fundamental market definition is wrong (market definition being one of the key elements of anti-trust economics and law). As even the MSC has agreed, the California market is not a market on its own, but instead is well-integrated with the rest of the West. So it is very difficult to look at half a market and come up with sensible conclusions...

I can try to cut this down, or we can eliminate it altogether. I think it does help address one of the accusations raised by Sheffrin, but I leave it to you legal eagles to let me know whether responding to the issue is worth the tradeoff in terms of the length of the affidavit. Suggestions welcome...

Seabron

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

-----Original Message-----

From: Alan.Comnes@enron.com [mailto:Alan.Comnes@enron.com] Sent: Friday, April 06, 2001 6:59 PM To: Seabron Adamson; RCARROLL@bracepatt.com; Richard.B.Sanders@enron.com; Susan.J.Mara@enron.com; Ray.Alvarez@enron.com; gfergus@brobeck.com Cc: James.D.Steffes@enron.com Subject: Answer to CAISO's March 22 Answer Claiming Market Power and Strategic Bidding Importance: High

All: We are targeting to file this on Monday, 9 April.

Ron:

I am forwarding to you two files:

The first is a draft of EPMI's answer. I hope I have made your job easier by providing you with a first draft.. I expect that you'll do your usual magic turning it into a legal pleading.

The second is Seabron's affidavit, including my comments. . Seabron needs to live by the suggested edits, of course, so he get's veto rights over the weekend.

Gary, Richard S.:

Please review w.r.t. litigation compatibility.

Seabron,

Please start with my version and let me know any major issues you have with my suggested edits.

Tim, Sue, Ray: Please review. Tim, make sure you look at paragraphs 26-30.

GAC

(See attached file: 01-04-06 SA Second draft GAC.doc)(See attached file: Answer to ISO Reply 040406.doc)

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Message 145 of 342

Internal Follow Up at Enron

Sender	showard@agsk.com
Recipients	['wcp@quinnemanuel.com', 'jgoldblatt@agsk.com', 'richard.b.sanders@enron.com']
File	sanders-r/notes_inbox/61.

Richard and Bill,

The following clean up needs to be done before we finalize our pre-trial materials due 7/3/01:

1. Interview Enron employees Paul Pizzolato, Chris Helfrich, and Jim Easter to ascertain (a) whether they have sufficient memory of the NSM transaction that we should add them to our witness list to strengthen our testimony about the quality and quantity of Enron's due diligence and (b) whether they have any documents or computer files that should have been produced earlier in response to the basic document requests in the case. (This is not an entirely defensive exercise; Pizzolato or Helfrich might have computer models that would strengthen our case.)
2. Go back to Ray Bowen and find out if he/ECM has documents relating to NSM. We asked him before, but he never responded. Jim Easter might know the answer to this question, if he is still in ECM
3. Talk to Chris Hunt to ascertain whether he or someone else in his (former?) group should be added to our witness list to discuss due diligence carried out by Enron International.
4. Figure out how we can prove with admissible evidence the precise amounts of all of Enron's investments in NSM and the identity of the particular Enron entity making each of those investments. I have pieced most of the necessary facts together from McDonald documents and a privileged Akin Gump memo. This will not do at trial, unless everyone stipulates to the facts, which I would not count on. I know it sounds simple, but we need a witness on this point and records to back him/her up.

5. Consider whether we need to include someone from Bear Stearns, ECT Securities' clearing firm, on our witness list. We have to prove that ECT Securities did not purchase or sell any NSM securities. Donna Lowry (or possibly Kevin) may be able to flat out testify to this, but it would be a lot better to back her/him up with account records. Donna has recently obtained the necessary records from Bear Stearns; but, unless everyone will stipulate to admissibility of these records, I am not sure that Donna alone can get them in. We may need a Bear Stearns person. Maybe we could just list such a person generically on our witness until we see if the parties will stipulate.

Bill, a number of these matters may still be open when I leave in a week, so you will have to follow up (unless the 7/3 deadline gets extended on 6/21). Jonathan Goldblatt can help. Typically, Richard likes to talk with any present or former Enron employee before we do.

Steve

.....

ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

2049 Century Park East Thirty-Ninth Floor Los Angeles, CA 90067-3213 Tel 310-277-1226 Fax 310-552-6077

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.....

Message 146 of 342

RE: CalPX Participants' Committee - possible joinder in PGE motion

Sender	richard.sanders@enron.com
Recipients	pgurfein@akingump.com , adefelice@ggfcmk.com , awells@stroock.com , ayudkowsky@stroock.com]
File	sanders-r/sent/1111.

Enron opposes the official ratepayers committee.

"Gurfein, Peter" <pgurfein@AkinGump.com> 05/16/2001 01:15 PM

To: "Jeffrey A. Krieger" <jkrieger@ggfcmk.com>, "Gurfein, Peter" <pgurfein@AkinGump.com>, jcrossen@apx.com, rberry@apx.com, rich.stevens@avistacorp.com, david.burns@bakerbotts.com, doug.anderson@calenergy.com, dag@dgdk.com, rkd@dgdk.com, richard.b.sanders@enron.com, "Anne Marie DeFelice" <adefelice@ggfcmk.com>, "Cindy Stremmel" <cstremmel@ggfcmk.com>, "Garrett L. Hanken" <ghanken@ggfcmk.com>, "Marc S. Cohen" <mcohen@ggfcmk.com>, kjohan@ladwp.com, ceklund@llgm.com, dwhitley@llgm.com, jrnelson@llgm.com, mlubic@mdbe.com, zack.starbird@mirant.com, pmar@mofo.com, hweg@pgwlaw.com, david.facey@powerex.com, teresa.conway@powerex.com, rbeitler@sempratrading.com, awells@stroock.com, ayudkowsky@stroock.com, pjazayeri@stroock.com, bholman@whitecase.com cc: Subject: RE: CalPX Participants' Committee - possible joinder in PGE motion re ratepayers committee

MidAmerican agrees that it is inappropriate to form an official ratepayers creditors committee in the PG&E case.

Peter J. Gurfein The Financial Restructuring Group Akin, Gump, Strauss, Hauer & Feld, L.L.P. 2029 Century Park East Los Angeles, CA 90067 310-552-6696 310-229-1001 (fax) pgurfein@akingump.com

-----Original Message-----

From: Jeffrey A. Krieger [mailto:jkrieger@ggfcmk.com] Sent: Tuesday, May 15, 2001 9:43 PM To: pgurfein@akingump.com; jcrossen@apx.com; rberry@apx.com; rich.stevens@avistacorp.com; david.burns@bakerbotts.com; doug.anderson@calenergy.com; dag@dgdk.com; rkd@dgdk.com; richard.b.sanders@enron.com; Anne Marie DeFelice; Cindy Stremmel; Garrett L. Hanken; Jeffrey A. Krieger; Marc S. Cohen; kjohan@ladwp.com; ceklund@llgm.com; dwhitley@llgm.com; jnelson@llgm.com; mlubic@mdbe.com; zack.starbird@mirant.com; pmar@mofo.com; hweg@pgwlaw.com; david.facey@powerex.com; teresa.conway@powerex.com; rbeitler@sempratrading.com; awells@stroock.com; ayudkowsky@stroock.com; pjazayeri@stroock.com; bholman@whitecase.com Subject: CalPX Participants' Committee - possible joinder in PGE motion re ratepayers committee

To: CalPX Participants' Committee

Howard Weg has asked that I poll the committee members because several members of the committee have advised that they believe we should take a position supporting PG&E's motion to vacate the UST's appointment of a Ratepayers' committee in the PG&E bankruptcy case. The idea is to file a brief joinder stating that the Participants' Committee in the CalPX case, representing constituents which are the real parties in interest of over \$1.9 billion in claims against PG&E, as scheduled by PG&E in its list of 20 largest creditors, supports the motion and the joinder filed by the PG&E creditors' committee. Our joinder would state that there is no statutory basis for appointing a ratepayers' committee and that it is not in the best interest of the estate. We might also indicate that we agree with PGE and the PGE creditors' committee that there are other means for ratepayers to be heard which make more sense than giving them official committee status. We would also appear telephonically at the hearing, this Friday, at 10 a.m.

Please let me know as soon as possible if you would like a conference call on this issue. Also, please let me know as soon as possible if you object to the committee taking this position.

Thank you.

Jeffrey A. Krieger (310) 785-6869

www.ggfcmk.com

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Message 147 of 342

RE: Idaho Power	
Sender	b..sanders@enron.com
Recipients	[e..haedicke@enron.com', 'jklauber@llgm.com']
File	sanders-r/sent_items/287.

John- I think that Mark Haedicke talked to Sam about this but I wanted to follow up. We want to make sure that Sam is available to Enron as well and that his representation of Idaho Power does not infringe on work we might want him to do.

-----Original Message-----

From: "JOHN KLAUBERG" <JKLAUBER@LLGM.COM>@ENRON [mailto:IMCEANOTES-+22JOHN+20KLAUBERG+22+20+3CJKLAUBER+40LLGM+2ECOM+3E+40ENRON@ENRON.com]=20 Sent: Tuesday, June 26, 2001 11:24 AM To: Haedicke, Mark E.; Sanders, Richard B. Cc: SAMUEL BEHREND'S Subject: Fwd: Idaho Power

Mark & Richard: I am attaching an e-mail from one of my partners who has been asked to assist Idaho Power in the context of the ongoing FERC proceedings being run by ALJ Wagner. It would not appear to me that there would not be a conflict problem with us handling this engagement for Idaho Power, but I thought Richard would be closer to the proceedings (and the likely stances of the various players) and may have better insights that me on this issue at this point. Sam Behrends would probably be handling most of the work from the LeBoeuf side. Since, as I understand it, we got the call from Idaho Power on Sunday night and the proceedings commenced yesterday, I would appreciate it if you could let me know whether you are comfortable with us taking on this assignment as quickly as you can. Thanks very much. John

John Klauberg LeBoeuf, Lamb, Greene & MacRae, L.L.P. 212 424-8125 john.klauberg@llgm.com

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Content-Transfer-Encoding: quoted-printable Date: Mon, 25 Jun 2001 12:57:24 -0400 From: "LAWRENCE ACKER" <LACKER@LLGM.COM> To: "JOHN KLAUBERG" <JKLAUBER@LLGM.COM> cc: "BRIAN O'NEILL" <BONEILL@LLGM.COM>, "SUE KEMPLER" <CKEMPLER@LLGM.COM>, "ELIZABETH POWERS" <EPOWERS@LLGM.COM>, "STEVEN DAVIS" <SDAVIS@LLGM.CO M> Subject: Idaho Power MIME-Version: 1.0 Content-Type: text/plain; charset="us-ascii" Content-Disposition: inline

John- Further to our discussion regarding participation on behalf of Idaho Power in the FERC dockets (EL00-95-031, et al), after their call to me this weekend. Their interest focuses on sales into and purchases from the ISO and the PX, substantial portions of which remain unpaid. The sales at issue are not from their own generation but are as a marketer. Idaho expects to assert that marketer sales must take into account more than the simple price of procurement, but also associated costs and a margin. Conditions that enhance the creditworthiness of purchasers also are likely to be on Idaho's agenda. The foregoing is provided solely to assure that Enron will not interpose any objection to our role on behalf of Idaho. I attended the morning session of the settlement conference before Judge Wagner as an observer, pending completion of our formal procedures. Bear in mind that Dan Watkiss of Bracewell & Patterson appeared on behalf of the involved Enron subsidiaries. Understandably Idaho would like our position confirmed at the earliest possible time, as they already had to release their traditional FERC counsel. Larry Acker

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Lawrence G. Acker 1875 Connecticut Avenue, NW Suite 1200 Washington, DC 20009-5728 202-986-8016 fax 202-986-8147 e-mail: lacker@llgm.com

Message 148 of 342

MEMORANDUM re Due Diligence and Seller Issues

Sender	showard@agsk.com
Recipients	['wcp@quinnemanuel.com', 'richard.b.sanders@enron.com']
File	sanders-r/deleted_items/nsm/10.

Richard,

My wife Marilyn does research for our law firm on a part time basis, and I have had her do a couple of projects on the NSM cases: she worked a lot on the contribution/indemnity memo that I sent you a few weeks ago, and more recently she prepared a memorandum on the law concerning whether a non-lead underwriter can make a separate "reasonable care" showing under our state securities law even where the lead underwriter may not be able successfully= to carry its own burden of reasonable care. Marilyn's memorandum on this subj= ect is attached. This memorandum also surveys the cases on who is a "seller" under the state law.

These issues, ECT Securities' own reasonable care and ECT's not having sold NSM securities to plaintiffs, will all be key points in our Memorandum of Contentions of Fact and Law now under preparation and, if we get a motion f= or summary judgment, will form the principal elements of our opposition to the motion.

Steve

=====

ALSCHULER GROSSMAN STEIN & KAHAN LLP ATTORNEYS AT LAW www.agsk.com

2049

Message 149 of 342

Re: Heartland Steel bankruptcy

Sender	richard.sanders@enron.com
Recipients	['lisa.mellencamp@enron.com', 'richard.sanders@enron.com', 'linda.guinn@enron.com', 'bonnie.white@enron.com']
File	sanders-r/all_documents/1733.

Bonnie White/ENRON@enronXgate 03/28/2001 01:08 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Linda R Guinn/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT Subject: Heartland Steel bankruptcy

You received a service of process notice yesterday related to the Heartland Steel matter. That bankruptcy was filed in early February 2001, and, according to my correspondence, it is being handled to Lisa Mellencamp. I am forwarding my copy of the notice received to her for further handling.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

Message 150 of 342

Re: Richard Sanders/Jim McCartney trip to Brazil

Sender	richard.sanders@enron.com
Recipients	[stephanie.truss@enron.com]
File	sanders-r/all_documents/2038.

Yes. Please talk to me about the schedule.

Stephanie Truss/ENRON@enronXgate 05/18/2001 02:24 PM

To: Richard B Sanders/HOU/ECT@ECT, Twanda Sweet/HOU/ECT@ECT cc: Subject: Richard Sanders/Jim McCartney trip to Brazil

Michelle Blaine called earlier and suggested the week of June 11th. Please let me know if this week is acceptable and whether or not you want me to make travel arrangements for everyone.

Stephanie M. Truss Senior Administrative Assistant Enron Wholesale Services 1400 Smith Street Houston, Texas 77002 (713) 345-3861 - Telephone (713) 646-3490 - Facsimile

Message 151 of 342

Re: east coast power auditor's letter

Sender	richard.sanders@enron.com
Recipients	[lisa.mellencamp@enron.com', 'bonnie.white@enron.com']
File	sanders-r/all_documents/391.

Bonnie White is handling Dodson case and will respond

Lisa Mellencamp 08/07/2000 09:27 AM

To: Richard B Sanders/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Bob Carter/HOU/ECT@ECT, Sheila Tweed/HOU/ECT@ECT, Julia Murray cc: Subject: east coast power auditor's letter

i have received above in connection with s4 going out shortly. please advise if you know of any disclosure items for the letter. richard, i need blurb re the dodson case (is this still pending?) and i will disclose the infinium case. thanks.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

Message 152 of 342

nsm

Sender	lisa.mellencamp@enron.com
Recipients	['tkreller@milbank.com', 'richard.smith@linklaters.com', 'richard.sanders@enron.com']
File	sanders-r/nsm/31.

richard, thanks for your confirm as to filing. what can we expect re the objection process? timeline, formal objection process etc?? how will our contingent indemnity claim be handled? can you look to see what indenture trustee filed? whether other underwriters filed claims such as our indemnity claim? i am sure the documents are voluminous, but we would be interested in a summary. thanks for your quick help and diligence. feel free to email us as progresses. please copy both richard sanders and myself. richard.sanders@enron.com.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

Message 153 of 342

Re: ENA Legal Opinion

Sender	richard.sanders@enron.com
Recipients	['angela.davis@enron.com']
File	sanders-r/sent/606.

I don't know of any such claim/lawsuit/other.

Angela Davis@ENRON 12/05/2000 04:26 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: ENA Legal Opinion

ENA has been asked to deliver a legal opinion which will be dated December 7, 2000 in connection with its delivery of a ISDA Master Agreement. Are you aware of any litigation or proceeding, threatened or ongoing, which would question the validity of the ISDA Master Agreement. I ask this in connection with my opinion due diligence.

Angela D. Davis Enron North America Corp. 1400 Smith, Suite 3842 Houston, Texas 77002 Tele. (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

Message 154 of 342

Re: ENA Opinions for Projects McGarret G and McGarret H

Sender	richard.sanders@enron.com
Recipients	['angela.davis@enron.com']
File	sanders-r/all_documents/1131.

Ther is no such litigation.

Angela Davis@ENRON 12/13/2000 07:48 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: ENA Opinions for Projects McGarret G and McGarret H

We will be delivering ENA opinions dated Thursday and Friday. I just wanted to confirm with you that you are not aware of any litigation or any other proceeding which could affect ENA's ability to enter into and perform under swap agreements (other than anything that is disclosed in the 1999 10K or the 10Q's for 2000.

Angela D. Davis Enron North America Corp. 1400 Smith, Suite 3842 Houston, Texas 77002 Tele. (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

Message 155 of 342

Phil Figa's ltr to Judge Downes

Sender	ddavis@hollandhart.com
Recipients	['ccheek@enron.com', 'bdavis@enron.com', 'jplace@enron.com']
File	sanders-r/all_documents/5205.

Attached is Phil Figa's letter to Judge Downes regarding discovery.

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax ddavis@hollandhart.com

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- 50C89000.PDF

Message 156 of 342

California Litigation Team - Conference Call Today 2:00

Sender	twanda.sweet@enron.com
Recipients	['dwatkiss@bracepatt.com', 'cecklund@llgm.com', 'debra.davidson@enron.com', 'cristina.zavala@enron.com', 'dan....
File	sanders-r/sent/1006.

Agenda for 2:00 p.m.(cst) Conference Call Today

1. San Diego class action - Kirby/Noonan
2. San Francisco class action - Fergus
3. MDL Hearing
4. Ferc intervention in class actions - Watkiss/Alexander
5. Px Bankruptcy - Sanders
 - a. Charge back/release of collateral
 - b. Commandeering action
 - c. Uncontrollable forces litigation
6. EES negative CTC Claim - Williams/Day
7. Other Ferc actions - Watkiss/Alexander
8. Government Investigations - Sanders

We anticipate the call will last less than one hour.

Again, the call in-information is:

Domestic Dial In Number: 1-800-713-8600

International Dial In Number: 1-801-983-4017

Passcode: 56871

Host: Mark Haedicke

Conference Room : EB38C2

Message 157 of 342

Re: CanFibre Group

Sender	richard.sanders@enron.com
Recipients	['anna.allen@blakes.com']
File	sanders-r/all_documents/1140.

Both letters look fine.

"ANNA ALLEN" <anna.allen@blakes.com> 12/13/2000 10:26 AM

To: <Richard.B.Sanders@enron.com> cc: Subject: CanFibre Group

Please see attached draft letters for your review and comment.

Scott A. Turner Blake, Cassels & Graydon LLP Suite 2600, Three Bentall Centre 595 Burrard Street, PO Box 49314
Vancouver, BC V7X 1L3

Tel: 604.631.3318 Fax: 604.631.3309 E-mail: sat@blakes.com

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- Letterto.DOC - LtrtoCre.DOC

Message 158 of 342

Re: ENA Opinion

Sender	richard.sanders@enron.com
Recipients	['angela.davis@enron.com']
File	sanders-r/all_documents/1404.

You can give the opinion.

Angela Davis@ENRON 01/29/2001 08:15 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: ENA Opinion

ENA will be delivering a legal opinion in connection with entering into an ISDA Master Agreement with Cooperatieve Centrale Raiffeisen-Boerenleenbank B.A. The opinion will include the typical opinion that to the opinor's knowledge, no action, proceeding etc. should affect the ability of ENA to perform under the Swap. Please let me know if you know of any reason why we could not give this opinion.

Angela D. Davis Enron North America Corp. 1400 Smith, Suite 3842 Houston, Texas 77002 Tele. (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

Message 159 of 342

Sara Winslow's ltr to Judge Downes

Sender	ddavis@hollandhart.com
Recipients	['ccheek@enron.com', 'bdavis@enron.com', 'jplace@enron.com']
File	sanders-r/notes_inbox/235.

Attached is Sara Winslow's letter to Judge Downes responding to Mr. Figa's letter regarding discovery.

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax ddavis@hollandhart.com

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- 64b79000.pdf

Message 160 of 342

Re: Opinions

Sender	richard.sanders@enron.com
Recipients	['angela.davis@enron.com']
File	sanders-r/sent/901.

I know of no reason why we could not deliver this opinion.

Angela Davis@ENRON 03/20/2001 08:00 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Opinions

In connection with a series of FASB 125 transactions, ENA will be entering into several swap transactions. Also in connection therewith, Mark H. will be asked to deliver an opinion that there is no litigation which could impair ENA's ability to perform under the swaps. Do you know of any reason why we could not deliver this opinion? The opinion will be dated sometime on or prior to quarter end.

Angela D. Davis Enron North America Corp. 1400 Smith, Suite 3817 Houston, Texas 77002 Tele. (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

Message 161 of 342

EVENT REMINDER -- JUDGE HILL FUNDRAISER TONIGHT!!

Sender	hmlangetx@aol.com
Recipients	['yrnffin1@aol.com']
File	sanders-r/deleted_items/412.

EVENT REMINDER -- JUDGE HILL FUNDRAISER TONIGHT!! Jay Aldis Billy Dyer Hon. Michael Fleming Hon. Dwight Jefferson William King Mark Lanier Hon. David Medina Dixon Montague Joseph O. Slovacek cordially invite you to attend a fundraising reception honoring Judge Richard Hill Former Judge, County Civil Court No. 1 and Candidate for Judge, 190th Civil District Court Tuesday, February 5, 2002 from 5:30 to 7:30 p.m. The Home of Brenda Arnett 4411 Mandell (near Richmond) If you have any questions or wish to make a reservation, please call Heidi M. Lange at 713-681-1996 or fax 713-681-8402 Pol. adv. pd. for by the Richard Hill Campaign, Sabrina Hill, Treas., PO BOX 411, Hou, Texas 77001

Message 162 of 342

HoustonStreet arbitration

Sender	travis.mccullough@enron.com
Recipients	['b..sanders@enron.com', 'legal <.schuler@enron.com', 'andrew.edison@enron.com']
File	sanders-r/deleted_items/472.

I have received a notice of arbitration from HoustonStreet related to Enron Net Works' termination of the Posting Agreement several months ago. The notice of arbitration specifies damages "in excess of \$5 million." The notice (dated November 1) has been sitting in my office on the 8th floor and I just found it tonight as I was going through my mail. I don't think that there is anything here that would have an MAE on Enron, but I clearly would have preferred to have known about this before the merger agreement was signed up. Richard, I'll catch up with you on Monday with the demand for

arbitration.

Travis C. McCullough Enron North America Corp. 1400 Smith Street EB 824 Houston, Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 163 of 342

Request for Freeze on E-Mail Destruction

Sender	diane.goode@enron.com
Recipients	['b..sanders@enron.com', 'andrew.edison@enron.com']
File	sanders-r/inbox/bid_ask/30.

At Richard Sanders' request, we ask that you freeze destruction of electronic mail for the following individuals (effective immediately). This request is made in regard to the Bid/Ask patent litigation. We should retain their e-mail communications going back as far as possible.

Jay Webb Kevin Montagne Jarod M. Jenson Mark E. Taylor (legal) Michael Guadarrama Louise Kitchen Marcello Romano (London) Rennu G. Varghese David Forster

We will be sending an additional list of IT persons on Tuesday. Please let me know what else I need to do to expedite this process.

Thank you for your help.

Diane Goode Senior Specialist Enron North America 1400 Smith Street, EB3833 Houston, TX 77002-7361 (713) 345-7103 (713) 646-3490 (fax) Diane.Goode@Enron.com

Message 164 of 342

Re: Trading Atty.

Sender	richard.sanders@enron.com
Recipients	['gage@bkollp.com']
File	sanders-r/sent/601.

I haven't talked to my boss about it yet- I need the right moment. I doubt that listing is us. By the way, thanks for the t--shirt.

"Bill Gage" <gage@bkollp.com> 12/02/2000 03:34 PM

To: "Richard Sanders" <richard.b.sanders@enron.com> cc: Subject: Trading Atty.

Sanders - Anything ever come of that trading job we were talking about.? I saw a deal from Prescott the other day looking for a "electrical trading atty for an international energy company".? It looked like the job you were talking about so I sort of assumed that our discussion was a non-starter.? Let me know.? Thanks - Gage ? William A. Gage, Jr. Buck, Keenan & Owens, LLP 700 Louisiana, Suite 5100 Houston, Texas 77002 713-225-4500 713-225-3719 - Fax gage@bkollp.com

Message 165 of 342

RiskMetrics termination and release

Sender	bonnie.white@enron.com
Recipients	['b..sanders@enron.com', 'mark.greenberg@enron.com']
File	sanders-r/deleted_items/509.

I have attached a draft of a proposed settlement and release agreement related to the Development and Revenue Sharing Agreement with RiskMetrics. You will notice that I have left blank for the time being paragraph 7 related to use of Confidential Information pending receipt of the prior Confidentiality Agreement signed by the parties. I have also assumed that we don't want any claims or causes of action to survive except based upon breaches of confidentiality provisions. If that is not correct, let me know. Please call me with any questions/comments after you have had a chance to review the draft. Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

Message 166 of 342

FW: Fee Letter Summary

Sender	michelle.blaine@enron.com
Recipients	["e-mail <'.vasco@enron.com'", "e-mail <'.maristela@enron.com'"]
File	sanders-r/deleted_items/66.

What do you think about this? The first attachment is what you and I discussed Vasco. The second is what SBA originally proposed. Keep in mind that SBA has offered a 30% reduction on the original fees if another LDC retains him, but as you said, even those reduced fees seemed high to one of the LDC's who reviewed them, so we may not get the reduction. I don't want to rely on that.

-----Original Message-----

From: Truss, Stephanie Sent: Tuesday, October 16, 2001 3:58 PM To: Blaine, Michelle Subject: Fee Letter Summary attached.

Sara del Pozo Contract Employee for Stephanie M. Truss Senior Administrative Assistant Enron Wholesale Services 1400 Smith Street Houston, Texas 77002 (713) 345-3861 - Telephone (713) 646-3490 - Facsimile

Message 167 of 342

EOL materials

Sender	travis.mccullough@enron.com
Recipients	['b..sanders@enron.com', 'diane.goode@enron.com']
File	sanders-r/deleted_items/83.

For what it is worth, I thought the most relevant portions of the EnronOnline website for VE's purposes are the following:

Tour Markets Legal and Privacy Statement Electronic Trading Agreement and Password Application (these are customized for every jurisdiction -- I would just print out North America version for now) About EnronOnline Site Map Press Room (all press releases) Market Presentations -- just the general ones

Each of these has a number of subtopics and numerous pages that would have to be printed, and upon further review, they may refer to other pages or materials that should be reviewed as well.

Travis C. McCullough Enron North America Corp. 1400 Smith Street EB 824 Houston, Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-8860

Message 168 of 342

Re: John Schultes v. McDonald Investments, et al.

Sender	richard.sanders@enron.com
Recipients	['bonnie.white@enron.com']
File	sanders-r/all_documents/1709.

Can we talk about this when you have a second?

Bonnie White/ENRON@enronXgate 03/22/2001 06:28 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: John Schultes v. McDonald Investments, et al.

I spoke with Jim Studdert re this matter, and he advised that he believes that it may be covered at least in part by our insurance program. He is forwarding it to our insurers for their review. (I understand that he's never gotten a definitive answer re coverage in the other NSM matters, so that may end up being the case here.) I will let you know when I hear anything further re a coverage determination.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

Message 169 of 342

Letter to Judge Downes

Sender	ddavis@hollandhart.com
Recipients	['ccheek@enron.com', 'bdavis@enron.com', 'jplace@enron.com']
File	sanders-r/all_documents/5231.

Attached is Don Schultz's letter to Judge Downes requesting a one-day extension of the deadline to respond to Mr. Figa's letter regarding discovery.

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax ddavis@hollandhart.com

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- 55ee9000.pdf

Message 170 of 342

Re: Cameron Strategic & 498494 B.C. Ltd.

Sender	richard.sanders@enron.com
Recipients	[anna.allen@blakes.com]
File	sanders-r/all_documents/961.

The changes are fine.

"ANNA ALLEN" <anna.allen@blakes.com> 11/15/2000 10:29 AM

To: <Richard.B.Sanders@enron.com> cc: Subject: Cameron Strategic & 498494 B.C. Ltd.

Please see revised paragraph on p. 2: "Notwithstanding...("Services")". Contains revised definition of "Services" . Please call to discuss.

Scott A. Turner Blake, Cassels & Graydon LLP Suite 2600, Three Bentall Centre 595 Burrard Street, PO Box 49314
Vancouver, BC V7X 1L3

Tel: 604.631.3318 Fax: 604.631.3309 E-mail: sat@blakes.com

This e-mail communication is confidential and legally privileged. If you are not the intended recipient, please notify me at the telephone number shown above or by return e-mail and delete this communication and any copy immediately. Thank you.

- Revisedl.DOC

Message 171 of 342

Grynberg - Letter to Judge Downes re Riley

Sender	ddavis@hollandhart.com
Recipients	['ccheek@enron.com', 'bdavis@enron.com', 'andrew.edison@enron.com']
File	sanders-r/notes_inbox/461.

Privileged and Confidential Joint Defense Communication

Attached below is a letter from Don Schultz to Judge Downes informing him of the recent Riley decision (6/4/01).

Dawne M. Davis, CLA Legal Assistant Holland & Hart, LLP P.O. Box 1347 Cheyenne, WY 82003 307-778-4240
307-778-8175 - fax ddavis@hollandhart.com

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- FD3BB000.PDF

Message 172 of 342

Re: industrial holdings investment-- arbitration proceeding

Sender	richard.sanders@enron.com
Recipients	['mark.haedicke@enron.com', 'james.derrick@enron.com']
File	sanders-r/sent/1033.

Jim and Mark --- Gail and Ross Rommel at A&K did a nice job on this.

Lisa Mellencamp 04/24/2001 09:54 AM

To: James Derrick/Enron@EnronXGate, Mark E Haedicke/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT cc: Gail Brownfeld/ENRON@enronXgate Subject: industrial holdings investment-- arbitration proceeding

the arbitration proceeding filed with respect to this ena investment (which andrews and kurth filed for us), has been settled quickly in our favor with gail's assistance. this is the matter which we felt would not get actually litigated in the context of selection of counsel and wanted to confirm back this was the case.

Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

Message 173 of 342

RE: PG&E Proofs of Claim

Sender	b..sanders@enron.com
Recipients	['lisa.mellencamp@enron.com', 'j..simmons@enron.com', 'garth.bahlmann@enron.com']
File	sanders-r/sent_items/30.

Gareth Bahlmann is doing a big financing and I participated in a California due diligence call last Thurs. w/ the bank's atty, who happens to be Gary Orloff at Bracewell. Gary wanted to see our proof of claim. Can I get a copy?

-----Original Message-----

From: Simmons, Linda J. Sent: Thursday, September 06, 2001 10:26 AM To: Sanders, Richard B.; Tribolet, Michael Subject: PG&E Proofs of Claim

SENT ON BEHALF OF LISA MELLENCAMP

Lisa has requested that the proofs of claim that were filed yesterday be Federal Expressed to her overnight. When these documents are received tomorrow who will I need to distribute copies to?

Thanks.

Linda Simmons Enron North America Corp. - Legal 1400 Smith St., EB3833A Houston, Texas 77002 Tel: (713) 345-7851 Fax: (713) 646-3393 E-mail: linda.j.simmons@enron.com

Message 174 of 342

FW: PG&E v. State of Calif--Complaint for Inverse Condemnation

Sender	pmar@mofo.com
Recipients	['enron <.bob@enron.com', 'sempra <.alan@enron.com', 'e-mail <.marc@enron.com']
File	sanders-r/px/43.

Have you seen this: PG&E filed action in SF Superior Court on commandeering claim.

Patricia S. Mar Morrison & Foerster LLP 425 Market St., 33rd Floor San Francisco, CA 94105 Phone: (415) 268-6157
FAX: (415) 268-7522 e-mail: pmar@mofo.com

This message contains information which may be confidential and privileged. Unless you are the addressee (or authorized to receive for the addressee), you may not use, copy or disclose to anyone the message or any information contained in the message. If you have received the message in error, please advise the sender by reply e-mail @mofo.com, and delete the message. Thank you very much.

- PG&E v. CA.pdf

Message 175 of 342

Re: e-mail	
Sender	richard.sanders@enron.com
Recipients	['ctetrault@velaw.com']
File	sanders-r/sent/457.

no

"Tetrault, Charles D." <ctetrault@velaw.com> 10/27/2000 06:14 PM

To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com>, "Barry Hunsaker (E-mail)" <bhunsake@enron.com>
cc: Subject: e-mail

As you know, in the past, I have had problems sending attachments to you.

Also, sometimes a simple e-mail message sent without an attachment would appear to have a phantom attachment, which you could not open or which contained gibberish.

Our IS Department has been working on some possible solutions.

THIS IS A TEST MESSAGE BEING SENT WITHOUT ANY ATTACHMENTS. PLEASE RESPOND AND LET ME KNOW WHETHER YOU "SEE" ANY ATTACHMENT. THANKS.

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

Message 176 of 342

nan	
Sender	bonnie.white@enron.com
Recipients	['richard.sanders@enron.com']
File	sanders-r/notes_inbox/279.

Here is a proposed modification of the indemnification language based on our telephone conversation earlier today:

5. Indemnification. Company represents that it is a successor corporation to Enron Milford, Inc. and that the Certificate of Incorporation of Enron Milford, Inc. on file in the Division of Corporations Files of the Secretary of State, State of Delaware, applies to Company. Company further represents that it will act in good faith in investigating and making a determination with respect to any claim for indemnification made by Consultant pursuant to the provisions of the Certificate of Incorporation should an indemnifiable event arise.

Let me know what you think. Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith St., Suite 4824 Houston, TX 77002 Ph: (713) 853-7244 Fax: (713) 853-6576

Message 177 of 342

Re: Question re: Email retention policy

Sender	richard.sanders@enron.com
Recipients	['limor.nissan@enron.com']
File	sanders-r/sent_items/222.

Sorry for the late reply. You are correct about the policy.

Limor Nissan/ENRON@enronXgate 05/29/2001 01:01 PM To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Question re: Email retention policy

Hi Richard,

Someone made an inquiry to me regarding the policy.

It is my understanding that if email is not deleted or copied into a word document in order to avoid deletion, then it will be (or should be) destroyed automatically after the expiration of the retention period. We have been telling our people to only move information from Outlook to Word documents if they feel that they need to retain it for more than the appropriate retention period.

Please let me know if this is consistent with the policy.

Thanks, and hope all is well with you.

Limor

Enron Global Markets 520 Madison Avenue New York, NY 10022 Tel: 212.715.5283 Fax: 212.715.5608 E-Mail: Limor.Nissan@Enron.com

Message 178 of 342

Re: Question re: Email retention policy

Sender	richard.sanders@enron.com
Recipients	['limor.nissan@enron.com']
File	sanders-r/sent/1182.

Sorry for the late reply. You are correct about the policy.

Limor Nissan/ENRON@enronXgate 05/29/2001 01:01 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Question re: Email retention policy

Hi Richard,

Someone made an inquiry to me regarding the policy.

It is my understanding that if email is not deleted or copied into a word document in order to avoid deletion, then it will be (or should be) destroyed automatically after the expiration of the retention period. We have been telling our people to only move information from Outlook to Word documents if they feel that they need to retain it for more than the appropriate retention period.

Please let me know if this is consistent with the policy.

Thanks, and hope all is well with you.

Limor

Enron Global Markets 520 Madison Avenue New York, NY 10022 Tel: 212.715.5283 Fax: 212.715.5608 E-Mail:
Limor.Nissan@Enron.com

Message 179 of 342

McConville consulting agreement

Sender	michelle.cash@enron.com
Recipients	['richard.sanders@enron.com']
File	sanders-r/notes_inbox/257.

Richard, My thought is that the first sentence is ok, but not the second, and Bonnie is conveying that to McConville's lawyer. MHC

----- Forwarded by Michelle Cash/HOU/ECT on 12/12/2000 05:03

PM -----

Bonnie White@ENRON 12/12/2000 04:59 PM To: Michelle Cash/HOU/ECT@ECT cc: Subject: McConville consulting agreement

McConville's counsel has asked us for language in addition to a mere representation that the Enron Milford certificate of incorporation applies to ENA to the effect that we will cooperate or at least not unreasonably oppose Kevin's making a claim for indemnification should the situation arise. I have drafted language along the lines of what I think he is asking for. Is this something that we would consider agreeing to?

Bonnie J. White Enron Litigation Unit 1400 Smith St., Suite 4824 Houston, TX 77002 Ph: (713) 853-7244 Fax: (713) 853-6576

Message 180 of 342

Grynberg - Bates Number Prefix Codes - Part 2

Sender	ddavis@hollandhart.com
Recipients	['andrew.edison@enron.com']
File	sanders-r/deleted_items/13.

Privileged and Confidential Joint Defense Communication

To: Grynberg JDT Re: Bates Number Prefix Codes

Unfortunately, we inadvertently omitted a number of defendants from the bates number prefix codes list. A new version will be forthcoming in the next day or two. I apologize for the inconvenience.

Dawne M. Davis, CLA Legal Assistant Holland & Hart, LLP P.O. Box 1347 Cheyenne, WY 82003 307-778-4240
307-778-8175 - fax ddavis@hollandhart.com

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Message 181 of 342

Re: Trading Atty.

Sender	michelle.cash@enron.com
Recipients	[richard.sanders@enron.com]
File	sanders-r/all_documents/5146.

I think he'd be good. Do you want me to set up interviews? MHC

From: Richard B Sanders on 12/03/2000 06:53 PM To: Michelle Cash/HOU/ECT@ECT cc: Subject: Trading Atty.

What do you think about Bill as a trading atty? ----- Forwarded by Richard B Sanders/HOU/ECT on 12/03/2000 06:52 PM -----

"Bill Gage" <gage@bkollp.com> 12/02/2000 03:34 PM

To: "Richard Sanders" <richard.b.sanders@enron.com> cc: Subject: Trading Atty.

Sanders - Anything ever come of that trading job we were talking about.? I saw a deal from Prescott the other day looking for a "electrical trading atty for an international energy company".? It looked like the job you were talking about so I sort of assumed that our discussion was a non-starter.? Let me know.? Thanks - Gage ? William A. Gage, Jr. Buck, Keenan & Owens, LLP 700 Louisiana, Suite 5100 Houston, Texas 77002 713-225-4500 713-225-3719 - Fax gage@bkollp.com

Message 182 of 342

RE: EnronOnline Promotional Materials

Sender	savita.puthigai@enron.com
Recipients	[b..sanders@enron.com', 'erica.bess@enron.com', 'diane.goode@enron.com']
File	sanders-r/deleted_items/125.

Erica Bess can help get copies of all promotional material used.

-----Original Message-----

From: Goode, Diane Sent: Tuesday, October 23, 2001 10:32 AM To: Puthigai, Savita Cc: Sanders, Richard B. Subject: EnronOnline Promotional Materials Importance: High

I am working with Richard Sanders and Jay Webb in defending EnronOnline in a lawsuit based on alleged patent infringement. As part of our preparation for this case, we need to obtain a copy of all promotional materials related to E-Online. I understand there is a "client packet", and I assume we had press releases and other materials.

I have printed everything in the Press Release section from the website.

Can you direct me to the appropriate person to obtain these materials?

Thanks for your assistance.

Diane Goode Senior Specialist Enron North America 1400 Smith Street, EB3833 Houston, TX 77002-7361 (713) 345-7103 (713) 646-3490 (fax) Diane.Goode@Enron.com

Message 183 of 342

Kansas - Transcript of 10/15/01 Hearing

Sender	ddavis@hollandhart.com
Recipients	['andrew.edison@enron.com']
File	sanders-r/deleted_items/206.

Privileged and Confidential Joint Defense Communication

The Transcript of Arguments on Plaintiffs' Motion for Protective Order (10/15/01) has been posted. Please cut and paste the following into your browser. Due to its length, clicking will not work.

https://clients.caseshare.com//kansasjdt/docs/200110/Quinque_october_15_2001_transcript.PDF

Dawne M. Davis, CLA Legal Assistant Holland & Hart, LLP P.O. Box 1347 Cheyenne, WY 82003 307-778-4240
307-778-8175 - fax ddavis@hollandhart.com

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Message 184 of 342

FYI -- LLGM memo

Sender	travis.mccullough@enron.com
Recipients	['richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/258.

Attached is the memo that got us worked up earlier this afternoon.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 02/26/2001 07:22 PM -----

"JAMES L. HUEMOELLER" <JLHUEMOE@LLGM.COM> 02/26/2001 07:35 PM

To: eric.newell@enron.com, michael.tribolet@enron.com, msmith1@enron.com, travis.mccullough@enron.com cc:
"CARL A. EKLUND" <CEKLUND@LLGM.COM>, "JOHN G KLAUBER" <JKLAUBER@LLGM.COM>, "JOHN MAAS" <JMAAS@LLGM.COM> Subject: 163194.doc

When we printed out the final hard copy of the memo for our files we discovered that it did not print correctly. The memo heading masked the date and the privileged designation. Although we realize that you have probably passed this on, we are providing a new version which we believe corrects the problem. If you can we would ask that you use this version.

- 163194.doc

Message 185 of 342

Grynberg - Draft Resp. to Grynberg's Motion for Scheduling Conf.

Sender	ddavis@hollandhart.com
Recipients	['ccheek@enron.com', 'bdavis@enron.com', 'andrew.edison@enron.com']
File	sanders-r/all_documents/7609.

Privileged and Confidential Joint Defense Communication

Attached below is a revised draft response to Grynberg's motion for scheduling conference. Don prepared this draft based upon comments he received. We believe we should file the response on Monday, and so we would appreciate receiving your comments/edits by close of business tomorrow, Friday, June 8.

Dawne M. Davis, CLA Legal Assistant Holland & Hart, LLP P.O. Box 1347 Cheyenne, WY 82003 307-778-4240
307-778-8175 - fax ddavis@hollandhart.com

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- FF88B000.PDF

Message 186 of 342

Infineum Lawsuit Defense

Sender	lisa.mellencamp@enron.com
Recipients	[richard.sanders@enron.com]
File	sanders-r/infineum/4.

this needs to be sent on to leboeuf people. think you have the appropriate names asid from john and jon.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 ----- Forwarded by Lisa Mellencamp/HOU/ECT on 07/14/2000 01:40 PM -----

Gary Keevill@ENRON 07/11/2000 06:33 PM

To: Bob Licato/ECP/HOU/ECT@ECT, Art Stappenbeck/ECP/Enron@Enron, Cliff Evans/ECP/HOU/ECT@ECT, Christine Lee/HOU/ECT, Lisa Mellencamp/HOU/ECT@ECT, Ain@worldnet.att.net, "Joe Bollinger" <joebollinger@earthlink.net>, TMGeiger@bigplanet.com, Richard Lydecker/Corp/Enron@Enron cc: Subject: Infineum Lawsuit Defense

I asked Tom Geiger to capture some preliminary thoughts/strategies on a counter-suit to Infineum's lawsuit. The attached memo highlights a breach of contract strategy. The steam take data that Tom based his memo on is contained in the attached spreadsheet. Please review for discussion at future meetings and/or conference calls.

Message 187 of 342

Grynberg - Extension of Deadline on Joinder in Motion to Certify

Sender	ddavis@hollandhart.com
Recipients	[ccheek@enron.com', 'bdavis@enron.com', 'andrew.edison@enron.com']
File	sanders-r/notes_inbox/402.

Privileged and Confidential Joint Defense Communication

To: Grynberg JDT From: Don Schultz

Yesterday's email (June 5) regarding the joinder of additional defendants to the motion to certify was suspended in cyberspace for many hours before it was delivered. Consequently, we are extending the deadline to notify us if you have clients to add until 4 p.m. Central TODAY, June 6.

Dawne M. Davis, CLA Legal Assistant Holland & Hart, LLP P.O. Box 1347 Cheyenne, WY 82003 307-778-4240
307-778-8175 - fax ddavis@hollandhart.com

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Message 188 of 342

Transcribed Message from ISO Counsel re: Document Production

Sender	mkass@pillsburywinthrop.com
Recipients	['dynegy-peoplevdynegy@pillsburylaw.com']
File	sanders-r/notes_inbox/450.

<<10515337_1.DOC>> Colleagues:

Attached hereto is Norma Formanek's transcribed voicemail message confirming that ISO will not produce documents to plaintiffs until after a protective order has been entered in whichever court this case winds up. As discussed, I propose to send the following confirming letter:

"Thank you for your voicemail confirming that ISO is continuing to abide by our agreement that there will be no production of documents to plaintiffs' counsel until after plaintiffs' remand motion has been heard and we know which court will be entering the protective order that will preserve the confidentiality of documents that are produced. Defense counsel are reviewing the proposed protective order and will provide comments in the near future."

Please let me know if you have any suggestions or changes.

Thanks.

Michael J. Kass Pillsbury Winthrop LLP 50 Fremont Street, Room 1452 San Francisco, CA 94105 TEL: (415) 983-1462
FAX: (415) 983-1200 email: mkass@pillsburywinthrop.com

- 10515337_1.DOC

Message 189 of 342

notice to bank #2

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/sent/745.

----- Forwarded by Richard B Sanders/HOU/ECT on 02/01/2001 01:11 PM -----

"Hisert, George A." <GHisert@brobeck.com> 02/01/2001 12:48 PM

To: "'RICHARD.B.SANDERS@ENRON.COM'" <RICHARD.B.SANDERS@ENRON.COM> cc: Subject: notice to bank #2

Richard, Here is the second letter to Wachovia. <<395Q001!.DOC>> George A. Hisert Brobeck, Phleger & Harrison LLP
Spear Street Tower, One Market San Francisco, CA 94105 ghisert@brobeck.com phone 415-442-1746 fax 415-979-2596

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

- 395Q001!.DOC

Message 190 of 342

Notice to banks

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/all_documents/1399.

----- Forwarded by Richard B Sanders/HOU/ECT on 02/01/2001 01:11 PM -----

"Hisert, George A." <GHisert@brobeck.com> 02/01/2001 12:38 PM

To: "richard.b.sanders@enron.com" <richard.b.sanders@enron.com> cc: Subject: Notice to banks

Richard, Here is the first letter to Standard Charter. <<395PD01!.DOC>>

George A. Hisert Brobeck, Phleger & Harrison LLP Spear Street Tower, One Market San Francisco, CA 94105
ghisert@brobeck.com phone 415-442-1746 fax 415-979-2596

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

- 395PD01!.DOC

Message 191 of 342

FW: ENA Legal Expenses

Sender	janette.elbertson@enron.com
Recipients	['b..sanders@enron.com', 'holly.keiser@enron.com', 'elizabeth.sager@enron.com', 'twanda.sweet@enron.com', 'edi...]
File	sanders-r/deleted_items/86.

Please complete the attached Excel spreadsheet with the appropriate percentages for your cost center for ENA and return them to me as soon as possible. Mark Haedicke needs these numbers to complete the budget. Thank you. -----Original Message----- From: Elbertson, Janette On Behalf Of Haedicke, Mark E. Sent: Tuesday, October 02, 2001 10:20 AM To: Tweed, Sheila; Sager, Elizabeth; Sanders, Richard B.; Cash, Michelle; Taylor, Mark E (Legal); Schuler, Lance (Legal) Cc: Leshcher, Edie; Adams, Suzanne; Wright, Alice; Sweet, Twanda; Keiser, Holly; Haldeman, Sandy Subject: ENA Teams

Attached is an Excel spreadsheet for ENA Legal Expenses (% allocation to teams). Please fill in the appropriate percentages for your cost center for ENA and return them to me at your earliest convenience. If you have questions, please call Edie Leshcher at 30669. Thanks.

Janette Elbertson on behalf of Mark Haedicke Enron Wholesale Services Legal Department Telephone: (713) 853-7906
Fax: (713) 646-2600 e-mail: janette.elbertson@enron.com

Message 192 of 342

Re: Submission to DOJ

Sender	richard.sanders@enron.com
Recipients	[ctetrault@velaw.com]
File	sanders-r/sent/352.

I cannot open the attachment.

"Tetrault, Charles D." <ctetrault@velaw.com> 09/27/2000 02:23 PM

To: "Hunsaker, Barry (EOG Resources)" <barry_hunsaker@eogresources.com>, "Hoyle, Andy (E-mail)" <Andrew_Hoyle@eogresources.com>, "Williams, Steven P." <Steve_Williams@eogresources.com> cc: (bcc: Richard B Sanders/HOU/ECT) Subject: Submission to DOJ

I am on the run now, and I have not had a chance to finish the second draft of the answers to the DOJ questions. However, because of schedules, I wanted to put something in your hands as soon as possible.

My secretary will be e-mailing and faxing the draft in progress to you shortly.

I will do additional work on the draft this evening when I return from my meeting out of the office.

So, if you have comments on the new draft, please e-mail or fax them to me so that I can incorporate them into tonight's draft.

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave. N. W. Washington, D.C. 20004 ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

- att1.unk

Message 193 of 342

Notice to banks #3

Sender	richard.sanders@enron.com
Recipients	[linda.guinn@enron.com]
File	sanders-r/all_documents/1400.

----- Forwarded by Richard B Sanders/HOU/ECT on 02/01/2001 01:13 PM -----

"Hisert, George A." <GHisert@brobeck.com> 02/01/2001 01:00 PM

To: "richard.b.sanders@enron.com" <richard.b.sanders@enron.com> cc: "Fergus, Gary S." <GFergus@brobeck.com> Subject: Notice to banks #3

Richard, Here is the notice to Bank of America. <<395QF01!.DOC>> George A. Hisert Brobeck, Phleger & Harrison LLP Spear Street Tower, One Market San Francisco, CA 94105 ghisert@brobeck.com phone 415-442-1746 fax 415-979-2596

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

- 395QF01!.DOC

Message 194 of 342

Order on Status Conference

Sender	richard.sanders@enron.com
Recipients	[andrew.edison@enron.com]
File	sanders-r/sent/625.

----- Forwarded by Richard B Sanders/HOU/ECT on 12/15/2000 03:33 PM -----

"Dawne Davis" <ddavis@hollandhart.com> 12/11/2000 02:30 PM

To: <bdavis@enron.com>, <ccheek@enron.com>, <jplace@enron.com>, <linda.r.guinn@enron.com>, <mlawles@enron.com>, <richard.b.sanders@enron.com>, <staci_holtzman@enron.com>, <tlehan@enron.com> cc:
Subject: Order on Status Conference

Attached is Judge Downes' Order Following Status Conference.

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax
ddavis@hollandhart.com

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- 53853000.PDF

Message 195 of 342

Re: CMS

Sender	twanda.sweet@enron.com
Recipients	[mark.lay@enron.com]
File	sanders-r/sent/507.

I have attached a draft letter and release to send to CMS. Please fill in the blanks and give me any other comments you may have.

Mark Lay 10/23/2000 05:39 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Barbara Paige/NA/Enron@Enron Subject: CMS

Richard,

You reviewed a letter from CMS a couple of weeks ago. The company's senior management called me to ask what we saw that made us turn down the transaction. I told them that I could not get specific because of the threatening overtone of their letter. They suggested that they would be happy to send us a letter indemnifying us if it would allow EIP to sit down and walk through the issues that killed the deal.

I would like to be able to sit down with them to walk through these issues since EIP, as an organization, has been working with the company for almost a year. I think they will sign a broad disclaimer. Please get back to me as soon as possible with your suggestion for language.

Thanks, Mark

Mark Lay Enron Investment Partners 333 Clay St., suite 3800 Houston, TX 77002 p 713-853-7408 f 713-345-7670

Message 196 of 342

VPP	
Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/sent/482.

Call me about this ----- Forwarded by Richard B Sanders/HOU/ECT on 11/06/2000 07:21 AM -----

"Tetrault, Charles D." <ctetrault@velaw.com> 11/04/2000 05:15 PM

To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com> cc: Subject: VPP

I've never heard from Linda Guinn regarding the volumetric production payment press release issue.

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

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Message 197 of 342

RE: West Coast Power Litigation	
Sender	b..sanders@enron.com
Recipients	['pfolse@susmangodfrey.com']
File	sanders-r/sent_items/302.

Thanks for your e-mail. As it turns out the judge kept the case in San Diego.

-----Original Message-----

From: Parker Folse <pfolse@SusmanGodfrey.com>@ENRON

[mailto:IMCEANOTES-Parker+20Folse+20+3Cpfolse+40SusmanGodfrey+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, June 20, 2001 2:13 PM To: Sanders, Richard B. Subject: West Coast Power Litigation

I just returned to the office today from a long vacation and wanted to thank you for taking the time to leave me a voicemail regarding the outcome of the CalPX beauty contest. Of course, I'm disappointed, but all of us here really appreciate your support within the committee.

I also received a message from Neal Manne indicating that you may be interested in retaining us to represent Enron in the litigation that was transferred to Judge Whaley in Spokane. If so, I would be very interested in discussing that when it's convenient for you. I will be in the office the balance of this week and the first 3 days of next week. My direct line is (206) 516-3860.

Regards,

Parker C. Folse III Susman Godfrey L.L.P. 1201 Third Avenue, Suite 3090 Seattle, WA 98101 (206) 516-3880

Message 198 of 342

VPP	
Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/all_documents/837.

----- Forwarded by Richard B Sanders/HOU/ECT on 10/29/2000 08:49 AM -----

"Tetrault, Charles D." <ctetrault@velaw.com> 10/28/2000 05:09 PM

To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com> cc: Subject: VPP

Any success in locating the Enron press release on the volumetric production payment involving EOG that we discussed on October 10?

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

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Message 199 of 342

Re: E-mail attachments	
Sender	richard.sanders@enron.com
Recipients	['ctetrault@velaw.com']
File	sanders-r/all_documents/864.

The attachment opened

"Tetrault, Charles D." <ctetrault@velaw.com> 10/31/2000 12:33 PM

To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com> cc: Subject: E-mail attachments

This is the "homework" that I mentioned. We are trying to resolve our "attachment" problem. Can you open the test attachment that accompanies this e-mail?

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

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- DC_110685_1.DOC

Message 200 of 342

CalPX - Hearing before Judge Kuhl re Ex parte

Sender	bdelgadi@kayescholer.com
Recipients	[]
File	sanders-r/deleted_items/450.

Yesterday, George Caplan and I attended a hearing before Judge Kuhl on the Committee's ex parte application shortening time to hear its motion to enforce the stipulation with the state regarding rejection of the claims before the VCB.

After hearing brief argument, the Judge made it very clear that the State needed to sign the stipulation. In fact, the Judge waited around all day until the State signed a stipulation (which will be submitted to the VCB shortly) whereby the State agreed that the consolidated claims pending before the VCB should be summarily rejected as unduly complex and that all administrative remedies regarding the inverse condemnation claims on the commandeered contracts have been exhausted.

The Judge, however, was reluctant to enter our proposed order (which declared that the VCB proceedings were moot and that the parties no longer needed to participate in those proceedings).

Please call if you have any questions

Bryant S. Delgadillo, Esq. KAYE SCHOLER LLP 1999 Avenue of the Stars, Suite 1600 Los Angeles, CA 90067 Direct dial (310) 788-1341 Direct fax (310) 229-1841 Email: bdelgadi@kayescholer.com

Message 201 of 342

Re: Ice Drilling - G/L calculation

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/sent/294.

Set up a meeting with the accounting people w/knowledge of these figures asap

Linda R Guinn 08/22/2000 03:30 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Ice Drilling - G/L calculation

Below is the figure from accounting. Let's discuss.

Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

----- Forwarded by Linda R Guinn/HOU/ECT on 08/22/2000 03:28 PM -----

Lisa King 08/22/2000 12:58 PM

To: Linda R Guinn/HOU/ECT@ECT cc: Subject: Ice Drilling - G/L calculation

Linda-

Attached is a schedule detailing the gain/loss calculation for Ice Drilling. Apparently PriceWaterhouseCoopers acted as a receiver and sold Ice Drilling in August 99. We received total cash proceeds of \$9,583,845.74 between August and September, but the value of the asset on the books was \$9,979,591.85 (loss of \$395,746.11). We also wrote off a receivable of \$474,557.83. In summary, we lost a total of \$870,303.94 (\$395,746.11 + \$474,557.83). I am assuming that we are trying to recover the total amount lost of \$870,303.94. Let me know if you need further information.

-Lisa

Message 202 of 342

Bernard Glatzer

Sender	richard.sanders@enron.com
Recipients	[mark.haedicke@enron.com', 'james.derrick@enron.com']
File	sanders-r/sent/678.

As you will note from the attached e-mail, Bernard Glatzer is now pro se. It is only a matter of time until the case is over.

----- Forwarded by Richard B Sanders/HOU/ECT on 01/09/2001 07:21 AM -----

"Neal S. Manne" <NMANNE@SusmanGodfrey.com> 01/08/2001 09:11 AM

To: "RSanders (E-mail)" <Richard.B.Sanders@Enron.com>, "Steve Schindler (E-mail)" <sschindler@schlaw.com>, "Jonathan J. Ross" <JROSS@SusmanGodfrey.com> cc: Katie Sammons <KSAMMONS@SusmanGodfrey.com>, "H. Lee Godfrey" <LGODFREY@SusmanGodfrey.com> Subject: Bernard Glatzer

I am pleased to report to you that I received a fax on Sunday from Bernard Glatzer reading as follows:

"Andrew Hayes and Boies, Schiller & Flexner were discharged by me for obvious cause two and one half weeks ago in the above entitled matters, but have not yet filed the appropriate withdrawals pursuant to my specific instructions. Until further notice please direct all correspondence and communications to me at 2707 Creston Ave.' #2F, Bronx, New York 10468 or at (718) 584-3998 (Tel. & Fax)."

Is that great sucking sound Andy Hayes notifying his carrier?

Neal S. Manne (713) 653-7827 nmanne@susmangodfrey.com

Message 203 of 342

Re: Payment for Motion to Dismiss/Other Than Personal Jurisdiction

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/sent/221.

Call Steve Williams at EOG Resources in Denver or Barry Hunsacker in Houston

Linda R Guinn 08/02/2000 09:08 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Re: Payment for Motion to Dismiss/Other Than Personal Jurisdiction

Please only send the Enron check to us. I'll check and see who the appropriate person at EOG is and will forward that information as soon as possible.

Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

Richard B Sanders 08/01/2000 01:34 PM

To: Linda R Guinn/HOU/ECT@ECT cc: Subject: Payment for Motion to Dismiss/Other Than Personal Jurisdiction

Please respond ----- Forwarded by Richard B Sanders/HOU/ECT on 08/01/2000 01:34 PM -----

"Dayle Petrillo" <dpetrillo@hollandhart.com> 08/01/2000 11:37 AM

To: <Richard.B.Sanders@enron.com> cc: Subject: Payment for Motion to Dismiss/Other Than Personal Jurisdiction

Regarding above in the Kansas case, I am preparing the pro rata reimbursement checks from the Holland & Hart trust account to Enron and EOG. To whom shall I send the EOG check? Shall I send both checks to your attention?

*Message 204 of 342***Grynberg - Recent Postings**

Sender	ddavis@hollandhart.com
Recipients	['ccheek@enron.com', 'bdavis@enron.com', 'jplace@enron.com']
File	sanders-r/all_documents/5304.

MDL Panel postings:

Letter from Sadhna True to Clerk of the MDL Panel (United States withdraws its opposition to the transfer of Kennard and Perry) (12/8/00)

Motion and Brief of Comstock Resources, Inc., Comstock Oil & Gas, Inc., and Black Stone Oil Company to Partially Vacate Conditional Transfer Order (CTO-3) (12/7/00)

Motion and Brief of Willowcreek Resources, Inc. to Partially Vacate Conditional Transfer Order (CTO-3) (12/7/00)

Click on <https://clients.hollandhart.com/quitam/display.cfm?src=quitam&page=777> or click on Pleadings & Orders, click on MDL Pleadings.

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax ddavis@hollandhart.com

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*Message 205 of 342***MS150 Kick-Off and Bike Demo Day**

Sender	amelia.alder@enron.com
Recipients	['kporter@retailconcepts.cc', 'amelia.alder@enron.com', 'sgerrie@retailconcepts.cc']
File	sanders-r/deleted_items/382.

Okay, team, here's our first chance to rally for the 2002 tour. Come join us at Memorial Park (picnic loop area) on Saturday, January 26, from 8:00 AM to 11:00 AM. This is the MS150 Training Program Kick-Off and Bike Demo Day.

Team Sun & Ski will have a booth at the event. Please come and visit us. You can register, ask questions, or just say hi. I know you have lots of questions about the new team, and this will be your chance to meet those individuals from Sun & Ski Sports who have made it possible for our team to stay together this year.

We will have some trainers available, and would like some volunteers to do some stationary riding in the area of our booth. If you'd like to do this, please come equipped. We'll probably have some bikes also, but if you could throw your own in, that would be helpful. You can get a free safety check-up on your current bike, or shop for a new bike or the latest cycling gear. Official MS150 Health Clubs will be on hand to give training tips and advice.

I'm looking forward to seeing you there!

Amelia Alder Enron Transportation Services P.O. Box 1188 Suite 3AC3120 Houston, TX 77251-1188 Tel: 713-646-6569 Fax: 713-345-5755 amelia.alder@enron.com

Message 206 of 342

Jim Grove	
Sender	richard.sanders@enron.com
Recipients	[richard.sanders@enron.com]
File	sanders-r/all_documents/243.

----- Forwarded by Richard B Sanders/HOU/ECT on 07/13/2000 12:40 PM -----

Teresa G Bushman 05/31/2000 05:53 PM

To: Julia Murray/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT cc: Subject: Jim Grove

Julia and Richard:

As Julia and I discussed, attached is the information I received from Jim Grove at Haynes & Boone. He has worked with Lisa Mellencamp and Wade Cline so we should get their input as to how to proceed. I will let Jim know I have passed along his information, and I assume you will take it from here. Please let me know if there is anything else I can do.

Teresa

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3812 Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

----- Forwarded by Teresa G Bushman/HOU/ECT on 05/31/2000 05:46 PM -----

"James P. Grove" <GROVEJ@haynesboone.com> 05/31/2000 03:50 PM

To: <Teresa.G.Bushman@enron.com> cc: Subject: Re: Message from Theresa Einhorn

Teresa - As we discussed, I have attached a brief background summary and a "projects" list reflecting some of my domestic and international transactions and other representations. Thank you, Jim

- Projects.doc - Resum41.doc

Message 207 of 342

Re: Enron New York voice recorder	
Sender	richard.sanders@enron.com
Recipients	[limor.nissan@enron.com', 'twanda.sweet@enron.com']
File	sanders-r/all_documents/1816.

I have asked my asst, Twanda Sweet, to set up a call w/you to talk about this

Limor Nissan@MGUSA 04/11/2001 09:28 AM

To: Richard Sanders cc: Subject: Enron New York voice recorder

Hi Richard,

I wanted to discuss with you two open items with you re: our voice recorder policy.

On the authorization to listen to conversations, we cannot comply with the requirement that an MD authorize it because we have no MD on site. Given the size of our office, etc. I can suggest some people that would be appropriate in lieu of an MD. Insofar as who should be present, we are suggesting that the IT person be present to run the playback, together with myself and the person who authorized the playback.

On the retention policy, the policy presently applicable is fine for most of our personnel. One of our companies, Enron Trading Services Inc. is regulated by the CFTC and the NFA, who impose a 5 year records keeping requirement. We can

purchase a separate system for the traders in that company for a cost of about \$20,000.

Please let me know when you will have a moment to discuss.

Thanks,

Limor

520 Madison Avenue New York, NY 10022 Tel: 212-715-5283 Fax: 212-715-5608 Email: Limor.Nissan@Enron.com

Message 208 of 342

Kansas - Recent Postings

Sender	ddavis@hollandhart.com
Recipients	['bdavis@enron.com', 'ccheek@enron.com', 'jplace@enron.com', 'bzikes@enron.com']
File	sanders-r/all_documents/5305.

MDL Panel postings:

Letter from Sadhna True to Clerk of the MDL Panel (United States withdraws its opposition to the transfer of Kennard and Perry) (12/8/00)

Motion and Brief of Comstock Resources, Inc., Comstock Oil & Gas, Inc., and Black Stone Oil Company to Partially Vacate Conditional Transfer Order (CTO-3) (12/7/00)

Motion and Brief of Willowcreek Resources, Inc. to Partially Vacate Conditional Transfer Order (CTO-3) (12/7/00)

Click on <https://clients.hollandhart.com/kansasjdt/display.cfm?src=kansasjdt&page=460> or click on Other Cases, click on In re: Natural Gas Royalties Qui Tam Litigation, click on MDL Panel.

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax ddavis@hollandhart.com

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Message 209 of 342

Press Release - Assignment of CanFibre shares

Sender	tamara.howarth@blakes.com
Recipients	['scott.turner@blakes.com', 'randy.petersen@enron.com', 'richard.b.sanders@enron.com']
File	sanders-r/all_documents/750.

Randy & Richard:

I am working with Scott Turner in connection with the possible assignment of shares of CanFibre from Kafus to Enron. Under Canadian securities law, a company is required to disclose a "material change". A material change includes a change in ownership that may significantly be expected to affect the trading price of shares of a company. As a result of the order issued by the British Columbia Securities Commission, we believe that there is a disclosure obligation that affects at least CanFibre, and may affect Enron.

We have therefore drafted a proposed press release for CanFibre for your review and comment, and would ask that you consider whether Enron is also required to disclose the potential assignment.

If you have any questions, please contact me.

Tamara

Tamara L. Howarth Blake, Cassels & Graydon LLP Suite 2600, Three Bentall Centre 595 Burrard Street, PO Box 49314
Vancouver, BC V7X 1L3

Tel: 604.631.3353 Fax: 604.631.3309 E-mail: tamara.howarth@blakes.com

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- PressRel.DOC

Message 210 of 342

Joe Naylor

Sender	stuart.zisman@enron.com
Recipients	[richard.sanders@enron.com]
File	sanders-r/recruiting/13.

Richard,

This is a guy that I used to work with. Do we need anyone?

Zisman

----- Forwarded by Stuart Zisman/HOU/ECT on 08/11/2000 12:43 PM -----

"Naylor, Joe D SHLOIL" <JN984858@MSXSOC.SHELL.COM> 08/10/2000 02:51 PM

To: "stuart.zisman@enron.com" <stuart.zisman@enron.com> cc: "m.boardway@worldnet.att.net" <m.boardway@worldnet.att.net> Subject: Joe Naylor

Stuart,

Thank you for offering to get the attached resume into the right hands for review. I am glad to see that you are still at Enron and I hope everything is working out well. Best regards and I hope to see you again soon.

Joe Naylor

<<Resume 8-10-00.doc>>

Joe Naylor Shell Oil Legal Firm 4824 One Shell Plaza Houston, Texas 77002 Telephone: (713) 241-3957 Fax: (713) 241-5362 Pager: (713)908-5229 (enter your return phone no.) e-mail: jdnaylor@shellus.com e-mail pager: 7139085229@alphapage.airtouch.com (120 characters max; use blank subject line) home page: <http://home.houston.rr.com/lawyerjoe>

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- Resume

Message 211 of 342

FW: Procedural Schedule - California Refund proceeding

Sender	gfergus@brobeck.com
Recipients	['b..sanders@enron.com', 'Dan Watkiss; Karen Bishop']
File	sanders-r/iso__pricecaps/491.

Here is an annotated version of the California schedule. Thanks Gary

-----Original Message-----

From: Andrea Settanni [mailto:asettanni@bracepatt.com] Sent: Tuesday, August 14, 2001 8:35 AM To: Jacqueline Java; Kimberly Curry; Ronald Carroll; Shelby Kelley; gfergus@brobeck.com; jpa@crai.com; ray.Alvarez@enron.com; seabron.adamson@frontier-economics.com; sbishop@gibbs-bruns.com Cc: Dan Watkiss; Karen Bishop Subject: Procedural Schedule - California Refund proceeding

Please see attached memo that provides the procedural schedule adopted at yesterday's prehearing conference.

Andrea M. Settanni Bracewell & Patterson, L.L.P. 2000 K Street, N.W. Suite 500 Washington, D.C. 20006-1872 (202) 828-7631 (phone) (202) 857-2128 (fax) asettanni@bracepatt.com

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

- prehearing.doc

Message 212 of 342

Re: Indemnity Claim

Sender	lisa.mellencamp@enron.com
Recipients	['sbhalla@milbank.com', 'richard.smith@linklaters.com', 'richard.b.sanders@enron.com']
File	sanders-r/nsm/30.

we will be filing in the indemnity claim for \$452,500,000, the full amount of the a and b bonds, per my discussion with you today richard. i have talked to richard sanders re this as well. i am forwarding to you richard the email re the c bond calculation. sent on friday but unsure whether you have now received re my conversation with you this morning.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

SBhalla@milbank.com 08/04/2000 08:38 PM

To: Lisa.Mellencamp@enron.com, Richard.B.Sanders@enron.com, richard.smith@linklaters.com cc: SHoward@milbank.com Subject: Indemnity Claim

Please find attached the Indemnity Claim.? Please leave me a voicemail if you have any questions regarding this document.? Thank you.?

<<3_JVM01!.doc>>

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error, please immediately notify the sender and delete this e-mail message from your computer.

- 3_JVM01!.doc

Message 213 of 342

RE: Global production response

Sender	b..sanders@enron.com
Recipients	['h..george@enron.com']
File	sanders-r/sent_items/353.

Whatever happened to this?

-----Original Message-----

From: George, Robert H. Sent: Friday, July 27, 2001 11:23 AM To: Sanders, Richard B. Subject: FW: Global production response

We are considering this as a response to an allegation that Enron should consider itself responsible for Visual Bridge liabilities.

-----Original Message-----

From: George, Robert H. Sent: Wednesday, July 25, 2001 6:54 PM To: Humphrey, Gene; Frazier, Bert; Paige, Barbara; Sheldon, Steven; Godbold, John Cc: 'ghill@lockeliddell.com' Subject: Global production response

Attached is an initial draft of a proposed response to the letter to Gene from Global Production. It goes without saying that we need to make sure that the facts stated are consistent with our records. It may very well say more than we want to say as well. Nevertheless, with the view that it is easier to take out than add, I have restated some points. In addition, since I think we may be sending something like this out to more than one VBI creditor, it may be worth setting up a format that we can re-use. Anyway, please review and let's talk about the content and the timing of a response.

<< File: GlobalProductions letter.doc >>

Robert H. George Enron North America Corp. 1400 Smith Street EB 3832 Houston Texas 77002-7361 Phone: (713) 345-4159 Fax: (713) 646-3490 Email: robert.h.george@enron.com

Message 214 of 342

Re: Lufkin Gas

Sender	richard.sanders@enron.com
Recipients	['robert.vote@enron.com']
File	sanders-r/sent/302.

Bob-- this is mine ----- Forwarded by Richard B Sanders/HOU/ECT on 09/05/2000 07:25 PM -----

Becky Stephens@ENRON 09/05/2000 10:57 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Re: Lufkin Gas

Richard, we received service of a Summons and Third Amended complaint w/Jury Demand in a lawsuit titled: United States of America, ex rel., Harrold E. Wright, et al. v. Chevron U.S.A., Inc. (including Enron Corporation) on August 24th. The service was forwarded to Jim Armogida and Bob Vote. If you need any additional information, just let me know.

Becky A. Stephens Litigation Unit, Enron Corp. 713/853-5025 713/853-6576 fax EB4809

Richard B Sanders@ECT 09/03/2000 08:43 AM

To: "Tetrault, Charles D." <ctetrault@velaw.com> cc: Becky Stephens/Corp/Enron@ENRON Subject: Re: Lufkin Gas

Not that I am aware of. I will check with our corporate Sec. Becky?

"Tetrault, Charles D." <ctetrault@velaw.com> 09/02/2000 03:45 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Lufkin Gas

Has Enron Corp. been served with the Wright complaint yet? EOG got theirs on August 25.

If served, we need to join the joint motion for an extension of time (through October 23) by mid day Tuesday.

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave. N. W. Washington, D.C. 20004 ctetrault@velaw.com
202.639.6551 [voice] 202.639.6604 [fax]

- att1.unk

Message 215 of 342

nsm	
Sender	richard.sanders@enron.com
Recipients	['lisa.mellencamp@enron.com', 'linda.guinn@enron.com']
File	sanders-r/all_documents/278.

Please coordinate with Milbank to get the requested documents under #5 ----- Forwarded by Richard B Sanders/HOU/ECT on 07/23/2000 08:51 AM -----

Lisa Mellencamp 07/19/2000 01:15 PM

To: Richard B Sanders/HOU/ECT@ECT, Richard Lydecker/Corp/Enron@Enron, Brian Vass/HOU/ECT@ECT cc: Subject: nsm

divide and conquer strategy devised with paul aronzon at milbank: 1. i am getting local thai counsel. have email richard out to bruce lundstrum re. we will file a claim even tho not submitted to cedrac procedures. 2.brian is getting a hold of jim ajello to have him call the other c bondholders to alert them as to the aug. 7 filing deadline since we were holding hands with them. 3.paul is calling cleary to document the handshake deal on what the c holders will get from the bs. 4.when that happens brian you and jim will need to call back the other c bondholders. 5.richard can you have the paralegal working on the case (was it linda?) pull the underwriting agreement, the shareholders agreement and the management agreement and anywhere else we think there may be an indemnity to file any indemnity claim we can think of? also can you do a short description of the lawsuit to put in the proof of claim?? 6.paul is getting a general update of the status. of the case and the facility.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

Message 216 of 342

Re: VPP	
Sender	richard.sanders@enron.com
Recipients	['ctetrault@velaw.com']
File	sanders-r/all_documents/1007.

Did you get everything you needed? ----- Forwarded by Richard B Sanders/HOU/ECT on 11/26/2000 12:20 PM -----

Richard B Sanders 10/29/2000 10:23 AM

To: "Tetrault, Charles D." <ctetrault@velaw.com>@ENRON cc: Linda R Guinn/HOU/ECT@ECT Subject: Re: VPP

My paralegal, Linda Guinn, will call you about this--- which is another way of saying "my dog ate my homework"

"Tetrault, Charles D." <ctetrault@velaw.com> 10/28/2000 05:09 PM

To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com> cc: Subject: VPP

Any success in locating the Enron press release on the volumetric production payment involving EOG that we discussed on October 10?

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

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Message 217 of 342

FW: Depo summaries

Sender	gail.brownfeld@enron.com
Recipients	['Markel', 'a..shankman@enron.com', 'b..sanders@enron.com', 'Gregory A.; Johnson', 'george.mcclellan@enron.com...']
File	sanders-r/deleted_items/sempra/9.

If you get have a night of insomnia, may I suggest the attached.

-----Original Message-----

From: Zeisler, Aaron M. [mailto:AZeisler@brobeck.com] Sent: Friday, July 13, 2001 3:17 PM To: Brownfeld, Gail Cc: Markel, Gregory A.; Johnson, Christopher P. Subject: Depo summaries

Gail,

Attached are general summaries for Mooza, Cahill, Reagan, Smith, McQuade, Beaury and McArdle. As I stated, there's nothing for Wojtowicz but you can speak to Chris about any specifics.

We're having a true digest done of McClellan . . . and Reck and McGowan.

Aaron

<<Mooza and Cahill depo summaries.doc>> <<Paul Reagan depo summary.doc>> <<Tom Smith depo summary.doc>>
<<Beaury and McArdle depo summaries.doc>> <<Tom McQuade depo summary.doc>>

Aaron M. Zeisler Complex Litigation Internet & E-Commerce Litigation Group Brobeck 1633 Broadway 47th Floor New York, NY 10019 p: 212-299-4164 f: 212-586-7878 azeisler@brobeck.com www.brobeck.com

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

Message 218 of 342

Infineum lawsuit

Sender	lisa.mellencamp@enron.com
Recipients	['richard.sanders@enron.com']
File	sanders-r/all_documents/252.

see other email i am sending. it's always something. i talked to dick about sending this out.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 ----- Forwarded by Lisa Mellencamp/HOU/ECT on 07/14/2000 01:38 PM -----

Richard Lydecker@ENRON 07/14/2000 10:34 AM

To: Bob Licato/ECP/HOU/ECT@ECT, Gary Keevill/ECP/Enron@Enron cc: (bcc: Lisa Mellencamp/HOU/ECT) Subject: Infineum lawsuit

Bob, Gary given the fact that the lawsuit has been filed I think any communication/discussion internally and externally should be initiated and controlled by our lead counsel for the litigation. There are issues of privilege/disclosure, etc. the sensitivity of which we non-lawyers are not aware that now become very important. This is particularly important in respect to strategy and evaluation/interpretation of past events and comments on the clarity or ambiguity of those events. It would be a good idea to pass the word to this effect throughout the organization. I do know enough about litigation that the legal team now takes the lead and any material or summaries or analyses prepared should be directed by them and handled specifically as they advise. We need to be especially careful not to circulate any written material without legal clearance. For the time being, please coordinate anything relevant to the Infineum situation with Lisa Mellencamp for guidance. Thanks. Dick.

Message 219 of 342

Documents on the M Drive

Sender	gfergus@brobeck.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/all_documents/1853.

Richard, We need to have an electronic copy of the Real Time spreadsheets for EPMI located on the M Drive in Houston for the period 1/01/00 to date. They are needed for two purposes: (1) to respond by next Wednesday to a FERC request for data about Out of Market Transactions; and (2) to evaluate the contents of those spreadsheets in the context of the California litigation. The specific documents that we need have been identified by Jeff Richter. We need approval to have these documents copied to a CD and sent via courier to me today. I believe that Dan Dietrich is also aware of the specific documents that are needed. If the approval is granted, Jeff Richter can make the CD in Portland and have it sent via courier to me. Alternatively, if the CD is made in Houston, it should be sent to me for guaranteed Saturday delivery at the following address:

Gary Fergus Brobeck Phleger & Harrison LLP One Market Plaza San Francisco, California 94105 (415) 442-1284 (415) 279-2770 (cell)

Thanks Gary

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

Message 220 of 342

Cal Wholesale Power Cases - Conf Call Agenda

Sender	chealey@luce.com
Recipients	['bbailey@duke-energy.com', 'gallen@bakerbotts.com', 'jalexander@gibbs-bruns.com']
File	sanders-r/notes_inbox/374.

JOINT DEFENSE: HENDRICKS

We have scheduled a conference call for Wed., June 6 at 11 am (PDT). The dial-in number 1-800-210-5603 (pass code 5291316#).

Here is a proposed agenda:

1. Finalize letter to Judge Whaley regarding June 18 hearing. Updated "final" version of letter is attached. If you cannot attend conference call, please provide any final comments not later than June 6 at 10 am (PDT).
2. Discussion regarding remand argument and additional briefing.
3. Overall case status, scheduling, etc. for SD and SF cases
4. Discussion regarding Bustamante status, including response date issue.
5. Other issues?

Speak with you tomorrow. Regards.

<<Letter to Judge Whaley (6-5-01).wpd>>

CONFIDENTIAL

Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414

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- Letter to Judge Whaley (6-5-01).wpd

Message 221 of 342

Grynberg - Letter to Judge Downes re Wright Deposition

Sender	ddavis@hollandhart.com
Recipients	['ccheek@enron.com', 'bdavis@enron.com', 'andrew.edison@enron.com']
File	sanders-r/all_documents/7612.

Privileged and Confidential Joint Defense Communication

To: Grynberg JDT From: Don Schultz

Attached is the final version of the letter I am now sending to Judge Downes on the subject of Gene Wright's deposition. I added some text along the lines of Gerry Pecht's suggestions in yesterday's phone conference, and with his input this

afternoon. I did this so the letter better fits with the editing done by the Wright Defendants in the last 24 hours on their submission. I believe this final version is consistent with the views you have all expressed to me. Please let me know if you see anything problematic. (There was not enough time available, after I could review the latest changes in the Wright Defendants' brief, to circulate another draft of this letter. And, the changes did not seem to warrant asking the Court to extend the time for filing this.) Thanks for your cooperation. Don.

Dawne M. Davis, CLA Legal Assistant Holland & Hart, LLP P.O. Box 1347 Cheyenne, WY 82003 307-778-4240
307-778-8175 - fax ddavis@hollandhart.com

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- 00157000.PDF

Message 222 of 342

GET ON BOARD FOR 2002

Sender	amelia.alder@enron.com
Recipients	['amelia.alder@enron.com']
File	sanders-r/inbox/64.

Hey guys! I know you've been wondering what's going to happen to Team Enron for the 2002 MS150. Going forward, Enron will not be able to fund the team, but I have some very good news for you! Sun & Ski has adopted us so we can stay together, and all we have to do is change our name. We will be Team Sun & Ski, with an official announcement of the name coming out a bit later, but since the deal was just finalized, I wanted you to be the first to know that we have a new arrangement while we are working out all the details.

We will have all the same amenities we have enjoyed over the years, and our new sponsor has asked me to stay on as Team Captain, which makes me very happy, as that saves me from a major identity crisis. Don't know what I would do without you guys! Just wanted you to know that I will still be your point of contact for all communications. Please do not try to get info from the Sun & Ski stores, as their staff would not be prepared to answer any team questions this early in the planning stages.

We want to retain your participation, and plan to make our new team bigger and better than ever!

All the details will be forthcoming by e-mail as soon as we have anything to tell you about registration and all the other plans we have in store for you. We have about 50 of you registered already for Team Enron, and we will automatically put you on Team Sun & Ski unless I hear otherwise.

Stay tuned, and have a Happy New Year!

Amelia Alder Enron Transportation Services P.O. Box 1188 Suite 3AC3120 Houston, TX 77251-1188 Tel: 713-646-6569
Fax: 713-345-5755 amelia.alder@enron.com

Message 223 of 342

PGE motion for production of PX/ISO documents

Sender	pmar@mofo.com
Recipients	['bholman@whitecase.com', 'mcohen@ggfcmk.com', 'jrnelson@llgm.com', 'ayudkowsky@stroock.com']
File	sanders-r/all_documents/7560.

Before we discuss our Committee's position on the PG&E document production motion on Friday, can you discuss with Joe Eisenberg and find out what CalPX's position will be. I was discussing the motion with PG&E's counsel (Marty Courson) yesterday, mostly on timing issues (his schedule for requiring meet & confer this week, objections end of next week, and production in five days, etc. is unrealistic), and he was complaining bitterly that CalPX is "stonewalling", telling him it would one year and millions of dollars to produce documents. We need to be careful when we formulate our position that we don't support (or look like we're supporting) unreasonable positions by CalPX, who, I'm sure, doesn't want to allow access to its records by anybody, anytime; at the same time, the Committee has an interest in not draining the resources of CalPX (i.e., our money) on overbroad and unreasonable document requests and fishing expeditions.

Patricia S. Mar Morrison & Foerster LLP 425 Market St., 33rd Floor San Francisco, CA 94105 Phone: (415) 268-6157
FAX: (415) 268-7522 e-mail: pmar@mofo.com

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Message 224 of 342

Grynberg - Template Answer

Sender	ddavis@hollandhart.com
Recipients	['ccheek@enron.com', 'bdavis@enron.com', 'andrew.edison@enron.com']
File	sanders-r/all_documents/7549.

Privileged and Confidential Joint Defense Communication

To: Grynberg JDT From: Don Schultz Re: Template Answer

The Coordinating Counsel Committee has asked me to solicit proposals for a firm to draft and circulate a template answer to the Grynberg complaints. Analysis and drafting of affirmative defenses should be more cost effective for everyone if one firm develops a template. There may also be fact allegations, e.g. those respecting scientific propositions, where efficiency and consistency can be promoted by use of a template. I suggest we aim to have the template available for circulation and comments by June 20th. The separate counsel for individual defendants would retain the responsibility for the sufficiency of the answers filed for their clients. If your law firm is interested in undertaking this scope of work, please send me a very brief proposal to describe how you would staff this and an estimate of the fees involved, for review by the Coordinating Counsel Committee.

Dawne M. Davis, CLA Legal Assistant Holland & Hart, LLP P.O. Box 1347 Cheyenne, WY 82003 307-778-4240
307-778-8175 - fax ddavis@hollandhart.com

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Message 225 of 342

RE: Brunilda Ocasio Cuadro, et al. v. San Juan Gas Company

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/sent_items/244.

Please include on our database ----- Forwarded by Richard B Sanders/HOU/ECT on 06/11/2001 10:30 AM -----

David Grant/ENRON@enronXgate 06/06/2001 08:41 AM To: Bonnie White/ENRON@enronXgate, Richard B Sanders/HOU/ECT@ECT cc: Andrew Edison/NA/Enron@Enron, Linda R Guinn/HOU/ECT@ECT, Rob Cole/ENRON@enronXgate Subject: RE: Brunilda Ocasio Cuadro, et al. v. San Juan Gas Company

After conferring with Rob Cole, I will make my recommendation to Mr. Derrick today as to local counsel so that we may get a responsive pleading on file in a timely fashion. Thereafter, Rob and I will coordinate the defense with local counsel and report in the usual fashion.

-----Original Message-----

From: White, Bonnie Sent: Tuesday, June 05, 2001 6:14 PM To: Sanders, Richard Cc: Edison, Andrew; Guinn, Linda; Grant, David; Cole, Rob Subject: Brunilda Ocasio Cuadro, et al. v. San Juan Gas Company

You will have received notice of service of process in the above-referenced case today. This is a slip and fall case filed against San Juan Gas. The Risk Management group already has a file on this matter, as the plaintiff had previously filed a demand. Upon investigation, Risk Management determined that the plaintiff's alleged accident occurred at a facility that is NOT owned by San Juan Gas, and, thus, denied the claim. The matter will be handled as a Risk Management matter, and Dave Grant will manage the activities of outside counsel. If you need any further information on this matter, please contact Dave.

Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

Message 226 of 342

FW: sap delegation

Sender	richard.sanders@enron.com
Recipients	['Debbie', 'Richard B Sanders/HOU/ECT@ECT', 'linda.guinn@enron.com', 'Linda R Guinn/HOU/ECT@ECT']
File	sanders-r/all_documents/2092.

Is that going to do it? ----- Forwarded by Richard B Sanders/HOU/ECT on 05/25/2001 07:24 AM -----

Eva Tow/ENRON@enronXgate 05/24/2001 08:36 AM

To: Linda R Guinn/HOU/ECT@ECT cc: Richard B Sanders/HOU/ECT@ECT, SAP Security@Enron Subject: FW: sap delegation

-----Original Message-----

From: Nguyen, Lori Sent: Wednesday, May 23, 2001 9:38 AM To: SAP Security; Tow, Eva Subject: Re: sap delegation Importance: High

It's completed. Linda R Guinn's (P00503232) been setup to approve at the Senior Director Level (up to \$74,999.99) in iBuyit eProcurement.

Thanks!

SAP Security 05/23/2001 09:27 AM Sent by: Eva Tow To: Lori Nguyen/Corp/Enron@Enron cc: Linda R Guinn/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, Debbie Skinner/Enron@EnronXGate

Subject: Re: sap delegation

Lori,

This is an urgent request. Please update Linda R Guinn's (P00503232) iBUYit profile to approve at the highest level of approval - Sr. Director . Please notify the user ASAP.

Thank you, SAP Security (Eva)

From: Richard B Sanders@ECT on 05/22/2001 09:44 AM To: SAP Security@ENRON cc:

Subject: sap delegation

I need Linda Guinn To have VP authority to approve invoices as outlined below. ----- Forwarded by Richard B Sanders/HOU/ECT on 05/22/2001 09:42 AM -----

Linda R Guinn 05/21/2001 10:52 AM To: Richard B Sanders/HOU/ECT@ECT cc: Subject: sap delegation

Per our conversation, SAP needs an approval delegation from you so that I can approve your invoices at the VP level.

Please forward this email to SAP security for processing.

Thanks, Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

Message 227 of 342

RE: Brunilda Ocasio Cuadro, et al. v. San Juan Gas Company

Sender	richard.sanders@enron.com
Recipients	['Rob', 'Linda; Grant', 'Edison', 'David; Cole', 'linda.guinn@enron.com', 'Andrew; Guinn']
File	sanders-r/sent/1204.

Please include on our database ----- Forwarded by Richard B Sanders/HOU/ECT on 06/11/2001 10:30 AM -----

David Grant/ENRON@enronXgate 06/06/2001 08:41 AM

To: Bonnie White/ENRON@enronXgate, Richard B Sanders/HOU/ECT@ECT cc: Andrew Edison/NA/Enron@Enron, Linda R Guinn/HOU/ECT@ECT, Rob Cole/ENRON@enronXgate Subject: RE: Brunilda Ocasio Cuadro, et al. v. San Juan Gas Company

After conferring with Rob Cole, I will make my recommendation to Mr. Derrick today as to local counsel so that we may get a responsive pleading on file in a timely fashion. Thereafter, Rob and I will coordinate the defense with local counsel and report in the usual fashion.

-----Original Message-----

From: White, Bonnie Sent: Tuesday, June 05, 2001 6:14 PM To: Sanders, Richard Cc: Edison, Andrew; Guinn, Linda; Grant, David; Cole, Rob Subject: Brunilda Ocasio Cuadro, et al. v. San Juan Gas Company

You will have received notice of service of process in the above-referenced case today. This is a slip and fall case filed against San Juan Gas. The Risk Management group already has a file on this matter, as the plaintiff had previously filed a demand. Upon investigation, Risk Management determined that the plaintiff's alleged accident occurred at a facility that is NOT owned by San Juan Gas, and, thus, denied the claim. The matter will be handled as a Risk Management matter, and Dave Grant will manage the activities of outside counsel. If you need any further information on this matter, please contact Dave.

Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

Message 228 of 342

Re: Work at Home & Make Great Money! 41038

Sender	richard.sanders@enron.com
Recipients	[sg1aq35@fun.21cn.com]
File	sanders-r/all_documents/1905.

Please do not send me any other solicitation.

sg1aq35@fun.21cn.com 04/30/2001 06:49 AM

To: <Undisclosed.Recipients@mailman.enron.com> cc: Subject: Work at Home & Make Great Money! 41038

Tired of the 40 X 40 X 40 Plan? You know:

Work 40 hours per week for someone else for 40 years, then receive a 40% reduction in pay!

Is working for a "boss" too demeaning and unrewarding?

Are you sick of depending on a job with too little pay and too many hours with no personal reward and even less future?

If you're determined to retire in the next 2 - 5 years with enough income to have REAL Financial Independence and Freedom, and are not afraid to work for it, I can help you.

I am looking for people with a Good Work Ethic and extraordinary Desire to Earn at Least \$10,000 per Month Working From Home!

NO SPECIAL SKILLS OR EXPERIENCE REQUIRED. We will give you all the training and personal support you will need to ensure your success!

This LEGITIMATE HOME-BASED INCOME OPPORTUNITY can put you back in Control of your Time, Your Finances, and Your Life!

If you've tried other opportunities in the past that have failed to live up to their promises, THIS IS DIFFERENT THAN ANYTHING ELSE YOU'VE SEEN!

THIS IS NOT A GET-RICH-QUICK SCHEME!

YOUR FINANCIAL PAST DOES NOT HAVE TO BE YOUR FINANCIAL FUTURE!

CALL ONLY IF YOU ARE SERIOUS!

1-800-533-9351 (Free, 24 hour, 1 minute recorded message)

DON'T GO TO SLEEP WITHOUT LISTENING TO THIS!

"All our dreams can come true - if we have the courage to pursue them" - Walt Disney

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Message 229 of 342

Ecogas Depo.

Sender	rtellis@milbank.com
Recipients	['randal.maffett@enron.com', 'lisa.mellencamp@enron.com', 'showard@milbank.com', 'richard.b.sanders@enron.com']...
File	sanders-r/notes_inbox/226.

I spoke with counsel for plaintiff Waste Management earlier today.? The Ecogas deposition has been put off indefinitely pending settlement discussions between Waste Management and defendant GSF.

-----Original Message-----

From: Howard, Steve Sent: Monday, December 11, 2000 7:29 AM To: 'Lisa.Mellencamp@enron.com' Cc: Richard.B.Sanders@enron.com; Randal.Maffett@enron.com Subject: RE: can't you defer the ecogas depositions? richard is calling to try to settle as the company will no longer be operating and remaining assets sold. please coordinate with richard.

Lisa:

We are talking with Richard, and we are working on deferring the depositions.

Steve

-----Original Message-----

From: Lisa.Mellencamp@enron.com [mailto:Lisa.Mellencamp@enron.com] Sent: Friday, December 08, 2000 1:24 PM To: showard@milbank.com Cc: Richard.B.Sanders@enron.com; Randal.Maffett@enron.com Subject: can't you defer the ecogas depositions? richard is calling to try to settle as the company will no longer be operating and remaining assets sold. please coordinate with richard.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX? 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

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Message 230 of 342

RE: AG Grand Jury

Sender	b..sanders@enron.com
Recipients	['eric_dobberteen@aporter.com']
File	sanders-r/sent_items/257.

Yes, our PR Dept has this service.Thanks.

-----Original Message-----

From: Eric_Dobberteen@aporter.com@ENRON [mailto:IMCEANOTES-Eric+5FDobberteen+40aporter+2Ecom+40ENRON@ENRON.com] Sent: Saturday, June 16, 2001 10:50 AM To: Sanders, Richard B. Subject: AG Grand Jury

Our local legal newspaper, The Daily Journal, reported in Thursday's edition that the AG will ask a Sacramento Grand Jury to investigate whether "the California market was manipulated and profits taken illegally, and whether there was fraud against the public". The story reports that the investigation "will begin shortly after July 1" which is consistent with out

recent intelligence. My guess is you have already seen this basic story because the Journal picked it off the AP wire service.

Do you already have some clipping service keeping track of all the stories being published out here? I've assumed you are doing this already, but if not and you want to do that, let us know.

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Eric Dobberteen Eric_Dobberteen@aporter.com Arnold & Porter Telephone: (213) 243-4000 777 S. Figueroa St., 44th Floor Fax: (213) 243-4199 Los Angeles, CA 90017-5844

For more information about Arnold & Porter, click here: <http://www.arnoldporter.com>

Message 231 of 342

Project Sequoia -- Legal opinion	
Sender	travis.mccullough@enron.com
Recipients	['richard.sanders@enron.com']
File	sanders-r/notes_inbox/186.

Richard:

Mark is being asked to deliver his customary "no litigation" legal opinion in connection with this project, which is a securitization of eligible receivables generated by EPMI and ENA as a result of power and gas transactions. Please note that ENA and EPMI have been performing under a similar agreement for over a year; this transaction is an amendment of the existing transaction to add another purchaser, and we are being asked to deliver new legal opinions. I understand that Derrick delivered the opinion on behalf of ENA and EPMI when the transaction was first closed.

This is a revolving facility, with ENA and EPMI selling receivables to Sequoia on a monthly basis as those receivables are generated. The transaction documents define the type of receivables that may go into this facility (we are required to represent that we have title, there are no adverse claims, there are no restrictions on assignment, etc.). Therefore, as long as our back office is doing their job right, we should not be selling any receivables into the project that are problematic.

Are you aware of any judgment, injunction, order, decree, or pending or threatened litigation:

1. Against Sequoia Financial Assets, LLC; Cherokee Finance V.O.F.; or Enron Finance Partners LLC (these are the special purpose entities that exist only for this transaction);
2. Against ENA or EPMI (Derrick is giving the opinion for Enron Corp.) that would prohibit ENA or EPMI from selling/transferring/conveying receivables owned by them and generated in connection with power/crude/natural gas sales?

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 232 of 342

FW: sap delegation

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/sent_items/188.

Is that going to do it? ----- Forwarded by Richard B Sanders/HOU/ECT on 05/25/2001 07:24 AM -----

Eva Tow/ENRON@enronXgate 05/24/2001 08:36 AM To: Linda R Guinn/HOU/ECT@ECT cc: Richard B Sanders/HOU/ECT@ECT, SAP Security@Enron Subject: FW: sap delegation

-----Original Message-----

From: Nguyen, Lori Sent: Wednesday, May 23, 2001 9:38 AM To: SAP Security; Tow, Eva Subject: Re: sap delegation
Importance: High

It's completed. Linda R Guinn's (P00503232) been setup to approve at the Senior Director Level (up to \$74,999.99) in iBuyit eProcurement.

Thanks!

SAP Security 05/23/2001 09:27 AM Sent by: Eva Tow To: Lori Nguyen/Corp/Enron@Enron cc: Linda R Guinn/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, Debbie Skinner/Enron@EnronXGate

Subject: Re: sap delegation

Lori,

This is an urgent request. Please update Linda R Guinn's (P00503232) iBUYit profile to approve at the highest level of approval - Sr. Director . Please notify the user ASAP.

Thank you, SAP Security (Eva)

From: Richard B Sanders@ECT on 05/22/2001 09:44 AM To: SAP Security@ENRON cc:

Subject: sap delegation

I need Linda Guinn To have VP authority to approve invoices as outlined below. ----- Forwarded by Richard B Sanders/HOU/ECT on 05/22/2001 09:42 AM -----

Linda R Guinn 05/21/2001 10:52 AM To: Richard B Sanders/HOU/ECT@ECT cc: Subject: sap delegation

Per our conversation, SAP needs an approval delegation from you so that I can approve your invoices at the VP level.

Please forward this email to SAP security for processing.

Thanks, Linda Guinn Enron North America 1400 Smith Street Houston, Texas 77002 (713) 853-6104 (713) 646-3393 (fax)

<Embedded StdOleLink> <Embedded Picture (Device Independent Bitmap)>

Message 233 of 342

Re: Your msg re your CLEonline.com seminar...

Sender	mdelarosa@cleonline.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/misc/26.

RE your message of 3/10/01 9:56 AM:

I took an online course last month and would like to take another. I have forgotten my password/id and I can't login. Can you send me an email with this info. Also-- I have lost the course # for the seminar I took last month entitled " Ethics For Inhouse Lawyers" which was a 3 hour course. Could you send me this? Thank You

Richard:

I believe we had already sent your username and password, but just in case, here it is again:

Username: rbsanders Password: elvis

As for the course number for the seminar from last month, it is: 000011905. We do show that you logged in the full amount of time for this seminar and we did report this for you to the State Bar MCLE Dept.

Hope this helps, but if you have further questions about this, please give us a call or send us another e-mail message.

Thanks again for your interest in CLEonline.com. We would greatly appreciate it if you could please spread the word about our online CLE service to other attorneys in your firm/company and local area. Also, if there are other topics that you would like to see on our site, please let us know. And, if there are any attorneys in your firm or company who have written or spoken on subjects that would be of interest to other attorneys, we would very much like to talk to them about possibly producing a new seminar with us on our site.

Best Regards,

Mike De La Rosa, Esq.

Michael De La Rosa, CEO ----- Voice: (512) 310-9618 FAX: (512) 310-1720 CLEonline.com P.O.
Box 1897 Round Rock, TX 78680-1897 ...delivering CLE to YOUR desktop! mdelarosa@cleonline.com
<http://www.cleonline.com> -----

Message 234 of 342

Legal Assistant Position & Reference Request

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/sent/9.

for your amusement ----- Forwarded by Richard B Sanders/HOU/ECT on 03/23/2000 03:51 PM

SSuecooakacoops@aol.com on 03/21/2000 08:50:15 AM To: richard.b.sanders@enron.com, michelle.cash@enron.com
cc: Subject: Legal Assistant Position & Reference Request

Dear Richard and Michelle:

Attached to this e-mail is a copy of my resume and a cover letter that I have forwarded to Ms. Nedre Strambler with Enron's Human Resources department in an attempt to find a Legal Assistant position there at Enron. As you know I was Carrin Patman's paralegal for several years over at Bracewell & Patterson and I am hoping that I might be able to use the two of you as references should I be contacted regarding the positions I've applied for.

Richard, in the Beeson matter I see that the Supreme Court rendered a decision in Intratex's favor regarding the necessity of a new trial if the Plaintiffs attempt to recertify the class. As I assume you are aware, I was the person in charge of assembling and organizing all 1200 boxes of documents relating to the various Intratex, HPL, Atapco, Beeson and Mills matters and assisted Carrin and Neal Manne in many of the court appearances. I believe that this experience can be very useful if I were to work for Enron.

Michelle, even though I only had an opportunity to work on a couple of your projects while you were at B&P, I did have an opportunity to assist you and others at Enron with the urgent project to produce employment records to the FTC last fall. I really enjoyed working with you and would like to do so again.

Any assistance you can offer in this matter would be greatly appreciated.

Susan M. Cooper 8007 Portal Houston, TX 77071 (713) 776-1624 / (713) 988-0308 suecoo2@yahoo.com / suecoo@altavista.com

- Enron.doc.doc

Message 235 of 342

FW: Letter to Judge Downes

Sender	ctetrault@velaw.com
Recipients	[richard.b.sanders@enron.com]
File	sanders-r/notes_inbox/239.

Letter from Wright defendants. Conference call went fine.

-----Original Message----- From: Tetrault, Charles D. Sent: Tuesday, December 12, 2000 12:52 PM To: Thomas A. Nicholas (E-mail); David Zott (E-mail) Subject: Letter to Judge Downes Minor drafting suggestion. Beginning of the third paragraph. Delete "In connection with the first scheduling conference," and substitute "At the appropriate time,". Reason: Judge Downes already in some respects has a de facto scheduling order based on what he has said at various hearings. It seems likely that he will get to public disclosure / original source after the pending motions are resolved. This is consistent with the goals of the Wright defendants' letter. If there is a scheduling conference in the near future (and the letter does not suggest that there should be), we will face the demand from the relators that "core" discovery (read "merits" discovery) should proceed during the pendency of the motions practice. So, I simply would prefer not to use the phrase "first scheduling conference." Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008 ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

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Message 236 of 342

Re: Contacting the oftakers

Sender	max.yzaguirre@enron.com
Recipients	[peggy.banczak@enron.com', 'marc.sabine@enron.com', 'iblanco@bracepatt.com', 'bonnie.white@enron.com']
File	sanders-r/all_documents/5143.

1 PM would work best for me. Does that work for everyone else?

"Ileana Blanco" <iblanco@bracepatt.com> on 12/04/2000 10:53:33 AM To: <Max.Yzaguirre@enron.com> cc: <Bonnie.White@enron.com>, <Marc.Sabine@enron.com>, <Peggy.Banczak@enron.com>, <Richard.B.Sanders@enron.com>, <Steve.Irvin@enron.com>

Subject: Re: Contacting the oftakers

Does next Monday afternoon work for everyone?

<Max.Yzaguirre@enron.com> 12/04/00 10:47AM >>>

The end of this week is complicated for me. Can we do it early next week?

Best regards - Max

"Ileana Blanco" <iblanco@bracepatt.com> on 12/01/2000 04:26:58 PM

To: <Bonnie.White@enron.com> cc: <myzagui@enron.com>

Subject: Re: Contacting the oftakers

Thursday afternoon or all day Friday--does that work for both of you'all.

<Bonnie.White@enron.com> 12/01/00 04:23PM >>>

Ileana: I'd like to participate in the conference call, but right now I anticipate being in a hearing in San Antonio most of the day on Wednesday. Do you have any other availability next week? Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith St., Suite 4824 Houston, TX 77002 Ph: (713) 853-7244 Fax: (713) 853-6576

"Ileana Blanco" To: <myzagui@enron.com> <iblanco@brac cc: <bonnie.white@enron.com> epatt.com> Subject: Contacting the oftakers

12/01/2000 04:22 PM

Max, we agree with you 100% that there are much stronger defenses to McKenna's claims and appreciate the importance of not involving the oftakers into this dispute. However, we want to be prepared for what is likely to be McKenna's "strongest" argument, especially if he digs up some affidavits from some of his cronies, or if he tries to take some depositions. Can we talk more about this next week? Does Wednesday work for you? Thanks. Ileana

Message 237 of 342

Wright case -- VPP

Sender	richard.sanders@enron.com
Recipients	[julia.murray@enron.com', 'andrew.edison@enron.com']
File	sanders-r/all_documents/1954.

Are you available? ----- Forwarded by Richard B Sanders/HOU/ECT on 05/10/2001 03:17 PM -----

"Tetrault, Charles D." <ctetrault@velaw.com> 05/10/2001 01:50 PM

To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com> cc: "Andrew M. Edison (E-mail)" <andrew.edison@enron.com>, "Barrett H. Reasoner (E-mail)" <breasoner@Gibbs-Bruns.com> Subject: Wright case -- VPP

As you might recall, I have been given the lead on the volumetric production payment issue in the Wright case in general, and in dealing with EOG in particular.

As you know, I have heard the long story from EOG. You suggested that the next time I was in Houston that we try to meet with Julia Heintz Murray to get the more to point version from the ECT / Enron perspective.

I will be in town next week for the "measurement summit." I could come earlier, stay later, or carve out some time during to talk to Julia. This might be a good introduction for Andy as well. (Of course, Barrett is also included if his schedule permits.)

From the viewpoint of my schedule, I would suggest Thursday afternoon, Tuesday afternoon, or Friday morning, in approximate order of preference. Let me know.

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

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Message 238 of 342

FW: Letter from Figa re settlement negotiations

Sender	ctetrault@velaw.com
Recipients	['sholtzm@enron.com', 'breasoner@gibbs-bruns.com', 'richard.b.sanders@enron.com']
File	sanders-r/notes_inbox/295.

I assume that you have seen the attached letter from Grynberg by now. For some people it would be amazing. For Grynberg, it is simply typical.

Working through the Coordinated Defendants group, it seems to me that the two viable options are (1) telling Grynberg to get lost or (2) ignoring him. If you have something else in mind, please let me know. Thanks.

-----Original Message-----

From: Dawne Davis [mailto:ddavis@hollandhart.com] Sent: Wednesday, December 13, 2000 6:27 PM To: ctetrault@velaw.com; dpetalas@velaw.com; khirschman@velaw.com; phaynes@velaw.com; vbrooks@velaw.com Subject: Letter from Figa re settlement negotiations

Attached is a letter from Phil Figa to Don Schultz regarding settlement negotiations.

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax ddavis@hollandhart.com

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- 80499000.pdf

Message 239 of 342

DOJ - Memo to File - Range of Market Values

Sender	richard.sanders@enron.com
Recipients	['tom.donohoe@enron.com', 'andrea.ring@enron.com']
File	sanders-r/sent/396.

----- Forwarded by Richard B Sanders/HOU/ECT on 10/08/2000 08:59 AM -----

"Tetrault, Charles D." <ctetrault@velaw.com> 10/07/2000 04:22 PM

To: "Tetrault, Charles D." <ctetrault@velaw.com> cc: Richard B Sanders/HOU/ECT@ECT, "Hunsaker, Barry (EOG Resources)" <barry_hunsaker@eogresources.com>, "Hoyle, Andy (E-mail)" <Andrew_Hoyle@eogresources.com>, "Williams, Steven P." <Steve_Williams@eogresources.com> Subject: DOJ - Memo to File - Range of Market Values

Pearson's June 9, 2000 letter questions why \$.10 or \$.11 were deducted from the Transco and Koch indices in connection with the sale of Mobile Bay Block 870 gas.

We responded in detail on October 3. In addition to those answers, we should keep in mind that market value cannot necessarily be calculated with mathematical precision. Market value is often described in terms of a range. Indeed, the Inside FERC's Gas Market Reports publishes not only an index price, but also a range of prices for each pipeline pricing point.

In looking at the applicable indices for those two pipelines for some of the sample months, it is clear that, if \$.10 or \$.11 were deducted from the index price, then the resulting price would still be in the range as published by Inside FERC.

For example, in December 1996, the Transco Zone 3 index price was \$3.82. The published range was \$3.38 to \$3.95. So adjusting the index by 10 cents still keeps you well within the range.

Similarly, for the 1996 Koch So. La. index. The index price was \$3.82. The range was \$3.55 to \$3.94. Again, an 11 cent adjustment is still well within the range.

A quick review of other months shows that sometimes the range was narrower, and the adjustments would take you outside the range. Nonetheless, we should keep this background information in mind in case Justice continues to pursue this point.

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave. N. W. Washington, D.C. 20004 ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

- att1.unk

Message 240 of 342

Infineum Lawsuit

Sender	lisa.mellencamp@enron.com
Recipients	['richard.sanders@enron.com']
File	sanders-r/infineum/5.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 ----- Forwarded by Lisa Mellencamp/HOU/ECT on 07/19/2000 11:15 AM -----

Richard Lydecker@ENRON 07/19/2000 10:58 AM

To: W David Duran/HOU/ECT@ECT cc: Lisa Mellencamp/HOU/ECT@ECT Subject: Infineum Lawsuit

Quick summary of where we stand:

Richard Sanders will be legal coordinator from Enron side in connection with this litigation. Leboeuf Lamb will be our outside litigation counsel.

Our legal team has concluded that Infineum does not have the right to take steam in excess of their contractual maximums. The loss of revenue (about \$1.5 million annually) is clearly an adverse impact to our Linden plant which relieves even any ambiguous obligation to offer "excess" steam above the maximum to Infineum.

The initial strategy is to prepare a 12 B 6 (whatever that is) motion to dismiss which presents the contractual relationships to the court and argues that there is no reasonable interpretation of the contract and intent of the parties that would support Infineum's allegations that we have an absolute obligation to offer Infineum any steam in excess of the contractual maximum. This motion could be 2-3 months pending.

If the motion is granted, this particular lawsuit is quashed.

If the motion is denied, we start spending real money re disclosure, depositions, counter-claims etc. At that point we would probably take a very aggressive position vis-a-vis claims for damages against Infineum to raise the stakes for them and

put real dollar risk exposure back to them for continuing the lawsuit.

Again, this suit is a cynical attempt to gain leverage in negotiations to supply energy to Infineum from Linden 6. In the meeting at which our guys were informed by Infineum that the litigation would be initiated it was clear that if we gave them a big enough break on electricity price, the lawsuit would go away. To me that seems pretty close to, if not actually, abuse of process.

Will keep you informed. Let me know if there are any specific questions. Dick.

Message 241 of 342

Re: Wright case -- VPP

Sender	richard.sanders@enron.com
Recipients	[andrew.edison@enron.com]
File	sanders-r/sent/1078.

I will not be attending.

Andrew Edison@ENRON 05/11/2001 09:21 AM

To: "Tetrault, Charles D." <ctetrault@velaw.com> cc: Julia Murray/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT
Subject: Re: Wright case -- VPP

Charlie -

We are scheduled to sit down with Julia at 2 p.m. next Thursday. Talk to you soon.

"Tetrault, Charles D." <ctetrault@velaw.com> 05/10/2001 01:50 PM

To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com> cc: "Andrew M. Edison (E-mail)" <andrew.edison@enron.com>, "Barrett H. Reasoner (E-mail)" <breasoner@Gibbs-Bruns.com> Subject: Wright case -- VPP

As you might recall, I have been given the lead on the volumetric production payment issue in the Wright case in general, and in dealing with EOG in particular.

As you know, I have heard the long story from EOG. You suggested that the next time I was in Houston that we try to meet with Julia Heintz Murray to get the more to point version from the ECT / Enron perspective.

I will be in town next week for the "measurement summit." I could come earlier, stay later, or carve out some time during to talk to Julia. This might be a good introduction for Andy as well. (Of course, Barrett is also included if his schedule permits.)

From the viewpoint of my schedule, I would suggest Thursday afternoon, Tuesday afternoon, or Friday morning, in approximate order of preference. Let me know.

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

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Message 242 of 342

Enron/Ecogas	
Sender	richard.sanders@enron.com
Recipients	[]
File	sanders-r/all_documents/276.

----- Forwarded by Richard B Sanders/HOU/ECT on 07/23/2000 08:48 AM -----

"Heath, Paul" <pheath@velaw.com> 07/20/2000 03:37 PM

To: "Richard Sanders (E-mail)" <richard.b.sanders@enron.com> cc: Subject: Enron/Ecogas

Richard- The following is a list of initial due diligence items that we need to review in advance of a more comprehensive meeting:

1. All closing documents for the Enron stock purchase and loan.
2. Corporate organizational chart for both personnel and legal entities.
3. All audited and interim financials on Ecogas since January of 1999 (on an entity by entity basis, if available).
4. List of payables on a per entity basis.
5. All major customer contracts (e.g. Frito Lay), real property leases and any leases at waste disposal sites.
6. Enron consulting agreement and any employment agreements.
7. Organizational documents for each entity.
8. List of intercompany payables.
9. All documents relating to long tem debt (e.g. bonds) and notes on trade payables.
10. All internal Enron business and financial reports evaluating whether to make the investment and any subsequent Enron business or financial reports evaluating the business.
11. Legal analysis prepared by counsel to Enron regarding Ecogas.
12. Ecogas board minutes since July of 1999.
13. Any Ecogas business plans submitted to Enron.
14. Any appraisals or valuations of Egogas or its assets.
15. Information submitted to IRS in connection with request for private letter ruling on Section 40 tax credits.
16. List of any transfers made to ENA by Ecogas since July of 1999.
17. Documents relating to Fidelity tax credits.
18. Documents relating to Freshgas letter of credit.

These documents should give us a good start in evaluating the situation. Please feel free to send them to me on a piecemeal basis. Thanks again for using V&E on this engagement and I very much look forward to working with you and your team.

Paul Heath Vinson & Elkins L.L.P. 3700 Trammell Crow Center 2001 Ross Avenue Dallas, Texas 75201-2975 Phone 214.220.7976 Fax 214.999.7976 E-mail pheath@velaw.com

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Message 243 of 342

Re: Letter from Figa re settlement negotiations

Sender	richard.sanders@enron.com
Recipients	[janet.place@enron.com', 'charles.cheek@enron.com', 'britt.davis@enron.com', 'ctetrault@velaw.com']
File	sanders-r/sent/620.

Yes

Charles Cheek@ENRON 12/14/2000 12:27 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Britt Davis/Corp/Enron@Enron, "Tetrault, Charles D." <ctetrault@velaw.com>, Janet Place/NPNG/Enron@Enron, Staci Holtzman/FGT/Enron@Enron Subject: Re: Letter from Figa re settlement negotiations

Agree. Should Charlie be on point for this effort?

Richard B Sanders@ECT 12/14/2000 11:43 AM

To: Charles Cheek/Corp/Enron@ENRON cc: Britt Davis/Corp/Enron@ENRON, "Tetrault, Charles D." <ctetrault@velaw.com>, Janet Place/NPNG/Enron@ENRON, Staci Holtzman/FGT/Enron@ENRON Subject: Re: Letter from Figa re settlement negotiations

I think our response should be to engage in discussion if Grynberg is serious. We should know shortly whether he is.

Charles Cheek@ENRON 12/13/2000 06:31 PM

To: Richard B Sanders/HOU/ECT@ECT, Staci Holtzman/FGT/Enron@ENRON, Janet Place/NPNG/Enron@ENRON cc: Britt Davis/Corp/Enron@ENRON, "Tetrault, Charles D." <ctetrault@velaw.com> Subject: Letter from Figa re settlement negotiations

Do we need to discuss an "Enron" response to Figa or do we already have one? ----- Forwarded by Charles Cheek/Corp/Enron on 12/13/2000 06:06 PM -----

"Dawne Davis" <ddavis@hollandhart.com> 12/13/2000 05:26 PM

To: <bdavis@enron.com>, <ccheek@enron.com>, <jplace@enron.com>, <linda.r.guinn@enron.com>, <mlawles@enron.com>, <richard.b.sanders@enron.com>, <staci_holtzman@enron.com>, <tlehan@enron.com> cc: Subject: Letter from Figa re settlement negotiations

Attached is a letter from Phil Figa to Don Schultz regarding settlement negotiations.

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax ddavis@hollandhart.com

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Message 244 of 342

FW: Enron/California Electricity

Sender	gfergus@brobeck.com
Recipients	[mmolland@brobeck.com', 'richard.b.sanders@enron.com']
File	sanders-r/all_documents/1350.

Here is the draft letter. Thanks Gary

-----Original Message----- From: Hisert, George A. Sent: Friday, January 19, 2001 10:18 AM To: Fergus, Gary S.; Wooster, Kelly Subject: Enron/California Electricity Gary and Kelly, Following up our conference call with Richard Sanders earlier today, I have drafted a formal written request to California Power Exchange Corporation ("Cal PX") requesting release of a portion of the outstanding letters of credit posted by Enron. As you will note by the bracketed material in the letter, there are a number of points that need to be checked. I am not sure that we at Brobeck currently have sufficient documentation to write the definitive letter. <<391S@01!.DOC>> There is no magic to the language of the letter. Ideally the language describing the reasons why we are requesting the release of collateral should parallel the relevant provisions of the relevant Participation Agreement(s) and the relevant Tariff(s). The only provision dealing with release of collateral that I have found in the documents that I have is Section 3.3.5 in the Information Guide for the CTS Markets, and that Section applies only to cash collateral. I suspect that Cal PX already has standard form notices concerning the release or reduction of outstanding letters of credit. However, if a form is required, I can provide one. Feel free to pass the drafts and this email on to the client if you feel that it is appropriate. Sincerely, George A. Hisert Brobeck, Phleger & Harrison LLP Spear Street Tower, One Market San Francisco, CA 94105 ghisert@brobeck.com phone 415-442-1746 fax 415-979-2596

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

- 391S@01!.DOC

Message 245 of 342

PGE -- Securing gas suppliers issue

Sender	travis.mccullough@enron.com
Recipients	['elizabeth.sager@enron.com', 'jeffrey.hodge@enron.com', 'james.steffes@enron.com']
File	sanders-r/all_documents/1357.

Jim -- the following are our concerns about PG&E's proposal/possible points to make in a response:

1. Enron would be one of the largest unsecured creditors in the event of a PG&E bankruptcy; our claim may become even larger depending on the extent to which we acquire additional claims against the utilities through the PX or ISO. We are therefore interested in any action that would reduce the pool of assets available to unsecured creditors.
2. This proposal may be to our benefit, or to our detriment. There is not a great deal of detail in the proposal currently on the table, and Enron needs additional information in order to evaluate the proposal. Certainly, we need to evaluate this in light of other developments.
3. The proposal contemplates pledging "existing and future" receivables to secure obligations owed to gas suppliers; PGE shows approx. \$1.3 billion in A/R as of 9/30; will that (or an amount of like magnitude) be pledged as security under this plan? Granting gas suppliers security may be fine with us, but we don't have a great interest in OVER-collateralizing their positions. More current information on the current A/R balances and the extent to which obligations to suppliers will be secured will be helpful.

4. Do they intend to extend this security to ALL gas suppliers, or only those that are refusing to supply PGE under current circumstances?
5. Do they intend to secure obligations on a going-forward basis only, or will they also secure their obligations with respect to payables that have already accrued?
6. PG&E is scheduled to make a couple of large payments to ENE tomorrow; what is PG&E's ability to make those payments for gas already delivered?
7. Given the extension of the DOE order, it seems that consideration of this petition could be delayed for a few days to allow interested parties sufficient time to evaluate its implications.

Give me a call with any questions.

In light of the DOE extension of the emergency gas supply order, there should now be adequate time for PG&E to respond to these points and clarify their proposal.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 246 of 342

RE: E-mail attachments

Sender	richard.sanders@enron.com
Recipients	[ctetrault@velaw.com]
File	sanders-r/sent/487.

yes

"Tetrault, Charles D." <ctetrault@velaw.com> 10/31/2000 01:14 PM

To: "Richard.B.Sanders@enron.com" <Richard.B.Sanders@enron.com> cc: Subject: RE: E-mail attachments

Did the footnote appear?

-----Original Message-----

From: Richard.B.Sanders@enron.com [mailto:Richard.B.Sanders@enron.com] Sent: Tuesday, October 31, 2000 1:59 PM
To: ctetrault@velaw.com Subject: Re: E-mail attachments

The attachment opened

"Tetrault,

Charles D." To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com> <ctetrault@ve cc:

law.com> Subject: E-mail attachments

10/31/2000

12:33 PM

This is the "homework" that I mentioned. We are trying to resolve our "attachment" problem. Can you open the test attachment that accompanies this e-mail?

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

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(See attached file: DC_110685_1.DOC)

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Message 247 of 342

RE: nsm	
Sender	tkreller@milbank.com
Recipients	['lisa.mellencamp@enron.com', 'richard.smith@linklaters.com', 'richard.b.sanders@enron.com']
File	sanders-r/all_documents/528.

I understand from Cleary Gottlieb (counsel for the bondholders steering committee) that various objections have been filed to the claims filed in the Thai bankruptcy proceedings.? Apparently the committee has objected to some claims, including claims filed by the Thai banks, and the Thai banks have filed objections to others, including the claims filed by Chase as indenture trustee. The lawyer at Cleary did not know whether any objections to Enron's claim had been filed, but is trying to track down a list of all of the objections and send it to me.

Have you received notice of any objections to Enron's claims?? I would also be interested in any information you might be able to obtain regarding other significant objections.? Cleary indicates that the Thai bankruptcy court will be conducting hearings on the claims objections from late September through the end of October.? Could you please provide confirmation or an update regarding that process?

Thank you.? I hope all is well.

-----Original Message-----

From: Lisa Mellencamp [mailto:Lisa.Mellencamp@enron.com] Sent: Monday, August 07, 2000 7:01 AM To: richard.smith@linklaters.com; tkreller@milbank.com Cc: Richard B Sanders Subject: nsm

richard, thanks for your confirm as to filing. what can we expect re the objection process? timeline, formal objection process etc?? how will our contingent indemnity claim be handled? can you look to see what indenture trustee filed? whether other underwriters filed claims such as our indemnity claim? i am sure the documents are voluminous, but we would be interested in a summary. thanks for your quick help and diligence. feel free to email us as progresses. please copy both richard sanders and myself. richard.sanders@enron.com.

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX? 77002 Tel: (713) 853-7986 Fax: (713) 646-3393

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Message 248 of 342

RE: CEO Super 180's...Only for the Man Who Wants the Very Best

Sender	b..sanders@enron.com
Recipients	[c.measom@tjmhou.com]
File	sanders-r/sent_items/2.

I don't shop at Tom James. Please take me off ypur e-mail list.

-----Original Message-----

From: "Carol Measom" <c.measom@tjmhou.com>@ENRON
[mailto:IMCEANOTES--+22Carol+20Measom+22+20+3Cc+2Emeasom+40tjmhou+2Ecom+3E+40ENRON@ENRON.com]
Sent: Tuesday, September 04, 2001 4:55 PM To: c.measom@tjmhou.com Subject: CEO Super 180's...Only for the Man Who Wants the Very Best

CEO | Super 180's Made in Huddersfield England

With demand so high, and supply increasingly limited, it's a privilege to be able to offer CEO Super 180's to our clients. But, what exactly does make these fabrics the finest Super 180's in the world?

New South Whales, Australia. There, on a ranch deep in the outback, 114,000 specially bred Merino sheep are raised under strictly controlled conditions. All are individually numbered, fed a special diet and even protected from the elements by jackets. Each year, a new generation of prized rams and ewes surpasses the previous one in the quality of their wool. Yet, at a demanding 14.5-14.9 microns, less than 1% of total production will be judged worthy of CEO Super 180's.

Huddersfield, England. At Taylor & Stewart, a famed mill known for its expertise, the longest and strongest and most supple of these wool staple yarns are spun, woven and finished according to 400 year old tradition. Fabrics are scoured with rainwater which travels from 60 miles away through ancient rock to reach the mill's own 1500 foot deep well. Unique finishing processes truly set these fabrics apart, and are accomplished via treasured, time-tested machinery and state of the art computerized equipment.

The result is a magnificent, superbly tailorable cloth that's actually finer than cashmere. Its soft, buttery hand, durability and resilience are unparalleled in the luxury market. Of raw materials as scarce and painstakingly acquired as earth's rarest gems, the cost of such wools has risen significantly. Yet, a close partnership between Tom James and the renowned mills of Huddersfield permits us to control costs and make CEO Super 180's readily available to you.

Surely, a privilege you will enjoy for seasons to come.

Carol L. Measom Professional Clothier Tom James Clothing Company 4605 Post Oak Place Drive, #200 Houston, TX 77027 713.622.5678, ext 124 www.tomjamesco.com Learn more about me at: <http://www.tomjamesco.com/asp/biophage.asp?empidn=05568>

Message 249 of 342

Cal PX Plan and Disclosure Statement

Sender	rleibow@kayescholer.com
Recipients	[]
File	sanders-r/deleted_items/511.

During today's Committee meeting/conference call among the matters discussed involving the plan and disclosure statement were the following:

1. Informal comments or concerns about the plan and disclosure statement should be given to me no later than Friday, November 30th, so that we can make appropriate modifications to enable us to file and serve an amended plan and

disclosure statement in sufficient time before the January 8th hearing date for the disclosure statement. Accordingly, I would very much appreciate hearing from you in writing, by e-mail or by telephone next week on this subject.

2. We will invite members of the Committee along with representatives of Duke, Dyengy and Williams (as well as others members of the Committee identify as having a particular interest in the formulation of the plan and disclosure statement) to participate in a special meeting/conference call at 10:00 am (Pacific time) on December 10th to take another pass at the plan and disclosure statement . We will extend the invitation tomorrow or Monday. If you believe it appropriate to extend an invitation to a particular participant, please get back to me as quickly as possible.

3. We will immediately embark on obtaining information from Cal PX as to the amounts reflected on the Cal PX books so that we can file a motion for court approval of participant plan voting rights and claim amounts owing to participants for voting purposes only. Such a motion would be set for hearing on the disclosure statement hearing date. Under this scenario, any participant concerned that the amount of its claim for voting purposes so set would be understated will have the opportunity to object. If we are unsuccessful in getting the information from the debtor, we will immediately file a motion on shortened time for the court to set a special bar date to coincide with the hearing date on the disclosure statement for the filing by participants of proofs of claims for voting purposes only. Following one of these two procedures will be necessary in order to establish entitlement of participants to vote on the plan as members of classes 6,7 and/or 8.

If you wish to discuss any of the foregoing with me, please give me a call.

Ronald L. Leibow, Esq. Kaye Scholer LLP 1999 Avenue of the Stars, 16th Floor Los Angeles, California 90067 Tel: (310) 788-1220 Fax: (310) 229-1820 Email: rleibow@kayescholer.com

Message 250 of 342

Remand	
Sender	richard.sanders@enron.com
Recipients	['mark.haedicke@enron.com', 'james.derrick@enron.com']
File	sanders-r/all_documents/1282.

As you will note from the attached e-mail, the Quinque class action has been remanded to state district court in Hugoton Kansas. Robin Gibbs had always predicted that this was the likely result. We will now proceed with the battle over class certification in Kansas, which, unlike Texas, is not necessarily appealable. I will keep you posted.. ----- Forwarded by Richard B Sanders/HOU/ECT on 01/12/2001 12:25 PM -----

"Tetrault, Charles D." <ctetrault@velaw.com> 01/12/2001 11:58 AM

To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com>, "Andrew M. Edison (E-mail)" <andrew.edison@enron.com>, "Staci Holtzman (E-mail)" <sholtzm@enron.com>, "Charles E. Cheek (E-mail)" <ccheek@enron.com>, "Janet Place (E-mail)" <jplace@enron.com>, "Britt Davis (E-mail)" <bdavis@enron.com>, "Michael P. Moran (E-mail)" <Michael_Moran@enron.com>, "Rebecca Zikes (E-mail)" <bzikes@enron.com>, "Drew Fossum (E-mail)" <Drew_Fossum@enron.com> cc: "Barrett H. Reasoner (E-mail)" <breasoner@Gibbs-Bruns.com>, "Andrew L. Pickens (E-mail)" <Apickens@Gibbs-Bruns.com> Subject: Remand

Andy is calling now, but for those of you he does reach immediately, here is a short report based on a conversation that he had with Mike Beatty.

Judge Downes granted the motion to remand. A short written order will be out later today or Monday.

He apparently read from a draft of the order, and Mike Beatty says that it was written in high level generalities about presumptions in favor of remand, burden to establish removal jurisdiction, etc. and did not address the details of our federal jurisdiction (e.g., OCSLA) arguments. More later today.

Charles D. Tetrault Vinson & Elkins L.L.P. 1455 Pennsylvania Ave., N.W. Washington, D.C. 20004-1008
ctetrault@velaw.com 202.639.6551 [voice] 202.639.6604 [fax]

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Message 251 of 342

Re: Revised Purchase and Sale Agreement

Sender	richard.sanders@enron.com
Recipients	['karen.e.jones@enron.com', 'andrew.kelemen@enron.com', 'karen.jones@enron.com']
File	sanders-r/sent/616.

There are no such claims or liabilities.

Karen E Jones 12/13/2000 11:19 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Revised Purchase and Sale Agreement

Hi Richard. We are close to finalizing a sale of our Pastoria project in California to Calpine. I've got you listed as a "knowledge" party of ENA for purposes of making a rep regarding litigation. Could you please take a look at Section 4.1(i) of the attached draft, and let me know if there are any actions required to be scheduled for the rep to be accurate. At this point, my proposed Schedule 4.1(i) says "none", and, hopefully, that statement is still accurate. We're on a timetable that requires me to ask for your response by the end of the day tomorrow (Thursday). Thanks. -- kj ----- Forwarded by Karen E Jones/HOU/ECT on 12/13/2000 09:00 AM -----

Enron Capital & Trade Resources Corp.

From: "NATALIE COLE" <NCOLE@LLGM.COM> 12/12/2000 04:38 PM

To: <johnk@calpine.com>, <marksa@calpine.com>, <rfarmer@thelenreid.com> cc: <andrew.kelemen@enron.com>, <karen.e.jones@enron.com>, <ron.coker@enron.com>, <sheila.tweed@enron.com>, "THOMAS J. MOORE" <TMOORE@LLGM.COM> Subject: Revised Purchase and Sale Agreement

Attached is a clean and marked draft of the revised Purchase and Sale Agreement incorporating the changes we discussed last night. The draft is still under review by ENA and subject to change.

Also attached is a first draft of the Transition Services Agreement.

This e-mail, including attachments, contains information that is confidential and it may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments, and notify me by return mail, e-mail or at 303-291-2600. The unauthorized use, dissemination, distribution or reproduction of this e-mail, including attachments, is prohibited and may be unlawful.

Natalie Cole LeBoeuf, Lamb, Greene & MacRae 633 Seventeenth Street, Ste. 2000 Denver, CO 80202 (303) 291-2659
ncole@llgm.com

- #DN158104 (Purchase and Sale Agreement-Pastoria).DOC - #DN158104 vRED (Purchase and Sale Agreement-Pastoria).doc - #SF146513 (Transition Services Agreement).DOC

Message 252 of 342

FW: Letter to Brownfeld.DOC

Sender	gail.brownfeld@enron.com
Recipients	['b..sanders@enron.com']
File	sanders-r/deleted_items/sempra/2.

The only person I planned to send this to (at this time) is George. Do you have any thoughts on it before it goes?

-----Original Message-----

From: Johnson, Christopher P. [mailto:CPJohnson@brobeck.com] Sent: Wednesday, September 19, 2001 4:40 PM To: Brownfeld, Gail Subject: Letter to Brownfeld.DOC

Gail: Attached is my analysis of Sempra's evidence on liability. I think this is more than what you had in mind, but, once I started laying out particular pieces of evidence, I thought you and I (and probably Richard Sanders and others) would be better served if I analyzed the evidence in some depth. I apologize for its length, but I think you will find it useful. Please note in particular footnote 2. I think I have figured out what Sempra will identify as the ambiguity that requires the denial of our liability motion and the introduction of parol evidence. In short, the contract may not be airtight on our most important liability issue. Finally, I think you should limit the people with whom you share this letter. I tried to be as objective as I could on this, and some of my analysis/critique might not be welcomed by all readers (e.g., Braverman and Golias, and thus, Bruce Americus, too). If you want to distribute this beyond your superiors, I might want to tone down some statements. <<919 Letter to Brownfeld.DOC>> Please give me a call after you've read it. I'll get you the other deliverables (particularly including the damage analysis) to you shortly. By the way, Happy New Year! I've been wishing over the past few days that I was Jewish, so I could say that the events of last week occurred last year, and that I am already operating on a clean slate. As it is, Christopher Paul Irish Catholic has to wait until December 31!! Jeeez!! CPJ Christopher P. Johnson Brobeck, Phleger & Harrison, LLP 1633 Broadway New York, New York 10019 (212) 237-2558 (212) 586-7878 cpjohnson@brobeck.com

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Message 253 of 342

Re: Roger Atkinson v. Cogen, et al.; Roger Atkinson v. JEDI Linden

Sender	richard.sanders@enron.com
Recipients	['bonnie.white@enron.com']
File	sanders-r/sent/1200.

Disregard my previous message about this case. Thanks for your assistance in this matter.

Bonnie White/ENRON@enronXgate 06/07/2001 12:19 PM

To: Rob Cole/ENRON@enronXgate, Robert Vote/ENRON@enronXgate cc: Richard B Sanders/HOU/ECT@ECT Subject: Roger Atkinson v. Cogen, et al.; Roger Atkinson v. JEDI Linden and NEPCO.

This morning I received a copy of service of process that was served on Cogen Technologies Linden Venture in the Roger Atkinson matter. Cogen Technologies Linden Venture had previously been served with a summons and complaint in the Atkinson matter in mid April. I forwarded the matter to El Paso Energy Company, who had purchased ENA's interest in the Cogen companies effective late February 2001. El Paso retained Ed Fanning of McCarter & English to represent Cogen's interests. We have worked with Ed in other Cogen matters before, and I have found him to be both effective and efficient.

This matter relates to personal injuries allegedly suffered by Atkinson while working at a construction site at the Linden facility in December 2000. David Waterson of El Paso recently called me concerning potential defense and indemnity obligations that El Paso believes NEPCO may owe Cogen with respect to this incident. We will need to review NEPCO's contract with Cogen to determine if any such obligations exist.

The document that I received today is a Notice of Motion to Consolidate and to Compel Inspection. This motion seeks to consolidate the Atkinson v. Cogen case with a case that was apparently also filed in New Jersey state court as Roger Atkinson v. JEDI Linden and NEPCO and to compel an inspection of the construction site where the accident allegedly occurred. I have asked Becky Stephens whether we have received service of process on either JEDI Linden or NEPCO. To date, we have not. However, I expect that service of process is in the works, and I have asked Becky to be on the look out for it. As this new suit also apparently concerns personal injury claims, I am forwarding a copy to both Rob and Bob, so that you can begin to process and investigate the claim in your usual manner.

Please let me know if there is any other information you need in order to begin our review for potential defense/indemnity to Cogen. Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

Message 254 of 342

Re: Roger Atkinson v. Cogen, et al.; Roger Atkinson v. JEDI Linden

Sender	richard.sanders@enron.com
Recipients	[' bonnie.white@enron.com ']
File	sanders-r/sent_items/240.

Disregard my previous message about this case. Thanks for your assistance in this matter.

=09Bonnie White/ENRON@enronXgate 06/07/2001 12:19 PM =09 To: Rob Cole/ENR= ON@enronXgate, Robert Vote/ENRON@enronXgate cc: Richard B Sanders/HOU/ECT@= ECT Subject: Roger Atkinson v. Cogen, et al.; Roger Atkinson v. JEDI Linden and NEPCO.=09

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Please let me know if there is any other information you need in order to begin our review for potential defense/indemnity to Cogen. Thanks. =20

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

Message 255 of 342

RE: Roger Atkinson v. Cogen, et al.; Roger Atkinson v. JEDI Linden

Sender	rob.cole@enron.com
Recipients	['james.studdert@enron.com', 'richard.sanders@enron.com', 'bonnie.white@enron.com', 'robert.vote@enron.com', '...]
File	sanders-r/all_documents/7586.

Bonnie, please forward to Jim Studdert in the customary manner. He will most likely assign the matter to me, but it needs to go to him direct...thanks,

Rob

-----Original Message-----

From: White, Bonnie Sent: Thursday, June 07, 2001 12:20 PM To: Cole, Rob; Vote, Robert Cc: Sanders, Richard Subject: Roger Atkinson v. Cogen, et al.; Roger Atkinson v. JEDI Linden and NEPCO.

This morning I received a copy of service of process that was served on Cogen Technologies Linden Venture in the Roger Atkinson matter. Cogen Technologies Linden Venture had previously been served with a summons and complaint in the Atkinson matter in mid April. I forwarded the matter to El Paso Energy Company, who had purchased ENA's interest in the Cogen companies effective late February 2001. El Paso retained Ed Fanning of McCarter & English to represent Cogen's interests. We have worked with Ed in other Cogen matters before, and I have found him to be both effective and efficient. This matter relates to personal injuries allegedly suffered by Atkinson while working at a construction site at the Linden facility in December 2000. David Waterson of El Paso recently called me concerning potential defense and indemnity obligations that El Paso believes NEPCO may owe Cogen with respect to this incident. We will need to review NEPCO's contract with Cogen to determine if any such obligations exist.

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Please let me know if there is any other information you need in order to begin our review for potential defense/indemnity to Cogen. Thanks.

Bonnie J. White Enron Litigation Unit 1400 Smith Street, Suite 4824 Houston, TX 77002 Ph: 713-853-7244 Fax: 713-853-6576 bonnie.white@enron.com

Message 256 of 342

Kansas - The "Motorcycle" Argument

Sender	ddavis@hollandhart.com
Recipients	['andrew.edison@enron.com']
File	sanders-r/deleted_items/207.

Privileged and Confidential Joint Defense Communication

Here is the "motorcycle" argument, excerpted from the 10/15/01 transcript:

MR. REBEIN: Thank you, Your Honor. Good afternoon. I will be arguing on behalf of the defendants, as will my colleague, Mr. Griffin. And then I think also appearing today and arguing will be Mr. Eisenbrandt and Mr. Flaherty on behalf of their clients. We've tried to divide up this argument, Your Honor, under -- to cover of as many bases as we can with as little repetition as possible. And so I want to -- in the interest of the good use of time, Your Honor, I want to begin this argument by telling you about the motorcycle trip that I just returned from in Texas. On that trip, I went with a friend of mine, and he had a new motorcycle. And I asked him, "Okay, how many gallons does that tank hold?" And he said, "Well, Honda says five gallons." Well, in Oklahoma, the first time we filled up, sure enough, it took 5.2 gallons. And he turned to me, and he said, "That bastard." Then we went to Texas, and we filled up, and it took 5.3 gallons. Then he turned to me, and he said, "Those bastards; it's a conspiracy." Now, I didn't tell him that my friendship with Rex Sharp would provide me with a nationwide remedy for this problem, because I could have told him that what we needed to do was for me, even though I didn't buy the gasoline, to return to Kansas where we bought none of the gasoline, where I would sue on behalf of all buyers of gasoline against all sellers of gasoline for the last 25 years nationwide, and all I would have to do is say the words, "There was a conspiracy to mismeasure." How? I don't know; they've got all that information. When? I don't know, but it had to be in the last 25 years. Who? I don't know, so let's include all of them. And where? Well, there's only one guy I know well enough to make these arguments to, and that's Judge Smith, so let's do it there.

Dawne M. Davis, CLA Legal Assistant Holland & Hart, LLP P.O. Box 1347 Cheyenne, WY 82003 307-778-4240
307-778-8175 - fax ddavis@hollandhart.com

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Message 257 of 342

Re: Pittsburgh Corning Corporation

Sender richard.sanders@enron.com

Recipients ['jeffrey.hodge@enron.com', 'Lisa Mellencamp/HOU/ECT@ECT', 'andrew.edison@enron.com']

File sanders-r/sent/661.

Andy-- send those materials I gave you to Lisa. Jeff-please send all future pleading to her as well. ----- Forwarded by Richard B Sanders/HOU/ECT on 01/02/2001 09:25 AM -----

Lisa Mellencamp 01/02/2001 09:11 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Re: Pittsburgh Corning Corporation

yes Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

Richard B Sanders 12/29/2000 11:05 AM

To: Lisa Mellencamp/HOU/ECT@ECT cc: Andrew Edison/NA/Enron@Enron Subject: Pittsburgh Corning Corporation

Are you handling this? ----- Forwarded by Richard B Sanders/HOU/ECT on 12/29/2000 11:08 AM -----

William S Bradford 12/29/2000 09:41 AM

To: Richard B Sanders/HOU/ECT@ECT, Andrew Edison/NA/Enron@Enron cc: Subject: Pittsburgh Corning Corporation

----- Forwarded by William S Bradford/HOU/ECT on 12/29/2000

08:43 AM -----

Enron North America Corp.

From: Veronica Espinoza @ ENRON 04/19/2000 10:15 AM

To: William S Bradford/HOU/ECT@ECT, Debbie R Brackett/HOU/ECT@ECT, Tanya Rohauer/HOU/ECT@ECT, Tom Moran/HOU/ECT@ECT, Molly Harris/HOU/ECT@ECT, Brant Reves/HOU/ECT@ECT cc: Lisa Mellencamp/HOU/ECT@ECT Subject: Pittsburgh Corning Corporation

Spoke to Alicia Jones in Settlements and she forwarded me the following. Please note that Jan and Feb business was paid on time. The March invoice was sent out for \$101,370 and she will continue to keep me informed of any developments on her end as she is in communication with the counterparty.

----- Forwarded by Veronica Espinoza/Corp/Enron on

04/19/2000 10:09 AM -----

From: Alicia Jones @ ECT 04/19/2000 09:35 AM

To: Veronica Espinoza/Corp/Enron@ENRON cc: Mechelle Stevens/HOU/ECT@ECT, Bryce Baxter/HOU/ECT@ECT

Subject: Pittsburgh Corning Corporation

Veronica,

I spoke with Pittsburgh Corning about our current month natural gas receivables. Per Harry Fleming, they have filed Chapter 11 and are in court. He transferred me to Jill Kio who informed me that they submitted Enron's invoice for payment before they filed so they do not expect to delay payment. However, as they do not know what the outcome of court will be, they can not promise the payment will NOT be delayed.

Jill is faxing me some paperwork on their filings and I will forward that to you upon receipt. If you have any questions, please do not hesitate to call.

Message 258 of 342

RE: Brunilda Ocasio Cuadro, et al. v. San Juan Gas Company

Sender	rob.cole@enron.com
Recipients	['richard.sanders@enron.com', 'david.grant@enron.com', 'linda.guinn@enron.com', 'bonnie.white@enron.com', 'and...]
File	sanders-r/notes_inbox/382.

Bonnie, simply as a matter of clarification, this claim was reported to=20 Travelers (in November, 2000 following a letter from the claimant to SJGC)= =20 for handling given the fact that we have a "real" policy of insurance for= =20 general liability losses in Puerto Rico, although these losses are 100%=20 re-insured up to \$2M/occurrence, inclusive of legal fees/costs, by Enron.= =01;=20 Travelers in turn retained an independent, Alberto Pochet, to investigate t= he=20 circumstances of the loss as they do not have a claim presence in Puerto Ri= co=20 (this is the norm for these types of claims).=01; =01; The claimant alleges that she was dropped off by her husband to go to the= =20 bank, while he parked the car.=01; As she=01;started=01;to walk across the = street to=20 the sidewalk, she fell in a ditch, making contact with the pavement face=20 first.=01; The independent advised, following=01;an on-site investigation a= nd=20 meeting with=01;both the claimant and SJGCs' Jesus Rodriguez, that the=20 location=01;where the claimant fell wasn't in an area where SJGC had worked= ,=20 although they did work in the immediate area in 1998 during the modernizati= on=20 project.=01;=01;Thus, the claim was formally denied by the independent, wit= h=01;our=20 knowledge as well as that of Travelers.=01; As indicated, Dave and I will b= e=20 overseeing this matter to a conclusion.=01; Copies of the suit papers have = been=20 provided to Travelers as well.=01; =01; Any questions, please call.=01; Thanks, =01; Rob

-----Original Message-----=20

From: White, Bonnie=20 Sent: Tue 6/5/2001 6:13 PM=20 To: Sanders, Richard=20 Cc: Edison, Andrew; Guinn, Linda; Grant, David; Cole, Rob=20 Subject: Brunilda Ocasio Cuadro, et al. v. San Juan Gas Company

You will have received notice of service of process in the above-referenced= =20 case today.=01; This is a slip and fall case filed against San Juan Gas.=01; ; The=20 Risk Management group already has a file on this matter, as the plaintiff

h= ad=20 previously filed a demand.=01; Upon investigation, Risk Management determin= ed=20 that the plaintiff's alleged accident occurred at a facility that is NOT=20 owned by San Juan Gas, and, thus, denied the claim.=01; The matter will be= =20 handled as a Risk Management matter, and Dave Grant will manage the=20 activities of outside counsel.=01; If you need any further information on t= his=20 matter, please contact Dave.=20

Thanks.=01;=20

Bonnie J. White=20 Enron Litigation Unit=20 1400 Smith Street, Suite 4824=20 Houston, TX=01; 77002=20 Ph:=01; 713-853-7244=20 Fax: 713-853-6576=20 bonnie.white@enron.com

Message 259 of 342

LET'S GET STARTED

Sender	amelia.alder@enron.com
Recipients	[amelia.alder@enron.com', 'billcoach@aol.ciom']
File	sanders-r/deleted_items/362.

Hey Team! It is time to start training for the MS150, and we have arranged a great training opportunity for our new Team Sun & Ski. I am so excited to tell you that Bill Edwards has agreed to lead a weekly ride (every Sunday), departing from the Sun & Ski store at Katy Mills Mall (northeast corner of the mall) at 9:00 AM. On this training ride, you can choose your distances from 11 to 64 miles. This is a tremendous opportunity for you to learn from the very best in the sport of cycling. I have worked with Bill on various cycling activities for several years and admire his dedication in encouraging people to participate in cycling as an excellent way of pursuing a healthy and rewarding lifestyle. Please let me tell you more about Bill:

Bill Edwards has been involved in competitive cycling for more than 55 years. He has been actively coaching cyclists since 1980.

Bill began his racing career in San Diego, California as a Junior in 1947 and advanced from category III to II to I (known then as "C", "B", and "A") by age 18. He competed as a senior in Southern California during the 1950's while attending UCLA. More recently, Bill won the USCF Texas Masters State Championship Road Race and Time Trial, and the Texas State Senior Olympics in his age category. In 1997 Bill won a bronze medal in the National Senior Olympics in Tucson, Arizona, and in 1998 he won four Gold Medals at U.S. Masters National Championships (see below).

Bill has coached five U.S. National Team members, nine U.S. National Champions, and two Master's World champions. He currently holds a USA Cycling Elite coaching license. Bill was selected as a U.S. Olympic Festival coach in 1989, 1990, 1991 and 1995, and at the 1991 Olympic Festival he held the position of head coach. He is well known throughout the state of Texas as a highly qualified cycling coach. Bill is the Team Director of the Southern Elite Youth Cycling Race Team (a team dedicated to identifying and developing talented young athletes). Southern Elite is the number one team among 98 teams in the State of Texas for 2001 (see txbra.org). Bill currently is the coach of 6-time Masters World Champion Al Whaley who, along with Paralympian Pam Fernandes, recently won a Gold Medal and a Silver Medal at the 2000 Paralympic Games in Sydney, Australia. Al & Pam set a World Record and two Paralympic records in the process.

Please join us as often as you can. There is no charge, and maps will be provided at the start.

See you soon! (We think the weather will be good for this Sunday)

Amelia Alder Enron Transportation Services P.O. Box 1188 Suite 3AC3120 Houston, TX 77251-1188 Tel: 713-646-6569
Fax: 713-345-5755 amelia.alder@enron.com

Message 260 of 342

Grynberg - March 17 hearing

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com', 'staci.holtzman@enron.com']
File	sanders-r/all_documents/4002.

Linda-- see if Barrett Reasoner knows of a video conference in Houston. ----- Forwarded by Richard B Sanders/HOU/ECT on 03/13/2000 03:45 PM ----- STACI HOLTZMAN @ ENRON 03/10/2000 09:17 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Grynberg - March 17 hearing

Wondering if we should book a video conference here at Enron?? (or have we already?) ----- Forwarded by Staci Holtzman/FGT/Enron on 03/10/2000 09:18 AM -----

Dawne Davis <DDAVIS@HOLLANDHART.COM> on 03/09/2000 04:37:52 PM To: bdavis@enron.com, bmcafee@enron.com, bzikes@enron.com, ccheek@enron.com, mlawles@enron.com cc: jplace@enron.com, sscrogg@enron.com, staci_holtzman@enron.com, tlehan@enron.com

Subject: Grynberg - March 17 hearing

In the past couple of days, I have been deluged with last-minute requests to videoconference into the March 17 hearing on the motions to dismiss. We are well past the deadlines Sprint asked us to comply with (February 25 for private sites and March 1 for public sites). At this stage, adding new sites to such a large, nationwide videoconference is extraordinarily burdensome, requiring Sprint to move the entire conference to a different bridging system, change the dial-in numbers, etc. Also of importance is the fact that the bridging system has space limitations.

Please e-mail me with all videoconference requests no later than 12 p.m. Mountain tomorrow (Friday, March 10). After the noon cutoff, we will no longer be able to entertain additional videoconference requests. In the meantime, I will do my best to accommodate the late requests we've received.

I will be sending out a detailed memo tomorrow afternoon that lists all the sites that have been booked, along with those who've made reservations. Each of you planning to videoconference will need to check carefully to be sure your reservation is reflected in my memo. In addition, many of the sites have extremely limited seating, so please do not plan to show up at a public site without a reservation.

Thanks to all of you for your consideration.

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax ddavis@hollandhart.com

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Message 261 of 342

FW: Letter to PX Participants -- Mailing List

Sender	pmar@mofo.com
Recipients	['jrnelson@llgm.com', 'bholman@whitecase.com', 'ayudkowsky@stroock.com']
File	sanders-r/px/1.

As requested at the end of our meeting today, I am forwarding the list of PX Participants, sent to me by Gary Hanken, to whom the letter on the commandeering case was sent.

Patricia S. Mar Morrison & Foerster LLP 425 Market St., 33rd Floor San Francisco, CA 94105 Phone: (415) 268-6157
FAX: (415) 268-7522 e-mail: pmar@mofo.com

-----Original Message-----

From: Garrett L. Hanken [mailto:ghanken@ggfcmk.com] Sent: May 24, 2001 10:12 AM To: PMar@mofo.com Subject: Re: Letter to PX Participants

See attached. The information was taken from Cal PX's schedules.

"Mar, Patricia S." <PMar@mofo.com> 5/24/2001 8:03:45 AM >>>

Can you provide me ASAP the contact list you used in sending out the commandeering letter to PX participants. Alternatively, please provide me with information as to who at the following companies the letter was addressed to and sent (these are the clients that we work with):

Avista Energy Idaho Power AES New Energy El Paso Merchant Energy

I'm assuming you used a CalPX list which has contact persons who are not the same as the people I've been dealing with, and I need to know whose getting the letter. Especially since the claim form is apparently pre-filled in with the names of these people.

Thanks.

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advise the sender by reply e-mail @mofo.com, and delete the message. Thank you very much.

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- 1207822.pdf

Message 262 of 342

RE: SCE

Sender	b..sanders@enron.com
Recipients	['young.bennett@enron.com', 'jklauber@llgm.com', 'eklund.carl@enron.com', 'lisa.mellencamp@enron.com']
File	sanders-r/sent_items/76.

I am not in a huge hurry. I just want to make sure we have fully reviewed our options now that we have a little more time. LLGM should participate on this call and gather all other information available(Mirant and Reliant legal memos) and lets talk sometime next week. I think LLGM is in a better position than Enron to dictate timing, so I'll leave the scheduling to you.

-----Original Message-----

From: "John Klauberg" <JKLAUBER@LLGM.COM>@ENRON
[mailto:IMCEANOTES+22John+20Klauberg+22+20+3CJKLAUBER+40LLGM+2ECOM+3E+40ENRON@ENRON.com]
Sent: Monday, September 17, 2001 5:31 PM To: Sanders, Richard B. Cc: Bennett Young; CARL EKLUND Subject: Fwd: SCE

Richard: ironically, I received this e-mail from my bankruptcy partner Ben Young a minute or so after receiving your note regarding SCE/involuntary filing. Is this a call that you want to be on? Also, do you want to try to talk with Carl/Ben tomorrow on the SCE situation? Do you want us to take a quick look at the information from Mirant et al before we speak? Perhaps you could reply to this e-mail or give me or Carl a call and let us know what your schedule may look like. Thanks
John

John Klauberg LeBoeuf, Lamb, Greene & MacRae, L.L.P. 212 424-8125 john.klauberg@llgm.com

This e-mail, including attachments, contains information that is confidential and may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments, and notify me. The unauthorized use, dissemination, distribution or reproduction of this e-mail, including attachments, is prohibited and may be unlawful.

Content-Transfer-Encoding: quoted-printable Date: Mon, 17 Sep 2001 18:02:49 -0400 From: "Bennett Young" <BYOUNG@LLGM.COM> To: Lisa.Mellencamp@enron.com, Michael.Tribolet@enron.com cc: "CARL EKLUND" <CEKLUND@LLGM.COM>, "John Klauberg" <JKLAUBER@LLGM.COM>, "Robert Nelson" <JRNELSON@LLGM.COM> Subject: SCE MIME-Version: 1.0 Content-Type: text/plain; charset="us-ascii" Content-Disposition: inline

I participated in the conference call that Phil Warden put together regarding SCE. The call was brief, lasting about 20 minutes. Reliant suggested that an approach be made to SCE's lawyers to ask them what their plans are in light of the apparent failure of the MOU. The parties on the line agreed to this suggestion, and this Wednesday, 9/19 at 9:30 was tentatively set for a call with SCE's counsel. Phil will confirm the call and circulate the dialin information.

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167
byoung@llgm.com

Message 263 of 342

TRAINING RIDE TIME CHANGE

Sender	amelia.alder@enron.com
Recipients	['kporter@retailconcepts.cc', 'amelia.alder@enron.com', 'sgerrie@retailconcepts.cc', 'highpat@aol.com']
File	sanders-r/deleted_items/405.

Just a reminder about this training ride each Sunday. Some of you have already received this announcement, but just wanted you to know that the time of the ride has changed. Beginning February 3, the ride will begin at 8:00 AM each Sunday.

-----HERE'S THE PREVIOUS ANNOUNCEMENT WITH THE TIME CHANGE INCLUDED-----

Hey Team! It is time to start training for the MS150, and we have arranged a great training opportunity for our new Team Sun & Ski. I am so excited to tell you that Bill Edwards has agreed to lead a weekly ride (every Sunday), departing from the Sun & Ski store at Katy Mills Mall (northeast corner of the mall) at 8:00 AM. On this training ride, you can choose your distances from 11 to 64 miles. This is a tremendous opportunity for you to learn from the very best in the sport of cycling. I have worked with Bill on various cycling activities for several years and admire his dedication in encouraging people to participate in cycling as an excellent way of pursuing a healthy and rewarding lifestyle. Please let me tell you more about Bill:

Bill Edwards has been involved in competitive cycling for more than 55 years. He has been actively coaching cyclists since 1980.

Bill began his racing career in San Diego, California as a Junior in 1947 and advanced from category III to II to I (known then as "C", "B", and "A") by age 18. He competed as a senior in Southern California during the 1950's while attending UCLA. More recently, Bill won the USCF Texas Masters State Championship Road Race and Time Trial, and the Texas State Senior Olympics in his age category. In 1997 Bill won a bronze medal in the National Senior Olympics in Tucson, Arizona, and in 1998 he won four Gold Medals at U.S. Masters National Championships (see below).

Bill has coached five U.S. National Team members, nine U.S. National Champions, and two Master's World champions. He currently holds a USA Cycling Elite coaching license. Bill was selected as a U.S. Olympic Festival coach in 1989, 1990, 1991 and 1995, and at the 1991 Olympic Festival he held the position of head coach. He is well known throughout the state of Texas as a highly qualified cycling coach. Bill is the Team Director of the Southern Elite Youth Cycling Race Team (a team dedicated to identifying and developing talented young athletes). Southern Elite is the number one team among 98 teams in the State of Texas for 2001 (see txbra.org). Bill currently is the coach of 6-time Masters World Champion Al Whaley who, along with Paralympian Pam Fernandes, recently won a Gold Medal and a Silver Medal at the 2000 Paralympic Games in Sydney, Australia. Al & Pam set a World Record and two Paralympic records in the process.

Please join us as often as you can. There is no charge, and maps will be provided at the start.

See you soon!

Amelia Alder Enron Transportation Services P.O. Box 1188 Suite 3AC3120 Houston, TX 77251-1188 Tel: 713-646-6569
Fax: 713-345-5755 amelia.alder@enron.com

Message 264 of 342

FYI -- Kafus Press Release Friday afternoon

Sender	travis.mccullough@enron.com
Recipients	['dan.lyons@enron.com', 'julia.murray@enron.com', 'anne.koehler@enron.com']
File	sanders-r/all_documents/374.

Kafus Cash Crunch VANCOUVER, B.C.--(BUSINESS WIRE)--Aug. 4, 2000--Kafus Industries Ltd. (AMEX:KS - news) reported today that its Board of Directors has accepted the resignations of Mr. Randal Maffett, Enron North America Corp.'s representative, Mr. Christopher Carl the President of The CanFibre Group Ltd. for conflict of interest reasons, and Mr. Peter Schlesinger and Ms. Lee Ann Wolfin MacKenzie for personal reasons, as Directors of the Company. Kafus is now experiencing a critical shortage of working capital primarily attributable to: The losses still being incurred by and the continuing cash requirements of its subsidiary's CanFibre Riverside plant which in turn is primarily attributable to the delays in the start-up of the plant as a result of problems with Stone & Webster Engineering Corporation and their subsequent bankruptcy. The losses being incurred due to the delayed achievement of full production levels of its subsidiary's Bio-Composites Indiana plant. Losses sustained by and continuing cash requirements of its subsidiary with respect to kenaf related products. Corporate overheads and costs. Additionally, Enron North America Corp. has informed the Company that it does not intend to provide any further funding for the Company. In light of the current financial difficulties, the Kafus Board of Directors has implemented the following measures: Immediate search for an investment banking firm/advisor able to advise Kafus on corporate reorganization and refinancing which could include the sale or spinoff of its subsidiaries and/or a takeover of Kafus. An immediate cutback on operating overheads to the minimum required to sustain Kafus as an operating entity. An immediate cutback on all expansion activities. Closure of all Kafus offices with the exception of its Vancouver headquarters. Acceptance of the resignations of Mr. Mike McCabe, President and Mr. Tony Valentine, Chief Financial Officer. Search for a new Chief Executive Officer. Further, in the event that Kafus is unable to obtain additional financing, it may be forced to take action to protect its business. As well, the Company has been informed by AMEX that it no longer meets the exchange's continued listing guidelines. As such, there can be no assurances that the listing will be maintained. Kafus is an emerging global manufacturer of superior materials produced from sustainable resources. The foregoing contains forward-looking statements which are subject to contingencies and

uncertainties. Such forward looking statements are not guarantees of future performance, and are based on numerous assumptions about future conditions that could prove to be inaccurate. Actual events, transactions, and results may differ materially from anticipated events, transactions or results described in such statements. Material uncertainties about the future of the company exist. Kafus is subject to a number of risks and uncertainties which are set forth in its filings with the Securities Exchange Commission.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 265 of 342

Status Update

Sender	chealey@luce.com
Recipients	['bbailey@duke-energy.com', 'gallen@bakerbotts.com', 'jalexander@gibbs-bruns.com']
File	sanders-r/all_documents/1691.

As reported in Tim Taylor's prior email, Judge Moskowitz deferred ruling on the motion to stay pending resolution of the Section 455 issue. Judge Moskowitz rejected plaintiffs' argument that defendants should be required to formally move to recuse, stating that he felt required to resolve the Section 455 issue before proceeding further. On the other hand, he did not accept our argument that judicial economy favors deferral of the 455 issue to the MDL Panel, stating instead that he needed to resolve the issue, lest the Panel designate him as the MDL transferee court for cases he could not accept.

Judge Moskowitz continued the matter to April 12 at 2:30 pm (PST), at which time the Court will hear oral argument on both the 455 issue and the stay motion. In the interim, the parties will brief the 455 issue in accordance with the following schedule:

Plaintiff's brief - April 2 Defendants' response - April 10 Plaintiff's reply - April 12

As to the stay motion, Judge Moskowitz indicated he would need to review the issues raised in the remand briefs before deciding the stay motion. He stated that, generally speaking, if the remand motions require substantial effort and raise issues on which reasonable minds could defer, then he is inclined to grant a stay, given considerations of judicial economy and the public's interest in consistent rulings. While Judge Moskowitz was careful to note he has not decided this issue, many of the defense counsel who attended the hearing came away with the impression that the Court is favorably inclined to the stay arguments.

As to the timing of the remand motion, Judge Moskowitz stated that, if he does not recuse himself and if he does not stay the cases, the remand motion will be heard "a couple of weeks" after April 17. Plaintiffs expressed concern that the remand motion be heard before the MDL rule in May. Judge Moskowitz did not commit to any specific schedule, but appeared receptive to plaintiffs' position on this timing issue.

A transcript has been ordered and should be available on Monday for circulation. Several counsel have suggested that we have a group discussion after we review the transcript to assess our options on the various issues, including the Section 455 issue.

As such, we have scheduled a conference call for Wednesday, March 28 at 11 am (PST). The dial in number is 1-800-210-5603 (pass code 5103596#). I will circulate an agenda before the call.

Regards.

CONFIDENTIAL

Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414

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and/or attorney work-product privileges. If you are not the intended recipient or the intended recipient's agent, you are hereby notified that any review, use, dissemination, distribution or copying of this communication is strictly prohibited. You are also asked to notify us immediately by telephone and to delete this transmission with any attachments and destroy all copies in any form. Thank you in advance for your cooperation.

Message 266 of 342

Re: Fwd: Plaintiff's amended petition

Sender	richard.sanders@enron.com
Recipients	['randal.maffett@enron.com', 'lisa.mellencamp@enron.com', 'michelle.cash@enron.com']
File	sanders-r/sent/725.

I have asked Doug to set up a mediation

Lisa Mellencamp 01/19/2001 03:05 PM

To: Randal Maffett/HOU/ECT@ECT cc: Michelle Cash/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT Subject: Re: Fwd: Plaintiff's amended petition

my vote is to pay this person the amount of his claim and have him go away. Lisa J. Mellencamp Enron North America Corp. - Legal 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com

Randal Maffett 01/19/2001 02:28 PM

To: Richard B Sanders/HOU/ECT@ECT, Michelle Cash/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT cc: Subject: Fwd: Plaintiff's amended petition

FYI - Here is the e-mail from Tom Hall (forwarded by Doug Daniels) which I was missing a hard copy of. Please note the 2nd paragraph where he mentions amending his petition to include myself, Steve Hamilton and Enron as defendants as well as including tort claims for slander, fraud, and tortious interference?????

----- Forwarded by Randal Maffett/HOU/ECT on 01/19/2001

02:24 PM -----

"Douglas Daniels" <ddaniels@bracepatt.com> on 01/19/2001 02:15:53 PM To: <Randal.T.Maffett@enron.com> cc: Subject: Fwd: Plaintiff's amended petition

Per your request, here is Tom's saber-rattling e-mail about suing you and others directly. Content-Transfer-Encoding: 7bit
Received: from mcafee.bracepatt.com by bracepatt.com; Wed, 27 Dec 2000 11:51:57 -0600 Received: FROM pop137-mc.mail.com BY mcafee.bracepatt.com ; Wed Dec 27 11:56:42 2000 -0600 X-Proxy: keymaster.bracepatt.com
protected Received: from tom (unknown [24.93.46.84]) by pop137-mc.mail.com (Postfix) with SMTP id D87DB5BF23 for <ddaniels@bracepatt.com>; Wed, 27 Dec 2000 12:47:53 -0500 (EST) Reply-To: <tomhall@usa.com> From: "Thomas Hall" <tomhall@usa.com> To: "Doug Daniels" <ddaniels@bracepatt.com> Subject: Plaintiff's amended petition Date: Wed, 27 Dec 2000 11:47:34 -0600 Message-ID: <NEBBLEOINBHBHBIACJDCKKEEBCCCAA.tomhall@usa.com> MIME-Version: 1.0 Content-Type: text/plain; charset="iso-8859-1" X-Priority: 3 (Normal) X-MSMail-Priority: Normal X-Mailer: Microsoft Outlook IMO, Build 9.0.2416 (9.0.2910.0) Importance: Normal X-MimeOLE: Produced By Microsoft MimeOLE V5.50.4133.2400

Dear Doug,

I decided to wait until after Christmas to respond to your letter.

I have drafted an amended petition which adds Randy, Steve, and Enron as defendants. Among other matters, the petition includes tort claims arising from acts of slander, fraud, and tortious interference with contract.

You have been critical of my decision to file the original petition in September because, as I understand it, you believed that I had failed to exhaust other avenues for redress. I believe that every other potential means of resolution had been exhausted. However, in respect for your offer of constructive criticism, I would like to once again extend an offer for mediation in an attempt to resolve the ECOGAS matter, and now these matters.

I called your office and understand that you are not in today. As I anticipate that you may be on vacation this week, I will wait until next week before proceeding with any new filings.

Please contact me if mediation is of any interest to your client. If it won't be you, please let me know if you happen to know who will be representing the additional defendants.

Best regards, Tom

Message 267 of 342

Re: AAA eCommerce Working Group

Sender	richard.sanders@enron.com
Recipients	['mark.taylor@enron.com', 'michelle.blaine@enron.com']
File	sanders-r/all_documents/1057.

My first reaction to this meeting was pretty negative. It seems like alot of busywork. My second reaction was to recognize that Enron has a long term strategy of getting to know the insiders at AAA better, so there is some benefit to the meeting. However,there has to be a tightly controlled agenda or our business people(and lawyers) will lose patience quickly. The transactional lawyer who is responsible for EnronOnline is Mark Taylor ext 37459. I explained what was going on and he is expecting you call.

Michelle Blaine@ENRON_DEVELOPMENT 11/29/2000 11:15 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT
Subject: Re: AAA eCommerce Working Group

Talked with Gerry today and he and his group are coming to meet with me next week. He suggested we get a "business type" involved. Since this is B2B oriented can you suggest someone from Louise Kitchen's group (aren't they doing the B2B internet transactions?) Should I just contact someone in her group directly?

From: Richard B Sanders@ECT on 11/28/2000 10:00 PM To: Michelle Blaine/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc:

Subject: AAA eCommerce Working Group

----- Forwarded by Richard B Sanders/HOU/ECT on 11/28/2000 10:00 PM -----

"Gerry Strathmann" <gstrathmann@mediaone.net> 11/08/2000 02:19 PM

To: <Richard.B.Sanders@enron.com> cc: Subject: AAA eCommerce Working Group

Dear Mr. Sanders - ? While I left a you a phone message with some information about our project, I thought I could give you some additional details by e-mail as well... ? We are still very interested in having Enron support our eCommerce Dispute Management Protocol.? We have had enthusiastic responses from companies such as AT&T, Duke Energy, Pitney Bowes and DaimlerChrysler, and I would be pleased to answer any questions you may have about this focal point for our educational efforts.? The real purpose of my call, however, is related to the services we will provide to support the aspirational statements of the Protocol.

I am a member of the design group that has been developing the American Arbitration Association's dispute management systems and services for eCommerce B2B transactions.? At this time we are putting together small working groups to validate some of our assumptions and refine our initial service offerings.

Initially our design group, along with perhaps one of our technology consultants, would like to meet with a group of Enron people for half a day.? Ideally this group would consist of four to six people from finance, legal, and operations so that we get good cross-functional feedback about our services.? Before the meeting we would provide you with a brief description of our proposed service offerings and a list of points for discussion at the meeting.

The real focus of the meeting will be on how we should build these services to meet the needs of businesses operating in B2B marketplaces.? We are very concerned with providing services that are relevant to that environment.

We would like to meet between November 14 and?December 1?since construction of our services is already underway.? Please let me know what is possible, and feel free to give me a call if you have any questions (978-376-9004). ? Thanks.

-> Gerry

Gerry Strathmann eCommerce Group American Arbitration Association (978) 376-9004

Message 268 of 342

RE: Taping conversations in california

Sender	e..haedicke@enron.com
Recipients	['b..sanders@enron.com', 'don.black@enron.com']
File	sanders-r/inbox/53.

Richard is looking into whether we can tape in Houston or Portland and have a CA person on the line. Mark

-----Original Message-----

From: Black, Don Sent: Friday, August 03, 2001 1:13 PM To: Haedicke, Mark E. Subject: Re: Taping conversations in california

Mark, someone from our side dug this up with the help of outside counsel it appears. ----- Forwarded by Don Black/HOU/EES on 08/03/2001 01:11 PM -----

Enron Energy Services From: Mike D Smith 08/03/2001 12:46 PM

To: Dan Leff/HOU/EES@EES, Greg Sharp/HOU/EES@EES, Sean A Holmes/HOU/EES@EES, Don Black/HOU/EES@EES cc: Subject: Re: Taping conversations in california

Here is the answer on taping. Looks like we can't do it w/o consent. MDS ----- Forwarded by Mike D Smith/HOU/EES on 08/03/2001 12:45 PM -----

"Kristen Bird" <kb@quinnemanuel.com> on 08/02/2001 07:32:19 PM To: <sdietric@enron.com>, "Shon Morgan" <sm@quinnemanuel.com> cc: <msmith1@enron.com> Subject: Re: Taping conversations in california

Mike/Sarah,

California Penal Code Sections 631 and 632 make it a misdemeanor to record a telephone conversation without the consent of all the parties. In addition, civil penalties are available in the amount of \$5,000 per violation. This is true whether the caller is in California or some other state. If either party is in some other state, however, you may want to also check the law of that state.

If you are planning on taping a conversation, you should get unambiguous consent from all parties on the call before you begin taping. Once you begin taping, you should again say words to the effect of, "the parties have consented and acknowledge that this conversation is being recorded" so that you have a record of the consent. There does not appear to be any requirement of a periodic beep or tone (but it probably doesn't hurt so that the parties don't claim they didn't know that portion of the call was being recorded).

Monitoring and/or eavesdropping also is not acceptable in California without the consent of all parties to the call. Similar disclosures would need to be made in that regard.

We have numerous former prosecutors in the office with experience with the statute so let me know if we can help with anything specific.

Regards, Kristen

Kristen Bird Quinn Emanuel Urquhart Oliver & Hedges, LLP 865 S. Figueroa Street, 10th Floor Los Angeles, CA 90017
(213) 624-7707 (phone) (213) 624-0643 (fax)

"Sarah Dietrich" <sdietric@enron.com> 08/02/01 04:47PM >>>

What is the law regarding the taping of telephone conversations in California in the following instances:

- both the caller (taping party) and recipient are located in California and
- the caller (taping party) is not in California but the recipient is located in California.

Must a statement be made that the call is being taped? If so, are there any magic words?

Should there be a beep or tone periodically during the conversation?

Any other requirements?

We would appreciate a response as soon as possible, preferably early Friday.

Since I will be out of the office on Friday, please include Mike D. Smith in your response so that he can relay it to our business people.

Thank you again for your assistance.

Regards,

Sarah

<Embedded Picture (Device Independent Bitmap)> <Embedded Picture (Device Independent Bitmap)>

Message 269 of 342

FW: Status Update - Correction

Sender	chealey@luce.com
Recipients	['bbailey@duke-energy.com', 'gallen@bakerbotts.com', 'jalexander@gibbs-bruns.com']
File	sanders-r/all_documents/1692.

Resend of status report. The hearing date is April 17, not April 12.

As reported in Tim Taylor's prior email, Judge Moskowitz deferred ruling on the motion to stay pending resolution of the Section 455 issue. Judge Moskowitz rejected plaintiffs' argument that defendants should be required to formally move to recuse, stating that he felt required to resolve the Section 455 issue before proceeding further. On the other hand, he did not accept our argument that judicial economy favors deferral of the 455 issue to the MDL Panel, stating instead that he needed to resolve the issue, lest the Panel designate him as the MDL transferee court for cases he could not accept. Judge Moskowitz continued the matter to April 17 at 2:30 pm (PST), at which time the Court will hear oral argument on both the 455 issue and the stay motion. In the interim, the parties will brief the 455 issue in accordance with the following schedule: Plaintiff's brief - April 2 Defendants' response - April 10 Plaintiff's reply - April 12 As to the stay motion, Judge Moskowitz indicated he would need to review the issues raised in the remand briefs before deciding the stay motion. He stated that, generally speaking, if the remand motions require substantial effort and raise issues on which reasonable minds could defer, then he is inclined to grant a stay, given considerations of judicial economy and the public's interest in consistent rulings. While Judge Moskowitz was careful to note he has not decided this issue, many of the defense counsel who attended the hearing came away with the impression that the Court is favorably inclined to the stay arguments. As to the timing of the remand motion, Judge Moskowitz stated that, if he does not recuse himself and if he does not stay the cases, the remand motion will be heard "a couple of weeks" after April 17. Plaintiffs expressed concern that the remand motion be heard before the MDL rule in May. Judge Moskowitz did not commit to any specific schedule, but appeared receptive to plaintiffs' position on this timing issue. A transcript has been ordered and

should be available on Monday for circulation. Several counsel have suggested that we have a group discussion after we review the transcript to assess our options on the various issues, including the Section 455 issue. As such, we have scheduled a conference call for Wednesday, March 28 at 11 am (PST). The dial in number is 1-800-210-5603 (pass code 5103596#). I will circulate an agenda before the call. Regards. ***** CONFIDENTIAL Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414 The information contained in this electronic mail transmission is confidential and intended to be sent only to the stated recipient of the transmission. It may therefore be protected from unauthorized use or dissemination by the attorney-client and/or attorney work-product privileges. If you are not the intended recipient or the intended recipient's agent, you are hereby notified that any review, use, dissemination, distribution or copying of this communication is strictly prohibited. You are also asked to notify us immediately by telephone and to delete this transmission with any attachments and destroy all copies in any form. Thank you in advance for your cooperation.

Message 270 of 342

Re: Kafus memos

Sender	linda.guinn@enron.com
Recipients	['travis.mccullough@enron.com', 'richard.sanders@enron.com']
File	sanders-r/all_documents/330.

Travis:

In addition to the documents you forwarded from Sharon Sullo, I have obtained the following from Stephanie Balette and Sharon Sullo:

1. Internal Memo from Lynn Bellinghausen to Wynne Snoots and Marshall Eubank dated October 13, 1997 re: Due Diligence Review - The Woodson Companies;
2. Internal Memo from Marshall Eubank, Don Rollins and Becky Caudle to John Hopley, dated November 1, 1999, re: Transcoastal Marine Services;
3. Internal Memo from Lynn Bellinghausen to Wynne Snoots and Marshall Eubank dated July 31, 2000 re: Due Diligence Review - Transcoastal Marine Services, Inc.;
4. Internal Memo from Christine Granda and Don Rollins to Wynne Snoots and Marshall Eubank dated October 9, 1997 re: Due Diligence Report - Red Fox Companies;
5. Internal Memo from Rick Carson and Sharon Erwin to Wynne Snoots and Marshall Eubank dated October 13, 1997 re: Due Diligence Review - HBH, Inc.;
6. Internal Memo from Sonya Gasdia to Wynne Snoots and Marshall Eubank dated October 13, 1997 re: Due Diligence Review - CSI Hydrostatic Testers, Inc.;
7. Internal Memo from Don Rollins and Sharon Erwin to Marshall Eubank and Brent Bechtol dated December 29, 1998 re: Due Diligence Review - TCMS;
8. FitchIBCA Power Point Presentation dated May 5, 2000 -- marked CONFIDENTIAL;
9. FitchIBCA Power Point Presentation dated July 24, 2000 -- marked CONFIDENTIAL;
10. Excel spreadsheet entitled Updated Values dated as of July 11, 2000
11. Word document entitled Asset Update Final, undated.

Additionally, I received two bound presentations from Stephanie which she tells me were (1) marketing material that went to potential investors and (2) tear sheet book that went to the rating agencies.

I have placed a call to Deb Korkmas to obtain the closing documents you referenced in your e-mail and I left a voice mail for you regarding the documents you indicated you had.

Would you like to review any or all of the above documents before I forward them to our outside counsel? If not, I will forward these documents to John Frizzell today. Please let me know your preference.

Linda

Travis McCullough 07/29/2000 01:28 PM

To: Linda R Guinn/HOU/ECT@ECT cc: Subject: Kafus memos

Linda -- per my e-mail, here is what the due diligence team prepared on Kafus deals.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 07/29/2000 01:27 PM -----

Sharon E Sullo 07/28/2000 04:40 PM

To: Travis McCullough/HOU/ECT@ECT cc: Rick L Carson/HOU/ECT@ECT Subject: Kafus memos

Hi Travis,

Rick asked me to send you our Kafus memos. I am not sure the scope of what you are looking for, so if you need more information, please let us know. We have compiled quite a bit of information on this deal, including formal memos, summaries of employment and consulting agreements and summaries of the company. I will send you all three, but please realize that only the formal memos are finalized, as I will note below. Please let me know if I can help further.

Thanks,

Sharon Sullo x31946

Memos:

The following are summaries of agreements (we have copies of these agreements if you need them):

The following are summaries of Kafus Companies that we focused on. These are incomplete. Several items are open because we were put on hold on this due diligence process, but thought they might be useful to you:

Message 271 of 342

RE: Letter from Figa re settlement negotiations

Sender	charles.cheek@enron.com
Recipients	['breasoner@gibbs-bruns.com', 'janet.place@enron.com', 'britt.davis@enron.com', 'ctetrault@velaw.com']
File	sanders-r/all_documents/5316.

Great -- I look forward to receiving your proposed reply. Once the "Enron" team is comfortable with its position, I have no objection to coordinating with the other defendants -- primarily because we would like to know the position of each of the Coordinated Defendants, but it would seem to me that interest in resolving these cases (or at least hearing what Grynberg would propose) should be an independent, company by company, determination.

"Tetrault, Charles D." <ctetrault@velaw.com> 12/13/2000 06:41 PM

To: "Cheek, Charles (Enron)" <charles.cheek@enron.com>, Richard.B.Sanders@enron.com, Staci.Holtzman@enron.com, "Place, Janet (Enron)" <janet.place@enron.com> cc: "Davis, Britt (Enron)" <britt.davis@enron.com>, "Tetrault, Charles D." <ctetrault@velaw.com>, "Barrett H. Reasoner (E-mail)" <breasoner@Gibbs-Bruns.com> Subject: RE: Letter from Figa re settlement negotiations

In process. We will coordinate this with the other defendants, as the letter did not come directly to us. Note also that we have served (but have not filed) Rule 11 motions on Grynberg. A reminder of that may be part of the response.

-----Original Message-----

From: Charles.Cheek@enron.com [mailto:Charles.Cheek@enron.com] Sent: Wednesday, December 13, 2000 7:32 PM
To: Richard.B.Sanders@enron.com; Staci.Holtzman@enron.com; Janet.Place@enron.com Cc: Britt.Davis@enron.com;
Tetrault, Charles D. Subject: Letter from Figa re settlement negotiations

Do we need to discuss an "Enron" response to Figa or do we already have one? ----- Forwarded by Charles
Cheek/Corp/Enron on 12/13/2000 06:06 PM -----

"Dawne Davis"

<ddavis@hollan To: <bdavis@enron.com>, <ccheek@enron.com>, dhart.com> <jplace@enron.com>,
<linda.r.guinn@enron.com>, <mlawles@enron.com>,

12/13/2000 <richard.b.sanders@enron.com>,

05:26 PM <staci_holtzman@enron.com>, <tlehan@enron.com> cc:

Subject: Letter from Figa re settlement negotiations

Attached is a letter from Phil Figa to Don Schultz regarding settlement negotiations.

Dawne Davis Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax
ddavis@hollandhart.com

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Message 272 of 342

RE: meeting

Sender	b..sanders@enron.com
Recipients	['gail.brownfeld@enron.com']
File	sanders-r/sent_items/42.

That is probably our lawsuit. Joint Energy Development Investments (JEDI) is an Enron LLC with Calpers-- the California
State pension fund. Lets take a look.

-----Original Message-----

From: Brownfeld, Gail Sent: Tuesday, September 11, 2001 11:19 AM To: Sanders, Richard B. Subject: FW: meeting
FYI. I'll keep you informed of our efforts to find the suit, assuming one has been filed.

-----Original Message-----

From: Shilliday, Daniel B. Sent: Tue 9/11/2001 10:49 AM To: Brownfeld, Gail Cc: Subject: RE: meeting

No. We don't have computer access to the Midland State Court, but our investigator was trying to work with the Clerk to
assess captions of recently filed cases.

We went back through the Harris County filing reports, and Ben Hall did file, a couple weeks ago, a case in the 281st
styled "Costilla Energy v. Joint Energy Developers"... I've instructed our investigator to get a copy of the pleading, but it

didn't sound like the suit we were anticipating.

-----Original Message-----

From: Brownfeld, Gail [mailto:Gail.Brownfeld@ENRON.com] Sent: Tuesday, September 11, 2001 10:29 AM To: Shilliday, Daniel B. Subject: RE: meeting

Did you find anything in Galveston, Midland or elsewhere indicating that there was a lawsuit filed?

-----Original Message-----

From: Shilliday, Daniel B. Sent: Tue 9/11/2001 9:52 AM To: Brownfeld, Gail Cc: Subject: meeting

I heard that Enron's buildings are being evacuated. In view of the chaos, I am assuming we will not be meeting this afternoon. Call me if that's not right.

Thanks Dan

Daniel B. Shilliday Vinson & Elkins, LLP Suite 3000, First City Tower 1001 Fannin Houston Texas 77002-6760 phone 713-758-3440 fax 713-615-5069

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Message 273 of 342

FW: Joint Defense Meeting

Sender	richard.sanders@enron.com
Recipients	['Dawne Davis; Don Schultz; Linda Greer; Linda Obrecht; Melissa', 'andrew.edison@enron.com']
File	sanders-r/sent/789.

You should go. ----- Forwarded by Richard B Sanders/HOU/ECT on 02/07/2001 12:58 PM -----

"Tetrault, Charles D." <tetrault@velaw.com> 02/05/2001 05:26 PM

To: "Richard B. Sanders (E-mail)" <Richard.B.Sanders@enron.com>, "Staci Holtzman (E-mail)" <sholtzm@enron.com>, "Andrew M. Edison (E-mail)" <andrew.edison@enron.com>, "Barrett H. Reasoner (E-mail)" <breasoner@Gibbs-Bruns.com> cc: Subject: FW: Joint Defense Meeting

-----Original Message-----

From: Dawne Davis [mailto:ddavis@hollandhart.com] Sent: Monday, February 05, 2001 6:27 PM To: dcraven@akingump.com; jthroch@akingump.com; jbarrymore@aol.com; mbeatty@beattylaw.com; mloring@bspmlaw.com; becky.noecker@coastalcorp.com; michael.heydt@coastalcorp.com; jbarrym@columbiaenergygroup.com; ddalrymple@coral-energy.com; dgp@dn.zhgm.com; steve_williams@eogresources.com; griffinj@epenergy.com; latimerc@epenergy.com; jgoering@foulston.com; gpecht@fulbright.com; apickens@gibbs-bruns.com; tnicholas@hirstaplegate.com; jkennedy@morrislaing.com; crotty@odsgc.net; terriem@qstr.com; drobinso@skadden.com; ctetrault@velaw.com; teresa.x.silcox@wgp.twc.com Cc: Dawne Davis; Don Schultz; Linda Greer; Linda Obrecht; Melissa Defratis; Richard Schneebeck; Tim Rastello; Valerie Arias Subject: Joint Defense Meeting

Privileged and Confidential Joint Defense Communication

To: Grynberg Coordinating Counsel Committee Quinque Coordinating Counsel Committee Tom Nicholas and Steve Williams for Wright Case (others who received earlier message) From: Don Schultz Re: Joint Defense Meeting - progress notes.

We received several votes in favor of Charles Tetrault's suggestion to meet the week after the Feb. 22 hearing, rather than on Feb. 23-24, and that makes sense to us as well. Tom Nicholas advises that the Wright group would like the meeting to be held February 27-28 in Houston, rather than Denver. Jay Barrymore would prefer the meeting be held March 5-6 in Denver. Clay Latimer is available February 27-28 and would prefer the meeting be held in Denver. I was unable to reach Clay this afternoon to determine if March 5-6 would work for him. We have confirmed availability among hotels in downtown Denver to host for either date window. Some of the Wright folks are reportedly checking on availability of Houston hotels for February 27-28. The Kansas Steering Committee is meeting by phone tomorrow morning, and we will need to come to a final decision in the next day or two on which to base meeting plans. Wright lead defense counsel are concentrated in Houston, and so it might make sense for the Wright group to meet independently and in a different location; however, there are a number of counsel who will need to attend both meetings, so the meetings probably should not be at the same time in different cities. Thus far, we have not announced plans to any of the JDT groups at large.

Dawne M. Davis, CLA Legal Assistant Holland & Hart P.O. Box 1347 Cheyenne, WY 82003 307-778-4240 307-778-8175 - fax ddavis@hollandhart.com

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Message 274 of 342

Status update	
Sender	lisa.mellencamp@enron.com
Recipients	['mark.haedicke@enron.com', 'dan.lyons@enron.com', 'michelle.cash@enron.com', 'richard.sanders@enron.com']
File	sanders-r/all_documents/809.

fyi. michelle has the kelly role at the end been discussed with you or are we covered re consulting agreement??

Lisa J. Mellencamp Enron North America Corp. 1400 Smith St. Houston, TX 77002 Tel: (713) 853-7986 Fax: (713) 646-3393 E-mail: Lisa.Mellencamp@enron.com ----- Forwarded by Lisa Mellencamp/HOU/ECT on 10/25/2000 08:52 AM

Randal Maffett 10/24/2000 05:40 PM

To: jerrel@ecogas.com, jerrel@rmisp.com, Jeff Donahue/HOU/ECT@ECT, Andrea V Reed/HOU/ECT@ECT cc: sjham84@aol.com, kmahmoud@austin.rr.com, kelly.mahmoud@enron.com, rstephens@bracepatt.com, Lisa Mellencamp/HOU/ECT@ECT Subject: Status update

Selexol Plant - has been sold to Tanoma for \$200K. Wire transfer received today. I have called Montauk and informed them and withdrawn from further negotiations with them. FYI - we never accepted their offer. Austin PPA - was sold to EDI for \$150K. Wire transfer received yesterday. Steve and Geoff are pursuing the sale of the blower and flare from the Austin project, potential \$30K. Current cash projection (based solely on money in the bank) through the week ending Nov. 3 is + \$135K. The rent for the Austin office for Oct has been paid. This number also includes \$20K for Nov's rent (due 11/1). This provides some breathing room (time-wise) to continue trying to execute the strategy of an orderly liquidation in order to maximize Ecogas' ability to satisfy its obligations with its creditors. Our meeting today with ZAPCO re: the purchase of the company via a stock swap went ok but my confidence level a deal can be done in the timeframe required is very low due to complications on their part. We are exploring another structural option - at ZAPCO's request. The ball is in their court and they know we are continuing to pursue other alternatives. Discussions with Inter-Asia Venture Management (IAVM) continue to both progress and expand. In addition to Rosenberg IAVM has expressed a direct interest in Ecovest and McCommas. Considering McCommas represents the bulk of current value, IAVM has now elevated their interest to buying Ecogas Corp. as a whole rather than on a piecemeal basis. Again, the ball is in their court and they are demonstrating a real sense of urgency to make something happen. They are well aware of the time constraints. Frito-Lay/McCommas Bluff - F/L senior management does not want to "get into the landfill energy business" (at least directly) and brought in a third party intermediary. After detailed discussions and due diligence on their part, the third party was not willing to put forth a formal offer. Their intermediary does not have the capital to close the deal and is not willing to put his current assets at risk. As a result, we have escalated discussions with another entity who could provide the same interface with F/L and whom would be acceptable by F/L. This will also be dependent on the probability of the IAVM and/or ZAPCO discussion referenced above. Skyline/Westside - a bid request package was sent out to approximately 8 or 9 industry participants with bids due 10/23. To date only one company responded with a very low bid and a lot of "contingencies." There are at least 2 other companies who called and expressed interest in bidding but have not yet submitted their bids. EDI has requested permission to visit with WMI directly and get a read on the Gas Rights Agreements and their willingness to work with them. At this point, I don't think we should agree. Depending on how discussions with IAVM and/or ZAPCO progress, this will require a judgement call as to whether or not we should proceed with this transaction. Any input from the rest? FYI - Felipe Vega, the controller for Ecogas, has tendered his resignation effective Monday, Oct. 30. Kelly Mahmoud will assume the necessary role to keep things in order.

Given the updates above, we are still pursuing parallel and simultaneous paths of either selling the company outright or strategically liquidating assets with our focus on McCommas Bluff. Feel free to call if you have any questions or would like to discuss in more detail.

Message 275 of 342

FW: New Intelligence re IRS and "Capacity"

Sender	gail.brownfeld@enron.com
Recipients	['h..douglas@enron.com', 'george.mcclellan@enron.com', 'kevin.liss@enron.com']
File	sanders-r/sempra/25.

Please take a look at the attached and give me a call. Thanks.

-----Original Message-----

From: "Johnson, Christopher P." <CPJohnson@brobeck.com>@ENRON Sent: Mon 7/2/2001 5:30 PM To: Brownfeld, Gail; McClellan, George Cc: Markel, Gregory A. Subject: New Intelligence re IRS and "Capacity"

Gail and George:

Please see attached, which I just received from Keith Martin.

CPJ

Christopher P. Johnson

Brobeck, Phleger & Harrison, LLP

1633 Broadway

New York, New York 10019

(212) 237-2558

(212) 586-7878

cpjohnson@brobeck.com

-----Original Message-----

From: Martin, Keith [mailto:kmartin@chadbourn.com]

Sent: Monday, July 02, 2001 6:18 PM

To: 'gmarkel@brobeck.com'; 'cpjohnson@brobeck.com'

Subject:

There were more developments the past few days in the syncoal area that might interest you.

As you know, the IRS plans to write the "capacity" of each syncoal plant into any private letters rulings it issues in the future. Plant owners will be held to production at this level.

I spoke to Joe Makurath this morning about a rumor that he plans to hold one project that is seeking a ruling to a "capacity" of 198,000 tons a year. Makurath is the IRS branch chief for section 29 rulings. The "rumor" was actually a report by a tax lawyer for Detroit Edison that the IRS looked at actual output at his client's plant in 1998 and derived the "capacity" of the plant from this output. The tax lawyer complained, but was told he could "lump it."

Makurath said the following:

1. He has made no final decision about how to determine capacity.
2. The IRS has issued only one ruling since the rulings window reopened in April. That was a ruling to someone who already had a ruling, but who had merely changed the entity that owns the project. The new ruling does not specify the capacity of the project. That's because there was no change in process from when the earlier ruling was issued. He regards a change in feedstock as a change in process.
3. The "capacity" will be the capacity of the facility when it went into service in June 1998.

4. He is still feeling his way on how to determine the capacity when the facility went into service. Actual output is merely an "interesting fact." Capacity is not the same thing as output. Some people made representations about capacity at the time. It would be "strange" if a facility that people thought was capable of producing "100 units in June 1998 is now able to produce 1,000 units." That might call into question whether the facility was in service in June 1998 because it was just starting to ramp up. (An old revenue ruling holds that a power plant was in service when it was producing at 17% of capacity and ramping up steadily from there.)

There was another rumor today that the IRS has backed off somewhat in the Detroit Edison case. The taxpayer is hoping it can get a capacity of two times nameplate. The coalition of syncoal owners is gearing back up to lobby Congress for help.

Keith

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To reply to our email administrator directly, send an email to postmaster@brobeck.com

BROBECK PHLEGER & HARRISON LLP

<<http://www.brobeck.com>>

Message 276 of 342

Enron / Broadwing Confidential / Atty/Client Communication

Sender	kenton.erwin@enron.com
Recipients	['david.leatherwood@enron.com', 'wilson.dietrich@enron.com', 'brad.cheney@enron.com', 'ron.holtz@enron.com', '...]
File	sanders-r/all_documents/3939.

Wilson, Christine, and Robin, could you please coordinate with David L's group the gathering of the items needs by our outside counsel? As you can see, the burden of proof is on us, and without your help we will not prevail at Monday's hearing. You can see Dave Ditto's phone number and address in his earlier email.

Kenton

----- Forwarded by Kenton Erwin/Enron Communications on

02/23/2000 09:23 AM -----

dditto@hollandhart.com on 02/23/2000 08:58:09 AM

To: Brad Cheney/Enron Communications@Enron Communications, David Leatherwood/Enron Communications@Enron Communications, Kenton Erwin/Enron Communications@Enron Communications

cc: sblack@hollandhart.com

Subject: Enron / Broadwing Confidential / Atty/Client Communication

Confidentiality Notice: This message is confidential and may be privileged. If you believe that this e-mail has been sent to you in error, please reply to the sender that you might have received the message in error. Then please delete this e-mail. Thank you.

Gentlemen, I am not sure who else should be included with this e-mail, but I wanted to summarize some thoughts and request additional documents and information.

We will have a tough burden at the hearing on Monday at 2:00, simply because at each of the cuts they had several witnesses present while Enron had none, or perhaps one or two. After talking with Don Beamis it sounds like for the most part we photographed and investigated the cuts after the fact. Even though they may be completely at fault, proving it will be another thing. We can assume it will be a swearing match between witnesses. I hope to meet with Don Beamis Tomorrow or Friday to discuss cut reports, photographs, etc. To prevail, I think we will need to show the following: That Enron owned an easement at the site of each cut, that Enron placed its cable within that easement, that Enron or the locators properly marked the location of the cable, that Enron or the locator complied with the Wyoming statutory requirements to respond One Call and mark the easement, and that the markings complied with the statute, or recognized standards in the industry. If we can prove the above, we should be able to show that it was Broadwing's fault from there. In light of the above, I think I need the following from Enron or other sources:

Right-of-Way Grants or Easement Agreements for locations of the cuts;

Plats / surveys / legal descriptions / filed with One Call or county for the area of each cut;

Photographs and Cut Reports for each Cut (I have most cut reports and some photographs);

Correspondence by Katie Nelson (?) referenced by Broadwing authorizing it to proceed without marking;

All correspondence with Broadwing;

Call One records documenting the day and time of all calls from Broadwing;

Map of Wyoming for demonstrative purposes to show location of the cuts to the judge;

It would be nice, for demonstrative purposes, to have a one foot piece of fiber optic cable;

I don't know that we will use each of the above, but I should review it and then make the decision. Whoever has some or all of the above please overnight it to me.

As far as witnesses, we will need Don Beamis and others who investigated the cuts, one or more locate people to testify as to how the markings were placed and the accuracy of the markings, Brad Cheney as to irreparable harm to Enron which cannot be compensated for with damages, others?

You should each think about your conversations with Broadwing to recall any admissions - I see in one of Brad's e-mails that the Mears contractor acknowledged responsibility for one of the cuts. Don Beamis can testify that Bud Black acknowledged at a meeting with the Uinta County Commissioners that the "markings on Enron's line" had not been a problem. I don't know if Bud was in the field and that acknowledgment may not get us far. The one by Mears may help.

Who could testify to what the standard for marking in the industry is? the locate people, or Brad?

Finally, opposing counsel has insisted that he be given equal time at the hearing, which may be limited to three hours. So we will be trying to fit a lot of evidence in a very short time period.

After you have read this please give me your thoughts, and/or pass this on to others who may have additional facts or information that would be helpful. Thanks.

David G. Ditto Holland & Hart 2515 Warren Ave. Suite 450 Cheyenne, WY 82001 Tel: (307) 778-4255 fax: (307) 778-8175 e-mail: dditto@hollandhart.com

Message 277 of 342

Copy of 6-11 Letter to Aguirre Re Bustamante

Sender	lhernandez@luce.com
Recipients	['bbailey@duke-energy.com', 'gallen@bakerbotts.com', 'jalexander@gibbs-bruns.com']
File	sanders-r/notes_inbox/65.

<<6-11 Letter to Aguirre.pdf>>

CONFIDENTIAL

Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414

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- 6-11 Letter to Aguirre.pdf

Message 278 of 342

(no subject)

Sender	lwsp1@aol.com
Recipients	['debbie@boatdigest.com', 'shb1@flash.net', 'brookmanfw@aol.com']
File	sanders-r/radack/9.

Hello Class of 1980!

Well, at least hello to those whose email addresses are available. I hope everyone has received the information regarding our 20th high school reunion scheduled for October 20th and 21st and I hope everyone is planning to attend!

Please send in your questionnaires if you haven't already done so. If you have sent it in - Thanks!

Also, if anyone has any fun, memorable photos from high school, please, please, please make color photo copies and/or enlargements and mail them to me ASAP at the following address:

Lauren Schmuck Puff 5535 El Campo Fort Worth, Texas 76107

Please email back and let me know if you are going to attend. If you have any questions, please call me at (817) 738-7118.

Thanks and I look forward to seeing all of you!

Lauren

P.S. If you have any email addresses for our other classmates, please forward this memo to them and their address to me!

Message 279 of 342

FW: Sweetie's Complaint

Sender	chealey@luce.com
Recipients	['bbailey@duke-energy.com', 'gallen@bakerbotts.com', 'jalexander@gibbs-bruns.com']
File	sanders-r/iso__pricecaps/300.

FYI. New gas complaint filed by Lief Cabraser.

<<3-22 Sweetie's Complaint.pdf>> ***** CONFIDENTIAL Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414 The information contained in this electronic mail transmission is confidential and intended to be sent only to the stated recipient of the transmission. It may therefore be protected from unauthorized use or dissemination by the attorney-client and/or attorney work-product privileges. If you are not the intended recipient or the intended recipient's agent, you are hereby notified that any review, use, dissemination, distribution or copying of this communication is strictly prohibited. You are also asked to notify us immediately by telephone and to delete this transmission with any attachments and destroy all copies in any form. Thank you in advance for your cooperation.

- 3-22 Sweetie's Complaint.pdf

Message 280 of 342

FW: Cal Wholesale Cases - Calendar (Resend)

Sender	chealey@luce.com
Recipients	['bbailey@duke-energy.com', 'gallen@bakerbotts.com', 'jalexander@gibbs-bruns.com']
File	sanders-r/all_documents/1728.

Here is a resend with the updated calendar. My prior email attached an old list of dates.

<<CalCases-calendar.wpd>> ***** CONFIDENTIAL Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414 The information contained in this electronic mail transmission is confidential and intended to be sent only to the stated recipient of the transmission. It may therefore be protected from unauthorized use or dissemination by the attorney-client and/or attorney work-product privileges. If you are not the intended recipient or the intended recipient's agent, you are hereby notified that any review, use, dissemination, distribution or copying of this communication is strictly prohibited. You are also asked to notify us immediately by telephone and to delete this transmission with any attachments and destroy all copies in any form. Thank you in advance for your cooperation.

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- CalCases-calendar.wpd

Message 281 of 342

New complaint - Powerex v. PX

Sender	chealey@luce.com
Recipients	['bbailey@duke-energy.com', 'gallen@bakerbotts.com', 'jalexander@gibbs-bruns.com']
File	sanders-r/all_documents/1492.

CONFIDENTIAL: JOINT DEFENSE - HENDRICKS

Attached is the Powerex v. PX complaint, which was filed yesterday in the Central District and assigned to Judge Lew.

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Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414

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<<Powrex.pdf>>

- Powrex.pdf

Message 282 of 342

FW: Campbell Opposition to Motion to Dismiss

Sender	chealey@luce.com
Recipients	['bbailey@duke-energy.com', 'gallen@bakerbotts.com']
File	sanders-r/iso__pricecaps/211.

Attached is a copy of the Campbell opposition brief which I received this afternoon from Sempra's counsel.

<<1-30 Campbell Oppo. Brief.pdf>> ***** CONFIDENTIAL Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414 The information contained in this electronic mail transmission is confidential and intended to be sent only to the stated recipient of the transmission. It may therefore be protected from unauthorized use or dissemination by the attorney-client and/or attorney work-product privileges. If you are not the intended recipient or the intended recipient's agent, you are hereby notified that any review, use, dissemination, distribution or copying of this communication is strictly prohibited. You are also asked to notify us immediately by telephone and to delete this transmission with any attachments and destroy all copies in any form. Thank you in advance for your cooperation.

- 1-30 Campbell Oppo. Brief.pdf

Message 283 of 342

FW: memo re recoupment.DOC

Sender	lisa.mellencamp@enron.com
Recipients	['b..sanders@enron.com', 'c..williams@enron.com']
File	sanders-r/iso__pricecaps/483.

-----Original Message-----

From: "BENNETT YOUNG" <BYOUNG@LLGM.COM>@ENRON [mailto:IMCEANOTES-+22BENNETT+20YOUNG+22+20+3CBYOUNG+40LLGM+2ECOM+3E+40ENRON@ENRON.com] Sent: Wednesday, June 27, 2001 4:11 PM To: Mellencamp, Lisa; Tribolet, Michael Cc: CARL EKLUND; JOHN KLAUBERG; JAMES HUEMOELLER Subject: memo re recoupment.DOC

Lisa,

I enclose a memo we prepared regarding the recoupment issues. Please call me with your questions or comments.

Ben

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167
byoung@llgm.com

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- memorere.DOC

Message 284 of 342

FW: Enron Confidentiality Agreement

Sender	richard.sanders@enron.com
Recipients	['daniel.rogers@enron.com', 'Kevin T Howell']
File	sanders-r/sent/956.

----- Forwarded by Richard B Sanders/HOU/ECT on 04/10/2001 08:46 AM -----

Neal Gerstandt/ENRON@enronXgate 04/05/2001 04:36 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: FW: Enron Confidentiality Agreement

Richard,

This is the form of confidentiality agreement Duke wants executed before access to the data room. I figured you were the appropriate party to get this, but if others should be copied please forward as necessary.

Neal

-----Original Message-----

From: "Patricia C Smith" <pcsmith@duke-energy.com>@ENRON [mailto:IMCEANOTES-+22Patricia+20C+20Smith+22+20+3Cpcsmith+40duke-energy+2Ecom+3E+40ENRON@ENRON.com] Sent: Thursday, April 05, 2001 4:27 PM To: Gerstandt, Neal Cc: Kevin T Howell Subject: Enron Confidentiality Agreement

Attached is the form of Confidentiality Agreement to be entered into between Duke LNG & Enron. If the agreement is acceptable to you as drafted, please have 2 counterparts executed and delivered to me at the address below. If you have any questions or comments, I can be reached at 713 627 5515

(See attached file: ConfidentialityAgmt Enron 040401.doc)

Patricia Caycedo Smith Duke Energy International 5400 Westheimer Ct, 5P-19 Houston, TX 77056 - ConfidentialityAgmt Enron 040401.doc

Message 285 of 342

FW: Response of Coral Power, L.L.C. to Subpoena Duces Tecum

Sender	mday@gmssr.com
Recipients	[gfergus@brobeck.com', 'msmith1@enron.com', 'mday@gmssr.com']
File	sanders-r/iso__pricecaps/28.

Here is the response the Coral filed with the Commission. Mike Day

-----Original Message-----

From: Leslie, John [mailto:jleslie@LUCE.com] Sent: Thursday, October 05, 2000 2:32 PM To: 'mday@gmssr.com'; Leslie, John Subject: Response of Coral Power, L.L.C. to Subpoena Duces Tecum

<<#1561808 v1 - RESPONSE CORAL POWER TO SUBPOENAS DUCES TECUM (WORD DOC.).doc>>

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- #1561808 v1 - RESPONSE CORAL POWER TO SUBPOENAS DUCES TECUM (WORD DOC.).doc

Message 286 of 342

FW: Hendricks Pltfs' Opposition to Motion to Stay

Sender	chealey@luce.com
Recipients	['bbailey@duke-energy.com', 'gallen@bakerbotts.com', 'jalexander@gibbs-bruns.com']
File	sanders-r/all_documents/1642.

Here is the Milberg opposition to the ex-parte application and the motion to stay in Hendricks. It was apparently filed and served by mail on Friday, although I had to call Simon's office yesterday to get a copy. Note that Milberg makes no mention of the 455 issue.

Krause is apparently filing an opposition brief today in Gordon.

We will discuss hearing status, etc on call today.

<<3-9 Hendricks Oppo to Stay.pdf>> ***** CONFIDENTIAL Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414 The information contained in this electronic mail transmission is confidential and intended to be sent only to the stated recipient of the transmission. It may therefore be protected from unauthorized use or dissemination by the attorney-client and/or attorney work-product privileges. If you are not the intended recipient or the intended recipient's agent, you are hereby notified that any review, use, dissemination, distribution or copying of this communication is strictly prohibited. You are also asked to notify us immediately by telephone and to delete this transmission with any attachments and destroy all copies in any form. Thank you in advance for your cooperation.

- 3-9 Hendricks Oppo to Stay.pdf

Message 287 of 342

Re: Houston Economic Opportunity Fund legal update

Sender	richard.sanders@enron.com
Recipients	['russell.l.montgomery@us.arthurandersen.com', 'andrew.edison@enron.com']
File	sanders-r/all_documents/1805.

Andy Edison, ext 57105, is now handling the HEOF litigation.

russell.l.montgomery@us.arthurandersen.com 04/12/2001 02:21 PM

To: richard.b.sanders@enron.com cc: Subject: Houston Economic Opportunity Fund legal update

Richard-

We are performing the 2000 audits of both HEOF and HEOF II. I wanted to touch base with you and get an update in status on any litigation involving either of the partnerships. I am aware of the Intrust matter as it relates to HEOF. Have there been any developments on that front? Are there any matters in which HEOF II is involved?

Thank you for your time and assistance.

Russ

713 345 6946

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Message 288 of 342

RE: Subrogation

Sender	eileen.kisluk@enron.com
Recipients	['britt.davis@enron.com', 'c..williams@enron.com', 'l..bouillion@enron.com', 'robert.vote@enron.com', 'charles...']
File	sanders-r/deleted_items/295.

In order to answer your question, a very complicated analysis needs to be performed. One of the questions that needs to be addressed is who owns the proceeds of the insurance policy. Are the D&O's entitled to the proceeds or are the proceeds part of the bankruptcy estate? Another question that needs to be looked into is the nature and scope of the coverages available. Yet another consideration is competing claims against the policy. The AEGIS form for the first 35

million is very sophisticated and the endorsements need to be fully understood. The next step in the analysis is the excess which is not fully follow form. Jim Bouillion and I have scheduled an all day meeting with Gary Cooney (Vice Chairman of MSW) on Tuesday to discuss D & O cover. This is the first time that Mr. Cooney can come to Houston. After this meeting, I hope to be in a position to identify issues for your consideration. If any of you would like to attend this meeting, please advise. If you would like to discuss any of these issues with me over the weekend, my home number is 713 721-7676. I will be in the office early on Monday morning. My extension is 37535. -20 - - EWK -20

-----Original Message-----20

From: Williams, Robert C.20 Sent: Fri 12/7/2001 5:27 PM20 To: Cheek, Charles20 Cc: Vote, Robert; Davis, Britt; Kisluk, Eileen; Bouillion, James L.; Sanders, Richard B.20 Subject: RE: Subrogation20

Message 289 of 342

FW: Enron/Duke

Sender	nmanne@susmangodfrey.com
Recipients	['brian.redmond@enron.com', 'richard.b.sanders@enron.com']
File	sanders-r/duke/6.

FYI

-----Original Message----- From: Robert Rivera Sent: Wednesday, November 08, 2000 2:04 PM To: Neal S. Manne Subject: Enron/Duke Below is the text of a letter I've used before to make sure that settlement meetings between business people remain as confidential as they can and outside of litigation. Perhaps we could use something like this in Enron/Duke. Dear _____: Please allow this letter to serve as our agreement under Tex. R. Civ. P. 11 that with regard to the meeting to be conducted on [DATE] between various representatives of the parties to the above-captioned dispute: (1) The meeting will be held without prejudice to any position the parties may take in litigation. (2) No statement made by any representative of the respective parties during the meeting will be used in connection with litigation related to the above-captioned dispute. (3) Statements made by any party representative during the course of the meeting will be treated by all parties, in present or future litigation, as having been made pursuant to Rule 408 of the Texas Rules of Evidence or its equivalent in other jurisdictions. If this letter describes our agreement accurately, please sign below before the scheduled meeting and return the letter to me. Otherwise, please call me immediately. Robert Rivera, Jr. Susman Godfrey L.L.P. 1000 Louisiana St., Ste. 5100 Houston, TX 77002 (713) 653-7809 rrivera@susmangodfrey.com

Message 290 of 342

FW: Schedule for Puget Sound PNW Refund Case

Sender	b.sanders@enron.com
Recipients	['james.derrick@enron.com']
File	sanders-r/sent_items/340.

-----Original Message-----

From: "Dan Watkiss" <dwatkiss@bracepatt.com>@ENRON
[mailto:IMCEANOTES+22Dan+20Watkiss+22+20+3Cdwatkiss+40bracepatt+2Ecom+3E+40ENRON@ENRON.com]
Sent: Thursday, August 02, 2001 1:01 PM To: jstefte@enron.com; Robertson, Linda; ray.alvarez@enron.com; rfrank@enron.com; Shapiro, Richard; snovose@enron.com Cc: gfergus@brobeck.com; Sanders, Richard B.; seabron.adamson@frontier-economics.com; sbishop@gibbs-bruns.com Subject: Schedule for Puget Sound PNW Refund Case

Below is the procedural schedule that Judge Cintron established for the PNW refund case. Please call if you have any questions.

8/3 Answers to Intervention Motions Designation of Groups of Like Interests Staff to propose template (filter) identifying sales and purchases that must be submitted 8/7 Comments on template 8/9 ALJ issuance of final template 8/16 Parties submit transactions that fit in template Parties submit stipulation of issues 8/17 Refund claimaints submit affirmative case 8/20 Parties submit join stipulation on the treatment of ripple claims (claims for refunds up the daisy chain) 8/22 Parties from whom refunds are sought submit responsive cas 8/27 Refund claimaints submit rebuttal cas 9/4-6 Hearing 9/17 Parties submit proposed findings and post hearing briefs

Jeffrey D. (Dan) Watkiss Bracewell & Patterson, LLP 2000 K St., N.W. Suite 500 Washington, D.C. 20006-1872 (202) 828-5851 dwatkiss@bracepatt.con jdwtatkiss@aol.com

Message 291 of 342

Re: California Power Class Action

Sender	richard.sanders@enron.com
Recipients	['james.derrick@enron.com', 'pfolse@susmangodfrey.com']
File	sanders-r/sent/1044.

Thanks. Frankly, at this point, it is anyone's guess how this will develop. Given your distance to Spokane, Is there a local counsel that you would recommend---one with good ties to Judge Whaley.

Parker Folse <pfolse@SusmanGodfrey.com> 04/27/2001 04:02 PM

To: "Richard Sanders (E-mail)" <richard.b.sanders@enron.com> cc: Subject: California Power Class Action

Maybe it goes without saying, but to dispel any doubt: if the class action suit that we discussed yesterday remains in front of Judge Whaley, and if he handles the case out of Spokane, and if you decide that it makes sense to retain co-counsel from Washington (a lot of if's, I know), I hope you will consider our firm, and more specifically our office here in Seattle. I have defended numerous class action suits over the years, including, on behalf of Northwest Airlines, a claim of price-fixing among major air carriers in the setting of travel agent commissions. As I mentioned, I also have some knowledge about the roots and consequences of the current power crisis on the West Coast, and I have some experience with Judge Whaley as well. A detailed personal resume along with a list of recent cases I have handled is available on the firm's website (www.susmangodfrey.com).

Whether it ultimately makes sense for Enron to retain us in this case or not, don't hesitate to call again if there is any other way I can be helpful.

Parker C. Folse III Susman Godfrey L.L.P. 1201 Third Avenue, Suite 3090 Seattle, WA 98101 (206) 516-3880

Message 292 of 342

RE: PricewaterhouseCoopers Social Activities - Mailing List

Sender	b..sanders@enron.com
Recipients	['lisa.d.snell@us.pwcglobal.com']
File	sanders-r/sent_items/97.

Thanks. I am a mean 30 handicap.

-----Original Message-----

From: <lisa.d.snell@us.pwcglobal.com>@ENRON

[mailto:IMCEANOTES-+3Clisa+2Ed+2Esne1l+40us+2Epwcg1oba1+2Ecom+3E+40ENRON@ENRON.com] Sent: Friday, September 21, 2001 12:24 PM To: Walls Jr., Rob; Sanders, Richard B.; Williams, Robert C. Subject: PricewaterhouseCoopers Social Activities - Mailing List Confirmations Importance: High

Gentlemen: I work with Bill Abington, Partner in our Financial Advisory Services Group at PricewaterhouseCoopers - Houston. Bill met with you on Wednesday and asked that I add your names to our mailing lists for the various activities hosted by our group during the year. In order to make sure that I put you on mailing lists for the events that you would find most interesting, would you please advise me if you play golf or shoot sporting clays? We have our annual Sporting Clays event coming up on October 19th at American Shooting Center. If you are interested in either golf or clays, would you please let me know? Thank you.

Lisa Snell PricewaterhouseCoopers 1201 Louisiana, Suite 2900 Houston, Texas 77002 (713) 356-4437 email - lisa.d.snell@us.pwcglobal.com

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Message 293 of 342

RE: Enron/Duke

Sender	richard.sanders@enron.com
Recipients	['nmanne@susmangodfrey.com']
File	sanders-r/all_documents/1756.

Is it still April fools day?

"Neal S. Manne" <NMANNE@SusmanGodfrey.com> 04/05/2001 11:05 AM

To: Robert Rivera <RRIVERA@SusmanGodfrey.com>, "Jonathan J. Ross" <JROSS@SusmanGodfrey.com> cc: "RSanders (E-mail)" <Richard.B.Sanders@Enron.com> Subject: RE: Enron/Duke

I do not care about the appearance. There is no jury. Morris won't care and will understand why we paid for her to have a lawyer. I do not want Duke to have a private shot at her.

-----Original Message----- From: Robert Rivera Sent: Thursday, April 05, 2001 12:09 PM To: Neal S. Manne; Jonathan J. Ross Subject: Enron/Duke I met with Mark Lowes, the lawyer Sanders hired to represent Rebecca McDonald. I walked him through the issues in dispute and explained that we're not seeking any confidential or privileged information from Rebecca. Lowes says he agrees with our position on all issues, including transportation, and will work with Rebecca accordingly. He will meet with her this afternoon and set up a meeting with us for tomorrow morning. Rebecca apparently asked Lowes whether it would look bad, either for her or for Enron, that Enron was paying for her lawyer. I told Lowes that my instinct was the exact opposite. Regardless, he asked us to consider asking Duke to split her legal bills with Enron and also giving Duke the opportunity to meet with her privately. I told him that I didn't like that idea so much but that we'd think about it and get back to him when we meet with Rebecca. Robert Rivera, Jr. Susman Godfrey L.L.P. 1000 Louisiana St., Ste. 5100 Houston, TX 77002 (713) 653-7809 rrivera@susmangodfrey.com

- C.DTF

Message 294 of 342

FW: FERC Template

Sender	gfergus@brobeck.com
Recipients	['jeff.richter@enron.com', 'b..sanders@enron.com', 'tim.belden@enron.com']
File	sanders-r/iso__pricecaps/478.

Here is the proposed NW template for data from FERC. It poses huge problems for Enron if left unchanged. For example, it only allows data to be submitted for sales not purchases. Since many entities that we purchased from were not at the hearing and will not be submitting data, we will have no way to claim offsets. We have an opportunity to comment on this template before the court rules on it on 8/9.

Thanks Gary

-----Original Message-----

From: Shelby Kelley [mailto:skelley@bracepatt.com] Sent: Friday, August 03, 2001 3:23 PM To: gfergus@brobeck.com
Subject: FERC Template

Gary,

Attached please find the template in .pdf format.

Regards, Shelby Kelley

Shelby J. Kelley, Esq. Bracewell & Patterson, L.L.P. 2000 K Street, NW Suite 500 Washington, DC 20006-1872 (202) 828-5859 skelley@bracepatt.com

CONFIDENTIALITY NOTE: This email message is intended solely for the individual or individuals named above. It may contain confidential attorney-client privileged information and/or attorney work product. If the reader of this message is not the intended recipient, you are requested not to read, copy or distribute it or any of the information it contains. Please delete it immediately and notify the sender by return email or by telephone. Thank you.

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

- template.pdf

Message 295 of 342

RE: Enron/Duke

Sender	richard.sanders@enron.com
Recipients	['nmanne@susmangodfrey.com']
File	sanders-r/all_documents/1763.

What I meant to say is this request by Rebecca that Duke pay for her atty and be allowed to interview her has to be someone's idea of an April Fools joke

"Neal S. Manne" <NMANNE@SusmanGodfrey.com> 04/05/2001 10:13 PM

To: Richard.B.Sanders@enron.com cc: Subject: RE: Enron/Duke

Sorry, Richard, you lost me on that one. Come again?

-----Original Message-----

From: Richard.B.Sanders@enron.com [mailto:Richard.B.Sanders@enron.com] Sent: Thursday, April 05, 2001 7:36 PM
To: Neal S. Manne Subject: RE: Enron/Duke

Is it still April fools day?

"Neal S. Manne"

<NMANNE@SusmanGo To: Robert Rivera <RRIVERA@SusmanGodfrey.com>, "Jonathan J. Ross" dfrey.com>
<JROSS@SusmanGodfrey.com>

cc: "RSanders (E-mail)" <Richard.B.Sanders@Enron.com> 04/05/2001 11:05 Subject: RE: Enron/Duke

AM

I do not care about the appearance. There is no jury. Morris won't care and will understand why we paid for her to have a lawyer. I do not want Duke to have a private shot at her.

-----Original Message----- From: Robert Rivera Sent: Thursday, April 05, 2001 12:09 PM To: Neal S. Manne; Jonathan J. Ross
Subject: Enron/Duke I met with Mark Lowes, the lawyer Sanders hired to represent Rebecca McDonald. I walked him through
the issues in dispute and explained that we're not seeking any confidential or privileged information from

Rebecca.

Lowes says he agrees with our position on all issues, including transportation, and will work with Rebecca accordingly. He will
meet

with

her this afternoon and set up a meeting with us for tomorrow morning. Rebecca apparently asked Lowes whether it would look
bad, either for her or for Enron, that Enron was paying for her lawyer. I told Lowes that my instinct was the exact opposite.
Regardless, he asked us to consider asking Duke to split her legal bills with Enron and also giving Duke the opportunity to meet
with her privately. I told him that I didn't like that idea so much but that we'd think about it and get back to him when

we

meet with Rebecca. Robert Rivera, Jr. Susman Godfrey L.L.P. 1000 Louisiana St., Ste. 5100 Houston, TX 77002 (713)
653-7809 rrivera@susmangodfrey.com

(See attached file: C.DTF)

Message 296 of 342

Re: Request Confidential Information by FERC

Sender	mary.hain@enron.com
Recipients	['tim.belden@enron.com', 'christian.yoder@enron.com', 'elizabeth.sager@enron.com', 'richard.sanders@enron.com']...
File	sanders-r/iso__pricecaps/13.

Thanks. I'm on top of it.

Christian Yoder 09/11/2000 08:06 AM To: Richard B Sanders/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT cc:
Mary Hain/HOU/ECT@ECT, Tim Belden/HOU/ECT@ECT Subject: Request Confidential Information by FERC

Since Mary has been handling the ISO investigation, I am assuming she is the point person for this one too. ---cgy
----- Forwarded by Christian Yoder/HOU/ECT on 09/11/2000 07:59 AM -----

Enron Capital & Trade Resources Corp.

From: <Terri_L_Ponce_de_Leon@calpx.com> 09/08/2000 04:21 PM

To: Market_Participant_AB1@calpx.com, Market_Participant_CD1@calpx.com, Market_Participant_CD2@calpx.com,
Market_Participant_EG1@calpx.com, Market_Participant_EG2@calpx.com, Market_Participant_HJ1@calpx.com,
Market_Participant_KL1@calpx.com, Market_Participant_KL2@calpx.com, Market_Participant_MN1@calpx.com,
Market_Participant_OR2@calpx.com, Market_Participant_ST1@calpx.com, Market_Participant_ST2@calpx.com cc:
Subject: Request Confidential Information by FERC

To All California Power Exchange Participants:

Notice is hereby provided pursuant to Section 19.3.4 of the California Power Exchange Tariff that the staff of the Federal
Energy Regulatory Commission (FERC), as part of its investigation of California markets, has requested information that

my be confidential under Section 19.3.2 of the Tariff. Such information consists of participant specific schedules and bids. The FERC staff has requested the California Power Exchange to provide such information no later than 24 business hours after the date of this notice. If you desire to assert a claim of privilege or confidentiality pursuant to FERC's regulations or other legal authority, the California Power Exchange will include your written assertion of that claim together with its submittal to the FERC staff, provided that it is timely received. Your written statement should be directed to FERC and delivered to:

Karen Koyano California Power Exchange 1000 S. Fremont Avenue Building A-9 W, Fifth Floor Alhambra, CA 91801
626.537.3173 facsimile

Information must be received no later than Tuesday, September 12, 2000, 9:00 A.M. PDT, to be included with any information delivered to the FERC staff. You are also free to take any other legal action you may deem appropriate in the circumstances of this investigation.

Thank you.

Message 297 of 342

RE: CPX - 12/18 Agenda

Sender	sgussett@reliant.com
Recipients	['pgurfein@akingump.com; jcrossen@apx.com;']
File	sanders-r/deleted_items/243.

As I understand it a committee meeting has been scheduled for 12/27. What is the agenda for this meeting? I would like to see if we can start having committee meetings less frequently than once a week. The time spent at weekly meetings does not seem necessary and could perhaps be handled in biweekly meetings with more subcommittee meetings to cover specific issues that can subsequently be raised with the entire committee. In addition, the meeting currently scheduled for 12/27 is during a time at which many of us will be on vacation and not able to participate. If there is something urgent, can we handle it this week or, if not, can it wait until the first week of January? I would like to hear other members thoughts on the frequency of the meetings. Sheryl

-----Original Message-----

From: adanker@kayescholer.com [mailto:adanker@kayescholer.com] Sent: Monday, December 17, 2001 1:23 PM To: pgurfein@akingump.com; jcrossen@apx.com; rich.stevens@avistacorp.com; david.burns@bakerbotts.com; khenry@bdo.com; jyoo@bdo.com; doug.anderson@calenergy.com; dag@dgdk.com; rdiamond@dgdk.com; richard.b.sanders@enron.com; kjohan@ladwp.com; ceklund@llgm.com; dwhitley@llgm.com; jnelson@llgm.com; lisa.mellencamp@enron.com; wbates@mdbe.com; mlubic@mdbe.com; jay.wilson@mirant.com; zack.starbird@mirant.com; tlauria@whitecase.com; featon@whitecase.com; guzzi@whitecase.com; rcamps@whitecase.com; pmar@mofo.com; hweg@pgwlaw.com; david.facey@powerex.com; dmbutz@butzdunn.com; amy.lee@bchydro.com; doug.little@powerex.com; gary.sherlock@bchydro.com; Gussett, Sheryl; john_h_stout@reliantenergy.com; rbeitler@sempratrading.com; ayudkowsky@stroock.com; ayudkowsky@earthlink.net; pjazayeri@stroock.com; aperlis@stroock.com; marccohen@kayescholer.com; aarbisser@kayescholer.com; adanker@kayescholer.com; kgold@kayescholer.com; tkent@kayescholer.com; mfranks@kayescholer.com; gcaplan@kayescholer.com; rleibow@kayescholer.com; v huntley@kayescholer.com; steekah@kayescholer.com; AWagner@kayescholer.com; apalma@kayescholer.com Subject: CPX - 12/18 Agenda

Dear Committee Member,

Attached below is the Agenda for our meeting on Tuesday, December 18, 2001 at 10:00 a.m. Pacific time. Also attached below is (i) a summary which Kaye Scholer prepared of the objections to the PG&E disclosure statement and (ii) a motion which PG&E filed for authorization to file preliminary objections to claims, including the PX claim, based on duplication. We will discuss our response to the latter motion, which is due on December 21, 2001, at the meeting.

For those attending in person, the meeting will be at Kaye Scholer in Conference Room 18A (proceed directly to the 18th floor via the elevator). For those calling in, the information is as follows:

Dial in #: (888) 830-6260 Participant Code: 615140

(See attached file: 23061110.pdf)Agenda (See attached file: 23060645.pdf) Summary (See attached file: 61012.pdf)PG&E motion

Message 298 of 342

RE: PX Committee

Sender	b..sanders@enron.com
Recipients	['jrnelson@llgm.com']
File	sanders-r/sent_items/375.

Sorry for the overreaction on Fri. I was having a very bad hair day. It see= ms like no harm, no foul. I need you to keep your finger on the pulse on th= is issue. I called Zach Starbird(Mirant) about the issue and he was surpri= sed that Mirant had voted in favor. Can you call Brian Holman and see where= they stand. If you know any of the other attys well enough, please call th= em and lobby them also.I am in South America this week, but would like to b= e on the conf. call thurs. Can you make sure I have the #s.

With respect to the PX settlement, I am an unenthusiastic supporter. Please= let me know if the proposal changes.

-----Original Message-----

From: =09"ROBERT NELSON" <JRNELSON@LLGM.COM>@ENRON [mailto:IMCEANOTES-+22RO= BERT+20NELSON+22+20+3CJRNELSON+40LLGM+2ECOM+3E+40ENRON@ENRON.com]=20 Sent:=09Friday, August 24, 2001 3:45 PM To:=09Sanders, Richard B. Cc:=09Ceklund@llgm.com Subject:=09PX Committee

Richard, sorry about the mix up. The damage has been undone with a call to= Weg and Cohen changing our vote to a loud no. I apologize. I really don'= t want to be out in front of the client, particularly in a case in which I = myself cringe at the creative ways lawyers are coming up with to keep thems= elves busy. When I couldn't reach you before the committee conference, I c= alled Lisa to ascertain whether she still was in the PX loop. We talked ab= out the committee call. She actually participated for the first few minute= s to express her view that our committee should not be filing in formal mot= ion to expand the PG & E committee. We briefly discussed the arbitration i= ssue, and she did not appear adverse to commencement of the arbitration. M= aybe that wasn't formal clearance to vote. Lesson learned. I want to avoi= d any such problem in the future. Unless I hear otherwise from you, on sub= stantive issues I won't vote until I clear positions with you personally. = However, we have to find a better way for me to get your take on particular= points because they will continue to arise as Weg and Cohen (not to mentio= n other attorneys who participate on the committee) urge the committee to t= ake actions in the interest of discharging our fiduciary duty. Case in poi= nt, the Weg settlement. Have you decided whether to withdraw the approval = you previously communicated. If it would help the communication, I'm perfe= ctly willing to talk with you evenings or weekends. Then again, you wife m= ight react like mine if her privacy at home is interrupted. In any event, = assuming that Enron wants to stay on the committee, probably a good idea ju= st to reign in the lawyers, let me know how we can most effectively communi= cate so that I know your position and can convey it when you are not availa= ble for a call. Incidentally, with you impending trip, feel free to call m= e over the weekend at 626-683-7644 if you want to discuss this further. Bo= b

"This e-mail, including attachments, contains information that is confident= ial and it may be protected by the attorney/client or other privileges. Th= is e-mail, including attachments, constitutes non-public information intend= ed to be conveyed only to the designated recipient(s). If you are not an i= ntended recipient, please delete this e-mail, including attachments, and no= tify me by return mail, e-mail or at (insert your telephone number). The u= nauthorized use, dissemination, distribution or reproduction of this e-mail= , including attachments, is prohibited and may be unlawful. J. Robert Nelson 725 Soth Figueroa St, Los Angeles, Ca. 90017-5436

Message 299 of 342

How to Contact West Desk Trading Legal Team: Wednesday through

Sender	christian.yoder@enron.com
Recipients	['tracy.ngo@enron.com', 'steve.hall@enron.com', 'tim.belden@enron.com', 'greg.wolfe@enron.com', 'shari.stack@e...]
File	sanders-r/all_documents/1308.

Certain scheduling complexities for each of Christian Yoder, Shari Stack and Steve Hall over the balance of the week can best be dealt with by keeping the following message around to refer to:

Christian Yoder: Out of office all of Wednesday and parts of Thursday and Friday to be with wife in surgery situation. Leave voice mails at office number: 503-464-7845 or call at home: 503-296-9523. Do not call pager because it is lost.

Shari Stack: In the Portland office on Wednesday and Friday at 503-464-7674, but in Phoenix pushing the EEI contract at a conference on Thursday. Leave voice mails at her Houston number 713-853-9477, or contact her Portland assistant Jan King at 503-464-8814.

Steve Hall: At west desk on Wednesday at 503-464-7795. Leave voice mails at this number on Thursday and Friday when he will be in Seattle.

We will all make every effort to remain responsive during this unusual time.----cgy

Message 300 of 342

Enron Corporate Identity : Business Cards and Letterhead

Sender	richard.sanders@enron.com
Recipients	['=20', 'twanda.sweet@enron.com']
File	sanders-r/all_documents/3583.

Please get me new cards. ----- Forwarded by Richard B Sanders/HOU/ECT on 08/26/99= =20 07:23 PM
----- =20 =09 =09 =09From: Enron NA Office of the Chairman 08/22/9= 9=20 10:04 PM =09

To: Enron North America cc: =20 Subject: Enron Corporate Identity : Business Cards and Letterhead

To: All Enron North America Employees

From: Enron Corporate Identity

Re: Business Cards and Letterhead

Due to the recent reorganization, Enron Capital & Trade Resources will be= =20 changing its name to Enron North America Corp. effective September 1st. = As=20 a result, we will need to replace letterhead and business cards for all=20 affected employees at our offices here in the U.S.

There are two separate groups of employees affected by this change: first,= =20 the employees who are now reporting into one of the global functions (i.e.,= =20 risk management or technology); second, those employees who focus their=20 efforts on the Enron North America business. =20

Those employees reporting at the global function level should have business= =20 cards and letterhead with Enron Corp. as the company name. Those who=20 continue to focus activities on Enron North America will need to replace=20 existing ECT business cards and letterhead with Enron North America=20 stationery. If you have questions on which company needs to go on your=20 stationery, please check with your management before submitting requests.

Please follow the instructions below in replacing these items.

Generic Letterhead:

Enron North America: Letterhead for the Houston, Portland, Denver and New York offices will be ready for ordering/delivery by August 27th. You should begin using this letterhead for all correspondence effective September 1st. You may use the order form attached below to request this item. It should be completed, then faxed or e-mailed to the Image Center for processing.

Form numbers for these items are as follows:

Houston Form # 413-05272 Portland Form # 413-05995 New York Form # 413-05774 Denver Form # 413-05096 San Francisco Form # 413-05397

Enron Corp.-Houston Office: Letterhead is available immediately. The Order # is 011-01350.

Non-Executive Business Cards:

Please complete the Personalized Stationery Request Form (attached below) and fax it to The Image Center. Requests will be processed on a first-come, first-serve basis. Timing on these cards should run 5-7 working days from the time the approved proof is returned.

Executive Letterhead/Business Cards:

Please complete the Personalized Stationery Request Form (attached below) and fax it to The Image Center. They will process requests on a first-come, first-serve basis. Keep in mind that personalized stationery is embossed or engraved, generally taking 10-15 working days to complete. While awaiting executive stock, it is recommended that you use the generic letterhead and either continue to use your ECT business cards, or place an order for non-executive, flat-print business cards. These cards can be done much faster than the embossed/engraved stock.

Envelopes:

There will be no changes made to the existing envelopes.

Mailing Labels:

If you currently have mailing labels that have ECT on them, please replace these with Form #000-0960.

For questions related to ordering these items, or to check on the status of your request once you have submitted your Order Form, you may contact Charles O'Kechukwo on 713/853-5408, Ruby Kinsfather at 713/853-3869 or Scott Terrell at 713/853-3386. For other questions, you may contact Marge Nadasky at 713/853-6631.

Attached below is the Order Form for generic letterhead and mailing labels, as well as the Personalized Stationery Request Form for personalized letterhead and business cards.

=20

Message 301 of 342

Re: Project Stanley - Outstanding Invoices

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com', 'dan.fournier@blakes.com', 'joanne.bennett@blakes.com', 'peter.keohane@enron.com']
File	sanders-r/all_documents/1098.

I have asked my paralegal, Linda Guinn, to look into the status of the bill and get back to you by Tues. Her direct no. is 713-853-6104.

"JOANNE BENNETT" <joanne.bennett@blakes.com> 12/01/2000 03:00 PM

To: <richard.b.sanders@enron.com> cc: "DAN FOURNIER" <dan.fournier@blakes.com>, <peter.keohane@enron.com>
Subject: Project Stanley - Outstanding Invoices

Mr. Sanders: ? The accounting department has advised us that our accounts rendered to you on July 31/00 (\$453,331.06) and?August 23/00 (\$48,000.42)?remain unpaid and outstanding on the Project Stanley file. ? Would you please call Dan Fournier (403-260-9636) or myself (403-260-9637) to discuss this matter.? Dan?would be more than happy to review the invoices with you if there is something unsatisfactory about them. ? Alternatively, we would appreciate it if you could attend to this matter as soon as possible as we would like to clear it off our books.? ? Thanks, ? ? Joanne Bennett Assistant to Dan Fournier Blake, Cassels & Graydon LLP 3500, 855 2nd Street S.W. Calgary, Alberta T2P 4J8 Tel: 403-260-9637 Fax: 403-260-9700 Email: joanne.bennett@blakes.com ? This email communication is confidential and legally privileged.? If you are not the intended recipient, please notify me at the telephone number shown above or by return email and delete this communication and any copy immediately.? Thank you.

Message 302 of 342

D&P/Lynx Pricing Issues

Sender	richard.sanders@enron.com
Recipients	['andrew.edison@enron.com']
File	sanders-r/sent/652.

----- Forwarded by Richard B Sanders/HOU/ECT on 12/29/2000 08:19 AM -----

Robert Walker 11/30/2000 08:13 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: D&P/Lynx Pricing Issues

Richard, I left you a message about this issue on Tuesday. I really need your input before we make the payments to Lynx. Could we meet today sometime or talk on the phone?

Thanks,

BOB.----- Forwarded by Robert Walker/HOU/ECT on 11/30/2000 08:12 AM -----

Cynthia Hakemack 11/28/2000 08:39 AM

To: Julie Meyers/HOU/ECT@ECT cc: Robert Walker/HOU/ECT@ECT, Melissa Graves/HOU/ECT@ECT Subject: D&P/Lynx Pricing Issues

Julie, I'm working with Legal and Bob Surles with Lynx Energy Company on some pricing issues regarding meter 6677. I have verified with Bob Fischer in the Transport Group the transportation rates that HPLC is paying to Gulf Coast Pipeline Company, which in turn must be paid to HPLC by Lynx Energy. Would you please change Sitara to reflect the transportation rates shown on the schedule below? Also, I've recalculated the average price and need you to make those changes too. Thanks.

Sitara Period Transport Rate Price 84425 07/99 \$.10 \$2.1847776 84425 08/99 \$.10 \$2.4957319 84425 09/99 \$.10 \$2.7938893 84425 10/99 \$.10 \$2.4148763 84425 11/99 \$.10 \$2.8992412 128331 12/99-02/00 \$.10 HSC less \$.10 166026 02/00-03/00 \$.10 HSC less \$.10 166026 04/00-fwd \$.20 HSC less \$.10

Message 303 of 342

Re: Infineum

Sender	richard.sanders@enron.com
Recipients	['jklauber@llgm.com']
File	sanders-r/all_documents/310.

Send the drafts at the same time.

"JOHN G KLAUBERG" <JKLAUBER@LLGM.COM> 07/26/2000 04:33 PM

To: <Richard.B.Sanders@enron.com> cc: Subject: Re: Infineum

Richard: actually, it is pretty clear. We definitely would never file any papers without running them through you. But on drafts of papers should we get your clearance first before sending to ECP or should we send out drafts to each of you simultaneously. I assume the latter. Could you let me know if you think differently. Thanks, Richard, and I'm sure we will be speaking soon. John

"This e-mail, including attachments, contains information that is confidential and it may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments and notify me by return mail, e-mail or by phone at 212 424-8125. The unauthorized use, dissemination, distribution or reproduction of the e-mail, including attachments, is prohibited and may be unlawful.

John Klauber LeBoeuf, Lamb, Greene & MacRae, L.L.P. 212 424-8125 jklauber@llgm.com

<Richard.B.Sanders@enron.com> 07/26/00 05:24PM >>>

Yes. I am the contact person at Enron. The LLGM attys should send me copies of all pleadings and drafts of any important pleadings--answers, counterclaims or motions for summary judgement--before they are filed. As for contact with the ECP people, I think your litigators can call them directly for incidental information. Any strategy calls should be made through me. I would suggest that they give me the option of participating on the initial calls w/ the ECP witnesses. I wil;l likely decline because of time constraints. Is that as clear as mud?

"JOHN G KLAUBERG" To: <Richard.B.Sanders@enron.com> <JKLAUBER@LLG cc: M.COM> Subject: Infineum

07/25/2000 09:12 AM

Richard: Could you let me know at your convenience if you should be the contact person for any LeBoeuf lawyer with respect to any correspondence, papers, questions, etc. in this matter. Do you want us to be sending any drafts of court papers that we prepare, for example, to ECP simultaneously with sending them to you or after you have reviewed them? I assume our litigators can contact the ECP folks directly to obtain any information or other materials that they may need, but please let me know if you would rather that they work through you. Thanks, Richard. I hope that all is going well. John

"This e-mail, including attachments, contains information that is confidential and it may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments and notify me by return mail, e-mail or by phone at 212 424-8125. The unauthorized use, dissemination, distribution or reproduction of the e-mail, including attachments, is prohibited and may be unlawful.

John Klauber LeBoeuf, Lamb, Greene & MacRae, L.L.P. 212 424-8125 jklauber@llgm.com

"This e-mail, including attachments, contains information that is confidential and it may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments and notify me by return mail, e-mail or by phone at 212 424-8125. The unauthorized use, dissemination, distribution or reproduction of the e-mail, including attachments, is prohibited and may be unlawful.

John Klauber LeBoeuf, Lamb, Greene & MacRae, L.L.P. 212 424-8125 jklauber@llgm.com

Message 304 of 342

FW: CEO apex depositions

Sender	james.derrick@enron.com
Recipients	['Kirsten M.' <kcastaneda@lockeliddell.com>, 'b..sanders@enron.com', 'Gary R.' <gpowell@lockeliddell.com>, 'Po...
File	sanders-r/deleted_items/111.

Should we participate? If so, who would write it?

-----Original Message-----

From: Fsmith008@aol.com@ENRON Sent: Saturday, October 20, 2001 8:22 PM To: peter.arbour@halliburton.com; tbattle@mitchellenergy.com; cbub@chevron.com; Derrick Jr., James; ted.m.frois@exxon.com; kerry.galvin@lyondell.com; david.garten@nli-usa.com; rick.a.harrington@usa.conoco.com; hughricekelly@reliantenergy.com; bob.kilpatrick@atofina.com; calambole@shellus.com; lemmerw@coopercameron.com; lynchjl@bp.com; mcquemg@texaco.com; Rplaeger@br-inc.com; kera@dynegy.com; bobby.reeves@oceanenergy.com; wfschwind@marathonoil.com; dtomlin@bem.tmc.edu; Jvogel@coair.com; bobtwhilden@bmc.com; brittonw@epenergy.com; Fsmith008@aol.com Subject: Fwd: CEO apex depositions

I am forwarding an E-mail from former Supreme Court Justice Raul Gonzalez which may be of interest to you. If so, his phone no. and those of his colleagues are contained in the E-mail. Freeman E. Smith

Return-Path: <RGonzalez@lockeliddell.com> Received: from rly-yb03.mx.aol.com (rly-yb03.mail.aol.com [172.18.146.3]) by air-yb01.mail.aol.com (v81.9) with ESMTP id MAILINYB17-1019190815; Fri, 19 Oct 2001 19:08:15 -0400 Received: from daex03.lockeliddell.com (mail.lockeliddell.com [204.0.73.15]) by rly-yb03.mail.aol.com (v81.9) with ESMTP id MAILRELAYINYB32-1019190806; Fri, 19 Oct 2001 19:08:06 2000 Received: by mail.lockeliddell.com with Internet Mail Service (5.5.2653.19) id <4SX5XV4P>; Fri, 19 Oct 2001 18:07:03 -0500 Message-ID: <4166C31A2813D411A54C00508B8BEA9ED25E77@auex02.lockeliddell.com> From: "Gonzalez, Raul A." <RGonzalez@lockeliddell.com> To: "Fsmith008@aol.com" <Fsmith008@aol.com> Cc: "Castaneda, Kirsten M." <kcastaneda@lockeliddell.com>, "Powell, Gary R." <gpowell@lockeliddell.com> Subject: CEO apex depositions Date: Fri, 19 Oct 2001 18:10:53 -0500 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-Type: multipart/alternative; boundary="-----_NextPart_001_01C158F3.4CBE1F30"

Freeman, we represent Jani-King. Their CEO was ordered to give a deposition in a case where he does not have unique or superior knowledge of discoverable information. Our attempts to get it quash or obtain relief from the court of appeals and the Supreme Court have been unsuccessful. This issue is of importance to the jurisprudence of the state because more and more CEO's are being requested to give depositions and there is confusion in the law as to what an apex deponent is required to state in the affidavit in order to trigger the apex deposition doctrine. Must the affidavit state that he/she does not have ANY knowledge of relevant facts, rather than saying that he/she does not have any UNIQUE OR SUPERIOR knowledge of relevant facts as the Supreme Court said in Alcatel USA ? At this point, our best chance in getting the court's attention is for the court to be flooded with amicus briefs requesting that the court take this case to resolve the conflict that exists among various courts of appeal. If the Supreme Court does not resolve the confusion that exist is the law at this time, litigants will continue to waste of time and money in fighting apex depositions. Can you please forward this email to your membership to see if anyone is interested enough to file a quick amicus brief? If anyone is interested, they can contact me or Kirsten Castaneda (214-740-8533) or Gary Powell (214-740-8470) in our Dallas office. Time is of the essence as the motion for rehearing is due next Friday. If this is not the proper protocol, I would appreciate hearing from you. Raul A. Gonzalez Locke Liddell & Sapp LLP (512) 305-4746 (512) 391-4746 fax

IMPORTANT/CONFIDENTIAL: This message from the law firm of Locke Liddell Sapp, LLP is intended only for the use of the addressees shown above. It contains information that may be privileged, confidential and/or exempt from disclosure under applicable law. If you are not the intended recipient of this message, you are hereby notified that the copying, use or distribution of any information or materials transmitted in or with this message is strictly prohibited. If you received this message by mistake, please immediately call us collect at (214) 740-8000 and destroy the original message. Thank you.

Message 305 of 342

Re: Dugas

Sender	richard.sanders@enron.com
Recipients	['michael.robison@enron.com']
File	sanders-r/sent/732.

Whatever happened to this?

Michael A Robison 01/10/2001 09:15 AM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: Dugas

Richard: Please review per my voicemail. Thanks, Mike EB3847 (713) 853-6667 DID (713) 646-4842 FAX

----- Forwarded by Michael A Robison/HOU/ECT on 01/10/2001 09:14 AM -----

Michael A Robison 01/09/2001 11:25 PM

To: John L Nowlan/HOU/ECT@ECT, Jim Goughary/HOU/ECT@ECT, Ted Robinson/HOU/ECT@ECT cc: Subject: Dugas

I've been tied up with the Envera deal so I have not had much time to draft the attached letter. It is very direct and you may want to take a different approach. Let's discuss.

Mike EB3847 (713) 853-6667 DID (713) 646-4842 FAX

Message 306 of 342

FW: BellSouth contract

Sender carol.st.@enron.com

Recipients ['b..sanders@enron.com']

File sanders-r/inbox/54.

Richard: Per my voice mail message.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 281-890-8862 (home fax)
carol.st.clair@enron.com

-----Original Message-----

From: Raab, Eric Sent: Wednesday, August 29, 2001 9:00 AM To: St. Clair, Carol; Merten, Eric; Rohauer, Tanya; Wilhite, Jane Cc: Abraham, John; Russ, Mark Subject: BellSouth contract

BellSouth is offering us a great rate to Latin America which we can use if we move quickly. I propose using their contract to buy from them -- they do not want to review the Enron agreement, plus theirs looks pretty light and allows monthly billing. (If we ever sell to them we will use our contract). The only business issues I have with their agreement are: (1) Rate increase should be 7 days; (2) All access and recurring charges on Exhibit 1 should be set to \$0.

Please call to discuss.

Eric x52631

Message 307 of 342

Re: Texas Litigation Counsel

Sender richard.sanders@enron.com

Recipients ['sharon.crawford@enron.com', 'duane_alexander@transcanada.com', 'peter.keohane@enron.com']

File sanders-r/sent/729.

My first choice is Carrin Patman or Bruce Oakley at Bracewell--Tel. no. 713-223-2900. My second choices are Ron Welch and Knox Nunnally at Vinson And Elkins #713-758-2222. Lastly, Barrett Reasoner at Gibbs and Bruns #713-650-8805. Of course if TransCanada is already a defendant, I might recommend different counsel depending on which judge they drew. If Duane has any questions please have him call me at 713-853-5587.

Peter Keohane Sent by: Sharon Crawford 01/22/2001 04:08 PM

To: Richard B Sanders/HOU/ECT@ECT cc: duane_alexander@transcanada.com Subject: Texas Litigation Counsel

Richard, a friend of mine at TransCanada Energy is looking to retain Houston-based litigation counsel, and was wondering who we could recommend. He assures me that the matter does not involve an Enron entity. Accordingly, could you please provide me with a name and contact for litigation counsel you would recommend at V&E, Bracewell Patterson, Andrews & Kurth or otherwise?

Many thanks, Peter

Message 308 of 342

RE: *

Sender	carol.st.@enron.com
Recipients	['b..sanders@enron.com']
File	sanders-r/deleted_items/196.

Richard: Are we meeting in 3321?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Sanders, Richard B. Sent: Friday, October 26, 2001 11:47 AM To: Haedicke, Mark E.; Schuler, Lance (Legal); St. Clair, Carol; Murray, Julia; McCullough, Travis Subject: *

This will confirm that the meetings with Weil for Sat and Sun will begin at 10am. Mark wants the entire team to be present for the Sat meeting. We will decide after that meeting who needs to be present on Sun. I have sent Weil a number of materials, including the 3rd quarter results given to the analysts. We anticipate that Sat will be a lawyers only meeting to discuss the corporate structure and the bankruptcy issues related to the different business units. The meeting will probably last 4-5 hours.

The Sun meeting will include the commercial team. An agenda will be prepared, but most of the day will be devoted to information gathering and brainstorming.

Message 309 of 342

Attorneys

Sender	jeff.dasovich@enron.com
Recipients	['b..sanders@enron.com']
File	sanders-r/senator_dunn_inv_/84.

You get this? Scott said that it bounced back to him the first time.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 07/26/2001 07:16 PM -----

"Scott Govenar" <sgovenar@govadv.com> 07/26/2001 06:27 PM Please respond to sgovenar To: <richard.sanders@enron.com>, "Susan J Mara" <smara@enron.com>, "Jeff Dasovich" <jdasovic@enron.com>, "Paul Kaufman" <paul.kaufman@enron.com>, "Steven Kean" <Steven.J.Kean@enron.com> cc: "Hedy Govenar" <hgovenar@govadv.com> Subject: Attorneys

As we discussed on yesterday's conference call, the following attorneys are experts on the California Public Records Act, which is the applicable Act for retrieving information from the California Legislature. The first two names were provided by

the California Newspaper Association (Enron was not mentioned) and the third name comes from our associate Mark Harris. We often work with the fourth attorney on other issues and he does have some experience in this area however he should be used primarily if the other attorney's do not work out.

Charity Kenyon Riegels, Campos & Kenyon (916) 779-7100

Karl Olson Levy, Ram, Olson & Rossi (415) 433-4949

Kevin Culhane Hansen, Boyd, Culhane & Watson (916) 444-2550

Phil Recht Mayer, Brown & Platt (213) 229-9500

Message 310 of 342

(no subject)

Sender	kje451@aol.com
Recipients	[richard.b.sanders@enron.com]
File	sanders-r/misc/24.

Dear Richard:

This is the contact information of the two guys I mentioned at lunch. I know both of these guys and have worked with them. As I indicated they are both technically savvy and have been in the construction side of the business as well as management.

Joe Richards is a trouble shooter. He can go in to finish a project when it gets into trouble. He has a lot of experience in construction, startup and recently as recovery specialist. He was recently down in Columbia completing the Termo Valle project for Marubeni. He is currently on a job in Connecticut and can be reached on his cell at 832-654-5070. His hotel number is 203 777-5337. His email is: thestartup@aol.com

Upshur Quinby is a technical and construction guy that looks at designs and can identify incorrect designs and potential areas for cost overrun. He started in construction with Bechtel and ended up as a President of an Ebasco subsidiary. Phone is 757-874-9056; cell 757-593-6100; email : crsquinby@aol.com

These guys know a lot about the industry, the players, and history on a lot of the projects. They are straight shooters and will tell it to you as they see it.

You should give them a call an introduce yourself when you have a chance. I have spoken to them both so they will recognize the name and take your call.

Regards, Jim

Message 311 of 342

Project Stanley - Outstanding Invoices

Sender	richard.sanders@enron.com
Recipients	[linda.guinn@enron.com]
File	sanders-r/sent/596.

----- Forwarded by Richard B Sanders/HOU/ECT on 12/01/2000 03:43 PM -----

"JOANNE BENNETT" <joanne.bennett@blakes.com> 12/01/2000 03:00 PM

To: <richard.b.sanders@enron.com> cc: "DAN FOURNIER" <dan.fournier@blakes.com>, <peter.keohane@enron.com>
Subject: Project Stanley - Outstanding Invoices

Mr. Sanders: ? The accounting department has advised us that our accounts rendered to you on July 31/00 (\$453,331.06) and?August 23/00 (\$48,000.42)?remain unpaid and outstanding on the Project Stanley file. ? Would you please call Dan Fournier (403-260-9636) or myself (403-260-9637) to discuss this matter.? Dan?would be more than happy to review the invoices with you if there is something unsatisfactory about them. ? Alternatively, we would appreciate it if you could attend to this matter as soon as possible as we would like to clear it off our books.?? Thanks, ? ? Joanne Bennett Assistant to Dan Fournier Blake, Cassels & Graydon LLP 3500, 855 2nd Street S.W. Calgary, Alberta T2P 4J8 Tel: 403-260-9637 Fax: 403-260-9700 Email: joanne.bennett@blakes.com ? This email communication is confidential and legally privileged.? If you are not the intended recipient, please notify me at the telephone number shown above or by return email and delete this communication and any copy immediately.? Thank you.

*Message 312 of 342***Transfer of Farallon/Legg Mason Files**

Sender	richard.sanders@enron.com
Recipients	['twanda.sweet@enron.com']
File	sanders-r/all_documents/1186.

Please prepare this letter asap ----- Forwarded by Richard B Sanders/HOU/ECT on 12/27/2000 10:31 AM -----

SHoward@milbank.com 12/26/2000 03:13 PM

To: Richard.B.Sanders@enron.com cc: Subject: Transfer of Farallon/Legg Mason Files

Richard,? Could you get a letter off by fax this week to Erica Tambllyn, Administrator, at Milbank Los Angeles (1) advising her that you want me to handle the Farallon (35509-00300) and Legg Mason (35509-00400) cases at my new firm, Alschuler, Grossman, Stein & Kahan, along with continuing participation by Roland Tellis at Milbank, and (2) requesting that Ms. Tambllyn transfer to Alschuler such of the files in the two cases as I may from time to time direct.? Milbank needs to get this letter before they can transfer any of the files to me at my new firm.

Call me if you have any questions.? Thanks.

Steve

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*Message 313 of 342***CAISO Notice: Subpoena from the California State Senate Select Co**

Sender	susan.mara@enron.com
Recipients	['rcarroll@bracepatt.com', 'christian.yoder@enron.com', 'richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/448.

Are we OK with this confidential treatment?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/15/2001 11:21 AM -----

CRCommunications <CRCommunications@caiso.com> 05/15/2001 09:13 AM Please respond to "Sole, Jeanne"; Please respond to " Formanek, Norma" ; Please respond to " Robinson, Charlie" To: ISO Market Participants <IMCEAEX-_O=CA ISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc:

Subject: CAISO Notice: Subpoena from the California State Senate Select Committee to Investigate Price Manipulation of the Wholesale Energy Market

Market Participants and Scheduling Coordinators:

Attached please find a letter from the California State Senate Select Committee to Investigate Price Manipulation of the Wholesale Energy Market indicating the confidential treatment it will afford confidential information submitted by the CA ISO to the Committee in response to the subpoena circulated to Market Participants on April 30 (attached). The letter provides that the deadline for a response by the CA ISO is extended to Friday, May 18 at 9:00 AM. This message is to inform Market Participants that the CA ISO will comply with the subpoena in a timely manner unless it gets a valid court order to the contrary by close of business (5:00 PM) Thursday, May 17. The CA ISO will seek confidential treatment under the letter for information subject to 20.3 of the CA ISO tariff and other confidential material.

Any concerns relating to the subpoena should be communicated to Jeanne Sole at 916-608-7144 and jsol@caiso.com <mailto:jsol@caiso.com> and copied to Charlie Robinson at crobinson@caiso.com <mailto:crobinson@caiso.com> and Norma Formanek at nformanek@fbm.com <mailto:nformanek@fbm.com> . The relevant contact related to the subpoena is on the subpoena itself. Jeanne M. Sol? Regulatory Counsel California ISO (916) 608-7144

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- Senate Confidentiality Agmt.pdf - SenatorS.pdf

Message 314 of 342

CAISO Notice: Subpoena from the California State Senate Select Co

Sender	susan.mara@enron.com
Recipients	['rcarroll@bracepatt.com', 'christian.yoder@enron.com', 'richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/346.

Are we OK with this confidential treatment?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/15/2001 11:21 AM -----

CRCommunications <CRCommunications@caiso.com> 05/15/2001 09:13 AM Please respond to "Sole, Jeanne"; Please respond to " Formanek, Norma" ; Please respond to " Robinson, Charlie"

To: ISO Market Participants

<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: CAISO Notice: Subpoena from the California State Senate Select Committee to Investigate Price Manipulation of the Wholesale Energy Market

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Norma Formanek at nformanek@fbm.com <mailto:nformanek@fbm.com> . The relevant contact related to the subpoena is on the subpoena itself. Jeanne M. Sol, Regulatory Counsel California ISO (916) 608-7144

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- Senate Confidentiality Agmt.pdf - SenatorS.pdf

Message 315 of 342

Amendment of the CPUC subpoena for production on June 4 with mont

Sender	susan.mara@enron.com
Recipients	['rcarroll@bracepatt.com', 'christian.yoder@enron.com', 'richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/464.

This one is due Monday! Lots of notice.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/03/2001 11:08 PM -----

"Borchardt, Tiffaney" <TBorchardt@caiso.com> 06/01/2001 05:50 PM To: ISO Market Participants <IMCEAEX-_O=CAISO_O_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: Amendment of the CPUC subpoena for production on June 4 with mont hly updates, and clarification on confidential treatment

To Market Participants and Scheduling Coordinators:

Today the ISO received an amendment to the subpoena from the California Public Utilities Commission ("CPUC") issued May 25 (and circulated to Market Participants on that date) and requiring a response by June 4. The subpoena of May 25 and the amendment require monthly updates on an ongoing basis. The ISO intends to comply with the monthly update requirement. In addition, the ISO received a letter from the CPUC clarifying the confidential treatment it will afford confidential information produced in response to the subpoena and amendment. The May 25 subpoena and the amendment and letter on confidentiality are attached.

In its June 4 production and subsequent monthly updates, the ISO will mark as confidential documents it produces to the CPUC that contain information subject to 20.3.2, and will request confidential treatment in accordance with the CPUC's letter on confidentiality. Concerns related to the subpoena should be relayed directly to the California Public Utilities Commission. The CPUC contact related to the subpoena is Robert Cagen who can be reached at (415) 703-2197. The ISO would appreciate being notified also of any concerns. The ISO contacts are Jeanne Sol? at jsol@caiso.com and Norma Formanek at <mailto:nformanek@fbm.com> nformanek@fbm.com both of whom should be copied on correspondence.

Jeanne M. Sol? Regulatory Counsel California ISO (916) 608-7144

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- CPUC May 25 Subp.pdf - CPUC Subpoena.pdf

Message 316 of 342

Amendment of the CPUC subpoena for production on June 4 with mont

Sender	susan.mara@enron.com
Recipients	['rcarroll@bracepatt.com', 'christian.yoder@enron.com', 'richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/362.

This one is due Monday! Lots of notice.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/03/2001 11:08 PM -----

"Borchardt, Tiffany" <TBorchardt@caiso.com> 06/01/2001 05:50 PM

To: ISO Market Participants

<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: Amendment of the CPUC subpoena for production on June 4 with mont hly updates, and clarification on confidential treatment

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Jeanne M. Sol, Regulatory Counsel California ISO (916) 608-7144

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- CPUC May 25 Subp.pdf - CPUC Subpoena.pdf

Message 317 of 342

Re: TEPAC Distributors Agreement

Sender	richard.sanders@enron.com
Recipients	['janice.moore@enron.com']
File	sanders-r/sent/198.

We could agree to non exclusive jurisdiction in Tenn., but not exclusive jurisdiction. As for the arbitration forum, my preference would be a major regional metro area--Atlanta comes to mind.

Janice R Moore 07/25/2000 01:13 PM

To: Richard B Sanders/HOU/ECT@ECT cc: Subject: TEPAC Distributors Agreement

This is the note I just mentioned. The question to you is in the last paragraph. Regards, Janice

EB3861 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-4842) ----- Forwarded by Janice R Moore/HOU/ECT on 07/25/2000 01:12 PM -----

Janice R Moore 07/20/2000 06:41 PM

To: Jason R Wiesepape/HOU/ECT@ECT, Phil DeMoes/Corp/Enron@ENRON, Elizabeth Sager/HOU/ECT@ECT cc: Richard B Sanders/HOU/ECT@ECT Subject: TEPAC Distributors Agreement

Recapping our call w/ Keith Simmons (TEPAC's outside counsel) this afternoon, we still have the following issues to resolve (the first three are the most important to TEPAC). (1) Subrogation against TVA -- Keith doubts that TEPAC would ever agree to Section 4.5, despite our expressed need to be able to challenge TVA directly on its cut of energy we attempt to deliver or its calculation of Replacement Costs. Keith suggested that Jason and Phil speak directly to Larry Hamilton about this subject, and they will attempt to do that soon. (2) Mitigation Duty -- They are not comfortable w/ a duty to mitigate Replacement Cost damages that are calculated by TVA b/c they cannot foresee circumstances where any action or failure to act could have any impact on those damages. We explained that we wanted the Distributors to have every incentive to cooperate w/ us in keeping those damages minimized. They might be willing to concede on this point if we can work out everything else. (3) EPMI's Cover Damages -- They are not very comfortable agreeing to the concept that a Distributor would have to pay damages to EPMI b/c they cannot imagine how they could be responsible for failing to receive an "into" product such as this. We both agreed to reconsider this. (4) Criteria for Enron's rejection of Distributor -- Our right to approve Distributors is ok, but they want to add language to prevent EPMI from being arbitrary about those approvals. We agreed. (5) Notice of changes to underlying agreements -- Their duty to notify us it ok, but they want to add language that is in line w/ their Distributor agreements, which don't absolutely require Distributors to tell TEPAC everything. We agreed. (6) Request for offers -- They would prefer that EPMI call them every day w/ quotes (which is how Williams does it now), rather than having to initiate the process. We described this as our normal way of doing business and they agreed. (7) Indemnity clause -- We struck a sentence about each party indemnifying the other while they have title to the power, which had been included in our earlier draft. I agreed to look into this. (8) Governing Law and Arbitration -- TEPAC is ok w/ NY law, but would prefer including a clause requiring EPMI to sue TEPAC or any distributor in Tennessee (even tho Keith thinks that would be the legal result anyway). They would also prefer to have the arbitration situs in Tennessee. We both agreed to reconsider this. Richard: What do you think about that?

Any comments are welcome.

Regards, Janice

EB3861 Assistant General Counsel, Enron North America Corp. 713-853-1794 (Fax: 713-646-4842)

Message 318 of 342

Re: CalPX is going to court to have PG&E's ISO payment put in

Sender	richard.sanders@enron.com
Recipients	['steve.hall@enron.com', 'christian.yoder@enron.com', 'gfergus@brobeck.com', 'chris.stokley@enron.com']
File	sanders-r/sent/888.

There is a conference call on Monday that I have asked the Quinn Emanuel folks to participate in. If anyone else wants to participate, contact Bill Urquhart. I am out on Spring Break but can be reached at 713-410-6128 or 817-922-0998

Steve C Hall 03/08/2001 08:11 PM

To: Richard B Sanders/HOU/ECT@ECT, gfergus@brobeck.com, Christian Yoder/HOU/ECT@ECT cc: Murray P O'Neil/HOU/ECT@ECT, Chris Stokley/HOU/ECT@ECT Subject: CalPX is going to court to have PG&E's ISO payment put in escrow

Earlier this week, PG&E paid \$177 million to the ISO. The ISO has not distributed that money to creditors because of the Enron v. CalPX suit. As documented in an earlier e-mail, Chris Stokley, Murray O'Neill, and I called the ISO's treasurer and explained that the judge's order expressly excluded payments to the CAISO from the PX's general right not to pay creditors.

The ISO now informs us that the CalPX plans to have PG&E's payment transferred to the PX into an escrow account. I copied the key part of the ISO's document below, and the full document is attached.

"Additionally, the ISO received \$171,116,114.43 (\$177 million less GMC obligation) directly from PG&E. PG&E indicated the funds were to be applied in payment of California Power Exchange ("Cal PX") obligations. The ISO has been contacted by the Cal PX, and they have indicated they believe they are entitled to such funds and that such funds are subject to a pending action in federal court entitled "Enron Power Marketing, Inc. and Enron Corp. v. California Power Exchange Corporation", Case No. 01-00901CM (Central District of California. The Cal PX has indicated they plan to seek an order within the next 7-10 days with the Court to have the funds transferred to the Cal PX for deposit into an escrow account pursuant to Judge Moreno's Preliminary Injunction. These funds are being held by the ISO in a segregated interest bearing account pending resolution of this issue by that court."

I think we all would agree that the money belongs to ISO creditors, and that the PX has no claim on these funds. My guess is that the PX would like to have this money so that it can deduct administrative expenses from it.

If I can provide more information on this, let me know.

Steve ----- Forwarded by Steve C Hall/PDX/ECT on 03/08/2001 06:00 PM -----

"Woertz, Byron" <BWoertz@caiso.com> on 03/08/2001 05:23:16 PM To: ISO Market Participants
<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTI
CIPANTS@caiso.com> cc: SC Settlements Contacts
<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=SCSETTLECONTACTS@caiso.com>,
"Leiber, Phil" <PLEiber@caiso.com>

Subject: CAISO Notice - Distribution of Funds on December, 2000 Preliminary Invoice

ISO Market Participants SC Settlement Contacts Attached is a report of the ISO's distribution of funds received based on the December 2000 preliminary invoice. <<03082001 ISO Market Participants Notice - December Billing.doc>> We will also hold a conference call tomorrow afternoon, 1:00 p.m. - 2:00 p.m. PST, to address any outstanding questions you may have regarding this fund distribution. We will conclude the Market Stabilization conference call by 1:00 p.m. PST so that we can address both topics with East- and West-Coast clients before the weekend. The call information is as follows:
Call-In Number: 877-381-6005 Passcode: 760357 Leader: Byron Woertz

Byron B. Woertz, Jr. Director, Client Relations (916) 608-7066

- 03082001 ISO Market Participants Notice - December Billing.doc

Message 319 of 342

Claim in NSM bankruptcy

Sender	showard@milbank.com
Recipients	[paronzon@milbank.com', 'sbhalla@milbank.com', 'lmellen@ect.enron.com', 'richard.b.sanders@enron.com']
File	sanders-r/all_documents/345.

Claim in NSM bankruptcy

I am attaching for reference a copy of an e-mail sent to us today by Wilailuk Okanurak of Linklaters in Thailand.

Ms. Okanurak refers to three potential claims--one based on Enron's equity position/purchase, one based on the management agreement, and one based on litigation/indemnification.? As I understand Ms. Okanurak's e-mail, she is asking Milbank for assistance with the third of the three claims; and we will provide it.? If you want us to assist Ms.

Okanurak in any other respect, please let us know.

With respect to the litigation/indemnification claim, Sabina Bhalla in our Los Angeles office has spoken with Ms. Okanurak by telephone tonight and is faxing her (1) a copy of the 3/2/98 Purchase Agreement between NSM and the four Initial Purchasers, on which any contractual indemnity claim by Enron or any of its affiliates would be based, and (2) copies of the complaints in all of the U.S. litigations, including the two in CA that name ECT Securities, i.e., the litigations against which Enron asserts a claim for indemnification.? In addition, I will draft a narrative description of the litigation/indemnification claim for use by Ms. Okanurak.? I will send you all a draft as soon as I have it.

Everyone needs to think very carefully about what entity asserts each claim and against what entity.? (There are at least three "NSM's--the publicly owned Thai company, its wholly owned, Cayman Islands subsidiary, and the Cayman Islands company's wholly owned Delaware subsidiary.)? The litigation/indemnification claim is owned by ECT Securities Corp. or whatever entity has succeeded ECT Securities Corp.? ECT Securities Corp. is the party to all of the relevant documents; but plaintiffs at least believe that that entity has been succeeded by something called ECT Securities Limited Partnership.? Lisa and Richard will need to tell me the precise corporate history here.

Similarly, it looks to me like the owner of the equity claim is ECT Thailand Investments, Inc.--that entity at least is the party to the Shareholders Agreement with NSM.

I don't know who owns the claim under the management agreement, because, frankly, I don't understand that claim.

Finally, some questions:

Why isn't some Enron entity making a straight collection claim under the C notes, or did Enron sell those to Oaktree along with the Bs?

Similarly, shouldn't the appropriate Enron entity assert a fraud claim in connection with its purchase of the B and C notes to parallel the equity claim referred to by Ms. Okanurak, which I assume is basically a fraud claim in connection with Enron's purchase of equity from NSM and some of its principal shareholders.

I am in deposition in NY tomorrow but will call my voicemail hourly.? Sabina will be in deposition in LA and will also call her voicemail hourly.? Sabina can leave the deposition, if anyone needs her support.? My number is 213-892-4478; I don't recall Sabina's direct line, but you can reach her through our main number: 213-892-4000.

Steve Howard Milbank, Tweed, Hadley & McCloy LLP showard@milbank.com 213-892-4478; 213-892-4748 (fax)

?

-----Original Message-----

From:?? RIGHTFAX E-MAIL GATEWAY Sent:?? Tuesday, August 01, 2000 4:44 PM To:???? Howard, Steve
Subject:???????? A new fax has arrived from Milbank Tweed LA (Part 1 of 1)

Time: 8/1/00 4:42:33 PM Received from remote ID: Milbank Tweed LA Inbound user ID SHOWARD, routing code 4748

Result: (0/352;0/0) Successful Send Page record: 1 - 3 Elapsed time: 01:08 on channel 7

Fax Images: [double-click on image to view page(s)] <<Fax Image.TIF>>

This e-mail message may contain legally privileged and/or confidential information. If you are not the intended recipient(s), or the employee or agent responsible for delivery of this message to the intended recipient(s), you are hereby notified that any dissemination, distribution or copying of this e-mail message is strictly prohibited. If you have received this message in error, please immediately notify the sender and delete this e-mail message from your computer.

- AFAXLA0007827.TIF

Message 320 of 342

CAISO NOTICE: Bureau of State Audits subpoena and document request

Sender	susan.mara@enron.com
Recipients	[gfergus@brobeck.com', 'mary.hain@enron.com', 'richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/139.

----- Forwarded by Susan J Mara/NA/Enron on 12/18/2000 02:02 PM -----

"Woertz, Byron" <BWoertz@caiso.com> Sent by: "Grant, Colleen" <CGrant@caiso.com> 12/18/2000 01:41 PM Please respond to "Sole, Jeanne"

To: ISO Market Participants

<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: CAISO NOTICE: Bureau of State Audits subpoena and document request

Market Participants and Scheduling Coordinators:

On December 4, 2000, the ISO provided notice regarding the subpoena and document request it received from the Bureau of State Audits ("Bureau") for information that is confidential under ISO Tariff Section 20.3.2. This notice requests Market Participants to treat the detailed data request issued by the State Auditor as confidential. In addition this notice updates Market Participants on the ISO's schedule for compliance with the State Auditor's subpoena and data request.

The December 4 notice included a detailed data request. The State Auditor has informed the ISO that it considers the detailed data request to be a confidential document and has asked the ISO to inform Market Participants that received the detailed data request that they should treat the document as confidential. The ISO hereby informs Market Participants on behalf of the State Auditor that the detailed data request should be treated as a confidential document.

The December 4 notice indicated that the ISO will seek protection for information subject to Section 20.3.4 under the Confidentiality Agreement executed by the ISO and the Bureau. The notice requested that any concerns relating to the Bureau's subpoena and/or document request be communicated to the ISO by 9:00 a.m., December 8th. In response to the notice, several market participants have objected to disclosure of confidential information to the Bureau.

Section 20.3.4 of the ISO Tariff provides, in pertinent part, that: "The Market Participant may, at its sole discretion and own cost, direct any challenge to or defense against the disclosure requirement and the ISO shall cooperate with such affected Market Participant to the maximum extent practicable to minimize disclosure of the information consistent with applicable law." In accordance with that provision, objecting Market Participants have the responsibility to pursue more restrictive confidentiality protections to the extent they are dissatisfied with the protections in place. Accordingly, the ISO through this notice places Market Participant's on notice that it will release confidential information requested by the State Auditor by the end of this week, if it does not receive an order to the contrary from a Court or the Federal Energy Regulatory Commission by close of business Thursday December 21.

The Bureau contact related to the subpoena and document request is Sharon Smagala who can be reached at (916) 445-0255 or sharons@bsa.ca.gov.

Generally, Market Participants wishing to contact the ISO in regard to the State Auditor request should direct correspondence and calls to Beth Ann Burns at 916-608-7146 bburns@caiso.com <<mailto:bburns@caiso.com>> with copies to Charlie Robinson at crobinson@caiso.com <<mailto:crobinson@caiso.com>> and Norma Formanek at nformanek@fbm.com <<mailto:nformanek@fbm.com>> . This week, due to holiday vacations, Market Participants should contact Jeanne Sol, 916-608-7144 jsole@caiso.com <<mailto:jsole@caiso.com>> with copies to Beth Ann Burns, bburns@caiso.com <<mailto:bburns@caiso.com>> , Charlie Robinson at crobinson@caiso.com <<mailto:crobinson@caiso.com>> and Norma Formanek at nformanek@fbm.com <<mailto:nformanek@fbm.com>> .

Jeanne M. Sol, Regulatory Counsel California ISO (916) 608-7144

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Privileges. Unauthorized Use, Dissemination, Distribution, Or Reproduction Of This Message Is Strictly Prohibited.

Message 321 of 342

Re: Enron Gas Liquids Europe S.A.R.L - liquidation

Sender	richard.sanders@enron.com
Recipients	['john.schwartzenburg@enron.com', 'robert.williams@enron.com', 'britt.davis@enron.com']
File	sanders-r/all_documents/738.

Sorry Bob--too late, this case belongs to you. Seriously, I have asked Britt Davis to help me sort this out. He has been heading up the effort to (finally) get rid of this case

Robert C Williams@ENRON_DEVELOPMENT 10/09/2000 02:39 PM

To: John Schwartzenburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Sue Kelly/LON/ECT@ECT@ENRON, Kate Cole/Corp/Enron@ENRON, John Echols/Enron Communications@Enron Communications@ENRON, Justin Boyd/LON/ECT@ECT@ENRON, Teresa Callahan/Corp/Enron@Enron, Wyndel McNamara/NA/Enron@Enron, Richard Sanders Subject: Re: Enron Gas Liquids Europe S.A.R.L - liquidation

I think Richard Sanders is managing this litigation. The other party is Interfert. And John, trust me, since I managed this while at ECT (nka ENA), you don't want to give Richard any reason to transfer it to you (or to me). Its a pain. Besides, I can't imagine that this would be under EECC, but the accounting boys never cease to amaze.

John Schwartzenburg 10/09/2000 01:58 PM To: Sue Kelly/LON/ECT@ECT@ENRON cc: Kate Cole/Corp/Enron@ENRON, John Echols/Enron Communications@Enron Communications@ENRON, Justin Boyd/LON/ECT@ECT@ENRON, Teresa Callahan/Corp/Enron@Enron, Wyndel McNamara/NA/Enron@Enron, Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: Re: Enron Gas Liquids Europe S.A.R.L - liquidation

Yikes! Justin, if you folks are litigating a case involving this entity, then EECC needs to be aware of it, including myself as the GC and our litigation managers, Bob Williams and Gail Brownfeld. Can you please let me know what the nature of the case is, including it's status, and which Enron lawyers are handling it?

Kate, it might be that entity is just improperly shown as an EECC entity. Justin, can you tell us who the Enron commerical people involved with the case are?

Sue Kelly@ECT 10/09/2000 01:29 PM To: Kate Cole/Corp/Enron@ENRON cc: John Schwartzenburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT@ENRON, John Echols/Enron Communications@Enron Communications@ENRON, Justin Boyd/LON/ECT@ECT, Teresa Callahan/Corp/Enron@Enron, Wyndel McNamara/NA/Enron@Enron

Subject: Re: Enron Gas Liquids Europe S.A.R.L - liquidation

Hello ther

I understand from Justin that this is ongoing and will not be finalised until outstanding litigation is resolved. I understand that you guys in Houston are running this one?

Sue.

Kate Cole@ENRON 09/10/2000 16:06 To: John Schwartzenburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, John Echols/Enron Communications@Enron Communications, Sue Kelly/LON/ECT@ECT, Justin Boyd/LON/ECT@ECT cc: Teresa Callahan/Corp/Enron@Enron, Wyndel McNamara/NA/Enron@Enron

Subject: Re: Enron Gas Liquids Europe S.A.R.L - liquidation

John - I knew that this was tickling my memory and suddenly I remembered! Back in 1997 John Echols was appointed liquidator to continue the process of liquidating Enron Gas Liquids Europe S.A.R.L. (which I presume is the same entity to which you refer).

By copy email I'm asking John Echols, Sue Kelly and Justin Boyd what happened to the liquidation proceedings. Does the entity still exist and if not, how can we get copies of the liquidation evidence.

Thanks Kate

Kate B. Cole Director, Corporate Services Enron Corp. Tel: (713) 853-1624 FAX: (713) 646-8007 Email: kate.cole@enron.com

John Schwartzburg@ENRON_DEVELOPMENT 10/02/2000 12:05 PM

To: Kate Cole/Corp/Enron@ENRON cc: Wyndel McNamara/NA/Enron@ENRON, Teresa Callahan/Corp/Enron@Enron
Subject: Re: Enron Hydro Modernization Company

Hi, Kate. It surely can wait that long.

By the way, we have another company that somehow has been allocated to us, Enron Gas Liquids, a French Company, that EECC was surprised to find it owns and has no use for, so we would like to liquidate it as well. Is that something your gang would handle as well, just to make sure that no other Enron entity needs it?

Kate Cole@ENRON 09/29/2000 05:06 PM To: Wyndel McNamara/NA/Enron@ENRON cc: John Schwartzburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Teresa Callahan/Corp/Enron@Enron

Subject: Re: Enron Hydro Modernization Company

Hopefully this can wait until w/c 10/9 as Teresa and I will be out of the office until then. Teresa will send out a dissolution memo to ensure that everybody is on the same page and then Corporate Legal will prepare the documents. You don't have to do anything else! Thanks Kate

Kate B. Cole Director, Corporate Services Enron Corp. Tel: (713) 853-1624 FAX: (713) 646-8007 Email: kate.cole@enron.com

Wyndel McNamara 09/29/2000 03:26 PM

To: Kate Cole/Corp/Enron@ENRON cc: Teresa Callahan/Corp/Enron@Enron, John Schwartzburg/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Enron Hydro Modernization Company

I have been instructed to dissolve the above listed domestic company. Please tell me what I need to do to accomplish this task.

Thank you for your help in this matter,

Wyndi

Message 322 of 342

Contact Info

Sender	lynda.murdock@ca.pwcglobal.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/kafus/20.

Here is my contact info after Feb. 1 (except for the email which will take a couple of days to get set up).

Work #: 250-769-4111 (main line--no separate locals) Work fax #: 250-769-2040 Cell #: 250-488-1566 email: lmurdock@alpinehelicopter.com

I hope that all is well with you.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from any computer.

Message 323 of 342

Farallon

Sender	richard.sanders@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	sanders-r/all_documents/19.

Is this the guy we talked to? ----- Forwarded by Richard B Sanders/HOU/ECT on 03/24/2000 02:50 PM

SHoward@milbank.com on 03/24/2000 01:32:37 PM To: Richard.B.Sanders@enron.com cc: Subject: Farallon

Farallon General Counsel:? Mark Wehrly? 415-421-2132

Richard, I also left you a voicemail about a Knicks/Lakers game in LA on the afternoon of Sunday, April 2nd.

Steve Howard Milbank, Tweed, Hadley & McCloy LLP showard@milbank.com 213-892-4478; 213-892-4748 (fax)

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Message 324 of 342

NSM cases in California

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com']
File	sanders-r/all_documents/3686.

----- Forwarded by Richard B Sanders/HOU/ECT on 11/03/99

09:40 AM -----

SHoward@milbank.com on 11/02/99 11:42:30 PM To: Richard B Sanders/HOU/ECT@ECT, Linda R Guinn/HOU/ECT@ECT, Lisa Mellencamp/HOU/ECT@ECT cc: Subject: NSM cases in California

The Milbank attorney working with me on the Farallon and Legg Mason cases is Roland Tellis phone 213-892-4573; e-mail rtellis@milbank.com

Steve Howard Milbank, Tweed, Hadley & McCloy LLP showard@milbank.com 213-892-4478; 213-892-4748 (fax)

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- att1.htm

Message 325 of 342

Continental Airlines - Elite Upgrade

Sender	eua@coair.com
Recipients	['richard.b.sanders@enron.com']
File	sanders-r/notes_inbox/478.

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: VSWX2D Flight Number: 621 Date: June 08, 2001 Origination: PDX Destination: IAH Seat: 01A*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 1 hour prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS EMAIL. UNFORTUNATELY MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED.

To make changes to your email address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

Thank you for choosing Continental Airlines.

Message 326 of 342

Re: Outstanding Invoices with Frontier Economics

Sender	richard.sanders@enron.com
Recipients	['linda.guinn@enron.com', 'dan.fournier@blakes.com', 'joanne.bennett@blakes.com']
File	sanders-r/all_documents/588.

I have asked my paralegal, Linda Guinn, to respond to your inquiry. Her direct # is 713-853-6104.

"JOANNE BENNETT" <joanne.bennett@blakes.com> 09/20/2000 12:44 PM

To: <richard.b.sanders@enron.com> cc: <dan.fournier@blakes.com> Subject: Outstanding Invoices with Frontier Economics

Mr. Sanders:

We have received a telephone call from Kevin of Frontier Economics regarding outstanding invoices they currently have with respect to Project Stanley.

Kevin indicated that there are three invoices now issued and outstanding (the earliest dated back to July) and he is wondering when they might expect payment of the invoices.

Can you give me any idea as to when the accounts will be paid? I believe Frontier Economics was looking for payment by direct wire if possible.

Thanks, Joanne Bennett Assistant to Dan Fournier Blake, Cassels & Graydon LLP 3500, 855 2nd Street S.W. Calgary, Alberta T2P 4J8 Tel: 403-260-9637 Fax: 403-260-9700 E-mail: joanne.bennett@blakes.com

This e-mail communication is confidential and legally privileged. If you are not the intended recipient, please notify me at the telephone number shown above or by return e-mail and delete this communication and any copy immediately. Thank

you.

Message 327 of 342

Continental Airlines - Elite Upgrade

Sender	eua@coair.com
Recipients	['b..sanders@enron.com']
File	sanders-r/deleted_items/355.

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: UG1YQL Flight Number: 1081 Date: January 05, 2001 Origination: LAX Destination: IAH Seat: 04A*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 2 hours prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS E-MAIL. UNFORTUNATELY E-MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED. PLEASE DIRECT ALL INQUIRIES TO THE ELITE PRIORITY LINE, WHICH CAN BE FOUND ON YOUR ELITE CARD.

To make changes to your e-mail address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

To unsubscribe from OnePass Elite upgrade e-mail notification, please visit <http://onepass.continental.com/emailupgrades>

Thank you for choosing Continental Airlines.

Message 328 of 342

Misc Contact Info and Follow-up re: Ecogas

Sender	randal.maffett@enron.com
Recipients	['herman.manis@enron.com', 'donna.lowry@enron.com', 'beth.ryan@enron.com', 'hope.vargas@enron.com', 'kmahmoud@...]
File	sanders-r/ecogas/1.

See notes below per our meeting earlier today:

all Ecogas mail is currently received by PNE (Marie Cackler) who sorts and forwards Ecogas correspondence. This process will not change. However, effective immediately all mail forwarded by Marie should be sent to Donna Lowry in the Compliance Group. Herman Manis and Hope Vargas will be "point" for ENA on all tax/accounting issues going forward. Andy Edison will coordinate details/process of eventual dissolution of Ecogas. Mark Meier will continue to spearhead the liquidation of ENA's current equity position in DLGP. Mark will coordinate w/ Accounting, Legal and Compliance. Andy Edison will continue to be "point" re: Lyon Credit litigation. Michelle Cash will continue monitoring the Victoria Sterling and Thomas Hall litigations. I currently have the checkbook and will continue to pay incoming invoices/sign checks as directed by Donna Lowry, Herman Manis and/or Hope Vargas.

ACTION ITEMS:

RTM to contact Marie Cackler at PNE and ask her to forward all Ecogas mail to Donna Lowry. (DONE) Andy Edison will research the dissolution process and coordinate appropriately Accounting and Compliance. Mark Meier will begin ENA's initiative to liquidate DLGP.

CONTACT INFO

Randy Maffett x33212 EB2960E (Beth Ryan x57161 EB2960D) Fax 713-345-3744 Marie Cackler (PNE) 512-615-8882 (ext. 241) marie@pnellc.com Fax 512-615-8489

Message 329 of 342

RE: Potential Conflict

Sender	b..sanders@enron.com
Recipients	['gail.brownfeld@enron.com']
File	sanders-r/sent_items/1274.

No, we don't care.

-----Original Message-----

From: Brownfeld, Gail Sent: Thursday, November 15, 2001 4:53 PM To: Sanders, Richard B. Subject: FW: Potential Conflict

Do we care about this? I don't imagine we do but I thought I'd run it by you. Thanks.

-----Original Message-----

From: Clothier, Robert Sent: Thu 11/15/2001 11:17 AM To: Brownfeld, Gail Cc: Subject:

Gail,

One of Dechert's transactional lawyers has been asked to represent Kaiser Aluminum in a derivatives transaction in which Enron Metals is on the other side. We do not believe that this would impair in any way our ability to represent Enron and its other subsidiaries in the York matter. I wanted, however, to bring it to your attention in case you have any concerns. Please let me know that this is ok. Thanks, and sorry to bring this up at such a busy time for you.

Bob

Dechert 215-994-2714 215-994-2222 (fax) robert.clothier@dechert.com

The information contained in this e-mail message and any attachment(s) hereto is legally privileged and confidential information intended only for the use of the individual or entity named above. If you are not the intended recipient, you are hereby notified that you should not further disseminate, distribute or copy this message. In addition, if you have received this message in error, please notify us immediately by collect telephone call (215-994-2714). Thank you.

Message 330 of 342

Energy Venture Fair II

Sender	bswanstrom@lockeliddell.com
Recipients	['sldaniel@aep.com']
File	sanders-r/deleted_items/378.

Locke, Liddell & Sapp LLP is proud to be a sponsor of Energy Venture Fair II being held in Houston at the J.W. Marriott on January 29-30, 2002. Energy Venture Fair II presents a unique opportunity to survey some of the most dynamic investment opportunities in today's energy industry. The conference is a forum for 75 of the best and brightest energy technology companies to educate prospective investors about the opportunity they represent. Last year's event in Boston

attracted over 325 participants, and this year's conference promises to be just as successful. Locke, Liddell & Sapp LLP will be hosting the conference's cocktail reception on the evening of January 29th from 5:30 to 7:00 p.m. at the J.W. Marriott. Due to your involvement in the energy industry, I thought that Energy Venture Fair II would be of particular interest to you. As our guest, you are entitled to a 25% discount off of the registration fee. To receive your 25% discount, please contact Nannette Mooney with Infocast (the conference organizer) at (818) 888-4445, ext. 11, and mention our name. For more details on and to register for Energy Venture Fair II, please click on <http://www.energyventurefair.com/> . If you would like more information about Locke Liddell & Sapp, please click on <http://www.lockeliddell.com> . We hope to see you there. H. William Swanstrom Locke Liddell & Sapp LLP Phone: (713) 226-1143 Fax: (713) 229-2518 bswanstrom@lockeliddell.com

Message 331 of 342

RE: Citgo Pipeline rupture

Sender	cheryl.kondo@enron.com
Recipients	['richard.sanders@enron.com', 'dhassem@citgo.com', 'kenton.erwin@enron.com', 'twanda.sweet@enron.com']
File	sanders-r/all_documents/134.

As I understand it, the meeting is planned for the full day (including lunch), although I do not know the exact starting time. John Odam, the mediator, will most likely set the time. Because Enron in-house counsel duties are shifting from Kenton to Richard Sanders, Twanda Sweet (Richard's assistant) will be finishing the details of the meeting. I am forwarding the information I have to Twanda so she can finish up the details and get this information out to all interested parties. I can tell you that the mediation will be held at the Enron Building at 1400 Smith Street in Houston. A conference room and 3-4 breakout rooms have been reserved. If you have any other questions, Twanda's # is 713-853-9402. Richard Sanders # is 713-853-5587.

DHASSEM@citgo.com 05/23/00 11:11 AM

To: Cheryl Kondo/Enron Communications@Enron Communications cc: Subject: RE: Citgo Pipeline rupture

What are the actual meeting times for the meeting on June 8th, and what is the floor or room number and street address for the meeting place? Thanks.

----- From: Cheryl_Kondo@enron.net[SMTP:Cheryl_Kondo@enron.net] Sent: Tuesday, May 23, 2000 12:40 PM To: john@wildeconst.com; [Stogsdill, Dale](mailto:Stogsdill,Dale); [Hasselman, Dean](mailto:Hasselman,Dean); [Merdian, Jane](mailto:Merdian,Jane); jjohanso@bechtel.com Cc: Kenton_Erwin@enron.net; Richard_B_Sanders@ECT.enron.net.citgo.com; twanda.sweet@enron.com; cheryl_kondo@enron.net Subject: Citgo Pipeline rupture This is to inform you that Richard Sanders will be taking over for Kenton Erwin as in-house counsel in the above matter. Richard is the Enron North America attorney who manages litigation matters and will attend the June 8 mediation. Richard's phone number in Houston is 713-853-5587. Please direct all future questions and comments to Richard.

- att1.htm

Message 332 of 342

CAISO NOTICE: Freedom of Information Request of confidential atta

Sender	susan.mara@enron.com
Recipients	['rcarroll@bracepatt.com', 'christian.yoder@enron.com', 'richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/446.

So, why did the ISO make the attachments confidential if it does not believe that they are confidential. If the attachments are to be released, they should be released to everyone. How do we make that happen?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/11/2001 12:57 PM -----

"Grant, Colleen" <CGrant@caiso.com> 05/11/2001 11:56 AM Please respond to "Sole, Jeanne" To: ISO Market Participants <IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: CAISO NOTICE: Freedom of Information Request of confidential attachments to the DMA report filed with FERC on March 1, 2001

Market Participants:

The CA ISO has been informed of a Freedom of Information Request received by FERC for the confidential attachments to the DMA report filed with FERC on March 1, 2001 (attached). The CA ISO does not believe the attachments are confidential under the CA ISO Tariff and provides this notice as a courtesy only. Market Participant interested in commenting on the request should submit their comments to the FERC directly and should not rely on the CA ISO to communicate to FERC any concerns they may have regarding the request. The deadline for a response by the CA ISO is May 18.

Jeanne M. Sol? Regulatory Counsel California ISO (916) 608-7144

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- Swidler OEA.pdf

Message 333 of 342

CAISO NOTICE: Freedom of Information Request of confidential attachments

Sender	susan.mara@enron.com
Recipients	['rcarroll@bracepatt.com', 'christian.yoder@enron.com', 'richard.sanders@enron.com']
File	sanders-r/iso__pricecaps/344.

So, why did the ISO make the attachments confidential if it does not believe that they are confidential. If the attachments are to be released, they should be released to everyone. How do we make that happen?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/11/2001 12:57 PM -----

"Grant, Colleen" <CGrant@caiso.com> 05/11/2001 11:56 AM Please respond to "Sole, Jeanne"

To: ISO Market Participants

<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: CAISO NOTICE: Freedom of Information Request of confidential attachments to the DMA report filed with FERC on March 1, 2001

Market Participants:

The CA ISO has been informed of a Freedom of Information Request received by FERC for the confidential attachments to the DMA report filed with FERC on March 1, 2001 (attached). The CA ISO does not believe the attachments are confidential under the CA ISO Tariff and provides this notice as a courtesy only. Market Participant interested in commenting on the request should submit their comments to the FERC directly and should not rely on the CA ISO to communicate to FERC any concerns they may have regarding the request. The deadline for a response by the CA ISO is May 18.

Jeanne M. Sol, Regulatory Counsel California ISO (916) 608-7144

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- Swidler OEA.pdf

Message 334 of 342

FW: Recorded Line

Sender	darren.adamik@enron.com
Recipients	['mark.haedicke@enron.com', 'robert.knight@enron.com', 'richard.sanders@enron.com']
File	sanders-r/all_documents/1650.

To all: =01; The below situation was discovered late in the afternoon=20 yesterday,=01;Wednesday, March 14th.=01; Because of this situation, George= =20 McClellan's phone conversations may not be the conversations=01;he thought = were=20 being recorded and his private conversations that he though were not record= ed=20 may have actually been recorded.=01; However, my team has informed me that= =20 trading deals were actually recorded on his channel; therefore, we are not= =20 sure exactly when or how this situation occurred. =01; Regards,=20 Darren Adamik=20 Mgr.-Trading Technology=20 Enron Net Works, LLC=20 713-853-4764=20

=01;

-----Original Message-----

From: Cummings, David A.=20 Sent: Thursday, March 15, 2001 8:50 AM To: Adamik, Darren P. Subject: Recorded Line

Yesterday,=01; George McClellan called the guys looking for an unrecorded l= ine.=01;=20 He talked to Les and inquired which side of his turret was unrecorded,=01;h= e is=20 set up with his recorded line on his right.=01; Les went down to check his= =20 system and George said he couldn't get dial tone.=01; He pushed his left bu= tton=20 to demonstrate.=01; Les checked his cables and discovered they were swapped= .=01;=20 George had been pushing his RIGHT BUTTON to get dial tone on his left hands= et=20 and did not report the problem.=01; George inquired whether or not he was= =20 recorded on the right handset as indicated by the red cap.=01; Les informed= him=20 that this was not the case because his=01;line cords were swapped.=01;=01;T= he problem=20 has been corrected.=01;=01;=20 =01; Normally, our system notifies=01;us of recorded channels that are inactive = or=20 are in trouble.=01; Since this trader uses both handsets regularly, an alar= m on=20 inactivity was not applicable.=01; We are not sure how long this problem ha= s=20 existed.=01; His last=01; move was in September of 2000.=01; On all moves, = all=20 handsets, and recorded channels are thoroughly tested.=01;=20 =01; David =01; =01; =01; David A. Cummings 713-853-0400 Office 281-541-7563 Cell

Message 335 of 342

CAISO Notice: Freedom of Information Act Request -- UPDATE

Sender	susan.mara@enron.com
Recipients	['rcarroll@bracepatt.com', 'christian.yoder@enron.com', 'richard.sanders@enron.com']
File	sanders-r/all_documents/2000.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/15/2001 01:24 PM -----

CRCommunications <CRCommunications@caiso.com> 05/15/2001 10:50 AM Please respond to "Sole, Jeanne"

To: ISO Market Participants

<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: CAISO Notice: Freedom of Information Act Request

Market Participants and Scheduling Coordinators:

The CA ISO has received a number of calls from Market Participants asking to review the confidential attachments to the CA ISO/EOB's March 1 motion requested recently from FERC pursuant to the Freedom of Information Act (request attached). Market Participants argue that they require access to the attachments in order to respond to the FOIA request. The March 1 motion requested confidential treatment for the attachments "although the ISO and the EOB do not believe that confidential treatment is required under the ISO Tariff" because they were nonetheless "concerned that release of the information contained in the appendices at this time could adversely affect the negotiations currently underway between the State of California and the generators". Since these concerns exist, the CA ISO cannot release the confidential appendices. Attached however are the cover sheets to each table which describe in detail what is contained in each table. This information should assist Market Participants interested in the matter to prepare any response they may wish to submit to FERC. Again, Market Participants should not rely on the CA ISO to make their arguments for them.

Jeanne M. Sol, Regulatory Counsel California ISO (916) 608-7144

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- Tables.pdf - Swidler OEA.pdf

Message 336 of 342

FW: Assignment of Tarpon Offshore, L.P.

Sender	g..bushman@enron.com
Recipients	['b..sanders@enron.com']
File	sanders-r/deleted_items/443.

-----Original Message-----

From: Steve Locke <stevelocke@tarponop.com>@ENRON Sent: Monday, November 12, 2001 9:59 AM To: hunterwhite@andrews-kurth.com; Bushman, Teresa G.; Thompson, C. John Cc: Chris Goodrich; Allan D. Keel; sjoysey@mariner-energy.com Subject: Assignment of Tarpon Offshore, L.P.

Gentlemen:

Tarpon Operating & Development, LLC ("Tarpon") and Mr. Allan Keel conferenced by phone on Friday, November 9, 2001, regarding Tarpon Offshore, L.P. ("Partnership") interests. The conversation was in reference to reaching a resolution regarding the funding of projects now in the Partnership portfolio as well as the continued participation of the Limited Partners (ECT Merchant Investments Corp. and Joint Energy Development Investments II Limited Partnership) in the Partnership. Mr. Allan Keel represented that Mr. John Thompson, Vice President & Co-Manager of Enron North America, had authorized him to negotiate a resolution with Tarpon. According to Mr. Keel, the Limited Partners would not be able to fund the previously approved Eugene Island 386 project, and furthermore, did not wish to continue to participate in the Partnership. In light of these facts, the following framework for a resolution was agreed to by Tarpon and Mr. Keel:

- 1) The Limited Partners will assign all interest in the Partnership to Tarpon, the General Partner.
- 2) Tarpon and the Limited Partners will provide mutual releases to each other.
- 3) Enron North America Corp. ("Enron") will retain a contingent liability for certain portions of the Eugene Island 386 project. Specifically, if Tarpon is unable to secure alternative funding for the project, Enron will be liable to Tarpon and will pay immediately upon demand for Tarpon's share of the cost to permanently plug and abandon the wellbore that current exists on the Eugene Island 386 property and for all non-refundable portions (e.g. restocking fees, engineering costs) of Tarpon's share of the cost for the subsea tree/wellhead assembly that has been committed to for the Eugene Island 386 project.

4) Payment by Enron for all legal fees incurred for the preparation and execution of the documents in reference to this matter.

Time is of the essence in the preparation and execution of a document to reflect Tarpon's understanding of the above terms. Tarpon needs this document to be executed no later than Friday, November 16, 2001. If Tarpon does not receive this release by that time, material damage to Tarpon's ongoing business interest is very likely. Tarpon's attorney, Mr. Chris Goodrich, is available to spearhead this effort and prepare whatever documents are required.

If you should have any questions, please don't hesitate to contact me at (281) 493-6336 or Mr. Ralph McBee at (281) 493-5885.

Regards.

Steve Locke Tarpon Operating & Development, LLC (281) 493-6636

Message 337 of 342

Re: Michael Petroleum Corp. Bankruptcy/Case No.99-50569

Sender	richard.sanders@enron.com
Recipients	['lisa.mellencamp@enron.com', 'linda.guinn@enron.com']
File	sanders-r/all_documents/274.

As you will note from the attached e-mails there is some confusion regarding this bankruptcy. I have asked Linda Guinn to coordinate with you to make sure Enron is doing everything we need to do. ----- Forwarded by Richard B Sanders/HOU/ECT on 07/23/2000 08:34 AM -----

Linda R Guinn 07/17/2000 08:33 AM

To: Brenda McAfee/Corp/Enron@ENRON cc: (bcc: Richard B Sanders/HOU/ECT) Subject: Re: Michael Petroleum Corp. Bankruptcy/Case No.99-50569

Brenda:

I just got back from vacation and read your e-mail regarding this bankruptcy. Keeping that in mind, no bells are ringing about this bankruptcy. If a POC was filed, it was done by Bonnie. She handles most everything (inhouse) for us. Please check her files. I assume that Britt is stepping in for her while she's on vacation???? Let me know if you find a POC (if none was filed, then the ballot issue appears to be moot).

Thanks, Linda

Brenda McAfee@ENRON 07/13/2000 02:22 PM

To: Linda R Guinn/HOU/ECT@ECT cc: Bonnie White/Corp/Enron@ENRON Subject: Michael Petroleum Corp. Bankruptcy/Case No.99-50569

Linda, Bonnie White asked me to work with you on gathering information about this bankruptcy. The following sets forth the deadline schedule that I obtained from Pacer regarding this matter:

1) 6/12/00 - Voting Record Date to determine which creditors or entitled to vote to accept or reject the Plan 2) 7/21/00 @ 4:00 pm - Objections due to Confirmation of the Plan 3) 7/21/00 @ 4:00 pm - Deadline for ballots to accept or reject the Plan

4) 7/27/00 @ 9:30 am - Confirmation hearing on the Plan 5) 7/31/00 @ 4:00 pm - Objections due to assignment by Adair Supply 6) 8/14/00 @ 11:30 am - Hearing re objections to claims of Enogex Expl.

I obtained from PACER a copy of the Claims Register Report and it lists ECT as having filed a claim on 3/23/00--but it does not reflect how much is the total claim. Also, included in Debtor's 2d Amended Jt Disclosure Statement, it reflects that Class 4 Creditors consists of all Allowed Unsecured Claims including ECT's claim arising from the termination of an Option

(Corridor) dated 5/28/99 between MPC and Enron and the Confirmation of an Option (Collar) dated 11/6/98 between MPC and Enron (the "Enron Swaps").

I would appreciate your help with answering the following questions:

1) Was a Proof of Claim filed on behalf of ECT and for how much? 2) Who is the person who will handle filing out and signing the Ballot on behalf of ECT either rejecting or accepting the Plan [which is due to be filed on or before 7/21/00]. 3) If we are not owed any monies by Michael Petroleum, or have not asserted a claim against Michael Petroleum, then we can disregard sending in the ballot on behalf of ECT.

I have copies of all these documents, so if you need me to send you anything, please let me know. I appreciate your help with this and please call me if any of this information is confusing. Brenda x3-6536

Message 338 of 342

Citgo Pipeline Rupture Mediation

Sender	cheryl.kondo@enron.com
Recipients	['kenton.erwin@enron.com', 'cheryl.kondo@enron.com', 'tsweet@ect.enron.com', 'richard.sanders@enron.com']
File	sanders-r/all_documents/116.

At Kenton's request, I am attaching a copy of the email he sent to the parties setting out the general expectations for the mediation. I am also attaching a list of players with as much information as I have been able to gather. This meeting has been set for June 8, 2000 in Houston. Citgo gave me three dates to work with. At this point the Bechtel group has not committed to June 8th date, but it is the only date that all the others are available. The Bechtel group is meeting on Tuesday, May 23 and Jim Johanson will notify us thereafter as to their availability on 6/8. Jim is aware that June 8th is the only date the others are available together. I have not heard from the parties regarding how many people from each group will be attending. Robin Jordan, in Houston, has reserved conference room 45 C-1 for all day on 6/8. At the request of John Odam, Robin has also reserved 4 "break out" rooms for the parties to meet in private during the day as business progresses. She was not able to get all four break out rooms on the same floor, but there will be two on the 45th floor and two off the 45th floor. The conference room will have to also serve as a breakout room. If you have any questions, please call Kenton at 503-886-0261 or me at 503-886-0140.

Email sent by Kenton to all parties:

Enron Broadband Services is hosting a meeting between representatives of Citgo Pipeline, Wilde Construction, Bechtel, and EBS, concerning Citgo's recovery of all or part of its repair and cleanup costs relating to the May 1999 rupture of Citgo's pipeline near Luling, Texas.

In the meeting, which will be handled as a non-binding mediation, each party will present its account of what happened, and the parties will attempt to apportion their relative responsibilities for the rupture. If we all do our job correctly, the result will be a written settlement agreement which will put this matter to rest. Mr. John Odam, a Houston attorney experienced in pipeline matters and an experienced mediator as well, will serve as the mediator during the meeting. We request that each party share our optimism that the mediation effort will be successful, and that we can each avoid the higher expenses and endless amounts of time, effort, and uncertainty which would be incurred in a lawsuit.

It is imperative that each of you attend the meeting, and that the representatives come with authority to bind their companies to pay a portion of the repair and cleanup costs. (If you think your insurance may be involved, please fully research your coverage and likely insurance recovery, before the meeting.) Each party is free to bring an attorney, but we ask that the attorney be carefully chosen to have a compromising approach, rather than a hardnosed "just say no" approach that will just waste our time and reflect very poorly on you.

Would you please quickly tell us all the days, from May 17 through June 30, that your representatives are available for this mediation effort in Houston? If you have any questions, please do not hesitate to contact me at 503-886-0261 (Portland).

Thank you,

Kenton Erwin EBS in-house counsel

Player List

Message 339 of 342

FW: Preparing for Legal Action against a retroactive DA suspension

Sender	b..sanders@enron.com
Recipients	[e..haedicke@enron.com]
File	sanders-r/sent_items/52.

Fyi. It looks like Jim is becoming more informed if not more involved. -----Original Message----- From: Williams, Robert C. Sent: Thursday, September 13, 2001 8:40 AM To: Derrick Jr., James Cc: Sanders, Richard B. Subject: FW: Preparing for Legal Action against a retroactive DA suspension Importance: High

Jim, here is a good update on where we stand with a possible filing to protect a retroactive suspension of direct access. Please call me with any questions.

-----Original Message-----

From: Mara, Susan Sent: Wednesday, September 12, 2001 6:17 PM To: Mann, Michael; Sharp, Greg; Frazier, Lamar; Schwarz, Angela; Keeney, Kevin Cc: Blachman, Jeremy; Steffes, James D.; Dasovich, Jeff; Kaufman, Paul; Williams, Robert C. Subject: Preparing for Legal Action against a retroactive DA suspension Importance: High

As of this point in time, the CPUC is NOT expected to vote tomorrow. The CPUC has not said when a new meeting would be held. Although we continue to keep the pressure on, the CPUC vote could be for DA suspension as of July 1. We need to be prepared to take immediate legal action in that event. Here is the plan and what we'd like from customers.

Within a few hours of a CPUC vote, we plan to file at the CPUC for an emergency stay and request for rehearing. As part of that filing, we would need to include all of the points we would raise in the court and declarations from each individual aggrieved party. The declarations would be held completely confidential by the attorney, transmitted directly through our outside attorney and would be filed under protective seal at the Commission. The attorneys are preparing a pro-forma declaration that each party can use to prepare their own. I will e-mail that as soon as I have it. The draft court case is attached. It will form the basis for our CPUC filing. We would expect the CPUC to ignore the filing. If the Commission failed to act on our request by the next regularly scheduled meeting, we would file in court immediately. We would use the same declarations and much of the same filing info in the court case. To the extent we have customers on our filings, we have a much better shot at winning. I have gotten agreements from a number of other ESPs who will join with us. They are: APSES, Strategic Energy, AES/New Energy, American Utility Network, and perhaps Commonwealth. Each of these, in turn, is working to get some of their customers to sign on. I am working with UC's attorney to see if they will join. Our strategy is similar if the Legislature enacts a law with a retroactive date. The major differences are that we would go directly to court and we would have to wait until the bill was signed by the Governor. Some of our ESP and customer friends would likely drop off at that point, because they have less financial harm from an Aug 25 date. If you have customers interested in signing on, please let me know. The customer may contact me or the attorneys directly. Here is contact info: Sue Mara, Enron Government Affairs, (415) 782-7802 Dan Douglass, outside attorney (formerly with Arter & Hadden), preparing CPUC filing (818) 596-2201 Ed Duncan, Arter & Hadden, preparing court case (818) 596-2291

Message 340 of 342

FW: York Paper v. Enron/Holzer

Sender	b..sanders@enron.com
Recipients	['Samuel; Dubas', 'Klein', 'michelle.cash@enron.com', 'Jennifer']
File	sanders-r/sent_items/1221.

FYI -----Original Message----- From: Brownfeld, Gail Sent: Friday, October 12, 2001 10:01 AM To: Sanders, Richard B. Subject: FW: York Paper v. Enron/Holzer

FYI

-----Original Message-----

From: Clothier, Robert Sent: Thu 10/11/2001 10:51 AM To: Brownfeld, Gail Cc: Klein, Samuel; Dubas, Jennifer Subject: York Paper v. Enron/Holzer

Privileged and Confidential

Gail,

I had a productive conversation with Keith Dutill, the Stradley lawyer who I've known for decades and who is now representing York Paper.

The short of it is that he said he is very interested in trying to resolve this before the litigation machinery cranks up. He will discuss it with his client and get back to me. He said that York has "strong feelings" and then agreed with me that Enron feels the same way. He felt that York has a "good business sense" and would be interested in reaching a compromise without spending a lot of dollars in legal fees.

Dutill does not know why two separate summons were filed in Delaware County. It's his understanding that the claims against Enron are largely the same as the claims against Holzer (with perhaps one or two exceptions that still relate to Holzer's employment with Enron). He is working on a complaint that will cover both summons, and expects to file it in the next several weeks, certainly before the mediation conference on November 19th. I said that we should try to start our own discussions before that mediation conference so that the mediator could focus on any areas of disagreement.

Here's how Dutill described York's claims: Holzer worked for York Paper. When Holzer left York, York wanted to prevent Holzer from working for Enron. Holzer wanted to work for Enron, and so did Enron, so there was some "agreement" between Holzer/Enron and York. In that "agreement", Holzer and Enron made "promises" about the way they "would do business" with York. It appears that the promise was that Holzer and Enron would not bypass York Paper and deal directly with York Paper's customers. Yet, according to Dutill, that is what Holzer and Enron did -- cut out York Paper as the middle man. This has resulted in a "fair erosion of business" for York Paper. It is "not just a matter of subsequent solicitation." It also involves "interference with existing contracts" between York and its customers.

So, it would seem that York's claims might include breach of contract, interference with contractual relations and, perhaps, misrepresentation/fraud. Interestingly, he did not mention any of the West Coast and Garden State Paper contracts we have been looking into.

If you have any thoughts, please let me know. I will keep you informed of any further developments.

Bob

Dechert 215-994-2714 215-994-2222 (fax) robert.clothier@dechert.com

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Message 341 of 342

Utilities, Electric: Retail Wheeling: FERC Chief Asks Congress For

Sender	richard.sanders@enron.com
Recipients	[twanda.sweet@enron.com]
File	sanders-r/sent/347.

----- Forwarded by Richard B Sanders/HOU/ECT on 09/25/2000 07:56 AM -----

Jeff Dasovich@EES 09/22/2000 10:24 AM

To: Richard B Sanders/HOU/ECT@ECT, James D Steffes/HOU/EES@EES, Richard Shapiro/HOU/EES@EES cc:
Subject: Utilities, Electric: Retail Wheeling: FERC Chief Asks Congress For Retroactive Rate ...

Richard. FYI. Do we have a date set yet to meet with Tim in Portland?

Best, Jeff ----- Forwarded by Jeff Dasovich/SFO/EES on 09/22/2000 10:23 AM -----

Miyung Buster@ENRON_DEVELOPMENT 09/22/2000 10:08 AM

To: Joe Hartsoe@ENRON, Sandra McCubbin@EES, Susan Mara@EES, Paul Kaufman@ECT, Karen Denne@ENRON, Jeff Dasovich@EES, Mark Palmer@ENRON, James D Steffes@EES, Richard Shapiro@EES, Elizabeth Linnell@EES, Jeannie Mandelker@ECT, filuntz@aol.com, Mark Schroeder@ECT, Peter Styles@ECT, Liz@luntz.com, Mona L Petrochko@EES, Peggy Mahoney@EES, Nicholas O'Day/AP/Enron@Enron, Mike Dahlke/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Rob Bradley@ENRON, Shelley Corman@ENRON, Jennifer Rudolph/HOU/EES@EES cc: Steven J Kean/NA/Enron@Enron Subject: Utilities, Electric: Retail Wheeling: FERC Chief Asks Congress For Retroactive Rate ...

FERC Chief Asks Congress For Retroactive Rate Authority

09/21/2000 Dow Jones Energy Service (Copyright (c) 2000, Dow Jones&Company, Inc.) WASHINGTON -(Dow Jones)- Federal Energy Regulatory Commission Chairman James Hoecker Thursday asked Congress to give the commission new authority to order refunds in the event of electricity price gouging. Hoecker sought the retroactive ratemaking authority in the context of the commission's investigation of power market volatility in California this summer, where prices for San Diego consumers have more than doubled from last year. Congress should give FERC "authority to retroactively correct extraordinary wealth transfers that can happen when prices unexpectedly skyrocket and consumers cannot get out of the way," Hoecker told the House Government Reform Committee. The commission, in response to a petition from San Diego Gas&Electric Co., a unit of Semptra Energy (SRE), has ordered a staff investigation of the market situation in California. FERC will order refunds if it determines that power producers have obtained "unjust or unreasonable" prices for the power they sold into California electricity markets overseen by the state's power exchange and independent system operator, Hoecker said. But under the Federal Power Act, FERC can't order any refunds beyond the Aug. 23 date of its order setting the investigation, the nation's chief energy regulator noted. "We do not now have that authority," he said. "The commission staff is hard at work on completing its fact-finding investigation. Based on the staff report to the commission, we will be prepared to take further measures, as appropriate," Hoecker testified. "The commission expects its actions and the measures adopted by the state will moderate price volatility in California markets," he said. By Bryan Lee, Dow Jones Newswires, 202-862-6647, bryan.lee@dowjones.com

Folder Name: Utilities, Electric: Retail Wheeling Relevance Score on Scale of 100: 49

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 342 of 342

FW: E-Notes: Risk Considerations for Enron Counterparties:

Sender	l.nicolay@enron.com
Recipients	['b..sanders@enron.com', 'elizabeth.sager@enron.com', 'd..steffes@enron.com']
File	sanders-r/deleted_items/448.

FYI. -----Original Message----- From: Steffes, James D. Sent: Friday, November 09, 2001 7:41 AM To: Novosel, Sarah; Shapiro, Richard; Robertson, Linda; Nicolay, Christi L. Subject: RE: E-Notes: Risk Considerations for Enron Counterparties: Failure to Exercise Rights May Constitute Waiver

Agreed.

-----Original Message-----

From: Novosel, Sarah Sent: Friday, November 09, 2001 7:12 AM To: Shapiro, Richard; Robertson, Linda; Steffes, James D.; Nicolay, Christi L. Subject: FW: E-Notes: Risk Considerations for Enron Counterparties: Failure to Exercise Rights May Constitute Waiver

Here's one law firm we want to make sure we never use -- it's Baker and McKenzie

-----Original Message-----

From: Zimmer, Michael J Sent: Wed 10/31/2001 3:21 PM To: Cc: Subject: E-Notes: Risk Considerations for Enron Counterparties: Failure to Exercise Rights May Constitute Waiver

<<...OLE_Obj...>> E-Notes provides regular briefings on new developments in global energy and public utility law. October 31, 2001 RISK CONSIDERATIONS FOR ENRON COUNTERPARTIES: FAILURE TO EXERCISE RIGHTS MAY CONSTITUTE WAIVER The reduction by Moody's Investor Service Inc. of Enron Corp.'s senior unsecured long-term debt to Baa2 from Baa1 this week may be an issue of concern for companies that are counterparts to Enron obligations. This downgrade may have immediate consequences under existing transactions with Enron given that its current credit rating is now two levels above non-investment grade. Any further downgrade into non-investment grade levels could seriously affect relationships between counterparties and Enron, and possibly Enron counterparties and their counterparties. Enron is the principal in nearly one-quarter of all electricity and natural gas trades in the United States. For Enron's power and gas trading counterparties, a credit event such as a downgrade by Moody's may precipitate certain obligations under the terms of their trading transactions. For example, any downgrade, not just a downgrade resulting in a sub-investment grade rating, may entitle a counterparty to require Enron to provide additional credit in support of Enron's purchase obligations. Counterparties should examine all power, gas or other commodity purchase and sale documentation to confirm whether they possess this right. The failure to exercise this right may constitute a waiver and foreclose access to critical performance and payment assurance, threatening to alter the risk assessment and mitigation considerations upon which the transactions were originally based. Furthermore, a failure to declare a credit event or default against Enron could cause a default on the part of the counterparty itself in collateral or ancillary arrangements, such as its financing. The potential for a domino effect, causing defaults or credit events in a series of transactions, is considerable. It is uncertain whether Enron's efforts to obtain new lines of credit will be sufficient to overcome the current difficulties. Regardless, it is prudent to review the terms of existing transactions with Enron or its affiliates, including any guarantees or other forms of corporate credit support. It is also advisable to examine the terms of transactions dependent on, or otherwise ancillary to, transactions with Enron or its affiliates to avoid any consequential effects of the Enron credit ratings downgrade. For further information on how Enron's current financial situation could impact your firm's transaction risk profile, please contact Michael Zimmer at 202.452.7055 or michael.j.zimmer@bakernet.com, Jonathan W. Gottlieb at 202.452.7084 or jonathan.w.gottlieb@bakernet.com or Samir Desai at 202.452.7057 or samir.s.desai@bakernet.com . Michael J. Zimmer Jonathan W. Gottlieb Samir S. Desai

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